



PROFILE OF INTERNAL DISPLACEMENT : SUDAN

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PROFILE SUMMARY

Summary

Sudan: Darfur crisis adds to challenge of mass return to the South following historic peace deal

New prospects for a lasting peace in Sudan after two decades of civil war have been overshadowed by the continuing crisis in Darfur. Sudan has been home to the world's worst displacement crisis. An estimated six million of its citizens have been forced from their homes, as a result of over 20 years of fighting between government troops and allied militias on the one hand and various insurgent groups on the other. In the Darfur region of western Sudan alone, the number of internally displaced people (IDPs) was approaching two million by March 2005, with no end to the suffering in sight.

An historic peace deal was signed in January 2005 by the government and its main opponent in the South, the Sudan People's Liberation Movement/Army (SPLM/A), after two years of negotiations, bringing a formal end to Africa's longest-running civil war. A ceasefire signed in October 2002 had already encouraged hundreds of thousands of IDPs to begin returning to the South. Now that a peace deal has been concluded, many more are expected to return and will need assistance to reintegrate, along with half a million returning refugees. Local communities will equally need support to recover from the devastating effects of war.

The challenges of return in southern Sudan are overwhelming, but have so far received little international attention and support. Two decades of fighting laid waste to huge swathes of Africa's biggest country. IDPs who already tried to return to their areas of origin faced continued attacks and the meagre resources and services available forced many to return to the displaced camps where they lived. The uprooted urgently need physical and legal protection as well as assistance to meet their basic needs along return routes and in areas of return. Local administrations are greatly under-resourced and unprepared for handling the return process. Likewise, return and rehabilitation activities planned by the international community have received hardly any funding during the past two years. In addition to a massive demand for basic services and new infrastructure, a functioning judicial system will be needed to settle land and other disputes. Despite the hopes raised by the peace agreement, the reality on the ground has not improved for millions of IDPs and returnees, many of whom continue to face attacks, hunger and lack of assistance.

In Darfur, over two million people have fled killings, the systematic burning of villages and other crimes against humanity since armed conflict broke out in early 2003. Of those more than 1.8 million sought refuge within Sudan, while another 220,000 escaped across the border into neighbouring Chad. Indiscriminate counter-insurgency attacks by government troops and allied militias have continued unabated in violation of two ceasefire agreements and three Security Council resolutions. As a result of international pressure, access restrictions imposed on humanitarian organisations were eased in mid-2004 in parts of the region. However, ongoing fighting and insecurity still prevent hundreds of thousands of people from receiving adequate assistance. A number of conflicts in other parts of Sudan, notably in Greater Upper Nile, also continue to cause mass displacements, but have received little international attention and hardly any assistance.

Background

Sudan has been virtually in a state of civil war since it gained independence from British-Egyptian rule in 1956, except for 11 years between 1972 and 1983, when the South was provided with some autonomy. However, during the last years of this decade, the Khartoum government took away the autonomy granted

to the South after oil was discovered in southern Sudan, and introduced *sharia* law in the country. These steps fuelled discontent and opposition in the South, and eventually plunged the country into renewed conflict generating the largest internal displacement crisis in the world and killing over two million people. Some six million people are internally displaced, about a third of whom have fled to the north and mostly settled around the capital Khartoum (UN, 30 November 2004). The monitoring of population movements in Sudan is complicated by widespread insecurity, multiple displacements, the scale of the problem and sheer size of the country (2.5 million km²), traditional nomadic migration patterns and the fact that the majority of IDPs are not in camps. In addition, the country is prone to disasters, and famines have killed tens of thousands of Sudanese during the past 15 years.

The civil war in Sudan has simplistically been depicted as one pitting the “Arab” Muslim North against the “African” Christian and Animist South. While there is a long history of tensions caused by the exploitation of the South by the northern-based government, people all over Sudan share similar grievances stemming from marginalisation, discrimination, and inequities in economic development and power-sharing, for example in South Kordofan, eastern Sudan or Darfur. In many regions, people have come to perceive themselves as “Africans” oppressed by “Arabs”, but this reflects less an ethnic reality than a polarisation between those who feel marginalised and those who are aligned to the central government. As a result, the war has no single battlefield, and various conflicts cut across regional and ethnic boundaries. Conflicts are commonly rooted in competition over resources (mainly land, water and oil) between nomadic and agricultural communities or between various ethnic groups. The main belligerents have been the SPLM/A and the Sudanese army with its allied militias, but there are also several armed factions and splinter groups whose destabilising power should not be underestimated. The recurrent recruitment and deployment of militias from nomad or ethnic groups to fight proxy wars against insurgents, and the manipulation of identity for partisan goals have fuelled serious animosities between communities, with disastrous consequences on the social fabric of the country. These intricate conflict patterns have generated complex and volatile displacement situations. Indiscriminate and deliberate attacks on civilians, often with the intention of displacing them, is the main cause of people being forced to flee.

Recent political developments

Two years of negotiations between the government of Sudan and the SPLM resulted in the signing of a historic peace agreement formally ending over 20 years of civil war. In July 2002, the two parties signed the Machakos Protocol, which provided a framework for a ceasefire and broader negotiations. In further talks in the Kenyan town of Naivasha, the parties reached agreement on key issues related to security and the sharing of wealth and power. On 9 January 2005 the final Comprehensive Peace Agreement (CPA) was signed comprising all previously agreed documents, including two protocols on the implementation of modalities and a permanent ceasefire signed on 31 December 2004. Key provisions of the CPA include procedures for the development of an interim constitution and provisions for autonomy for the South during a six-year interim period which would end with a referendum on independence.

As of March 2005 the UN Security Council was planning to deploy about 10,000 peacekeepers to Sudan in order to monitor the implementation of the peace agreement. The contingent would include 750 military observers, a protection force of about 4,000 and an enabling force of round 5000 (UN SRSG, 4 February 2005). The UN peacekeepers would be deployed in addition to the already existing African Union Mission in Darfur (AMIS). However, support for the deployment of UNAMIS peace troops has been “very limited” according to the UN Secretary-General (UN SC, 4 March 2005).

The challenges ahead to ensure that the peace agreement and its protocols are implemented are great. A number of issues included in the peace agreements remain to be resolved, particularly with regard to the so-called transitional areas of Southern Blue Nile (Funj), South Kordofan/Nuba Mountains and Abyei, located between the North and the South. The demarcation of Abyei, for example, is yet to be agreed upon. The dissolution of Western Kordofan State and its re-absorption into Southern Kordofan is unpopular in the region and parties disagree on the location of its capital (Justice Africa, 15 November 2004). A new movement, the Movement of the Elimination of Marginalisation, has also emerged in Kordofan.

The peace process has been criticised for not being inclusive and not addressing other conflicts in the country, as well as for lacking any provisions for a truth commission, prosecution or other accountability mechanisms for past abuses (HRW, 6 January 2005). This environment of impunity has not been conducive to dissuading warring parties in other parts of the country from perpetrating further abuses, particularly in Darfur. The negotiations mainly involved the government of Sudan and the SPLA, but other opponents or people with similar grievances in other regions such as Darfur, Kordofan and the East were sidelined from the talks (Justice Africa, 7 January 2005). Unaddressed conflicts and grievances in marginalised and border areas risk jeopardising the recent gains and have the potential to degenerate into full-scale war, with destabilising effects on the whole region.

Ethnic cleansing in Darfur

In February 2003, shortly after the Naivasha peace process started, a long-overlooked conflict flared up in western Sudan. Two rebel groups, the Sudan Liberation Movement/Army (SLM/A) and the Justice and Equality Movement (JEM), took up arms in protest at the marginalisation and underdevelopment of their region as well as the lack of government protection against recurrent raids by nomads on sedentary communities (ICI, 25 January 2005). Although the population of Darfur is divided into nomadic and sedentary people, they are all Muslims and belong to the same Fur, Zaghawas and Massalit ethnic groups (ICI, 25 January 2005). The government responded with a massive counter-insurgency campaign of air and ground attacks, but mainly relied on local nomad "Arab" militias, the so-called "Janjaweed", to fight the rebels. The offensive has been accompanied by deliberate and indiscriminate attacks on civilians, including massacres, rape, torture, abductions, forced recruitments and systematic looting and burning of villages. As a result, over 1.8 million people have been displaced within Darfur during the past two years, and about 220,000 have fled across the border into Chad (UN R/HC, 1 January 2005). The World Health Organisation (WHO) estimated that 70,000 displaced people had died between March and October 2004 alone, about 10,000 per month (WHO, 15 October 2004).

Human rights crisis

The International Commission of Inquiry for Darfur established by UN Security Council Resolution 1564, concluded in January 2005 that the government of Sudan and its allied militias were responsible for massive war crimes and crimes against humanity. While the Commission found no evidence of genocidal intent, it did not rule out this possibility. In a separate sealed document, the Commission identified individuals responsible for atrocities and recommended that these cases be referred to the International Criminal Court for prosecution (ICI, 25 January 2005). However, as not all Security Council members recognise the jurisdiction of the Court, no decision on implementing this recommendation had been made as of March 2005 (HRW, 25 February 2005).

In violation of the April 2004 ceasefire, three Security Council resolutions and a November commitment by the government to cease aerial bombardments, all sides continued to carry out heavy military operations. The authorities have failed to fulfil their obligations to adequately protect civilians, disarm militias and prosecute those responsible for abuses (UN SC, 4 March 2005). The depopulation of villages and attacks against civilians continued unabated and with impunity throughout 2004 and into 2005, in what leading human rights organisations described as a campaign of "ethnic cleansing" (HRW, 25 February 2005). An upsurge in military activity displaced over 180,000 people during December 2004 alone (UN R/HC, 1 January 2005).

There were reports of government troops and militias preventing IDPs from seeking refuge in towns and from returning to their villages (ICI, 25 January 2005, AI, 3 February 2004). Many of those who tried to return to their villages or tend to their fields were killed, as was reported in late February 2005 in South Darfur (UN CT, 1 March 2005). Villages were burnt to the ground even after people had fled, in an attempt to prevent farmers returning to self-sufficiency and there was evidence that nomads had begun to settle on lands previously inhabited by the displaced (ICI, 25 January 2005, para.329).

Displaced women continued to be subject to rape and sexual violence at gunpoint in camps and in the vicinity of camps. It has been widely reported that women venturing outside camps to carry out activities

indispensable for daily survival, such as searching for firewood or water, have been gang-raped (MSF, 7 March 2005). Due to fear of arrests and stigmatisation faced by the victims, sexual violence was believed to be greatly under-reported (UN SC, 4 March 2005).

Despite dire humanitarian conditions, IDPs in some camps have requested agencies not to deliver food, fearing that this would fuel further assaults and lootings (UN, 3 March 2005). There are concerns that the integration of militia members into the military and civilian law enforcement structures will not contribute to protecting IDPs, as many of them have perpetrated crimes against civilians.

Several mechanisms have been put in place to address protection gaps, with mixed results. The International Organisation for Migration (IOM) was mandated by the UN and the government of Sudan to “oversee and assist in the voluntary return of displaced persons” in August 2004, but there were persistent reports of IDPs being forcibly relocated and returned against their will by the authorities, in spite of their stated fear and security conditions not being conducive to safe, voluntary and dignified return (HRW, 15 November 2004; RI, 10 November 2004; GoS, IOM, UN, 21 August 2004). While protracted and overcrowded camp situations should be avoided in general, any population movements must be strictly voluntary (UN, 3 March 2005).

Several inter-agency protection working groups were set up in Khartoum and Darfur, to collect information, monitor returns and follow up cases of abuses. UNHCR assumed full responsibility for the protection and voluntary return of IDPs in West Darfur, at the request of the Secretary-General in October 2004, and expanded its presence in the field (UNHCR, 11 February 2005). But in North and South Darfur, where the presence of UN agencies with protection expertise is limited, leadership on protection issues and a coherent strategy to facilitate and monitor returns were still lacking (UN, 3 March 2005; HRW, 15 November 2004). IOM and OCHA have not been able to adequately fulfil their coordination roles in these two regions, leaving serious gaps in the areas of protection and IDP camp management (UN, 3 March 2005). At the initiative of OCHA, “lead agencies” among international NGOs and ICRC were appointed to coordinate 27 IDP locations, leaving about 600,000 people displaced without a clearly-identified coordinator in the remaining camps and areas, as of end-2004 (UN RC, 25 January 2005; UN, 3 March 2005).

Response to humanitarian needs

Although the Darfur crisis has been widely acknowledged as one of the world’s most serious humanitarian disasters, the international community took over a year to start responding to it. Despite insecurity, the number of humanitarian workers in Darfur increased from 200 in March 2004 to about 10,000 a year later, mostly owing to the expanded presence of NGOs (UN DIP, 16 March 2005). However, the number of war-affected civilians has increased at a rate which outpaced the ability of aid agencies to provide for their basic needs: from one million in June to an unprecedented total of 2.4 million by the end of 2004, most of them IDPs (UN R/HC, 1 January 2005). This number has soared due to consecutive droughts and exhaustion of local resources. Prioritising assistance to IDP camps risks creating a “pull factor” to these sites, attracting other war- and drought-affected populations in need of assistance. De-centralising assistance to rural and non-camp settings remains a serious challenge to avert further de-populating the countryside (UN, 3 March 2005).

Humanitarian needs were not adequately met in Darfur until mid-2004 owing to insecurity and lack of human and financial resources on the ground. A total of \$1.14 billion has been pledged for Darfur since September 2003 (UN R/HC, 1 January 2005). But it was only in the final third of the year that funds became available (UN RC, 25 January 2005). The food sector was the best funded in 2004, benefiting some 62 per cent of the 2.4 million war-affected people at year’s end (UN R/HC, 1 January 2005). By February 2005 the World Food Programme (WFP) had received over half of the \$438 million it appealed for to feed 2.8 million people in Darfur for 2005 (IRIN, 24 February 2005). Nevertheless, WFP warned that there was a large shortfall in non-cereal food items and that it needed to pre-position food stocks before the rainy season in July, as huge areas would become inaccessible by road.

By contrast, the agricultural sector was the least funded (16%) with close to half a million households in need of seeds for 2005. Conflict and drought resulted in a near total crop failure in 2004. Most of the displaced are subsistence farmers and could not access their fields for planting (UN, 30 November 2004, p.99). Coping mechanisms have been nearly exhausted over years of drought and conflict, meaning that food insecurity is likely to increase throughout 2005. In addition, the disruption of traditional migration routes and the inaccessibility of grazing areas will undermine livestock production. Half of the households did not have enough food to meet their minimum nutrition requirements and IDPs were markedly worse off than local residents. While malnutrition rates remained well above the 15 per cent emergency threshold, there were relative improvements during 2004. The percentage of malnourished children under five fell from 39 to 22 between spring and September 2004 (WFP, CDC, 26 October 2004).

Most IDPs have lost all their possessions and means of survival, and thus are completely dependent on humanitarian assistance. While some displaced have received help from local communities, many have been hiding in isolated areas; others camp at overcrowded sites where shortages of water and sanitation services resulted in a major epidemic of Hepatitis E during the second half of 2004, affecting 18,000 people (UN R/HC, 1 January 2005). Over half of Darfur's population had no access to clean water, and continued insecurity hampered interventions to provide water supplies. Most children's deaths in the region were attributed to acute diarrhoea brought on by the lack of clean water and sanitation facilities, and exacerbated by malnutrition. Injuries and violence were the main cause of death among adults. Death rates in Kalma IDP camp in southern Darfur were seven times the average rate in Africa (WHO, 15 September 2004).

International political response

No tangible progress had been made by March 2005 with regard to a political settlement of the Darfur conflict. Peace talks convened in Abuja in November 2004 broke down after the government of Sudan had launched another major military offensive. Conflict escalated again in southern Darfur in December 2004 and January 2005.

The Sudanese government agreed to the African Union deploying an observer mission to Darfur, the African Union Mission in Sudan (AMIS), at the end of May 2004, mainly to monitor implementation of the April 2004 ceasefire. In October its mandate was strengthened to include securing an environment conducive to the delivery of humanitarian aid, assisting in the process of confidence-building, and monitoring and enhancing the service delivery of local police (EC, 26 October 2004). By March 2005, the AU had only about 1,900 troops deployed, mainly in the state capitals, out of a planned 3,500, to monitor a region the size of France (BBC, 7 March 2005). It has outspokenly condemned violations by all sides and has managed to protect some civilians and prevent some attacks. These efforts have, however, not received adequate support from the international community. As a result of its small numbers and inadequate resources and logistical capacity, the AU mission's impact remains limited (HRW, 6 January 2005). As suggested by the protection working groups, the AU has deployed civilian police teams to support understaffed local police stations in dealing with abuses (UN SC, 4 March 2005).

Forgotten conflicts

Persisting conflicts in other parts of Sudan have been nearly eclipsed by the North-South peace negotiations and the Darfur crisis, which together have attracted most international attention.

In the South, oil-rich Upper Nile is one of the regions most racked by violence. Since early 2004, some 120,000 people have been displaced in the Shilluk Kingdom by clashes between government-backed militias and armed groups that used to support the government but changed sides to ally themselves with the SPLM/A in October 2003 (Christian Aid, 6 May 2004; IRIN, 11 May 2004). Since then, the Civilian Protection Monitoring Team (CPMT), set up to investigate violations of the Geneva Conventions, reported an increase in military action and human rights abuses. These involved deliberate attacks on civilians, including systematic destruction and burning of villages, gang rapes, killings, looting and extortions, committed by all sides (CPMT, 2 October 2004, 25 May 2004, 19 August 2003). This is in violation of the October 2002 ceasefire and its February 2003 addendum, whereby the government of Sudan and the

SPLM/A committed themselves to facilitate the return of people displaced in the region. The January 2004 agreement on the sharing of oil resources has done little to end the fighting.

The link between forced displacement and oil exploration in Greater Upper Nile has been highlighted by successive UN Special Rapporteurs on Human Rights and several NGOs. Observers have consistently reported that the Khartoum government deliberately depopulated oil-rich areas, using violence and sophisticated weapons to assert control and enable oil firms to exploit new sites (ICG, 10 February 2003; HRW, 25 November 2003). The government used proxy wars and divide-and-rule tactics to weaken the southern-based opposition, notably by sowing tensions between Nuer and Dinka ethnic groups.

There is a further threat of violent conflict in Kassala state in eastern Sudan where clashes between the Beja National Congress and government forces in late 2004 and early 2005 escalated into bloody confrontations. The Beja people have been excluded from the Naivasha process and have no forum to negotiate their political demands with the government (Justice Africa, 23 February 2005).

In Greater Equatoria, incursions by the Ugandan rebel group Lord's Resistance Army (LRA) continued to displace people, destroy livelihoods and hamper humanitarian operations in 2004 (UN RC, 15 January 2005). The area along the Ugandan border remains unstable, particularly since the Ugandan army was allowed to deploy its troops inside southern Sudan to pursue the rebels.

Challenges of return

Return in Sudan is inextricably linked to peace, access to land and the provision of services. Despite ongoing fighting, the two-year-long peace negotiations have raised the expectations of millions of uprooted people eager to return home. Hundreds of thousands of IDPs have already returned spontaneously and some go-and-see-visits to the Nuba Mountains have been ongoing since the 2002 ceasefire agreement (F.A.R. et al, 19 January 2005, p.25). An estimated 360,000 IDPs returned from Khartoum during 2004 mainly to Equatoria, Bahr el Ghazal, Upper Nile and Southern Kordofan (IRIN, 21 February 2005). Between 500,000 and 1.2 million people are expected to return during 2005 along with half a million refugees (UN, 30 November 2004, p.44-45). Systematic mechanisms to monitor returns have yet to be set up, but movements are likely to be gradual rather than massive, as IDPs will wait and see whether services and peace come along (Care, IOM, F.A.R., 1 February 2004, p.4). In addition, nearly one third of the country's displaced have fled within the South, and will also need support if they decide to move back to their southern areas of origin or resettle elsewhere.

The challenges of return are overwhelming. Southern Sudan's current capacity to cope with large numbers of returnees is severely deficient, as the region totally lacks basic infrastructure and local administrations are unprepared. In order to reintegrate IDPs, roads, water-points, medical centres, schools and buildings will need to be constructed. Massive population movements and multiple displacements are likely to create conflicts over land, resources or allocation of aid, and in the absence of an effective civil administration have the potential to spiral out of control. Support for the establishment of the rule of law is urgently needed as well as protection mechanisms along return routes. To adjudicate disputes, local conflict-resolution mechanisms will need to be re-habilitated and strengthened. Information about land ownership and property-restitution is lacking. Returning populations will need legal support to tackle these issues and should be provided with adequate documentation (IRC, 1 May 2004).

Nearly a third of the expected returnees are IDPs currently living in Khartoum. The capital hosts nearly two million IDPs, most of whom appear to be willing to go back to their places of origin. There are concerns about the rising number of displaced children left behind in the city by their parents, who think they will have better job and education opportunities there than back in their villages (UN, 18 November 2003, Vol. II, p.332). However, such opportunities are lacking in towns as well. A survey found that three-quarters of IDPs in Khartoum were unemployed, with 44 per cent having received no formal education. Over half of them were under 20 years old (CARE/IOM, 28 February 2003). There should be plans to facilitate the integration of IDPs wishing to stay in the North. Many "urbanised" IDPs will choose to return to urban areas of the South, which still totally lack infrastructure and services. In rural areas, massive investment in

services, agricultural inputs and infrastructure will be needed to boost agricultural recovery and provide sustainable livelihoods for millions of returnees. Many IDPs who had spontaneously returned were forced to go back to camps in Khartoum due to insecurity, taxation, drought and lack of services (CARE, IOM, F.A.R., 1 February 2004, p.4).

So far assistance for returnees is embryonic and ad hoc at best. One of the first priority needs identified by IDPs was transportation; the UN, however, planned to provide transportation only to refugees and vulnerable and “skilled” IDPs (F.A.R. et al, 19 January 2005, p.24-5). An IDP stated: *“We are all vulnerable. Whoever thinks that we can walk from Khartoum to Juba in dignity should step in our shoes and walk with us”* (IRC, 1 May 2004, p.11). Beyond the ethical debates this may raise, the lack of transportation will deter returns. Most IDPs cannot afford the cost of the trip (many had to sell assets to pay for transport), and while walking across a nation half the size of Europe, IDPs will be exposed to numerous abuses (UNR/HC, 15 September 2003, p.11). In addition, families are likely to be separated in the selection process, which is highly undesirable especially during return and reintegration (IRC, 1 May 2004).

In 2004, two inter-agency mechanisms – a Displaced Persons Task Force and a Sustainable Returns Team – were created under the UN Humanitarian Coordinator, to plan and coordinate assistance and protection activities for returning IDPs. Both are chaired by a senior IDP adviser and include participants from the government's Humanitarian Aid Commission (HAC), the SPLM/A's Sudan Relief and Rehabilitation Commission (SRRC), the UN and NGOs. The UN Country Team has also agreed with the government and the SPLM/A on a joint mechanism for tracking return movements and work has begun on its implementation (UN, 30 November 2004, p.14).

The UN plans to establish feeding, health, and shelter centres along 14 major routes and closely monitor returns. While some food supplies have already been pre-positioned, much more remains to be done. There is no organised registration or provision of assistance to new arrivals in the South. Local authorities completely lack resources to meet their needs. While refugees will be provided with basic return packages, no such assistance is planned for returning IDPs. Start-up kits would enable IDPs to contribute rather than being a burden to already impoverished local communities; in addition it would enable them to settle in uninhabited areas (IRC, 1 May 2004, p.14-15).

IDPs seriously unprotected

A lot remains to be done in order to create an environment conducive to sustainable return in Sudan. Although the government has officially undertaken to ensure the safety and protection of IDPs, displaced people all over the country continue to be exposed to serious violations of human rights and the laws of war, including along return routes and in areas of return. One million mines could also obstruct return and agricultural recovery, if not cleared. While 21 out of 26 states were affected in Sudan, information was only available for 11 states (JAM, 25 January 2005).

In the October 2002 ceasefire agreement and its February 2003 addendum, the government and the SPLM/A committed themselves to protect civilians and to allow the immediate and voluntary return of IDPs. However, during 2003 and 2004, the CPMT international monitors reported violations of the ceasefire and gross human rights abuses against civilians, many of whom had recently returned. In both Upper Nile and Abyei – a key transit areas for returning IDPs – the Team reported that returnees had been victims of gang rapes, killings, lootings, extortions, abductions and denial of freedom of movement and choice (UN, 30 November 2004, p.45; CPMT, 25 May 2004, 7 December 2004, 19 August 2003). In both regions, the authorities had failed to punish the perpetrators and take preventive measures. The capacity or willingness of local authorities to guarantee the protection of returnees en route and in areas of return is very limited and needs to be reinforced.

Humanitarian situation

IDPs in Sudan are among the most destitute in the world. Most of them do not live in camps but are scattered across isolated areas, and insecurity has often prevented agencies from assisting them or assessing their needs.

Many areas remained short of food in 2004, as a result of population movements, heightened insecurity and drought. IDPs and returnees are commonly worst affected by malnutrition (FAO, 12 February 2004, p.23). In areas affected by displacement, malnutrition rates were particularly high, with rates ranging between 21 and 40 per cent in Darfur, Greater Upper Nile, Northern Bahr El Ghazal, Red Sea and parts of Eastern Equatoria (FAO, 12 February 2004, p.23; UN, 18 November 2003).

WFP anticipated that 3.2 million people in Sudan (excluding Darfur) would need food aid in 2005. The areas worst affected by food shortages were Kordofan, Bahr el Ghazal, Kassala and the Red Sea State. But out of \$302 million appealed for to cover shortfalls, only about eight per cent had been received as of end February 2005, standing in sharp contrast to the 50 per cent already received for the Darfur emergency (IRIN, 24 February 2005).

Disease and lack of adequate food were rampant in Upper Nile where intense conflict and late rains resulted in widespread crop failure. For example, as a result of food shortages and the population influx of over 25,000 IDPs in Malakal town, food prices sharply increased (IRIN, 24 February 2005; IRIN, 7 March 2005).

Shortages of safe drinking water and a critical lack of access to health facilities were also common in areas of displacement. There was only one doctor per 100,000 people in southern Sudan, and Bahr el Ghazal reportedly had no doctors at all (IRIN, 7 March 2005; Brookings/ect, 25 November 2002, p.5). Estimates also suggest that less than 40 per cent of the population in southern Sudan had access to clean drinking water. As a result, one in every four children dies of preventable and water-borne diseases every year in Sudan before reaching the age of five, and one in nine women dies in childbirth (UN, 30 November 2004, p.46).

Khartoum house demolitions

Despite an encouraging government initiative to grant land to IDPs in Khartoum, the actual way this process has been carried out has raised serious concerns about the government's commitment to the project, as thousands of displaced families have been left homeless. Out of some two million IDPs in Greater Khartoum, the vast majority are living in squatter areas and about 270,000 are settled in four overcrowded camps (F.A.R. and CARE, 27 January 2004, p.1). Since the government started re-planning the camps in 2003, over 40,000 displaced families have had their houses demolished alongside schools, health facilities and latrines (F.A.R. et al, 19 January 2005). Thousands of families have been left with no place to live, because plots allocated are too few and no alternative shelters have been provided. There appeared to be no government policy addressing the needs of those excluded from accessing new plots, especially IDPs who have no identification, female-headed households and those having arrived in Khartoum after 1996 (F.A.R. et al, 19 January 2005).

Less than a quarter of the households have received a new plot, and only very few could afford to start re-building their houses (Interagency, 19 January 2005). By November 2004, 80 per cent of the IDPs were living in improvised shelters and many were forced to return to the South as a consequence of the demolitions (Interagency, 19 January 2005). Many IDPs have been relocated to isolated and barren areas without basic services and job opportunities. Thirty per cent of displaced children around the capital were malnourished in 2004 with less than 10 per cent able to eat three meals per day (F.A.R. et al, 19 January 2005, p.24-5).

Access

During 2004, the security situation remained very volatile throughout Sudan, with great access problems in Darfur, an upsurge of conflict in Upper Nile, mounting tensions in the East and continued LRA attacks in Equatoria, which hampered the delivery of humanitarian assistance to IDPs. The UN expects security to further deteriorate in 2005 particularly in the East and potentially in the North as well as in the states of Southern Blue Nile, Upper Nile and Darfur (UN, 30 November 2004, p.5).

While international advocacy and pressure temporarily improved access in Darfur during 2004, the situation deteriorated towards the end of the year and was not expected to improve again in the short term. During the first half of 2004, ongoing conflicts and government restrictions on travel permits allowed humanitarian agencies to reach less than five per cent of the displaced, and only 13 per cent of the war-affected people in the region (UN, 4 May 2004; UN R/HC, 10 January 2004). However, the government eased visa and access restrictions following the signing of the Joint Communiqué with the UN Secretary-General in July 2004, allowing the deployment of some 10,000 personnel who were believed to reach about 88 per cent of the affected population by the end of the year (UN R/HC, 1 January 2005). At the same time, an upsurge of fighting during the last months of 2004 and early 2005 curtailed many humanitarian operations, and whole areas were intermittently cut off from assistance. Incidents involving the killing, abduction and harassment of relief workers including attacks and looting of humanitarian convoys have been on the rise since September 2004 (UN RC, 15 February 2005). Save the Children-UK pulled out from Darfur in late December 2004, following the death of four of its staff members.

National response

Since 1988, the government has developed several initiatives to respond to the IDP crisis at the policy and institutional level. In 1995 it set up the Humanitarian Aid Commission (HAC) which is responsible for managing protection and assistance to IDPs and in 2003 it created a Ministry for Humanitarian Affairs. In 2002, the government revised its 1990 national IDP policy and committed itself to creating an IDP department within the HAC, as well as an IDP Support Fund (GoS, 1 October 2002). Neither of these initiatives, however, materialised and the government's response to displaced people remains insufficient. The HAC has offered minimal assistance, and its early warning system appears to focus exclusively on natural disasters rather than man-made risk factors (UN, November 2002, p.21). In addition, government officials appear to treat IDPs around Khartoum, including those recently displaced from Darfur, as “economic migrants” rather than people displaced by war with a legitimate right to humanitarian assistance.

The SPLM/A established a relief organisation, the Sudan Relief and Rehabilitation Commission (SRRC), in 1985. While it seeks to coordinate and facilitate humanitarian assistance and rehabilitation intervention in SPLM/A-controlled areas of Sudan, its impact has been limited due to poor funding. In SPLM/A-controlled areas, an IDP policy was also drafted in 2002. Although never endorsed, it was an attempt by the international community to engage a non-state actor in assuming its responsibilities for protecting IDPs on the basis of international humanitarian and human rights law.

In order to assist return and reintegration following the signing of peace, the SRRC appealed for \$866.7 million to donors. The pledge was intended to cover basic needs and services, transport, food, health, housing, and education for returning IDPs and refugees (SRRC, 1 January 2004).

The HAC and the SRRC also moved towards a harmonised strategy to prepare and facilitate return and reintegration by jointly identifying a set of “urgent needs” in 2004 (GoS, SPLM, 29 September 2004). These included transport, road repair, food, shelter along routes of return, mine action, protection, health and HIV/AIDS and a community-based approach to resettlement and reintegration.

International response

Humanitarian agencies in Sudan have been operating in a very complex environment with great logistical challenges given the sheer size of the country and the dispersal of IDPs. Since 1989, Operation Lifeline Sudan (OLS) has been the main mechanism for negotiating access with warring parties in order to deliver humanitarian assistance in SPLM/A-controlled territories of southern Sudan. Under the overall coordination of the UN Humanitarian Coordinator (HC) in Khartoum, OLS, led by UNICEF in Nairobi, delivers international relief to SPLM/A-controlled areas of southern Sudan from its logistical base in Lokichoggio (Kenya). For coordination in the South, the UN HC in Khartoum is assisted by a Deputy HC, based in Rumbek and Nairobi.

During 2005, humanitarian needs are expected to rise significantly as people will return to the war-ravaged southern region, which lacks most basic services and infrastructure. In addition, significant emergency

assistance will also be needed as there is widespread crop failure, and conflicts are expected to continue unabated and may escalate in some areas (UN, 30 November 2004, p.8). In 2005, the United Nations and its partners requested a total of \$1.48 billion, a significant increase compared to 2004. As of March 2005, the UN 2005 Work Plan had received only about five per cent of the required funds (UN DIP, 16 March 2005). While support to the return and reintegration of displaced Sudanese is a key priority of the 2005 Work Plan, nearly half of the requested budget is planned to be spent on food aid (UN, 30 November 2004). UNHCR, which will assist returning IDPs in areas of refugee return in southern Sudan, has appealed for \$62 million for their activities in 2005, but so far, the programme has received no funds (UNHCR, 22 February 2005). In order to create conditions conducive to return, donors will need to better support reconstruction and rehabilitation projects, which received little funding in 2004. Without adequate and timely funding, attempts to stabilise the humanitarian situation of millions of uprooted Sudanese and lay the foundations for recovery will be seriously hindered.

As of late November 2004, total donor contributions towards assistance activities in Sudan amounted to \$839 million, covering 70 per cent of the total funding requirements for 2004 (UN, 30 November 2004, p.15). This represented nearly three times the contributions received for 2003, but was largely driven by the response to the Darfur crisis. By November 2004, 77 per cent of the requirements for Darfur were met, while the massive needs of returning populations to southern Sudan received only 35 per cent of requested funds (UN, November 2004, p.16).

During his third official mission to Sudan in 2002, the Representative of the Secretary-General on Internally Displaced Persons made several recommendations in view of the return of IDPs, notably that IDPs should be allowed to make a free and voluntarily choice on whether to return to their areas of origin, resettle somewhere else, or stay in areas of refuge and be assisted accordingly (UNCHR, 27 November 2002, p.18, para. 58). If the South was to become independent, IDPs who wished to stay in the North should have the same rights as any other citizens, and should not be forced to return (OCHA, 18 December 2002, p.17).

While the increased number of humanitarian workers in Darfur has improved “protection by presence” it is no substitute for concrete measures to end impunity, and it cannot alone build an environment conducive to the respect of human rights and protection (UN, 3 March 2005). The lack of political solutions may endanger the work of humanitarian workers altogether, as clearly exemplified by the case of Safe the Children-UK. Effective international engagement is needed to ensure that belligerents respect their obligations under international humanitarian and human rights law. As recommended by the Representative of the Secretary-General on IDPs during his last mission to the region, donors should also expand their support to the African Union, given its position as an authoritative conflict resolution institution in Africa (UNCHR, 27 September 2004). Its monitors have already begun to improve the protection environment in Darfur, albeit with limited resources.

In reaction to the deteriorating crisis in Darfur, the UN launched a revised humanitarian appeal for over \$141 million in May 2004, followed by short-term action plans adopted in June and September 2004, as well as in early 2005. The UN 2005 Work Plan for Sudan also identifies key priority areas for Darfur including protection, voluntary returns, and quality of assistance, camp management, registration and common services.

The peace deal reached between the government and the SPLM/A in early 2005 is a historic achievement in Sudan, but the challenges of implementation over the next six years are unmeasurable. The consolidation of peace should go hand in hand with adequately addressing the grievances of people in areas so far neglected, ensuring security and the sustainable reintegration of uprooted people. An international peace mission with a strong human rights component should be deployed in Sudan in order to monitor the ceasefire and create the conditions conducive to a safe and sustainable return. Unless the current momentum for peace in southern Sudan is sustained by international assistance and respect for human rights is strengthened throughout the country, another opportunity could be missed.

CAUSES AND BACKGROUND OF DISPLACEMENT

Background

The National Islamic Front coup in 1989 and strengthening of SPLA led to increased displacement during the early 1990s

- Since the breakdown of the Addis Ababa agreement in 1983 there has been continuous conflict in Sudan
- Military offensive by Government in the early 1990s causes increased number of IDPs and refugees
- Intensified SPLA campaign in the late 1980s resulted in more civilian displacements as southerners fleeing the fighting sought refuge in the government-held regional capitals-Juba, Malakal, Wau-or in towns that had been captured by the SPLA
- Assaults on civilians in Bahr al-Ghazal resumed in 1992 when the army and the Popular Defense Force (PDF) reopened the railway linking north and south Sudan
- Government tactic to exploit ethnic rivalries by creating tribal militias
- Splits within the SPLM/SPLA and associated interethnic fighting among southerners cause new displacements in the 1990s
- In July 2002 the two parties signed the Machakos Protocol providing the framework for a peace agreement which will lead to a six years transitional period at the end of which a referendum will be held
- Despite the peace process, and a cease fire in September 2003, conflict continues to displace hundreds of thousands in Darfur since early 2003
- In eastern Greater Equatoria the LRA continue to attack civilian populations
- Fighting sporadically erupt in eastern Upper Nile in relation with oil exploitation

“As the Horn of Africa analyst, Dan Connell, notes, Sudan has been at war with itself since the day it emerged from colonial rule in 1956. By then, the stage for conflict had already been set by the British and the Egyptians by way of a scenario of glaring inequalities between the north and the south, with much of the country's resources and the instruments of policy-making concentrated in the Arab north. In such a context, the mostly Christian and animist southerners took up arms to fight against the imbalance.

There has been almost constant conflict, alleviated only by an 11-year hiatus from 1972 when a peace deal gave southerners limited regional autonomy. But fighting, led by the SPLM/A, resumed in 1983 after the then president, Ja'far Numayri, dissolved the regional government and imposed Islamic shari'ah law nationwide.

He was overthrown in 1985 in a military coup led by Lt-Gen Siwar al-Dhahab, who dissolved Numayri's ruling Sudanese Socialist Union, then paved the way for a return to civilian rule by way of elections in 1986, which brought to power Sadiq al-Mahdi, leader of the Ummah Party, as prime minister. Al-Mahdi was in turn deposed in 1989 in another military coup, this time led by the current president, Lt-Gen Umar Hasan al-Bashir.” (IRIN, 12 February 2004)

"The conflict in the Sudan is multifaceted and has deep historical roots. The conflict is depicted as regional: north (including east and west) versus south. It is religious: overwhelmingly, northerners are Muslims, and

southerners are Christians or adherents to traditional African religions. It is racial, ethnic, and cultural, pitting northern 'Arab' against southern black African. It is about political and economic power: elite northerners have dominated the Sudan politically and economically since independence and continue to covet the south's natural resources; southerners seek their fair share of the political and economic pie (though some want independence); and political conflicts exist among various groups in both the north and the south. Also, even the geographic description of the conflict as north versus south is not fully accurate. People in some areas that are geographically in the north, such as the Nuba Mountains, Ingessinia Hills, and Abyei, may be ethnically or culturally more 'southern.'

[...]

The southern opposition has been led primarily by the Sudan People's Liberation Movement (SPLM) and its military wing, the Sudan People's Liberation Army (SPLA), which advocate political power-sharing within a unified secular Sudan. John Garang, a Dinka (one of the largest ethnic groups in the south), heads both the SPLM and the SPLA. The SPLM and SPLA participate in the National Democratic Alliance, which represents a wide range of opponents to the NIF government. In 1991 a split in the SPLM and SPLA led to the formation of new southern splinter groups and to deadly interethnic fighting among southerners." (Ruiz 1998, pp.139 - 140)

"The evolution of the civil war into a countrywide conflict, continued through 1988. SPLA [Sudan People's Liberation Army] tactics had evolved from localized ambushes in northern Upper Nile province to a full-blown capacity to threaten major district and provincial capitals. A successful SPLA offensive termed 'Bright Star' gave the SPLA control over large areas of the southern Sudan, including the towns of Torit, Kapoeta, and Kajo Kaji.

The campaign also resulted in more civilian displacement, however. Southerners fleeing the fighting sought refuge in the government-held regional capitals-Juba, Malakal, Wau-or in towns that had been captured by the SPLA. Almost overnight, the number of internally displaced in Juba increased from 50,000 to 90,000. (By early 1990, the number of internally displaced southerners receiving regular food assistance in Juba had doubled to 185,000) Their needs nearly overwhelmed the resources of almost a score of NGOs operating in the city."(Ruiz 1998. P.145)

"On June 30, 1989 [...], a military coup deposed the elected civilian government of Sadiq al-Mahdi and brought al-Bashir and the NIF-backed National Salvation Revolutionary Command Council (NSRCC) to power. The NIF took significant steps to consolidate its military and political position. It purged the military and other security forces of many of their more moderate officers, banned almost all trade, professional, and labor organizations, and purged women from many government posts. It 'Islamicized' the judiciary and the universities. Many observers have argued that the NIF's fundamentalist leaders are intent not only on maintaining northern Arab Muslim control but also on eradicating southern culture and imposing Arab culture and Islam nation-wide.

Within a few months of coming to power, the NSRCC/NIF leaders made clear their, more aggressive military intent. Within months, the NSRCC disbanded the RRC [Relief and Rehabilitation Commission], and appointed new, ultraconservative commissioners to head agencies dealing with the displaced. It then restricted the activities of NGOs and even forced some out of the north. RRC officials visiting Washington in December 1989 said that the government 'would not allow any humanitarian program in the southern Sudan that does not support our [the government's] military objectives.'

[....]

By 1992, the NSRCC/NIF's third year in power, the government had received arms from Libya, Iraq, and China and was ready to win back the territory it had lost to the SPLA. A rearmed Sudanese military went on the attack and powered its way up the White Nile

[...]

In 1993 the Sudanese military expanded its offensive in the south. Tens of thousands of Equatorians fled Kapoeta and Torit toward the frontiers with Uganda and Kenya. The government bombed SPLA towns and villages and was able to displace the SPLA from a number of areas. By June, the population of Juba, usually some 100,000, had swelled to as many as 250,000. An estimated 450,000 displaced were located

elsewhere in eastern Equatoria, and 220,000 others were located at the 'Triple A camps' (Ame, Aswa, Atepi) and at Mundri, Yambio, and other locations. The government offensive created an additional 50,000 internally displaced in the Kaya/Morobo area in August 1993, most of whom headed toward the Ugandan border. Eventually, nearly 400,000 southern Sudanese fled to Uganda and Kenya." (Ruiz 1998, pp.147, 151 & 152)

"There has been continuous conflict in the Sudan between the Sudan People's Liberation Movement/Army/Army (SPLM/A/A) and the Government of Sudan (GoS) since the breakdown in 1983 of the Addis Ababa agreement. Under the auspices of the Inter-Governmental Authority on Development (IGAD), supported by observers of key donor governments (USA, UK, Italy and Norway), the GoS and the SPLM/A have over the last two years engaged in a peace process, which led to signing of the Machakos Protocol in July 2002. The Protocol provides the framework for a peace agreement based on a six-and-a-half year transitional period that is anticipated to provide significant autonomy for the South until a referendum on self-determination is held.

Nonetheless, the situation in the Sudan is further complicated by the interrelated layers of conflict, which exist beyond those explicitly covered in the peace process. Conflict in Greater Darfur reached significant levels by the end of August 2003, although a cease-fire agreement was reached between the GoS and the Sudan Liberation Army/Movement (SLM/A) in September. Incursions into eastern Greater Equatoria by the Ugandan based Lord's Resistance Army (LRA) continue to terrorise local communities, destroy livelihoods and jeopardise humanitarian operations. The Equatoria Defence Force (EDF), which operates in the same theatre, is also a source of instability in the south. Sporadic and severe fighting linked to oil field developments erupts periodically in western and eastern Upper Nile. In addition, militia and other rogue elements in parts of Upper Nile and elsewhere throughout the country perpetuate insecurity and instability. This is compounded by inter and intra ethnic clashes originating in 'traditional' cattle-raiding activities, now severely exacerbated by the proliferation of small-arms." (UN, 18 November 2003, Vol.I, p.16)

"The minority Arabs engaged in low level skirmishes with sedentary farmers until the 1970s. But since the mid-1980s, following a prolonged drought in 1983, skirmishes with subsistence farmers developed into larger-scale battles as the nomads were pushed further south.

At the same time, successive northern governments began using Arab militias to crush rising dissent in the region, including an SPLA-led rebellion in 1991-1992. Analysts say this gave the Arab nomads leverage with the government, which rewarded them with local administrative positions, financial gains and arms, at the expense of the "African" tribes.

"Government policies were instrumental in transforming 'traditional' tribal conflict over access to receding grazing land and water into a new type of conflict driven by a broader ethnic agenda," says the International Crisis Group (ICG) think tank." (IRIN, 31 December 2004)

See IRIN "Special report III: Chronology of events" from 1955-2004, 25 February 2004 [External Link]

See IRIN, Chronology of key events in 2004, (11 Jan 2005) [External Link]

See Reuters "Chronology: Key events during Sudan's conflict" in the bibliography below.

Conflicts over land and management of natural resources in a volatile environment (2004)

- Alliances and agreements between different production groups (pastoralists and farmers) are key to manage and share resources as livelihoods are based on mobility, diversification of land use and economic activities

- Competition over management of resources is the major cause of conflicts in Sudan and were exacerbated by droughts in the 1980s-1990s and the introduction of mechanized farming
- Conflicts over land and water access have been exploited by political opportunists to seed further unrest such as between Dinka and Nuer in the Bor area in the 1990s, intra-Nuer conflict along the Sobat river and conflict between Nuba people and Bagarra tribes in South Kordofan
- While the Ngok are part of the Dinka tribes in the south, their leaders favored to be administered by the central (northern) government with the Misseriya Arabs
- Dinkas predominantly agricultural people and Misseriya Arabs mainly nomadic herders, maintained a semi-symbiotic relationship to share resources
- With the civil war and GoS and SPLM/A divide and rule tactics relations considerably deteriorated in Abyei and 70% of the Ngok Dinka were displaced
- Government's Arab militias forced Dinka to flee to the north, thus Abyei was depopulated Misseriya Arabs occupied Dinka's traditional land
- By 1965 the national conflict spread to the Dinkas who joined the southern rebel movement
- Post 1972 referendum for the Ngok Dinka to decide whether to remain in north or join the south was never held
- In 1983 the north-south conflict resumed and the Ngok Dinka joined the SPLM/A

“With the exception of some areas in Eutoria where rainfall is relatively abundant and reliable, the ecologic setting of Sudan can be described as a non equilibrium environment. Livelihood systems are event driven; mobility, diversification of land use and economic activities and the opportunistic use of key resources such as wetland depressions (the Nilotic basin) micro-climates (Djebel Mara in Darfur, Nuba mountains) are driving forces of these livelihood systems.

Over the years, local populations, mainly organized along lineages and kinships, have been striving to find appropriate mechanisms for managing this disequilibrium. Tools such as alliances between different land user groups (pastoralists and sedentary farmers), negotiations of land management arrangements like trekking routes and secondary land use rights, and overall creativeness in exploiting the natural resources confirm the importance of such alliances. The resultant mobile systems such as shifting cultivation and pastoralism, are, beyond any doubt, still better adapted and sustainable in this environment than more sedentary exploitation methods. The problems associated with the mechanized farming programme in the transition zone are evidence of this.

[...]

The management of mobility is one of the main responsibilities of local customary authorities. Arrangements and agreements are negotiated between different stakeholders for obtaining access to land and natural resources, for establishing the conditions of rights of way through different “home” territories and for sharing natural resources. Whereas negotiations often result in agreements, competition for access to and use of land and natural resources remains a main cause for conflict in Sudan. As land and natural resources management are closely interwoven with social organization, these conflicts are not expressed on an individual basis. Belonging to a group and being part of its social network is an essential part of the survival strategy of rural people in Sudan, and conflicts erupt along these social, often tribal, lines.

[...]

Drought conditions in the 1980s and 1990s put enormous pressure on the natural resource base, resulting in some degradation of pasture lands, failed crop production and the drying out of watering points. The drought caused pastoral groups to search for dry season grazing areas and water further southwards over longer periods and earlier in the season. Conventional agreements between communities on the migratory routes become more complicated; ancient trekking routes, for instance, change drastically.

[...]

There is a tendency to resort to ‘easy and fast’ military solutions to resolve social and economic problems. Land conflicts create a fertile substratum for political opportunists to seed unrest for different reasons. Major conflicts between Dinka and Nuer tribes in the Bor area during the early 1990s, intra Nuer

confrontations along the Sobat river, Nuba people and Bagarra tribes in South Kordofan, Misseriya and Rizeigat tribes against Dinka along the Bahr el Arab river, all these conflicts resulting from confrontations involving land and water access.” (Paul De Wit et al, 1 August 2004, p.3-4)

“As negotiations concerning Abyei’s future political affiliation draw near, the civilian population is uncomfortably caught between the jockeying parties. Although the civilians are looking forward to the promise of peace, and are further relieved that combat action in their area has ceased, tensions are still running high. Much of this uneasiness is in direct response to the criminal nature of the allegations highlighted in this report.

One root of the problem facing the negotiators in Nairobi extends back to the nineteenth century. During this period, in order to foster peaceful relations, the chiefs of the Ngok Dinka chose to link their tribal territory with the northern territories of the Misseriya Arabs. Since the Dinka economy was predominantly agriculturally based and the Misseriya Arabs predominantly nomadic/herder based, the people of the region maintained a semi-symbiotic relationship. During this period, disputes and conflicts were settled using traditional tribal methods. Unfortunately, as a result of the Sudanese Civil War and the SPLM/A and the GoS arming and advising their respective allies, this relationship severely deteriorated.

During the war the Ngok Dinka (SPLM/A supported) have suffered the most. It is estimated that 70% of Ngok Dinka have been displaced to other regions in Sudan as a result of the conflict. This displacement, and the resulting vacuum, encouraged many Misseriya Arabs (GoS supported) to move into areas that had traditionally been Ngok Dinka land. This “occupation” of traditional Dinka lands by Misseriya Arabs remains a point of resentment.” (CPMT, 5 February 2004, pp. 6-7)

“While the causes of the conflict are multiple and complex, they can be summed up as being rooted in racial, ethnic, cultural and religious differences characterized by gross disparities between the Arabized Muslim north, comprising one third of the country in terms of land and population, and the south, which is more indigenously African in terms of race, ethnicity and religion, with a mostly Christianized, modern elite. Cutting across this dualism are non-Arab Muslim groups in the north who feel as disadvantaged and marginalized as those in the south, some of whom have joined SPLM/A and other groups.

[...]

Although the Ngok are part of the complex of Dinka tribes in the south, they have been administered as part of Kordofan Province and Western Kordofan State in northern Sudan. Their anomalous administrative position results from a decision made by their leadership to be associated with the north as a means of receiving protection from the Central Government. As a result, the area developed into a north-south bridge which the British administration had seen as a model of interracial, interreligious and cross-cultural peaceful coexistence and cooperation, somewhat comparable to what the Sudan was to symbolize for Arab North Africa and sub-Saharan Black Africa.

For more than 10 of the 17 years of the first conflict, the Abyei area remained peaceful as the respective leaders of the Dinka and the Missiyira Arabs, Deng Majok and Babo Nimir, offered their people a model of friendship and cordiality, which was emulated by them. By 1965, however, the conflict between north and south had spread into the area as young Dinka men joined the rebel movement in the south. Although the peace accord that ended the first conflict provided for a referendum to be held for the Ngok Dinka to decide whether to remain in the north or join the south, that referendum was never held. With the Abyei situation unresolved, local resentment and rebellion contributed directly to the increase in tensions and hostility that eventually contributed to the resumption of the north-south conflict as the Ngok Dinka joined the SPLM/A in large numbers and came to occupy significant positions in the leadership of the Movement. Meanwhile, the overall conflict was aggravated locally by the use of Arab tribal militias which devastated the Dinka and forced the people to move out of the area, leaving the land largely depopulated. Relatively few Dinka remained in Abyei town because most of the population had fled to the north.” (UNCHR, 27 November pp.2-3)

In oil-rich areas people flee proxy wars involving government-backed ethnic militias since the 1980s

- Conflict has been especially intense around the oil fields in Unity State (Western Upper Nile, in the Nuba Mountains, in parts of Bahr El Ghazal, Eastern Equatoria, and Southern Blue Nile
- In 1999 UN Special Rapporteur Leonardo Franco reported that between April-July half of the population of Ruweng County was displaced by GOS attacks
- Assessment commissioned by the Government of Canada in 1999 concluded that the security situation had worsened when the oil pipeline became operational: up to 75 percent population displacement were recorded in some districts in 2000
- Claimed that the growing oil revenues at \$900 million per year (2001) has widened the strategic imbalance between the government and the opposition
- Human rights observers and humanitarian organisations reported that oil exploitation was accompanied by systematic human rights violations
- GoS has used proxy war strategy to protect its interests in the oilfields using Baggara and breakaway Nuer factions
- GoS ethnic divide and rule tactics fuelled conflict between the Dinka and Nuer groups
- Hundreds of people forced to flee by clashes in February 2004 and humanitarian agencies pulled out of the area due to insecurity

“Chevron first discovered oil in Heglig and Unity oilfields back in 1980. That was the beginning of the depopulation of Ruweng County through a scorched earth policy brutally implemented by the government of Sudan. Chevron was forced out of Sudan by the increasing hostilities between the government and the Southern opposition. However, oil exploration and production has recently resumed under the Greater Nile Petroleum Operating Company (GNPOC). This is a consortium consisting of Talisman Energy (Canada), CNPC (China), Petronas (Malaysia) and Sudapet (Sudan's state oil company).

Talisman Oil joined GNOPC in 1998. From April to July 1999, more than half the population of Ruweng County, where the Unity and Heglig oilfields are found, was displaced by savage government attacks. This was confirmed in a report by the UN Special Rapporteur, Leonardo Franco, in 1999. Talisman and the other oil companies, however, say there have been no attacks, no depopulation. They claim that they found an 'empty landscape'. It is true. The county was empty, but not because it was never inhabited. A research team funded by the European Coalition on Oil met the people that Talisman Oil says do not exist. What follows is an account of the appalling human rights abuses that the government of Sudan still carries out against Southerners living in Ruweng County, in Blocks 1 and 2.

[...]

In Blocks 1 and 2, Ruweng County, the devastating effects of the oil war are all too apparent. Over three-quarters of the civilian population has been displaced. The areas around Heglig and Unity oilfields, the first to be opened up, have been wastelands since early 1999, when the government began forcibly removing the civilians in an effort to secure the area before oil exploration began. The most recent attacks were on the villages between Jukabar and Bal in October and November 2001. The entire area is the newest wasteland, devoid of civilian population. The Southerners of Ruweng County now huddle in two areas of swampland in the northeast and southeast corners of their county. There is nowhere else to run.” (Dan Church Aid/Christian Aid, 30 April 2002, p.11)

"[I]n October 1999, the Government of Canada decided to send an assessment mission to, inter alia, investigate and report on the alleged link between oil and human rights violations, in particular in respect of the forced removal of populations around the oilfields.

The findings of the mission, led by John Harker late in 1999, largely confirmed the observations of the Special Rapporteur and shed further light on the May/June 1999 offensive in Ruweng county, revealing

that, from April to July 1999, the decline in population in the county seemed to have been in the order of 50 per cent, and that over the years, the series of attacks and displacements were leading to a gradual depopulation of the area, since only a percentage of people who fled returned after each displacement.

[...]

At the beginning of August [2000], the United Nations estimated that there were up to 40,000 internally displaced persons moving into Bentiu, most in an alarming nutritional state." (UN GA 11 September 2000, paras. 19-21, 25-26)

"Violent conflict continues unabated around the oil fields in Unity State (Western Upper Nile). The humanitarian situation remains critical there as the conflict further factionalises and as human rights are systematically denied and violated. Humanitarian access to populations in the initial stages of displacement remains problematic on grounds of security and denial of access" (UN November 2000, p.7)

"Since the 1989 coup, the government has aggressively developed these reserves, persisting even though the major oil companies abandoned exploration out of security concerns when the civil war erupted. Indeed, the government has taken an approach to defending the oilfields never considered by foreign companies in the early 1980s: depopulating the surrounding territory.

[...]

Also central to the government's strategy has been an effort to sow divisions within the ethnic Nuer members of the SPLA. Nuer comprise the largest ethnic group in the south after the Dinka and are mainly located in the Upper Nile oil fields, a region also populated around the periphery by Dinka. Both groups traditionally moved through the other's territory to get cattle to water. Although sporadic cattle raiding took place, the Nuer and Dinka avoided full-scale conflict in the border area until the civil war" (ICG, 1 January 2002, pp.132-133) .

"The government has also utilized proxy militias in its military strategy in Upper Nile, including both Baggara Arab militias from Kordo fan and breakaway Nuer factions. Again , impunity for crimes committed during these operations is standard government policy, as is encouragement of looting" (ICG 2002, pp.132-136).

"This CPMT investigation again draws attention to the difficult and sometimes-violent relations between the Government of Sudan (GoS) allied South Sudan Defense Force (SSDF) and the Sudan Peoples Liberation Movement/Army (SPLM/A) in Western Upper Nile (WUN). War, the strategic and political significance attached to the oil fields of WUN, and the continuing impact of the 1991 SPLM/A split which most affected the Nuer of Upper Nile, form the background to the investigation under consideration.

Further complicating the security situation in WUN is the role of SSDF Commander Peter Gadet (recently appointed a brigadier in the GoS army). Gadet and his forces proved to be the biggest threat to the security of the oil fields when he was a senior commander in the SPLM/A, and his subsequent defection to the GoS greatly reduced that threat. More damaging to the civilian population of WUN, however, is his repeated switching of allegiances that has resulted in intensified local level bitterness and this has found expression in many violent incidents along the 'border' between the forces of the SSDF and the SPLM/A" (CPMT, 9 December 2003)

"The Nuer are already conducting inter-Nuer warfare. In addition, the Nuer and the Dinka are currently [2001] poised to go to war against each other; the Dinka are the largest tribe in southern Sudan, and the Nuer, the second largest. They are neighbors and cousins, sharing many customs and beliefs. History has shown that peace in the south is impossible if these two tribes are fighting each other.

The way that inter-Nuer and Nuer-Dinka war have been conducted recently is in violation of both traditional Nuer and Dinka practices of war and international humanitarian law, namely: burning homes, villages, community structures, and grain, and killing women and children. These types of abuses have been the proximate cause of several famines in recent years.

One example was the famine that hit the East Bank of the Nile in 1993, where tens of thousands died in the “Hunger Triangle” (formed by Adok, Waat, and Kongor, villages straddling the Nuer/Dinka divide). This crisis was precipitated by Nuer/Dinka fighting (1991-93), also in disregard of tribal and international rules of war, which grew out of the 1991 split in the Sudan People’s Liberation Army (SPLA) led by Riek Machar.

The fighting in 2001 is not traditional tribal conflict, because many other actors with their own agendas have inserted themselves. In addition to the government army, the other organized military players sharing the blame for this looming disaster are the government-backed Nuer militias, particularly the militias of Gordon Kong Chuol and Simon Gatwich; the Sudan People’s Democratic Front/Defense Forces (SPDF) of Nuer leader Riek Machar; and the SPLA.

In Eastern Upper Nile, the Nuer government militias and Sudan army are fighting against Riek Machar SPDF (Nuer) forces and the SPLA. Militia Cmdr. Gordon Kong of Nasir is active in trying to drive out these forces from areas adjacent to oilfields that are in development. In the process many civilians have been killed and forcibly displaced. His militia has even placed landmines in the compounds of relief organizations.

In Central Upper Nile, other SPLA (Nuer) forces have fought the SPDF (Nuer), with the result that government forces have captured towns not in government control for more than a decade. Cmdr. Simon Gatwich, another Nuer pro-government militia leader, joined the fighting, and reportedly threatened to lead a Nuer retaliatory attack on the Dinka.” (HRW March 2001)

“At least 50 people have been killed in renewed fighting between the Sudan People's Liberation Army (SPLA) and pro-government southern Sudanese militias in the Upper Nile region of Sudan, according to officials on Monday.

[...]

A planned visit to the Upper Nile town of Nasser by officials from Medecins Sans Frontieres (MSF) and the United Nations Children's Fund (UNICEF) was called off due to security concerns.

Hundreds of villagers, forced out of their homes by the outbreak of clashes, are taking refuge in the town.” (DPA, 2 February 2004)

Conflict in Darfur 2003 escalated in one of the worst humanitarian emergencies in the world (2005)

- Conflict exploded in February 2003 between the Sudan Liberation Army/Movement (SLM/A), the Justice and Equality Movement (JEM) and the GoS and supporting militia
- The two groups cited lack of government protection against recurrent attacks by nomadic groups, underdevelopment, socio-economic and political marginalisation of Darfur people to take up arms against the government
- The government responded by arming local nomadic Arab tribes who hoped to receive land in exchange, because most of its forces were deployed in the South and commanders were from Darfuri origin
- As of October 2004, 1.6 million people were internally displaced and 200,000 fled to Chad
- International attention to Darfur was nearly nil during the first year of this rapidly deteriorating crisis
- After initial attempts at solving conflict in Darfur through dialogue, the GOS opted for military response end of March 2003
- A 45 day ceasefire was signed in September 2003

- Darfur is neither included in the Machakos Protocol nor in the monitoring mechanisms of the peace process
- A Humanitarian Ceasefire Agreement was signed in April 2004 between the GoS, the SLM/A and the JEM but it has been violated countless times
- Two Security Council Resolutions were passed, 1556 (30 July 2004) and 1564 (18 September 2004) calling the parties to cease all violence, protect civilians and seek a political solution to the crisis
- In October 2004, the African Union Security Council issued a Communiqué expanding the size and mandate of the African Union Mission in Sudan (AMIS) to not only verify compliance with the April ceasefire but also protect civilians and humanitarian workers
- Peace talks conducted under the aegis of the African Union in Abuja have not improved the situation
- Two protocols on the security and humanitarian situation were signed in October 2004 but the situation continues to seriously deteriorate

“Roughly one third of the entire population of Darfur has been affected by the conflict, which began in February 2003 between the Sudan Liberation Army/Movement (SLM/A), the Justice and Equality Movement (JEM) and the GoS and supporting militia. As of 1 October 2004, 1.6 million people were displaced within Darfur, 200,000 Darfur refugees had fled to Chad and 420,000 other civilians were affected either directly or indirectly by the conflict.

[...]

March 2004 marked a turning point, as international attention increasingly shifted to Darfur. Sustained pressure on the GoS by the international community resulted in considerable easing of access restrictions, and a commensurate increase in humanitarian agencies engaged in the relief effort. As of November, there were more than 60 international humanitarian organisations registered to work in Darfur; [...].

Politically there were several important developments in Darfur in 2004, yet peace remains elusive. A Humanitarian Ceasefire Agreement was signed in April between the GoS, the SLM/A and the JEM. It has been violated numerous times. The ceasefire included a protocol on humanitarian assistance in Darfur. Two Security Council Resolutions [...] were passed, calling on the parties to cease all violence, protect civilians and seek a political solution to the crisis. The GoS, IOM and the UN signed an agreement on 21 August guiding the verification, monitoring and determination of voluntariness of IDP returns. On 20 October the African Union Security Council issued a Communiqué expanding the size and mandate of the African Union Mission in Sudan (AMIS). Though initially established to monitor adherence to the April Ceasefire, the increased number of AMIS troops now have a more protective role in relation to both civilians affected by conflict and to humanitarian actors. Peace talks conducted under the aegis of the African Union in Abuja in August closed after three weeks without resolution; the Abuja talks seeking a resolution to the crisis resumed in late October, leading to the welcomed signing of two protocols related to the improvement of the humanitarian situation and the enhancement of the security situation in Darfur. Unfortunately, on the very day that the protocols were signed there were several very worrying incidents of insecurity in Darfur, further underlining the imperative of a political agreement between the parties – an agreement that the AU is diligently pursuing with the GoS and rebel groups.

In spite of the Ceasefire Agreement and the multiple agreements entered into between the GoS and the UN, and notwithstanding international attention and pressure, ceasefire violations continue, and are on the rise, severely threatening civilians and rendering the provision of humanitarian assistance more difficult.” (UN, 30 November 2004, p.98)

“Last week, eyewitnesses in South Darfur told Human Rights Watch how government-backed Janjaweed militia attacked villages in the Labado area in December and January, and singled out young women and girls for rape. Male relatives who protested were beaten, stripped naked, tied to trees and forced to watch

the rape of the women and girls. In some cases, the men were then branded with a hot knife as a mark of their humiliation.

In violation of the April ceasefire agreement and a November 9 commitment to cease hostile aerial activity in Darfur, the Sudanese government in mid-December 2004 used Antonov aircraft, Mi-24 helicopter gunships and Janjaweed militia to attack the civilian population in the Ishma and Labado areas of South Darfur. Thousands of people were forced to flee their homes. On the outskirts of the South Darfur state capital Nyala, the sound of bombs exploding in Labado and Ishma were heard all day on December 17.” (HRW, 25 February 2005)

“It appears evident that the two rebel groups in Darfur, the Sudan Liberation Movement/Army (SLM/A) and the Justice and Equality Movement (JEM) began organizing themselves in the course of 2001 and 2002 in opposition to the Khartoum Government, which was perceived to be the main cause of the problems in Darfur. While only loosely connected, the two rebel groups cited similar reasons for the rebellion, including socio-economic and political marginalization of Darfur and its people. In addition, the members of the rebel movements were mainly drawn from local village defence groups from particular tribes, which had been formed as a response to increases in attacks by other tribes. Both rebel groups had a clearly stated political agenda involving the entirety of the Sudan, demanding more equal participation in government by all groups and regions of the Sudan. Initially the SLM/A, at that stage named the Darfur Liberation Front, came into existence with an agenda focused on the situation of the people of Darfur, and only later expanded its agenda to cover all of the Sudan. The Justice and Equality Movement based its agenda on a type of manifesto - the “Black Book”, published in 2001 – which essentially seeks to prove the disparities in the distribution of power and wealth, by noting that Darfur and its populations, as well as some populations of other regions, have been consistently marginalized and not included in influential positions in the central Government in Khartoum. It is noteworthy that the two movements did not argue their case from a tribal point of view, but rather spoke on behalf of Darfurians, and mainly directed their attacks at Government installations. It also appears that with regard to policy formulation, the *New Sudan* policy of the SPLM/A in the South had an impact on the SLM/A, while the JEM seemed more influenced by trends of political Islam. Furthermore, it is possible that the fact that the peace negotiations between the Government and the SPLM/A were advancing rapidly, did in some way represent an example to be followed by other groups, since armed struggle would apparently lead to fruitful negotiations with the Government. It should also be recalled that despite this broad policy base, the vast majority of the members of the two rebel movements came from essentially three tribes: The Fur, the Massalit and the Zaghawa.

[...]

Most reports indicate that the Government was taken by surprise by the intensity of the attacks, as it was ill-prepared to confront such a rapid military onslaught. Furthermore, the looting by rebels of Government weaponry strengthened their position. An additional problem was the fact that the Government apparently was not in possession of sufficient military resources, as many of its forces were still located in the South, and those present in Darfur were mainly located in the major urban centres. Following initial attacks by the rebels against rural police posts, the Government decided to withdraw most police forces to urban centres. This meant that the Government did not have *de facto* control over the rural areas, which was where the rebels were based. The Government was faced with an additional challenge since the rank and file of the Sudanese armed forces was largely composed of Darfurians, who were probably reluctant to fight “their own” people.

67. From available evidence and a variety of sources including the Government itself, it is apparent that faced with a military threat from two rebel movements and combined with a serious deficit in terms of military capabilities on the ground in Darfur, the Government called upon local tribes to assist in the fighting against the rebels. In this way, it exploited the existing tensions between different tribes.

68. In response to the Government’s call, mostly Arab nomadic tribes without a traditional homeland and wishing to settle, given the encroaching desertification, responded to the call. They perhaps found in this an opportunity to be allotted land.

[...]

Efforts aimed at finding a political solution to the conflict began as early as August 2003 when President Deby of Chad convened a meeting between representatives of the Government and rebel groups in Abeche. The talks, which the JEM refused to join because it considered the Chadian mediation to be biased, led to the signing on 3 September 2003 of an agreement which envisaged a 45-day cessation of hostilities. Several rounds of talks took place thereafter under Chadian mediation. On 8 April 2004, the Government and the SLM/A and JEM signed a humanitarian ceasefire agreement, and in N'Djamena on 28 May they signed an agreement on ceasefire modalities. Subsequent peace talks took place in Addis Ababa, Ethiopia, and in Abuja, Nigeria, under the mediation of the African Union. On 9 November in Abuja, the Government, the SLM/A and the JEM signed two Protocols, one on the improvement of the humanitarian situation and the second on the enhancement of the security situation in Darfur. In the context of further negotiations, the parties have not been able to overcome their differences and identify a comprehensive solution to the conflict.” (Commission of Enquiry, 25 January 2005)

“While at first the local authorities in Darfur seemed to look for a peaceful solution, at the end of March 2003, the Sudanese government decided to respond to the new armed group by force.” (AI, 3 February 2004)

“Over the past few years nomad groups from the area have killed hundreds of civilians from sedentary agricultural groups in Darfur, such as the Fur, Zaghawa and Masalit, burning homes and looting cattle and goats. In February 2003, the SLA took up arms in protest at the perceived lack of government protection against attacks on sedentary groups and the marginalisation and underdevelopment of Darfur.” (AI, 29 August 2003)

“A 45-day ceasefire agreement effective 6 September [2003] was signed by the government and the SLA. It provides for the control of all armed forces in the region, the release of prisoners of war, the relocation of SLA forces and measures to generate economic and social development in the area.

But the SLA has said that numerous attacks targeting civilians - either from helicopter gunships or militia groups - have occurred since the deal was signed, a charge that the government has denied.” (IRIN, 18 September 2003)

“Meanwhile, neighbouring Chad has been brokering talks aimed at reaching a peaceful settlement to the conflict.

But a nominal ceasefire agreement with the SLA which lasted for three months - from September to December - was accompanied by a massive escalation in militia attacks.

[...]

Darfur's second rebel group, the Islamist Justice and Equality Movement - a breakaway group from the SLA - had been excluded from talks, they said, while the ceasefire was not even respected.” (IRIN, 31 December 2003)

For more background information on the Darfur conflict see ICG report from 25 June 2003 “Sudan's Other Wars” [[External Link](#)]

See IRIN “Special report II: Chad and the Darfur conflict” 16 February 2004, [[External Link](#)]

Proxy wars in Sudan might get out of hand after the signing of peace (2005)

- SPLA committed to downsize and bring militias under their control under the new peace agreement
- Proxy wars for which GoS and SPLA can escape responsibility will not stop over night as the crisis in Upper Nile and Darfur confirm

- Pro-GoS and pro-SPLA militias fighting and extorting taxes in Shilluk in Upper Nile along the Tonga road feel marginalized by the peace-negotiations
- In Unity State on the oil-road between Malakal and Bentiu fighting between tribal militias and militias hired by oil companies is creating havoc and displacement
- In Equatoria the LRA continues to commit atrocities and fighting over grazing land between the Zandes and Dinka tribes is ongoing
- Juba and Malakal GoS garrison towns remain highly militarised and civilians are in a state of insecurity

“Several interviewees pointed to the recent use of militia in Upper Nile and in Darfur to substantiate their general fear that the militia will be used to fight proxy wars.

69. As one observer put it: “There is more than enough kindling found in local grievances if the GoS or the SPLM/A want to spark a crisis that cannot be directly blamed on them – the question is how much do they want to resist that temptation.” Indeed, while some tribal skirmishes (between tribes and within tribes) are triggered by competition over local resources, major inter-tribe conflicts are often manifestations of a continued war by proxy between North and South.

70. A case in point is the current fighting between pro-GoS Shilluk militia and SPLA-supported Shilluks in Upper Nile, which has generated a new wave of displacement to Malakal. [...] The Tonga road is a major area of tension, where both the GoS militia and SPLA extort illegal taxes.[...] It is said that the militia in this area feel particularly marginalized by the peace-negotiations, questioning what they will gain from a peace agreement. Allegedly, the current violence in Upper Nile is yet another example of fighting instigated at national level, whereby bribes and privileges are used to create tension within Southern tribes.[...]

71. Similar dynamics play out in Unity State, notably in Bentiu and around the oil fields, where militia, reportedly hired by the oil companies, and inter-tribe fighting between Bol Nuer and Adok Nuer, continue to cause displacement of civilians. Fighting in early 2004 along the “oil-road” between Malakal and Bentiu displaced more civilians, whose prospects of return are grim.

72. Eastern Equatoria remains, currently, the most dangerous area in the South because of the Lord’s Resistance Army (LRA), which continues to pose a real threat to civilians, humanitarians, as well as a future UN Mission. The reported atrocities committed by LRA only serve to maintain the climate of fear in the South. Meanwhile, though the GoS-allied Equatorian Defense Force has been under control since the cessation of hostilities, the Zandes and Dinka tribes continue fighting over grazing land in Western Equatoria.

73. Another area of tension is Juba. A major crossing-hub in the South, the atmosphere in Juba is especially militarised and stifling, contributing to a particularly subdued population. Although GoS and SPLM/A officials reject Joseph Kony and the LRA, Kony, allegedly, retains connections to Southern Sudan and travel in-and-out of Juba.

74. In Wau, it is said that the militia has been absorbed by GoS. In comparison to garrison towns located outside Bahr-el-Ghazal, the situation indeed appears calm and less militarised. Civil authorities, law-enforcement officials and the military have proven receptive to training program on human rights and peace building conducted by IRC and CARE. By contrast, fear and insecurity among IDPs and the general population is particularly prevalent in garrison towns like Juba and Malakal.” (IRC, 31 May 2004, p.20-21)

Risk of escalating conflict in Eastern Sudan (2004)

- Tensions in Kassala since the mid-1990s when the NDA and SPLM/A opened an eastern front to fight the GoS
- The Peace talks between the GoS and the SPLM/A did not include eastern parties
- The Free Lions Movement (FLM) signed an agreement with the Darfur-based Justice and Equality Movement supporting armed opposition to the GoS
- In addition there are continuing poor relations between the GoS and Eritrea both accusing each other of supporting armed opposition forces in their respective countries
- Escalated insecurity caused displacement of approximately 40,000 persons in 1998
- Fighting between the NDA and the GoS over the town of Kassala in November 2000 resulted in significant population displacements
- Following the 15 October 2002 ceasefire, GoS stroked on the Eastern front on the grounds of legitimate defence against Eritrean aggression
- Clashes in Kassala State hampered humanitarian assistance in 2003

“Significant armed conflict has been present in eastern Sudan since the mid-1990s, when the National Democratic Alliance and the SPLM/A opened an ‘eastern front’ in the war against the GoS and subsequently took control of pockets of territory, such as the area of Hameshkoreb near the Eritrean-Sudanese border. In 2004 there were no major new outbreaks of fighting in the region. However with the talks between the GoS and the SPLM/A in Kenya in 2004 not covering the east, and with the example of the escalation of the conflict in Darfur, it has become apparent that there is a growing risk of a sharp increase in conflict between the GoS and opposition movements in the region unless their political and economic grievances are addressed.

The large number of armed groups in the region further contributes to the risk of increased conflict. In addition to SPLM/A troops based in the Hameshkoreb area, the principal armed groups are the Sudan Allied Forces, the Beja Congress, the Rashaida Free Lions Movement (FLM) and the Fatah Forces. In July [2004] the FLM signed an agreement with the Darfur-based Justice and Equality Movement supporting armed opposition to the GoS. Adding to the tensions are the continuing poor relations between the GoS and the Eritrean government, which the GoS accuses of providing assistance to some of the eastern-based opposition forces, but which in turn accuses the GoS of supporting several Eritrean armed opposition groups.

[...]

Following the growth of oil production in other regions of Sudan, and exploration work which has indicated the existence of oil reserves in the east, the GoS has indicated that it may pursue oil production in the region. However if this occurs, it may have ramifications for the scope for increased conflict in the region.” (UN, 30 November 2004, p.161)

"Insecurity in the [Kassala State] region escalated in 1998 and is expected to continue in 1999, placing a greater number of people at risk of displacement and in need of humanitarian assistance. Prior to 1998, there were few needs in the region and little history of aid intervention for IDPs. The displacement of approximately 40,000 persons from the border in 1998 stretched the coping mechanisms of the State.” (UN January 1999, "Kassala State")

"In November 2000, an armed conflict between the NDA and the GoS over the town of Kassala had a negative impact on the humanitarian situation in eastern Sudan. The fighting resulted in significant population displacements and a lack of essential services and food sources. Emergency relief response to the area has been extremely limited." (USAID 20 April 2001)

“According to international media sources, in early October heavy fighting between GoS and National Democratic Alliance (NDA) forces in Kassala State forced thousands of civilians to flee. NDA forces are

believed to have captured the towns of Hamashkhoreib and Shallob. The GOS has accused the Government of Eritrea (GOE) of backing the rebel movement, which the GOE denied.” (USAID, 11 October 2002)

“After a long break, fighting resumed on the Eastern Front. National Democratic Alliance (NDA) forces captured a number of garrisons, including Hameshkoreb, Shallob and Rasai, and threatened the main road from Port Sudan to Khartoum. GoS has alleged direct Eritrean military involvement, and has lodged a complaint with the UN Security Council against Asmara for “aggression”. Eritrea has denied this. Eritrean involvement in some form or other is not unlikely, although independent foreign journalists in the area could find no evidence of an Eritrean presence. The head of the Sudan Alliance Force (part of the NDA), Abdul Aziz Khaled, told a London-based Arabic newspaper that, "The region offers the shortest path to reach Khartoum and free it from the religious and totalitarian regime.... Our final goal is Khartoum and the Kassala road is one of the paths leading to the capital".” (SFP, October 2002, p. 4)

“After days of intense fighting, NDA forces captured a handful of government garrisons, including the symbolic hamlet of Hamashkhoreib, which they had controlled for eight months in 2000. The assault positioned their forces within striking distance of several key government strategic sites: the city of Kassala, the highway between Khartoum and Port Sudan and the vital oil pipeline. Nearly simultaneously with entry into force of the 15 October cessation of hostilities agreement, the government struck back on this front. It asserts the right of selfdefence and insists the region is outside the truce because it is responding to Eritrean aggression, not domestic insurgency.[...]” (ICG, 14 November 2002, p7)

“Hamash Koreb in Kassala state has been inaccessible for humanitarian workers since October 2002. 11,000 IDPs from that area are being assisted in Kassala town. However, further efforts to provide assistance to the population of Hamash Koreb from inside the Sudan and through Eritrea have not been successful.” (UN, 18 November 2003, Vol.I)

Causes of displacement

Deliberate military actions against civilians cited as the major cause of displacement (2003)

- Amnesty International reported in 2003 serious attacks on civilians along ethnic lines by government-backed militias and Anotov planes in Darfur
- By late 1980s most displaced arriving in Khartoum were Dinka, Shilluk and Nuer pastoralists fleeing Arab tribes armed by the government to defeat SPLA
- Evictions practiced by all parties to the conflict, including militias engaged in factional or tribal warfare
- Ceasefire in Nuba Mountains enabled GoS to redeploy more troops in Bahr el Ghazal and Unity State where attacks against civilians increased
- Forced regroupment of civilians to 'peace villages'
- Civilians flee after being cut off from access to essential supplies and international aid
- 40 aerial bombings including on IDP camps between May-June 2001 alone

“Although the first great wave of displaced persons arrived in Khartoum from the western regions of Kordofan and Darfur in 1984 as a result of the drought, by the late 1980s the greatest number were members of southern pastoral ethnic groups - Dinka, Shilluk, Nuer - from the Provinces of Bahr el-Ghazal and Upper Nile who were fleeing the brutal war in the south. Their influx coincided with a deliberate government policy of heavily arming Arab tribes in the border regions to help fight the war against SPLA.

Africa Watch reported that tribal militia, in a thinly disguised counter-insurgency campaign promoted by the “democratically elected” Government of the time, had by the late 1980s massacred hundreds of civilians. [...] This campaign, in combination with a famine of unprecedented severity, devastated the south.” (UNCHR, 27 November 2002, p.9 para 17)

"The causes of the displacement in the conflict in Sudan are typical of the increasing trend to violence that is directed less between armed groups, and more by armed groups against civilians. The primary cause of the internal displacement in Sudan is direct armed attack, or threat of armed attack on civilian populations, rather than innocent populations finding themselves in the crossfire of military against military operations. In an environment where civilians are the target of armed attacks, displacement could be significantly reduced if combatants respected the essential elements of international human rights and humanitarian law." (AI 3 May 2000, p.20)

A UN advisor on IDP issues summarized in September 1999 similarly the main causes for displacement in Sudan as follows:

"The causes for internal displacements are multiple and complex, as are the driving forces behind them. A typology might, among others, include categories such as:

Mass evictions: Displacement may be ‘simply’ a collateral effect of indiscriminate warfare. However, it is military action with the clear *intent* to displace civilians which has become a major cause of displacement in southern Sudan. As the example of evictions from Bor County during the early nineties illustrates, the practice is used by all parties to the conflict, including militias engaged in factional or tribal warfare. More recently, some sources suggest that systematic attempts are underway to evict the indigenous population from the oil-rich Western Upper Nile region.

The forced regroupement in 'peace villages', as undertaken by governmental forces in the Nuba Mountains. There is some debate whether or not civilians are actually retrieved by force in a systematic manner. But even if civilians are ‘only’ entrapped because the lack of supplies and the danger of being caught between lines forces them to regroup – there is a military strategy behind the process.

Forcing people into flight by looting and terror, as in January/February 1998 during the rampage of the Kerubino militia in Bahr El Ghazal. Another example for this practice are the raids along the Babanusa-Wau railroad, by Murahaleen militia accompanying governmental supply trains. More indirect forms of obliging people to leave their homes by attrition, as reported from the Nuba Mountains whose population, even if self-reliant in food production, is cut off from other essential supplies, such as medication, salt, etc. Continuous harassment, such as indiscriminate aerial bombings of rural towns.

The disruption of subsistence farming, and the cutting off of civilians from emergency supplies, denying them access to international aid. Compounded by drought cycles, this has resulted in dramatic hunger migration, often over great distances, as in Bahr El Ghazal 1988 and 1998.

The cumulative effect of all displacement factors is a state of chronic insecurity and poverty in the rural south. This in turn has led to a chronic population drain from the south towards the transition zone (southern Kordofan and Darfur), and further north to Khartoum. The northwards movement of the displaced has created other types of humanitarian problems. Thus, for example, the displaced in the transition zone are often exposed to economic exploitation by local landowners. In the Greater Khartoum area large numbers of displaced persons are considered illegal squatters. They are under the threat of forced relocation to settlement sites lacking the necessary infrastructure. Without concerted and systematic efforts to create more stable conditions for them, they risk to remain in a state of vulnerability and dependency.

It is not always easy to determine if displacement in the Sudan is of a forced or a voluntary nature. Seasonal migration as well as emigration to the north in search of better opportunities have a long tradition. Thus, many people originating from the south have taken roots in the Khartoum area in spite of all adversities, and their status as ‘IDPs’ has been sometimes questionable. Both the ‘displacement tradition’ in the Sudan

and the problem of 'status-determination' are topics obscured by today's political debates. Yet they cannot be avoided. (OCHA 28 September 1999 paras. 7-9)

"Government planes continued to bomb civilian and humanitarian sites in southern Sudan, although reportedly less frequently than last year. Various sources reported that up to 40 aerial bombings occurred during May-July, including attacks against camps for displaced persons. The Sudanese government announced a bombing cessation on May 24 but proclaimed a bombing resumption on June 11." (USCR 24 September 2001 p2)

"At the beginning of September the Government of Sudan (GoS) withdrew from the Machakos peace negotiations, "because of the atmosphere created by the military operations and the occupation of Torit town" by the Sudan People's Liberation Movement/Army (SPLM/A), according to GoS Foreign Minister Mustafa Uthman Isma'il. This is somewhat disingenuous. Since the signing of the Machakos Protocol on 20th July, GoS forces have launched a major offensive in western Upper Nile in which hundreds of civilians died, have killed and abducted international aid workers in eastern Upper Nile, and have escalated their aerial bombardment of civilians. Even the fighting in Torit was apparently initiated by GoS forces which moved out to attack SPLM/A positions. GoS is demanding a cease-fire as a pre-condition for resuming talks; SPLM/A has always maintained that this should be the last step in the process. A cease-fire would be to the military advantage of GoS should fighting resume, as it would be difficult for SPLM/A to maintain an unpaid "popular army" during a period of peace, whereas GoS would be able to use the oil revenue to strengthen its own regular armed forces." (SFP, September 2002, p.1)

"According to international human rights organizations, GOS aerial attacks against civilians have increased substantially since the GOS withdraw from peace negotiations in Machakos. From September 9 to 24, 21 separate attacks have been reported, primarily in western Upper Nile and Eastern Equatoria. Full implementation of the agreement to protect civilians and civilian facilities from military attack, signed by both the GOS and SPLA on March 29, 2002, has been delayed due to GOS points of clarification on the establishment of a monitoring system.the aiaa." (USAID, 11 October 2002)

"In 2002, changes witnessed in the pattern of conflict were marked by an intensification of armed clashes, with increasingly sophisticated weaponry, especially in and around the oil- producing areas of southern Sudan i.e. Unity State/Western Upper Nile and Bahr el Ghazal. Conflict, widely believed to have escalated following the cease-fire in the Nuba Mountains in January 2002 when troops were redeployed from Nuba to the above-mentioned areas, resulted in increased vulnerability for the population and an increasingly volatile and dangerous operating environment for humanitarian workers. Large-scale displacement was registered in areas such as Rubkona, Mayom and Gogrial due to the systematic clearing of the population through aerial bombings followed by the deployment of ground forces." (UN, November 2002, p.3)

New attacks on civilians in Darfur 2003

"Amnesty International today called on all parties responsible for intensifying attacks in Darfur, western Sudan, to immediately halt all deliberate and indiscriminate attacks on civilians and civilian objects. Hundreds of civilians, mainly from sedentary groups such as the Fur, Zaghawa, Masalit and Tungur have been killed or injured and tens of thousands displaced in the past few months. The attacks have been committed by "bandits", armed militia or in the context of the fighting between the Sudanese army and the Sudan Liberation Army (SLA), an armed opposition group operating in the area since February 2003.

[...]

In the past few days, Kornoy town and Tina, on the border with Chad, in North Darfur were reportedly bombed daily by government Antonov planes.

[...]

Scores of civilians have fled to Kabkabiya town in the past few months. Reports allege that 300 villages have been attacked or burnt to the ground in the area. Many reportedly live in the open or in the local school. They have very little or no access to humanitarian aid. For instance hundreds have fled after an attack on Shoba, a Fur village situated 7 km south of Kabkabiya on 25 July, by armed militia wearing

government army uniforms, in which at least 51 Shoba villagers, including many elders, were killed.” (AI, 29 August 2003)

An analysis made in 1996 provides further details about how the strategies of the various armed groups have made civilians the main victims of the civil war and caused displacements:

"In the war zones affected by direct fighting, the Sudanese Army, the Popular Defence Force, the SPLA factions, and all of their allied militias, have repeatedly targeted civilian populations. During the early phases of the war (1984-1988) such activities were intended to deny the opposing side supplies or civilian support. Hence, the rural subsistence economy and its assets were the primary target for attack. Since 1991, interfactional fighting within the SPLA (SPLA, SPLA United, SSIA) has intensified the asset stripping character of such attacks. In addition, relief inputs have also become targets. Since 1994 especially, food drops, primary health care facilities and OLS agency compounds have invited attack.

All of these activities have produced widespread displacement, as specific populations have been denied the opportunity or means to feed themselves, and as groups of people have fled areas of conflict seeking refuge elsewhere. Both parties to the conflict have also organised forcible relocations of populations at different times during the war. In the North, outside of the conflict zone, the demolition of displaced settlements and the relocation of the populations involved continues to be a major source of disruption.

[...]

Whatever the broader political and military objectives of the warring parties, the civil war has been fought on the ground as a resource war. Battles between organised armed groups, with the intention of seizing or holding territory, are only one aspect of the fighting. Civilians have been systematically targeted in asset stripping raids since the outset. The intention has been not only to seize whatever resources they possess, but to deny these resources to the opposing side. Civilian populations themselves have often been treated as resources to control. The pattern of this resource war has also expanded to include relief supplies, with the various parties adapting their strategies either to secure relief items, or to interdict the delivery of such items to their opponents.

[...]

The net effect of these activities has been massive population displacement. In some cases, individual families as well as large groups of people have moved into more secure areas near their original homes. In other cases, there have been movements of large groups of people out of the war zone altogether. For example, the Dinka of Abyei and Northern Bahr el-Ghazal have moved to sites in the Transitional Zone, or to Khartoum, while other populations have moved out of Equatoria and across border to become refugees in Kenya, Uganda, Zaire, and Central African Republic. Prior to 1991, the SPLA also organized movements of people to refugee camps in Ethiopia." (Hendrie et al 1996, pp. 14, 62, 63)

War in Darfur has displaced close to two million people since February 2003 (2005)

- Conflict in Darfur has displaced 750,000 people in Greater Darfur and killed about 3000 civilians during 2003
- Inter- Ethnic conflict in Darfur affected 55,000 people (May 2002)
- AI reports on deliberate and indiscriminate attacks on sedentary civilians in Darfur and 20 years of human rights abuses
- Reports allege that attacks were carried by Government-backed Janjaweed militias armed and supplied by the government
- Reports allege that over 500 villages were systematically burnt and attacked
- Janjaweed are nomadic militias on horses or camels acting under the authority, support, complicity or tolerance of the Sudanese state authorities with impunity

- The massive displacement of population has been accompanied by the destruction of about 700 villages (or 2000 according to police sources) including destruction of water points and burning of crops
- Thousands of civilians continued to flee attacks in Greater Darfur, despite GoS claims that the war was over early February 2004

“In Darfur respect for human rights has been undermined over the past twenty years by an increased number of attacks mostly by nomadic groups on sedentary groups and an increase in attacks by "bandits". The response by the government has been heavy-handed, including many instances of human rights violations.

[...]

Sedentary groups complain government forces have failed to protect them from attacks by nomadic groups. The government lays the blame for clashes on a struggle for resources resulting from desertification.” (AI, 1 July 2003)

“The situation is further compounded by the fact that fields have been burnt, grains and other means of subsistence looted during attacks, and water wells destroyed by government bombings. Either concerns about insecurity or government restrictions have limited access by humanitarian agencies to the affected populations.” (AI, 29 August 2003)

“However, sources also reported attacks against civilians and targeting of local tribes, to the point that some accused the Government of implementing a clear policy of ethnic cleansing aimed at eliminating African tribes from Darfur. According to information received mass executions by armed forces and aerial bombardment in areas that are densely populated have continued to take place for the past few years.

[...]

The Government’s interpretation of the conflict as caused by armed groups engaged in robbery and its response to solve the Darfur issue by resorting to Special Courts, group trials, death sentences and cruel and inhumane punishment such as cross amputation, are totally inadequate and resulted in serious human rights abuses. I was informed by the Minister of Justice that Special Courts have now been abolished.

[...]

The escalating conflict in Darfur, which affects about 25% of the population and territory of the whole Sudan, urgently needs the implementation of serious measures of conflict resolution and reconciliation.” (UNCHR, 25 April 2003, p.4-8)

“This section clarifies the concept of ‘Janjaweed’ and the implications for the determination of international criminal responsibility. As explained below, the Commission has gathered very substantial material which it considers substantiates use of the term ‘Janjaweed’, in the limited context of the Commission’s mandate, as a generic term to describe Arab militia acting, under the authority, with the support, complicity or tolerance of the Sudanese State authorities, and who benefit from impunity for their actions. For this reason, the Commission has chosen to use the term ‘Janjaweed’ throughout this report, and also because it reflects the language used by the Security Council in the various resolutions concerning Darfur and, most of all, because it is constantly referred to by victims.

[...]

The fact that the Janjaweed are described as Arab militias does not imply that all Arabs are fighting on the side of the Janjaweed. In fact, the Commission found that many Arabs in Darfur are opposed to the Janjaweed, and some Arabs are fighting with the rebels, such as certain Arab commanders and their men from the Misseriya and Rizeigat tribes²⁹. At the same time, many non-Arabs are supporting the Government and serving in its army. Thus, the term “Janjaweed” referred to by victims in Darfur certainly does not mean “Arabs” in general, but rather Arab *militias* raiding their villages and committing other violations.

[...]

The Commission has established that clear links exist between the State and militias from all three categories. The close relationship between the militias and the PDF, a State institution established by law,

demonstrates the strong link between these militias and the State as a whole. In addition, militias from all three categories have received weapons, and regular supplies of ammunition which have been distributed to the militias by the army, by senior civilian authorities at the locality level or, in some instances, by the PDF to the other militias.[...]

At the time of the establishment of the Commission and, subsequently, upon its arrival in the Sudan in November 2004, two irrefutable facts about the situation in Darfur were immediately apparent. Firstly, there were more than one million internally displaced persons (IDPs) inside Darfur (1,65 million according to the United Nations) and more than 200,000 refugees from Darfur in neighbouring Chad to the East of the Sudan. Secondly, there were several hundred destroyed and burned villages and hamlets throughout the three states of Darfur. While the exact number of displaced persons and the number of villages destroyed remain to be determined, the massive displacement and the destruction of villages are facts beyond dispute. [...]

While the massive displacement of population in Darfur became the face of the humanitarian crisis in the region, the widespread destruction of villages constitutes another irrefutable fact.

During its visit to Darfur the Commission was able to make a visual estimate of the extent of destruction that had been caused in the course of the current conflict in all three Darfur states. The Commission saw destroyed and partially destroyed villages in aerial exploration over some of the affected areas such as those surrounding Mornei, Habila and Garsila in West Darfur, parts of the Jebel Marrah plateau in South Darfur, and the Tawilah and Kutum area in North Darfur. Many of these villages were abandoned and there were areas comprising several villages that were completely deserted. To verify the facts, the Commission also visited some of the villages regarding which it had received specific information of attacks and destruction, including villages in the localities of Shataya and Masteri which were completely destroyed and abandoned.

There is an abundance of sites with evidence of villages burnt, completely or partially, with only shells of outer walls of the traditional circular houses left standing. Water pumps and wells have been destroyed, implements for food processing wrecked, trees and crops were burnt and cut down, both in villages and in the *wadis* [...], which are a major source of water for the rural population. Rural areas in Darfur are not the only scenes of destruction. Several towns also show signs of damage to homes and essential infrastructure such as hospitals, schools, and police stations.

The exact number of villages burnt and destroyed has not been counted, but several sources have estimated the extent of destruction through verbal accounts, site inspections and other evidence. According to some estimates over 700 villages in all the three states of Darfur have been completely or partially destroyed [...]. The Commission further received information that the police had made an assessment of the destruction and recorded the number of destroyed villages at over 2000. The Government did not provide any official figures despite several requests in this regard from the Commission. The Commission nevertheless received credible accounts and itself visited some sites where hundreds of homes were burnt in a single location.” (Commission of Inquiry, 25 January 2005)

For more background information on the Darfur conflict see ICG report from 25 June 2003 “Sudan's Other Wars” [External Link]

See IRIN “Special report II: Chad and the Darfur conflict” 16 February 2004, [External Link]

Internal displacement in Unity State (Western Upper Nile), Upper Nile and Blue Nile closely linked to oil exploration (1989-2004)

- The government has pitted various ethnic groups against each other in the oil areas to weaken southern-based opposition
- Government has since long been accused of using proxy militias to depopulate the oil areas to make way for further oil exploitation

- Amnesty International reported in 2000 that government military tactics of gross human rights violations, destroying harvests and looting livestock were designed to prevent the return of IDPs
- Where roads to the oil fields are built populations are forcibly displaced as their villages are systematically razed to the ground and their crops destroyed
- In 2000 MSF reported that 75 percent of the population was displaced in Padeah District in Western Upper Nile
- Blue Nile contested area due to hydroelectric scheme, proximity to oilfields and gold deposits
- Mayom's county entire population displaced over 127,000 people fled GOS gunship helicopters attack in Western Upper Nile (2002)
- Intensification of military activity since 2001 due to demobilisation following cease fire in Nuba Mountains
- Escalation of attacks on civilian populations since the SPLM/A and SPDF re-united after the 1991 split, further threatening government access to oil concessions
- Villages north of Bentiu cleared of their civilian population (1999)
- Fighting in oil rich Greater Upper Nile ongoing in 2003-early 2004 despite ongoing peace talks and agreement on wealth sharing

"While all parties are guilty of flouting Geneva Conventions and international humanitarian law, what marks the government out from the opposition forces is the extent of its attack on civilians living in and around the oil rich areas. This is having a devastating impact on the life of the South's two main tribes: the Nuer, the main victims of the current oil war, and the Dinka." (Christian Aid 15 March 2001, p.6)

"The government did secure a peace agreement in 1997 with SPLA-United (later renamed the South Sudan Independence Movement), which allowed its consortium to move into oilfield areas with Nuer militia protection.

[...]

Much of the fighting in the Upper Nile region after the 1997 peace accord resulted from clashes between militias over who would defend oil areas.

[...]

With its efforts to pit the Dinka and Nuer communities against each other faltering, the government increasingly has tried to remove the populations from around the oilfields. According to a recent authoritative study funded by Canadian and British NGOs and undertaken by two respected human rights researchers, the government launched a strategy of "coordinated attacks on civilian settlements in which aerial bombardment and raids by helicopter gunships are followed by ground attacks from government backed militias and government troops. These ground forces burn villages and crops, loot livestock and kill and abduct men, women and children".

Serious human rights violations by security forces and government allied militias 2000:

"[V]iolations by government security forces and armed opposition groups are directed on the population living in oil fields and surrounding areas, and is an effort to control, protect or destroy the oil production capacity.

[...]

The military tactics of the government's security forces of destroying harvests, looting livestock and occupying the area is designed to prevent the return of the displaced population.

[...]

In addition to the air attacks, government troops on the ground reportedly drove people out of their homes by committing gross human rights violations; male villagers were killed in mass executions; women and children were nailed to trees with iron spikes. There were reports from some villages, north and south of Bentiu, such as Guk and Rik, that soldiers slit the throats of children and killed male prisoners who had been interrogated by hammering nails into their foreheads. In Panyejier last July, people had been crushed by tanks and helicopter gunship.

[...]

Construction of the oil pipeline running from the south to the north of the country began in 1997; it finally became operational in August 1999.

[...]

Staff employed by these companies worked in an area where there were serious security concerns. The pipeline crosses territories that are or have been in the frontline of the armed conflict. In order to build the pipeline local populations were allegedly displaced without compensation.

[...]

A direct link between the nature of the war and guarantees for security for oil exploration by foreign oil companies became most obvious in intensified warfare in the beginning of 1999. Amnesty International has observed a pattern of gross human rights violations in the areas in which foreign oil companies have rights for exploitation, both those who are actively operating with staff and those that have withdrawn, leaving assets and retaining their rights to oil production." (AI 3 May 2000, pp. 5,7,8,11)

Forced displacement and bombing of villages where roads to oil fields are built

"The process of building an oil road in the concession area of Sweden's Lundin Oil has been accompanied by massive human rights violations. Government troops and militias have burned and depopulated dozens of villages along, and in the vicinity of, the oil road. In visits to Western Upper Nile in August and November 2000, Christian Aid found thousands of Nuer civilians displaced from villages along this road, hundreds of miles away in Dinka Bahr el-Ghazal. They all told the same tale. Antonovs bombed the villages to scatter the people. Then government troops arrived by truck and helicopter, burning the villages and killing anyone who was unable to flee - in most cases, the old and the very young.

A UN official familiar with the area said that all the villages that once existed along the road to Pulteri have been razed to the ground. "As one flies along the new oil road, the only sign of life are the lorries travelling at high speed back and forth to the oilfield... Small military garrisons are clearly visible every five kilometres. The bulk of the population that once lived in villages along the road and within walking distance of OLS airstrips are now nearly beyond reach. Communities in need cannot be assisted." (Christian Aid, 17 May 2001, p.2).

"MSF also discovered that recent armed conflict in Padeah has displaced almost 75 percent of the population. An astonishing 95 percent of the population have, for the same reason, also reported cattle losses - the main source of trade and livelihood. It was, moreover, found that Padeah has never received United Nations or other general food rations and that there has been virtually no NGO presence since June 1998." (MSF 6 July 2000)

"Our sources on the ground estimate something between 200 and 300 were killed by helicopter gunships, ground forces, horsemen and militia" during a three-day attack on the county of Mayom, in Western Upper Nile, said Michael Chang, the regional coordinator of the Sudan Relief and Rehabilitation Association, the humanitarian arm of the SPLA.

Chang added that Mayom's entire population, estimated to number between 80,000 and 100,000, had fled to neighbouring counties and that others had been abducted with their cattle." (AFP 30 July 2002)

Southern Blue Nile displacements:

"Twelve thousand internally displaced people (IDPs) in Kurmuk county in South Blue Nile [...]. The Southern Blue Nile Region is a hotly contested area and has changed hands between the Government of Sudan and the SPLA on several occasions during the last 19 years of the Sudan civil war. The area is strategically important for both the SPLA and the GoS because of its proximity to the Damazin hydroelectric scheme to the north and the Khor Adar Oilfields to the west. Extensive gold deposits also make it potentially rich in other respects." (ACT, 12 August 2002)

"OLS officials say privately that they believe the government has one aim in the area: 'to depopulate the oilfields so oil surveys can be done in peace.'" (Christian Aid 15 March 2001, pp.8-9)

"Villages north of Bentiu, such as Gumriak and Pariang, were cleared of civilians at the beginning of 1999. Among the villages most affected by the attacks and subsequent forced displacement since mid-1999 are Mankien Langkien, Neny, Duar, Koch, Toic and Leer." (AI 3 May 2000, p.9)

Escalation of violence and displacement in Upper Nile since 2001

"An offensive which started around November [2001] has been increased in the last few weeks. We have reports that troops have come in from Kassala [in eastern Sudan] and from the Nuba Mountains [in Southern Kordofan, south-central Sudan] following the cease-fire agreement there,"

[...]

The apparent increase in government-sponsored military actions appeared to be linked to the signing of a merger agreement in January between the two largest rebel groups active in southern Sudan - the Sudan People's Liberation Movement/Army (SPLM/A) and the Sudan People's Defence Forces (SPDF).

At the time of that agreement, the Sudanese government described the merger as a "negative step", saying it could adversely affect the country's peace process.

Prior to the merger, SPLA and SPDF forces had often been in conflict in western Upper Nile, with the SPDF suspected of working with government forces to secure oil production sites against SPLA attacks, according to regional analysts.

[...]

[The merger] resulted in the government suddenly losing a useful lever with which to control the area, analysts said.

[...]

According to analysts, however, government forces could be aiming to secure the main road running from the town of Bentiu, a government-held oil producing centre, south to the government garrison town of Leer (Ler, 8.18 N 30.08 E), in order to facilitate access to oil concession block 5a. " (IRIN, 28 February 2002, pp.1-3).

"The CPMT team sent to verify the situation laid the blame squarely on the Khartoum government. In its January report, it stated that thousands of civilians had been forcibly displaced from their villages by direct military attack. Most villages are now empty or completely destroyed along the Bentiu-Adok road, according to the CPMT." (IRIN, 9 April 2003)

"According to U.N./OLS field reports, the humanitarian situation in western Upper Nile has deteriorated in recent months due to a military offensive by GOS-supported militia that began on December 31, 2002, in violation of the MOU for a cessation of hostilities. To date, the fighting has displaced thousands of people from their homes and exacerbated already severe water and food shortages caused by conflict over the past several years." (USAID, 8 May 2003)

"The political and humanitarian discussions occurred against a backdrop of an offensive by government-supported militias since the end of December 2002 in Western Upper Nile that threatened to make a nullity of the cessation of hostilities agreement and put the entire peace process at risk. Western Upper Nile, which is home to most of the oil resources in the Sudan, has produced some of the fiercest fighting and worst humanitarian conditions in the world over the past decade.

[...]

"The pattern of the militia attacks was consistent with the government strategy of the past several years that has been directed at clearing civilian populations out of the oil rich areas of Western Upper Nile. [...] The offensive had two prongs. One, led by the militia of James Lieh Diu, pushed south from Bentiu along the road to Leer. [...] The objective was to push the SPLA out of the way and extend the road eventually beyond Leer, southeast to Adok, along the Nile. The government would then be able to re-supply and transport its forces in Western Upper Nile first by barge along the river to Adok, subsequently by road north to Bentiu and west to Mankien and Mayom, all the while facilitating exploration for new oil reserves." (ICG, 10 February 2003, p.1)

“At least 50 people were reportedly killed in renewed fighting between the Sudan People's Liberation Movement/Army (SPLM/A) and pro-government southern militias.

[...]

There were conflicting reports on the nature of the fighting and the casualty figures of the clashes, which took place around the Upper Nile State capital, Malakal. Some figures suggested that up to 41 pro-government soldiers died in the skirmishes. Kwaje said he did not have details of the casualties on the SPLM/A side.” (IRIN, 3 February 2004)

See Human Rights Watch “Sudan, Oil, and Human Rights” (25 November 2003) [External Link]

See European Coalition on Oil in Sudan, Report on the conference, “Sudan’s Road to Peace: The European Dimension”, Tuesday, June 24, 2003, [External Link]

See Christian Aid 'Fuelling poverty - Oil, war and corruption' (12 May 2003) [External Link]

Special Rapporteurs and rights organisations link oil exploitation with displacements and human rights violations (2003)

- In April 2003 the mandate of the Special Rapporteur for Sudan was not renewed
- Special Rapporteur informs that oil exploitation exacerbates conflict and displacement
- Oil exploitation is accompanied by human rights violations and forced displacements
- In 2001 all villages around Nhialdiu south of Bentiu had been burnt to the ground and crops destroyed
- The Special Rapporteur denounced recurrent bombing of civilians and relief sites particularly in oil-rich areas (2001)
- The Special Rapporteur called upon the right to development while encouraging oil revenue sharing agreements (Jan 2003)
- Fight over control for land and population in Western Upper Nile continue to displace thousands of people according to the Civilian Protection Monitoring Team

"These attacks have intensified in the Western Upper Nile in the past year, and at times troops and militia have been reported to use oil company facilities as launching areas. As this and many other reports concluded, and evidence collected during an October 2001 ICG field trip supports, the government strategy is designed to drive away the local non-Arab rural populations to make the oil fields easier to defend. Numerous human rights sources have documented the scale of the destruction in the oilfields of the Upper Nile, including three successive UN Human Rights Rapporteurs for Sudan.” (ICG, 28 January 2002, pp.132-136).

“In April, after intense lobbying by the Sudan government, the UN Commission on Human Rights voted against the mandate of the Special Rapporteur on the Sudan who reported to the UN on the human rights situation in Sudan and whose reports raised the deteriorating situation in Darfur. The loss of the UN Special Rapporteur further jeopardises outside monitoring of human rights violations in Sudan.” (AI, 28 April 2003)

"During my [the Special Rapporteur on the situation of Human Rights in the Sudan] visit I gathered further evidence that oil exploitation leads to an exacerbation of the conflict with serious consequences on the civilians. More specifically, I received information whereby the Government is resorting to forced eviction of local population and destruction of villages to depopulate areas and allow for oil operations to proceed unimpeded. I was informed that all the villages around Nhialdiu, in Nimne, south of Bentiu, have been burnt to the ground and crop has been destroyed. Similarly, all the villages along the road up to Pulteri, in

the surrounding of the oil fields at Rier, have been razed. Often, the situation is further exacerbated by on-going fighting between the SPLM and the SPDF, which causes more displacement with the result that the entire central section of western Upper Nile can no longer be accessed and needy civilians are now beyond reach of OLS for either insecurity reasons or denial of access by the Government. With a new road in the process of being constructed in relation to the drilling platform at the Nile, east of Rier, more villages are likely to be burnt. It seems that, under the conditions of the on-going war, oil exploitation is often preceded and accompanied by human rights violations, particularly in terms of forced displacement. On the other hand, Government officials informed me of the social benefits linked to the oil exploitation and assured me that displaced individuals are compensated accordingly." (UNCHR 29 March 2001)

"The Sudanese ambassador to the United Nations, Elfatih Mohamed Ahmed Erwa, said his delegation saw certain aspects of the report as fiction. He also considered that Baum's request for a breakdown of oil revenues spent on people in the south "violates sovereignty and is an unacceptable interference in matters within the jurisdiction of the government".

Baum told the General Assembly that internally displaced persons (IDPs) in Sudan, now living in camps, had fled from oil regions of the country, yet did not benefit from oil revenues. Since IDPs were part of the mandate of the Special Rapporteur, it was appropriate to ask how such money was spent, he added.

In a war situation such as that in Sudan, oilfields attracted [military] attention, which resulted in civilian victims and left people with no option but to flee. In that context, he had the right to ask the government about oil expenditures, since it claimed to be using the money for development purposes, Baum added."

[...]

According to reliable sources, oil revenue was insufficiently used to improve the social and economic situation of the population - especially in the south, Baum reported.

Relevant sources agreed that the exploitation of oil reserves had led to "a worsening of the conflict, which has also turned into a war for oil", he added.

No matter what oil companies did in terms of providing social services in the areas in which they operated, they would continue to face international criticism by doing business in Sudan until military warfare ended there, he said.

The government of Sudan has denied that oil revenues are used to fuel the war, claiming instead that they are being spent on developing the south. Baum said he had seen little evidence so far to support that assertion, and remained interested in seeing some, but Sudan (and other countries which supported it in the General Assembly) maintained that the expenditure of government revenues was an internal issue for sovereign governments."(IRIN, 14 November 2001, pp. 1,3)

"In his previous reports, the Special Rapporteur repeatedly stated that oil was exacerbating the conflict, insofar as the war in the Sudan is mainly the result of a fight for the control of power and resources.

93. The Special Rapporteur recalled the Declaration on the Right to Development, as well as relevant Commission on Human Rights resolutions. In view of the latest United Nations Development Programme, Arab Human Development Report, the Special Rapporteur wishes to highlight once again the link between development and governance, defined as "the exercise of economic, political and administrative authority to manage a country's affairs at all levels. Good governance is, among other things, participatory, transparent and accountable. It is also effective and equitable and it promotes the rule of law. Good governance ensures that political, social and economic priorities are based on broad consensus in society and that the voices of the poorest and the most vulnerable are heard in decision-making over the allocation of development resources".(UNCHR, 6 January 2003, p.18)

"As prospects for peace in Sudan appear imminent, numerous last minute actions on the border areas between the GoS Militias and the SPLM/A forces continue to occur as both sides vie for control of land and population. This allegation stems from the rapid flight of over 1,000 people and their cattle from GoS controlled territory south to areas controlled by SPLM/A forces.

[...]

It is alleged that on or about 1 September 2003 SPLM/A forces took the Spiritual Leader Garkura by force with his 1,000 followers and associated cattle.” (CPMT, 9 December 2003)

LRA has displaced southern Sudanese in Eastern Equatoria since 2000 (2005)

- LRA troops have displaced many southern Sudanese, burning and looting IDP camps since late 2001
- Post 9/11 has left LRA with no support from Khartoum who wanted to distance itself from the terrorist group
- Numbers displaced and killed by the LRA steeply increased since March 2002 when GoS gave permission to the UPDF to track LRA in southern Sudan
- About 20,000 people displaced due to LRA attacks in eastern Equatoria (Nov 2002)
- The Equatoria Defense Forces (EDF) merged with the SPLM/A to combat together the LRA (Mar 2004)
- LRA continues to cause displacement within southern Equatoria in 2005
- LRA abducted about 8000 people since 2002 killed and maimed unknown numbers

“From late 2000, the LRA had largely retreated to southern Sudan, where it maintained its headquarters and training bases and enjoyed the support of the Sudan government. Around the same time, however, the Sudanese government began to end its assistance to this rebel movement, under an agreement with the Ugandan government, which reciprocally agreed to end its support for the Sudanese rebel Sudan People's Liberation Movement/Army (SPLM/A). Seeking food, and moving from its bases near Juba to the more remote Imatong Mountains in Sudan, the LRA looted food from and displaced hundreds of Sudanese families in attacks in southern Sudan in late 2001 and early 2002, causing casualties and destroying villages.

[...]

The Sudan government had supported the LRA in retaliation for the Ugandan government's support of the SPLM/A, which has been fighting the Sudanese government since 1983. The presidents of the two countries agreed in 1999 to end support of these two groups and to restore normal diplomatic relations. The Sudan government was also motivated, after September 11, 2001, to disassociate itself from the LRA, deemed a terrorist organization by the U.S. State Department. By then, Khartoum had already started to cut off food, medicine, and other support for the LRA inside Sudan, even though the Ugandan government had not taken any visible steps to cut off aid to the SPLA. The LRA had largely retreated into Sudan after an outbreak of Ebola hemorrhagic fever in Gulu, northern Uganda, in late 2000, and northern Uganda became relatively quiet.

The Sudan government's cutback of aid to the LRA weakened the rebel group but did not lead to its disintegration. To survive, the LRA attacked and looted southern Sudanese villages for food. Wary of the Sudan government's intentions, the LRA began moving from its bases south of Juba to Upper Talanga, a remote area of the Imatong Mountains on the Sudan/Uganda border, sometime in 2001.

In March 2002, the Sudan government gave the UPDF permission to enter Sudanese territory in order to capture and destroy the LRA. The UPDF, which had been saying in 2000 that it was "ready" to chase the LRA out of southern Sudan, called this "Operation Iron Fist." This brought the Ugandan civil war inside Sudan, with several thousand troops from the LRA and more than ten thousand UPDF soldiers conducting operations to the detriment of tens of thousands of southern Sudanese civilians, who already had the Sudanese civil war to cope with.

[...]

On August 31, 2002, the SPLA, which was not a party to the UPDF-LRA fighting in its territory, captured the Sudanese government garrison town of Torit in Eastern Equatoria, southern Sudan, just north of the area of LRA and UPDF fighting. In late September, the Sudan government bombed the UPDF in Palotaka, southern Sudan, to the south of Torit. The Sudanese government later said the bombing of the UPDF was an "accident" and that the Sudanese pilots had been aiming at the SPLA. It questioned what UPDF troops were doing in such close contact with the SPLA. One Sudanese government spokesman said that "an unidentified neighboring country" helped the SPLA capture Torit. Despite this incident, another Sudan government spokesman maintained that Sudan-Uganda relations were in "good shape." (HRW, 29 October 2002)

"Many LRA fled from the UPDF and possibly from the Sudan army to the safety of the Imatong Mountains, east of their Juba-area bases, looting along the way. As the UPDF was moving troops, heavy artillery, tanks, and armored personnel carriers into Sudan, the LRA was looting and razing to the ground at least six villages, according to the Catholic church in the area just across from the Uganda border. The church estimated that the LRA had killed more than 470 southern Sudanese civilians in these and other Imatong villages, and displaced more than 500 others from a displaced persons camp in Imatong Center in one week in late April-early May 2002. Included in the dead were 350 Sudanese civilians living in Katire, mostly elderly, women, and children, killed with LRA machetes starting from April 26. The LRA robbed, looted, and ransacked the village and surrounding hamlets of all food and valuables.

On May 9, 2002, the Sudanese government, through its governor in Juba, ordered civilians to vacate areas currently occupied by the LRA, calling on them to run for safety to several named towns, according to a Sudanese government press report. The Sudanese government, however, made no attempt to offer protection to civilians outside its garrison towns, even though the LRA was based in its army and militia-controlled territory.

[...]

there were approximately 4,500 internally displaced Sudanese in Ikotos, an SPLA-controlled area of Eastern Equatoria, in poor conditions, having just fled the LRA-UPDF fighting in the Imatong Mountains, according to a United Nations (U.N.) official." (HRW, 29 October 2002)

"In eastern Equatoria, activities by the Lord's Resistance Army (LRA) including attacks within Uganda led to the displacement of approximately 20,000 persons within Sudan and the return of approximately 2,000 Sudanese nationals from northern Uganda. These actions, including the laying of land mines on routes used to provide humanitarian assistance, caused frequent road closures, which impacted negatively on the provision of humanitarian assistance. Inter-ethnic conflict, rooted in regular dry-season cattle migration and consequent competition for pastureland, cattle and water, occurred in the transition zones and parts of northern Sudan. Banditry was also common in these areas." (UN, November 2002, p. 3)

"The continued presence of the Lord's Resistance Army (LRA) [...] in parts of southern Sudan was a significant impediment to the multi-agency effort to contain the outbreak of Yellow Fever in the eastern part of Equatoria and other humanitarian relief operations in the region. Unconfirmed reports indicate that the LRA has abducted 8,000 people since 2002 and killed, robbed, maimed and mutilated an unknown number of others." (UN, 18 November 2003, Vol.I, p.11)

"A government-backed militia, the Equatoria Defence Forces (EDF) on Friday officially merged with the Sudan People's Liberation Movement/Army (SPLM/A), stating that they would fight the Ugandan Lord's Resistance Army (LRA) rebel group together.

[...]

The security arrangements for the six-year interim period, which are specifically endorsed by the merger document, state that no armed groups apart from the government forces and the SPLM/A will be allowed to operate in Sudan during the interim period.

The merger is part of the SPLM/A's concerted efforts to bury differences with its enemies in southern Sudan as quickly as possible, as part of a south-south reconciliation process. [...]

But many of the militias, who are armed and in control of strategic areas of southern Sudan, feel they have much to lose by aligning with SPLM/A, which they deeply mistrust and consider Dinka-dominated.”(IRIN, 5 March 2004)

“The presence of the Uganda-based Lord’s Resistance Army (LRA) continues to cause displacement within southern Equatoria, making it difficult to create an environment favourable to return. Numerous militia groups still need to be mainstreamed into the peace and reconciliation process. Regional and clan differences remain a source of tension and social strife.” (UNHCR, 11 February 2005)

Conflict and conflict induced hunger behind displacements in the Nuba Mountains area/South Kordofan (1987-2002)

- SPLA concentrated troops in the Nuba Mountains in 1987 and began organising raids against a number of Government garrisons
- Arrival of Government made those who lived in the plains seek shelter in the mountainous areas
- Abduction of women and children are a major problem in the villages near the 'frontline'
- Reported that a Government offensive by the beginning of 2001 caused new displacement, but the Government view is that some 30.000 Nuba have voluntarily returned from SPLA areas to government controlled parts of the Nuba Mountains (April 2001)
- US Special Humanitarian Coordinator warns of war-induced famine in the once most fertile Nuba Mountains and condemns oil-linked military attacks which displaced up to 50,000 in May 2001

"Like the rest of Sudan, the Nuba Mountains have been the scene of much internal displacement because of the conflict, hunger, and conflict-induced hunger. The SPLA concentrated troops in the Nuba Mountains in 1987 and began organising raids against a number of Government garrisons in 1988. The following year saw an escalation of the fighting and the area under the control of SPLM became isolated from the rest of the country. The arrival of Government forces caused a major disruption in Nuba people's lives and a large number of those who lived in the plains abandoned their farms and their homes to seek shelter in the mountainous areas." (UNCERO 8 November 1999, p. 108)

"In several locations, women and community leaders also mentioned that abduction of women and children are a major problem in the villages near the 'frontline' [around the Nuba Mountains]. In a couple of occasions in Heiban County, the Mission was provided with names, locations and dates of alleged abductions. Abductions of women and children were also reported in Nagorban County especially in the villages at the foot of the mountains that are sometimes raided by combatants and other armed groups. They also seem to occur when women and children are ambushed while fetching water or collecting wild fruit.

These abductions were alleged to happen in the following ways:

- Shanabla and armed Arab militias are said to regularly raid the lowland plains and abduct women and children as well as take cattle and goats. The families of the abducted people subsequently have no information on the whereabouts of the victims
- Soldiers allegedly often ambush women at water points and very frequently rape them and leave them for dead. Relatives or community members have found the women in many cases. In other cases, the soldiers are said to take the women with them to their garrisons. Unless they escape, the whereabouts of these women are usually not known
- Involuntary displacement to peace camps in southern Kordofan - GOS forces allegedly come into the SPLM-controlled areas where they uproot entire communities to relocate them to the GOS-controlled Peace Camps. In many cases, the presence of these people in the peace camps is known through various

communication networks or from reports of those who manage to return to their communities." (UNCERO 8 November 1999, p. 101)

By the beginning of 2001 it was reported that:

"Thousands of people have fled rebel-held areas in Sudan's Nuba mountains and sought sanctuary in government-controlled territory, a Sudanese government official said on Wednesday. State-run Sudanese television on Tuesday night showed thousands of civilians, mostly women, naked children and elderly people, in the Nuba mountains town of Kaduqli, about 900 km southwest of the capital Khartoum, Associated Press (AP) said. The television report said about 30,000 such people had fled to Kaduqli and its surrounding areas after the army defeated a rebel force in the Nuba mountain area. Muhammad Harun Kafi, a former member of the Sudan People's Liberation Army (SPLA), told AP that more people were expected to follow after the government victory: 'These people have been under check by the rebel movement, not allowing them to move outside and... and not provided with any services.' Kafi is now a minister of state in the Khartoum government.

A statement by the SPLA received by IRIN on Thursday denied that government forces had scored recent victories, including in the Nuba mountains. It said the government had started a dry-season offensive before the end of December when civilian targets were bombed at Kawdah and neighbouring villages: "The few ground attacks that were staged by the GOS [Government of Sudan] army and the Popular Defence Force [PDF] have been repulsed with heavy casualties," the statement said. The SPLA said 'claims by GOS that its forces have "liberated" 30,000 Nuba civilians from rebels are... ludicrous'." (IRIN 19 January 2001)

"A government military offensive picked up in December and moved into Western Kaduqli County, Nubah Mountains, said one humanitarian worker with experience in the area. 'What we see is the government attacking farms and homes, and forcing people to come to the government-controlled areas,' said the source." (IRIN 16 February 2001)

"Renewed fighting between the GoS and the Sudan Peoples Liberation Army (SPLA) started in January 2001 in the Nuba Mountains. Eleven villages that have 4,283 families with a total of 28,867 civilians were displaced from the SPLA held areas to areas around the town of Kadugli. The IDPs are mostly women, children and elderly. The expected dry season's offensive by the warring parties is likely to displace more people." (ACT 21 March 2001)

"Since December last year, rebel forces in the area have experienced a series of defeats. As a result some 30.000 Nuba have returned to government controlled parts of the Nuba Mountains. "Voluntary returnees" according to the local government, which is busy resettling these people in villages within their control." (ACT 5 April 2001)

Forced displacement into "peace villages" as government troops systematically destroy 2500 households in the Nubah Mountains:

"The last fortnight had seen the biggest government offensive in the Nubah Mountains since 1992, when the Islamist regime in Khartoum declared a jihad, or holy war, the British 'Guardian' newspaper reported from Kawdah (11.06N 30.31E) in the Nubah Mountains on Monday. More than 7,500 government and allied militia troops launched the offensive on 17 May, closing all the airstrips that had been used to bring food and medical supplies into the blockaded mountains, it said. Thousands of Nubah were forced to flee the army advance, as soldiers destroyed almost 2,500 homes and systematically burned food stores in an apparent effort to force the Nubah people into government "peace villages", the report stated. On 26 May, the day after Khartoum announced it was halting aerial attacks on rebel bases in the Nubah Mountains, it dropped eight bombs on the Limon Hills, west of Kawdah, it added. The Sudan People's Liberation Army (SPLA) had halted the government attack on 27 May, but expected another offensive, the 'Guardian' reported. It quoted the NGO Justice Africa as saying that the government was trying to seal off the area by taking all the airstrips, and that dozens of Nubah civilians had been abducted during the offensive." (IRIN-CEA 4 Jun 2001)

"US Special Humanitarian Coordinator Andrew Natsios on 21 July warned that a failed harvest in Sudan could result a humanitarian disaster such as that in the mid-1980s, when about a quarter of a million people died from drought, starvation and disease. Natsios said failed rains threatened starvation in parts of the north, while government attacks were exacerbating hunger in the south, Reuters reported. Natsios said he had raised as a particular concern the issue of government attacks on the Nubah Mountains in the south. He cited reports from aid workers, who had alleged that the army was displacing populations to clear the way for oil drilling, and said military attacks in May had displaced 40,000 to 50,000 people, Reuters reported.

Natsios said the lowlands in the Nubah Mountains, one of the most fertile areas in Sudan, had been turned into a "no-man's-land", with fields lying fallow as people sought shelter in the hills, the report said. "There are people dying, not in large numbers at this point, but if there is no humanitarian access, the analysis that has been done indicates there will be a rapid deterioration in food security, and the death rates will go up," Associated Press (AP) quoted him as saying. (The government has severely restricted access to the area for military reasons and relief agencies are rarely able to deliver food or non-food assistance to the vulnerable people.)" (IRIN-CEA 23 July 2001).

Abductions, and enslavement of civilians are a serious causes of displacement

- In Bahr-el-Ghazal Murahaleen (Misseriya Arabs from Southern Kordofan) used to abduct Dinka children
- Abductions in Upper Nile are clan related with Murle warriors traditionally abducting children and women from the Dinka, Nuer and Shilluk tribes
- Up to 14,000 Dinka and Jur Luo children abducted by militias since mid-1980s
- Among the 15,000 Dinka abducted at least 12,000 remained abducted by end 2000
- End 2000-beginning 2001 militias escorting military convoy abducted up to 400 children and women in Wau
- In 1999 the Government formed the Committee for the Eradication of the Abduction of Women and Children (CEAWC), which retrieved 940 abducted children by November 2001
- Murahaleen militias recruited by the Government to guard the train to Wau against SPLA attacks, systematically raid potentially pro-SPLA villages, killing and capturing cattle, women men and children

"122. Abductions are often connected to conflicts over grazing land, forced recruitment, militia, internal disputes between tribes and reproduction problems. It is said that, abductions are an immediate reaction to war and fighting, and thus can resume should the situation deteriorate. Indeed abductions have been used as a military tactic and tool.

123. During the war, numerous abductions took place in Bahr-el-Ghazal, where Muraheelen (Misseriya Arabs from Southern Kordofan) accompanying the train of GoS reinforcements from the North to the South, used to abduct Dinka children and bring them to the North. Although the practices came to an end in early 2000, many children remain missing.

[...]

131. Abductions in Upper Nile are mainly clan-related. Ongoing abductions by the Murle tribe from the Pibor area remain a cause of concern to many child rights actors. It is generally claimed that the abductions are related to fertility problems among the Murles. It is also argued (disputed by some) that the Murles are fierce warriors, who have always abducted women and children from the Dinka, Nuer and Shilluk tribes in Upper Nile and even Toposa tribes in East Equatoria." (IRC, 31 May 2004, p.35-6)

"Another serious war-related protection concern is the abduction of children and women. In northern Bahr al-Ghazal, community sources estimate that militia from western Sudan abducted approximately 14,000

Dinka and Jur Luo children and women in raids since the mid-1980s. Many abduction victims are subjected to severe and multiple human rights violations, ranging from murder, injury, rape, forced pregnancy, forced labour and female genital mutilation. The number of abduction victims still held in captivity today is difficult to determine. Many remain missing, others have found their way back to freedom over the years. In late 2000 and the first half of 2001, militia escorting a military train convoy were responsible for killings in villages north of Wau, the theft of thousands of head of cattle and the abduction of between 200 and 400 children and women for forced labour. In 1999, the Ministry of Justice established the Committee for the Eradication of the Abduction of Women and Children (CEAWC). So far 940 children and women have been retrieved from abductors of which 670 have been reunified with their families. In Upper Nile, members of the Murle tribe from the Pibor have abducted hundreds of Nuer and Dinka children, most of whom remain missing. (UN November 2001 p. 82)

"There were [during 2000] reports that during raids on civilian settlements, government forces abducted persons, including women and children [...] In the last 15 years, between 5,000 and 15,000 Dinka women and children have been abducted; between 10,000 and 12,000 persons, most of whom are Dinka, remained abducted at year's end. Observers believe that some of the abductees were sold into slavery, while others were used as forced labor or drafted into the military. In some cases, observers believe that the abductees escaped or eventually were released or ransomed, and that in other cases some were killed. In February the Government's PDF forces allegedly attacked several villages in eastern Aweil and Twic counties, northern Bahr El Ghazal, abducted over 300 women and children, killed 16 civilians, stole cattle, and looted and burned villages. In November there were unconfirmed reports that the PDF attacked the village of Guong Nowh, abducted 24 persons, killed several persons, and stole cattle." (US DOS February 2001, sect.1b)

"[R]aids by the militia are a major source of violations of human rights. In Bahr-al-Ghazal, the Murahaleen militia (or the Mujahideen) often accompany the State-owned military supply train escorted by the Popular Defence Forces (PDF), which travels slowly down to Wau and from Wau back to Babanusa. According to consistent and reliable sources, the Murahaleen ride on horseback along both sides of the railroad tracks, fanning out within a radius of up to 50 km, and systematically raid villages, torch houses, steal cattle, kill men and capture women and children as war booty. Often, abducted women and children are taken up to the north and remain in the possession of the captors or other persons. The PDF are also said to take part in the raids.

[...]

NGO reports communicated to the Special Rapporteur contain lengthy and detailed testimonies of men, women and children abducted in similar circumstances, who regained freedom only by escaping or through ransom. The captors are often referred to as PDF, Murahaleen militia, or sometimes even as soldiers. It is therefore difficult to establish whether regular troops also take part in the raids. According to certain accounts, the perpetrators were said to be wearing uniforms; whereas Murahaleen and other militia usually wear plain clothes. Although an auxiliary force, the PDF are directly under the control of the Sudanese authorities." (UN CHR 17 May 1999, paras. 61-66)

An assessment commissioned by the Canadian Government provides more details about the practice of abduction:

" We were told that there are really three different phenomena in the Slavery/abductions issue. First, there is armed and organized raiding in which the role of the GOS is not clear, and is likely complex. Sometimes, we were informed, the GOS provides arms, sometimes the groups of Murahaleen go off on their own. Tribal groups have been known to organize raids with "representatives" from other Arab groups; returning with children, women and cattle taken in these raids, all of them have had a common celebration.

Then there is the train which carries GOS supplies from the north down through Aweil and Wau in Bahr El Ghazal, down through contested territory. We believe there is formal recruitment by the GOS of militia to guard the train from possible SPLA attack. These Murahaleen then go out from the train and attack villages suspected of supporting the SPLA on the way from Babanusa to Wau and back. Their booty consists not just of goods, but also of women and children. Finally, we were told of joint punitive raids carried out by

the GOS and the Murahaleen, who, under the Popular Defence Act, can enjoy status as state-sponsored militias, the PDF" (Harker January 2000, pp.3-5).

Peace efforts

Final Peace Agreement formally ended 38 years of war between GoS and SPLM/A on 9 January 2005 (2005)

- Machakos Protocol (20 July 2002) under the auspices of IGAD, and USA, UK, Norway and Italy as observers promoted peaceful negotiations between the GoS and SPLM/A
- The ongoing negotiations should result in the signing of peace, which will be followed by a six-year interim period at the end of which a referendum should be held to vote for unity or secession of the South
- The Protocol dialogue does not includes all warring and opposition parties
- SPLM/A wants return and resettlement of refugees and displaced before holding a referendum in order to prevent potential political manipulation
- GOS latest offensive in the oil area casts doubts on its commitment to peace (Feb 2003)
- The October 2002 MOU on cessation of hostilities was extended until end of March 2004
- In February 2003 an addendum to the October MOU allowed a Verification and Monitoring Team to investigate military attacks
- Major breakthrough on security issues concerning the incorporation of some SPLA troops into the regular army (Sept. 2003)
- Deal on the sharing of oil resources reached in January 2004
- Key issues of power and wealth-sharing and the status of contested areas of Southern Blue Nile, Abyei and the Nuba mountains remain unresolved
- The peace agreements lack human rights monitoring or justice mechanisms thus encouraging continuation of abuses with impunity in Darfur

“In June 2002 a new round of peace negotiations began under IGAD. International observer countries (US, UK, Norway and Italy) were also associated with the talks. The session ended on July 20th when parties signed the Machakos Protocol, which provides a framework for broader negotiations. Key provisions of the Machakos Protocol include a six-year interim period, after which a referendum on self-determination will be held in the South. This will offer a choice between a united Sudan and secession. The parties are also in agreement that Sharia law will continue to be applied only in the North.

During a second round of talks, which started in August 2002, power and wealth sharing were discussed. President Beshir and John Garang, leader of the SPLA held a historic first meeting in Kampala. On October 15th 2002 the Government and the SPLM/A signed an MOU, which called for a complete cessation of hostilities for three months, as well calling for unimpeded humanitarian access. After international pressure and a report by the Civilian Protection and Monitoring Team (CPMT) on fighting in Western Upper Nile, the Government and the SPLM/A agreed in early February 2003 to a number of provisions to strengthen the cessation of hostilities, including the creation of a new international verification and monitoring team.

Talks on security arrangements began early April 2003, The Government included the Southern Sudanese Defence Forces (SSDF) - the umbrella of government aligned militia groups, in its official delegation. A fifth session on the so-called contested areas, Abyei, the Nuba Mountains and Southern Blue Nile, was concluded in May” 2004.

On 9 January 2005, the government of Sudan and the Sudan's Peoples Liberation Movement signed a comprehensive peace agreement ending 38 years of war. On the 31 December 2004, they signed an agreement on Implementation Modalities of the Protocols Agreements. Indeed the peace signing is the result of two years of negotiations, which have produced an **Agreement on Permanent Cease Fire During the Pre-Interim and Interim Periods**, and its implementation modalities, signed respectively in September and December 2004. The parties also signed three key protocols on the 26th May 2004, on **Power Sharing**, on the **Resolution of Conflict in Southern Kordofan/Nuba Mountains and Blue Nile States**, and on the **Resolution of Abyei Conflict**, as well as an **Agreement on Wealth Sharing During the Pre-Interim and Interim Period**, *January 7th, 2004*.

"The May 2004 **power-sharing protocol** between the GoS and the SPLM/A set the scene for this. This protocol agreed to increased integration of southern Sudanese into a Government of National Unity, substantial autonomy for the south including establishment of a Government of South Sudan (GoS), and a federal system of states in support of a decentralised, democratic government across Sudan. The SPLM/A has already begun to articulate its idea of government structures, and its commissions have developed policy plans for sector ministries, public service and local government." (UN 30 November 2004, p.44)

"Following five weeks of peace negotiations in Machakos in July [2002], peace negotiations also took a positive turn when the GoS and the SPLM/A reached agreement on the right to self determination for the people of south Sudan and the separation of state and religion. Peace talks held under the auspices of the IGAD were strongly supported by the troika of USA, UK and Norway. The fluidity of the political situation in Sudan was once again underscored when in August, during the second round of these talks, the Sudanese delegation suspended negotiations blaming the attack on the strategic town of Torit by the SPLA on 1 September.

[...]

The Inter-Governmental Authority on Development (IGAD) - presided over by Kenya and made up of Uganda, Ethiopia, Eritrea, Somalia, Sudan, Djibouti and Kenya - issued in 1994 a "Declaration of Principles", which proposed a peace agreement based on a secular state and the sharing of natural resources and power. The Declaration was signed in 1997, but little serious negotiations followed until Machakos I and II. An IGAD Partners Forum (IPF) was also created, involving a number of European countries, Canada and the USA to support the IGAD peace efforts." (UN, November 2002, p.4, 13)

"The Machakos Protocol of 20th July affirms "the unity of Sudan, based on the free will of its people, democratic governance, accountability, equality, respect, and justice for all citizens... and that it is possible to redress the grievances of the people of South Sudan and to meet their aspirations within such a framework" (1.1). However it states very clearly that at the end of a six-year Interim Period there will be "an internationally monitored referendum... for the people of South Sudan to: confirm the unity of the Sudan by voting to adopt the system of government established under the Peace Agreement; or to vote for secession" (2.5). In this regard it appears to satisfy the aspirations of southerners. The Interim Period will begin after a six-month Pre-Interim Period (2). An Assessment and Evaluation Commission shall be formed (2.4), made up of GoS, SPLM/A, IGAD states, international observers (USA, UK, Norway) and "any other country or regional or international bodies to be agreed by the parties" (2.4.1). Recognising that "Religions, customs and beliefs are a source of moral strength and inspiration" (6.1), and thus agreeing with many Sudanese Christians who preferred to talk of religious equality rather than a secular state, the Protocol affirms religious freedom (6.2) and that "Eligibility for public office, including the presidency... and enjoyment of all rights and duties shall be based on citizenship and not on religion..." (6.3). It is understood that during the Interim Period there will be a form of devolved government for the south, and Islamic *shari'a* will remain in the north but will not be applied in the south.

[...]

The Protocol does not include all warring parties (although the small South Sudan Liberation Movement has signed a separate agreement with GoS) and is unlikely to satisfy the northern armed opposition within the NDA." (SFP, July 2002, p.1-2)

“Evidently the Protocol was signed under intense pressure from international mediators, but it is still not clear exactly what was the nature of that pressure. GoS is seeking international respectability, financial aid, the lifting of sanctions, and removal from the US list of states sponsoring terrorism;[...] Egypt fears not only that southern secession might lead to increased competition for the Nile waters, but also to a more extreme Islamist government in the north.” (SFP, August 2002, p.1-2)

“But, despite all the problems that the parties have with the terms of the peace framework, arguably they also have their own vested interest in pursuing it. It has long been recognised that a major objective of the current regime in Khartoum, a military dictatorship with virtually no popular support base, is to stay in power at almost any cost. But the SPLM/A, while enjoying a degree of popular support, is also an unelected and largely unaccountable movement. The Machakos Protocol is an opportunity for both parties to entrench themselves in power during the next 6 years. The IGAD process has always excluded other parties, and it is no accident that GoS, SPLM/A and the international “observers” all agree on the continued exclusion of civil society from the Machakos talks. The sharing of power.” (SFP, September 2002, p.1)

“All parties, including the mediators, are still insisting that Sudanese civil society should be totally excluded from the Machakos peace process.” (SFP, October 2002, p.1)

“This emphasises the basic problem of national identity. The ruling regime sees the country as Islamic, so while they are willing to allow a degree of autonomy for the south, there is no room for a non-Muslim at national level, as president (or with the potential to become president if the incumbent dies), nor even as equal citizens in the national capital. While a short- to medium-term peace agreement may be stitched up under intense international pressure, those who favour a united, democratic, multi-cultural, multi-religious Sudan are unlikely to see their vision fulfilled while the current regime is in power. This is why most southerners see secession as the only viable option.

[...]

It is generally perceived that SPLM/A rejects democratic elections during the Interim Period (cynics suspect that GoS is in favour only because they have already learned to rig elections so as to remove any real threat of democracy). SPLM/A spokesman Yasir Arman’s explains, “We support holding the elections within a reasonable and appropriate time,” but this cannot be done too soon, before the return and resettlement of refugees and the restructuring of the “current state establishments”, because “the regime will use its resources and structures to win the elections, when the other political forces have been absent for 14 years”.” (SFP, November 2002, p.1-2)

Cessation of Hostilities MOU 15 October 2002

“Sudan’s peace process survived a major challenge in the first weeks of the new year. Indeed, signature by the parties of a strengthened cessation of hostilities agreement on 4 February and a memorandum of understanding codifying points of agreement on outstanding issues of power and wealth sharing two days later indicates that the momentum to end the twenty-year old conflict is strong. However, the crisis produced by a government-sponsored offensive in the Western Upper Nile oilfields at the end of 2002 and through January raised questions about the Khartoum government’s commitment to peace and showed that much more attention needs to be paid to pro-government southern militias and the commercial and political agendas for which they are being used.

[...]

“The latest fighting reflected a calculated decision to violate the cessation of hostilities agreement signed on 15 October 2002. The signing of new agreements, therefore, does not guarantee their implementation.” (ICG, 10 February 2003, p.1)

“The agreement binds both sides to a “cessation of hostilities” in all areas of Sudan, which includes retaining their military positions, refraining from any offensives or attacks on civilian populations, and not supplying areas with weapons or ammunition.

In an addendum to the MOU, which was signed in February 2003, both sides guaranteed to give notification of all troop movements and supply of combat items, to provide the locations of their forces and

allied militia, and to allow a Verification and Monitoring Team to investigate any alleged military attacks.” (IRIN, 30 June 2003)

“The SPLA is also in a difficult position. Many Southern Sudanese would like an agreement that allows them to vote on independence as soon as possible. The SPLA must show leadership in supporting an outcome that makes unity realistic through genuine power sharing at the centre. Otherwise, resumed war is highly likely.” (ICG, 8 August 2003)

“The government and the rebel Sudan People's Liberation Movement/A (SPLM/A) on Saturday in Naivasha, Kenya, extended to the end of March the Memorandum of Understanding on Cessation of Hostilities, first signed in October 2002, a Sudanese government statement said.

[...]

Sources said, however, that the parties were unable to move forward on the two remaining issues of power-sharing and the disputed regions of Abyei, Nuba Mountains and southern Blue Nile during the proposed six-and-a-half-year transition period to follow the signing of a final peace agreement.” (IRIN, 1 March 2004)

Security Arrangements (September 2003)

“There has been a breakthrough on one of the outstanding issues -- that is security and military arrangements,” SPLA spokesman Samson Kwaje told AFP.

“We have agreed on substantial withdrawal of the government forces from the south, redeployment of SPLA forces in Khartoum and the formation of equal units of an integrated force in Southern Blue Nile and Nuba Mountains.” (AFP, 24 September 2003)

“The document, presented two days ago, proposed the establishment of an integrated army, comprising seven brigades, two of which would be stationed in northern Sudan, two in the south, one in the Nuba mountains, one in Southern Blue Nile and one in Abyei.” (IRIN, 11 September 2003)

“The proposals made in the peace talks here from the Sudan People's Liberation Army (SPLA) would, if accepted, result in the creation of an integrated force of 3,000 troops from both sides, officials said.

[...]

The SPLA has also proposed that Khartoum keep its current army in the north, while those of the SPLA will remain in the south during the transition period.

“Only the retrained integrated force will be allowed to operate both in the north and south,” the official explained.” (AFP, 14 September 2003)

“Once the parties had agreed on security arrangements, and officially requested the UN to take part in a peacekeeping mission, the Department of Peace Keeping Operations (DPKO) would draw on its expertise to detail the arrangements, Vraalsen said. “They are in the process of planning,” he said, adding that the DPKO was “more or less on standby”, but it was too early to tell the possible size, makeup and deployment details of such a force.

He said both the government and the SPLM/A had emphasised to him that a peacekeeping force was a top priority once a comprehensive peace deal had been signed. The second priority was that Sudan should immediately be in a position to receive the tens of thousands of refugees in surrounding countries and between three and four million internally displaced within the country who wished to return to their homes, he noted.” (IRIN, 23 Sept 2003)

“In addition, following the expressed wish of the two Sudanese parties for a broad role for the United Nations (UN) in the implementation of a forthcoming peace agreement, the UN has been stepping up its efforts on several fronts. At Headquarters, the UN has started preliminary planning to ensure that the Security Council can initiate a cease-fire monitoring role as soon as an agreement is signed.

[...]

In early September 2003, what was originally scheduled to be a preparatory summit meeting of SPLM/A/A leader John Garang with Sudanese Vice President, Ali Osman Taha, effectively became the eighth and possibly last round. By the end of September, the two parties had reached an agreement on security arrangements during the interim period, which up until then had been a major outstanding issue dogging the peace process since its inception. While further tough trade-offs and compromises will have to be made with respect to wealth sharing, the presidency, and the three 'transitional' or 'contested' areas (Abyei, Nuba and Southern Blue Nile), peace has never been this close." (UN, 18 November 2003, Vol.I, p.5, 16)

"The differences arose following a hint by United States Secretary of State Colin Powell last week that up to 10,000 international monitors could be deployed in Sudan once a final deal is reached.

[...]

The Khartoum government, on the other hand, has ruled out a role for peacekeepers, and instead said it preferred the idea of peace monitors, similar to those already being implemented under the facilitation of Inter-Governmental Authority on Development (IGAD)." (IRIN, 10 February 2004)

Wealth sharing agreement

"The accord, signed in the Kenyan town of Naivasha, provides for an approximate 50-50 split of revenue from the country's 300,000 daily barrels of oil and other income between the government and an envisaged autonomous administration in the south to be run by the political wing of the rebel Sudan People's Liberation Army (SPLA)." (AFP, 7 January 2004)

North-South Peace Accord lacks provisions for any kind of justice mechanism, the monitoring of human rights and has no truth commission or compensation for the millions of victims

"Throughout the North-South peace talks in Naivasha, Kenya, international negotiators have failed to insist that the peace agreement include provisions to hold the government and rebel Sudan People's Liberation Movement/Army (SPLM/A) accountable for the massive violations of human rights that were committed during the war. By failing to putting accountability and human rights high up on the Naivasha negotiating agenda, the "Troika" -the United States, Britain and Norway -mediators unwittingly encouraged government officials in Khartoum to believe that they could wage war against civilians in Darfur with impunity.

Moreover, when word of attacks on civilians by government forces and government-backed militias -using the same tactics as had been used in the south of Sudan for years -first began to come out of Darfur, the United States and other countries involved in the Naivasha talks were hesitant to confront Khartoum publicly because of fear that doing so might derail the North-South peace process.

[...]

It is not too late for the Troika and the rest of the international community to insist on accountability. U.N. Security Council members should insist on the creation of an effective, independent and impartial justice system and a robust U.N. human rights monitoring presence to be included in the Naivasha Protocols." (HRW, 16 November 2004)

"John Prendergast, a Sudan analyst and the Africa programme co-director of the International Crisis Group, told IRIN it was a mistake to view the war in Sudan as simply between north and south. He said an eventual peace deal between the government and the SPLM/A could spark further instability in both Darfur and eastern Sudan, if people felt left out of the peace process.

"The potential is that westerners and easterners may feel so excluded, that the only way to join the table is to pick up a gun", he said." (IRIN, 23 October 2003)

"Unless the situation in Darfur is addressed, there is a very real threat that the north-south problem will simply be replaced by an east-west conundrum. Most sides outside the SPLM/A and the government feel marginalised by the peace process. The leaders of the SPLM/A and the Khartoum government both come from powerful circles, but nevertheless represent only a section of their respective regions. And with a full-

blown war in the west, and rumblings of disquiet in the east, the chances of conflict on a different axis are strong.

[...]

Disgruntled rebel groups in the west and the east have already joined forces to eradicate "marginalisation, poverty, ignorance and backwardness". Darfur's SLA and the Eritrea-based Beja Congress in the east say their grievances are essentially the same and they will confront the government on the same platform. The Beja Congress has even warned of an escalation of fighting in the east unless its concerns are addressed and the government ceases seeking "partial solutions" to Sudan's problems.

[...]

These groups want direct access to the negotiations, rather than simply being "represented" by the SPLM/A, which is the largest group within the NDA. A crucial issue now is the implementation of last December's Jiddah accord, which provides for power-sharing between the government and the NDA, and which some observers see as an indication that the authorities want to involve the Alliance in the political reform process." (IRIN, 12 February 2004)

See ICG "Sudan: Towards an Incomplete Peace", 11 December 2003 [[External Link](#)]

See European Coalition on Oil in Sudan, Report on the conference, "Sudan's Road to Peace: The European Dimension", Tuesday, June 24, 2003, [[External Link](#)]

See "Agreement on Wealth Sharing during the Pre-Interim and Interim Period", Government of Sudan and Sudan People's Liberation Movement/Army, January 7th, 2004, [[External Link](#)]

Further reading: on prospects of consolidate peace in Sudan read 'Sudan's best chance for peace: how not to lose it' by ICG, 17 September 2002, click here [[External Link](#)]

'Power and wealth sharing: make or break time in Sudan's peace process', ICG, 18 December 2002, click here [[External Link](#)]

For more details on issues of structures of government, power sharing, the judiciary and human rights, access the MOU between the GoS and the SPLM/A on Aspects of Structures of Government (18 November 2002) click here [[External Link](#)]

See Justice Africa reports in the bibliography below

Controversy over the status of contested three central regions (2004)

- The Protocols signed in May 2004 for Abyei, Blue Nile State and the Nuba Mountains/South Kordofan State have left many underlying tensions unresolved
- At the root of these tensions are conflicts between pastoralist and farmers over the use of natural resources including land, which will be exacerbated with the return of IDPs
- Nuba Mountain Region, Southern Blue Nile (Funj Region) and Abyei are territories geographically belonging to the North
- The Protocols have set out the basic governance and wealth sharing arrangements for the three areas during the planned interim period
- At the end of the six-year interim period, the citizens of Abyei will decide whether to be considered citizens of both Western Kordofan (which is now merged with Southern Kordofan/Nuba Mountains) and Bahr al-Ghazal or the North
- Whether the semi-nomad Misiriya (believed to upset the balance in favour of unity with the North) will be entitled to vote on the Abyei referendum remains to be decided by the Abyei Referendum Commission

- The Abyei Boundaries Commission will also need to define the boundaries of Abyei
- The protocol covering Nuba Mountains/Southern Kordofan and Blue Nile States contain no similar special provisions and as the two areas are not part of the southern Sudan as per the borders of 1956 they are not legally bound by the clause on self-determination in the Machakos Protocol of July 2002
- The power-sharing percentages within these areas were very controversial but the parties could not agree on a name for the state with the GoS referring to it as Southern Kordofan and the SPLM/A as Nuba Mountains
- Militia movement and training was reported in the Transitional Areas and conflicts could erupt in 2005
- SPLM/A has accepted the three central areas lie geographically in the North, but called for self-determination in those areas
- The people of Blue Nile would like to be granted self rule during the interim period but reject to be governed by SPLM/A
- The three areas are resource-rich and carry important economic interests
- According to the GoS the three areas are ineligible for self-determination

“The ‘transitional areas’ of Sudan covered in this section comprise Abyei, Blue Nile State and the Nuba Mountains/South Kordofan State. Because of the particular circumstances of these areas, there are many underlying tensions, which the protocols agreed in 2004 have only partially resolved. It will, therefore, be particularly important that the international community understands the political dynamics, at local as well as state levels, and works in a way that promotes peace and the successful implementation of the agreements reached. Key to many of these tensions are the underlying conflicts between pastoralist and farmers over the use of natural resources. Although overall there is more poverty and fewer services in the SPLM/A areas, there are marginalised groups in all parts of the transitional belt and their needs must be understood. The physical isolation of the SPLM/A controlled part of Abyei and of Southern Blue Nile leads to shortages, or extremely high prices, for many goods.

The GoS-SPLM/A protocols

The most important development in 2004 was the agreement by the GoS and the SPLM/A in May 2004 of two protocols covering the areas: the Abyei Protocol and the Nuba Mountains/Southern Kordofan and Blue Nile Protocol. These protocols set out the basic governance arrangements for the three areas during the planned interim period, following the signature of an overall GoS-SPLM/A peace agreement. The arrangements cover the structure of the respective state-level governments, legislatures and courts, as well as shares of national wealth.

The two protocols are different in nature. The protocol for Abyei provides for the area to be accorded a special administrative status during the interim period, whereby the residents shall be considered citizens of both Western Kordofan (which is now merged with Southern Kordofan/ Nuba Mountains) and Bahr al-Ghazal with representation in the legislature of both States. At the end of the interim period residents will be entitled to vote on a referendum (separate to but simultaneous with the one on self-determination of southern Sudan) where they will decide whether Abyei shall retain a separate administrative status within the North or be part of Bahr al-Ghazal. An Abyei Resettlement, Construction and Development Fund will be established to handle relief, repatriation, resettlement, reintegration, rehabilitation and reconstruction programmes in the Area. The residents of Abyei are defined as the members of the Ngok Dinka community and other Sudanese residing in the area; and the criteria of residence shall be worked out by the Abyei Referendum Commission. This clause in actual fact postpones the solution of the delicate issue as to whether the semi-nomad Misiriya are entitled to vote on the Abyei referendum (which is believed to upset the balance in favour of unity with the North) and is liable to lead to significant tensions in the intervening period. The other critical issue is defining the boundaries of Abyei, a task left to the Abyei Boundaries Commission, which is charged with the task of reporting within two years

The division of the revenues from oil produced in Abyei is laid down as 50% to the National Government; 42% to the future Government of Southern Sudan; 2% to Bahr al-Ghazal Region; 2% to Western Kordofan (henceforth presumably Southern Kordofan/Nuba Mountains); 2% locally with the Ngok Dinka; 2% locally with the Misiriya. This makes it particularly important that good governance practices are developed in order to ensure that these resources are used for the benefit of the majority. As has been seen elsewhere in Africa, oil can be a curse as well as a blessing, a source of conflict as well as the potential for development.

The protocol covering Nuba Mountains/Southern Kordofan and Blue Nile States contain no similar special provisions. A major stumbling block in the 2004 talks was the SPLM/A demand to grant the population of the two areas the right to be consulted over the agreement reached, including the option of self-determination. However, the two areas are not part of the southern Sudan as per the borders of 1956 and legally they are not bound by the clause on self-determination in the Machakos Protocol of July 2002. The only concession made, therefore, was the right of the two legislatures to endorse the settlement or to engage with the National Government with a view to rectifying any shortcoming. The power-sharing percentages within the areas were so controversial, particularly for Southern Kordofan/Nuba Mountains, that they were the last substantive point to be agreed upon by the parties. The breakdown ultimately agreed was 55% to the National Congress Party and 45% to the SPLM/A. There is no provision for other parties. No consensus could be reached on the name of the state which the GoS refers to as Southern Kordofan and the SPLM/A as Nuba Mountains.

Security

In the absence to date of a GoS-SPLM/A agreement for the permanent cessation of hostilities, the Nuba Mountains ceasefire has continued and is monitored by the Joint Military Commission (JMC). Abyei and Blue Nile State continue to be under the general 'cessation of hostilities' agreed in October 2002 and are covered by the Verification and Monitoring Team as part of its monitoring of adherence to the GoS-SPLM/A cease fire in southern Sudan. The number of cease fire violations in the Nuba Mountains in particular has declined and cross line access has become much easier, resulting in a big increase in trade. This has been largely due to the work of the JMC. However, as of November 2004, cross line access in Abyei and Blue Nile remained problematic. There have also been reports of militia training and movements in all of the transitional areas, although not all reports have been substantiated. Renewed or increased conflict in any of the three areas therefore remains possible." (UN, 30 November 2004, pp. 142-143)

"The status of the border areas, Ingessana Highlands, Nuba Mountains and Abyei, has been the source of substantial disagreement in the Machakos negotiations. The SPLM appears to have tacitly accepted the Government position that the three areas do not fall squarely in "the South", but have insisted on credible mechanisms for self-determination for those areas. Whether or not the status of these areas is concluded at Machakos, it is clearly understood by all southerners consulted during this examination that peace in southern Sudan will be elusive if these fault lines are not addressed. First, each of these areas is culturally, linguistically and psychologically non-Arab, and is committed to be part of southern Sudanese entity, whether in a separate Sudan or under a framework of 'one Sudan – two systems'. Second, these areas are involved in the armed struggle, and will continue to fight from their regions, and possibly from further south if left under the assault of the GOS. Third, these areas are resource rich, and their status carries powerful economic considerations. Fourth, the people of the border areas have demonstrated that they will resist northern domination and occupation by all means necessary. War in these areas would likely have ripple effects, both practically and psychologically, which may pull southern groups, particularly those of Bahr el Ghazal and Upper Nile, back into conflict with the north." (Deng D., 7 January 2004, p.40)

"The same difficult issues remain: power-sharing, wealth-sharing and security arrangements during the Interim Period, and the status of the marginalised areas of the Nuba Mountains Region, the Funj Region (also known as southern Blue Nile) and Abyei. The Government of Sudan (GoS) objected to these areas being included in the discussions, and delayed their arrival until a face-saving formula was found whereby these would be discussed separately. [...]

SPLM/A and the mediators insist that while the marginalised areas are not part of the south according to the 1956 colonial boundaries, they are nevertheless part of the conflict. Peace cannot come unless all aspects of the conflict are dealt with. The Nuba people held a convention in November 2002 and the Funj in December – both regions affirmed their wish to stay within the SPLM/A-administered territory and demanded the right of self-determination. While the people of Abyei have not yet held a convention, there is little doubt that they share these sentiments. The Nuba conference was attended by delegates from both sides of the front line, and the level of agreement was notable. Dr John Garang visited the gathering in Kauda, his first trip to the Nuba Mountains during the current war. A new United Sudan National Party was formed, headed by veteran Nuba politician Fr Philip Abbas Ghaboush. The name “Nuba Mountains Region” was chosen to replace the old “Southern Kordofan”. A Nuba activist who attended the All Nuba Conference, Awad Abdel Rahman, was arrested by GoS security officers and detained in a ghost house in Port Sudan. A leading Nuba delegate to the IGAD talks, Tisso Nadim, was murdered in Nairobi in January 2003. Delegates from GoS-controlled territory were prevented from attending the southern Blue Nile convention in Kurmuk, at which the people of the region reclaimed their historic name “Funj”. (SFP, 31 January 2003, p.1)

“The over 700 conference participants - no government representation was present - called on the international community to guarantee "free movement and adequate protection and security" for the repatriation of the IDPs. They also asserted that they were "part and parcel" of southern Sudan and identified the Sudan People's Liberation Movement/Army (SPLM/A) as their "legitimate representative" in any negotiations with the government.

The status of Abyei is currently one of the most contentious issues in negotiations for a national peace agreement in Sudan.” (IRIN, 10 July 2003)

“As to the region's future political dispensation, the governor said: "We want self-determination, a referendum to take place... to choose between unity with the north in a confederal arrangement, unity with the south and independence.”” (AFP, 30 November 2003)

“Sudan's Blue Nile state has demanded it also be granted self-rule during the six-year transitional period under a peace deal expected to be signed by Khartoum and southern rebels, newspapers said Wednesday. But conference participants emphasized their adherence to boundaries set in 1956 and their rejection of any form of control by the Sudan People's Liberation Army (SPLA) of the southeastern Blue Nile state.” (AFP, 12 November 2003)

“Sudan's Vice President Ali Osman Taha and rebel Sudan People's Liberation Army (SPLA) head John Garang held negotiations on the status of the three disputed areas of Abyei, southern Blue Nile State and the Nuba Mountains.

The SPLA claims those areas although they are not geographically part of the south, where the SPLA is based.

“The two sides have already agreed on some issues on the Nuba Mountains and southern Blue Nile, such as that they will become autonomous, have their own governor, supervise their own education, collect their own revenue," a source who asked not to be named told AFP.

“On Abyei, the government wants a referendum while the SPLA wants it to return to the south, saying it was annexed, but the leaders are yet to discuss that,”” (AFP, 31 December 2003)

“For the last two months, the government and the Sudan People's Liberation Movement/Army (SPLM/A), have been trying to reach agreement on the hotly disputed areas of southern Blue Nile, Abyei and the Nuba mountains. The three areas are traditionally considered part of northern Sudan, following the 1956 administrative boundaries, but are currently partly controlled by the SPLM/A, which says it represents the local populations.

According to the government, the three areas are ineligible for self-determination, unlike southern Sudan, which will hold a referendum on self-determination six and a half years after a peace agreement is signed.” (IRIN, 10 March 2004)

See ICG report from 25 June 2003 Sudan's Other Wars [External Link]

Overview of grassroots peace initiatives (2004)

- In the South the church is considered as the most influential actor in peace and reconciliation, the New Sudan Council of Churches (NSCC) formed in the early 1990s has been the most active in grass-roots peace initiatives since 1997
- 250 traditional leaders representing 6 different ethnic groups met in Liliir and signed an agreement of peace and reconciliation facilitated by the NSCC (May 2000)
- Issues agreed upon included access to grazing and watering points as well as return of abducted children and women
- More than 200 Nuer leaders attended the Kisumu peace conference, where a Unity agreement between the Sudan People's Democratic Front (SPDF) and the South Sudan Liberation Movement (SSLM) was signed (June 2001)
- The conference called the oil companies to suspend their activities until a sustainable peace is reached in Sudan
- The Sudan Council of Churches (SCC) organised an interfaith conference in Malakal (March 2004) promoting North-South tolerance
- Bahr-el-Ghazal Youth and Development Agency (BYDA) trains communities in resolving local disputes and intra-tribe conflicts
- Bahr-el-Ghazal Women Development Center (BWDC) provides legal aid to women and engages in conflict resolution involving women within communities and marriages
- Conflict transformation between the Dinka and Misseriya is progressing
- Sudan Council of Churches facilitated the Conference on Reconciliation between the Didinga people and the SPLM/A
- In Upper Nile a Peace Conference in June 2003 brought together more than 500 delegates from 25 out of the 30 administrative areas including broad representation from civil society
- The Sudan Interior Church (SIC) has facilitated many peace conferences in the Magang area between various ethnic groups such as Dinka Ngok/ Dinka Luac, Rut, Thoi/ Lou Nuer, and Shilluk
- The New Sudan Council of Churches facilitated a Nuer Youth Peace Initiative (2003), led by Nuer Youth to mobilize, reconcile, and deliver peace education, as well as HIV/AIDS awareness

“180. Sudanese people of all three major faiths (Animists, Christians and Muslims) tend to be deeply devoted to core-messages of peace, tolerance and forgiveness, and less inclined to dogma. It is said that some 80% of all Southerners attend church every Sunday, whether they are Animists or Christians. In the South, the church is considered the strongest actor in reconciliation. Its network is wider than that of civil society, and its influence at grass-roots level is stronger than that of SPLM/A.

181. The New Sudan Council of Churches (NSCC) was formed in the early 1990s and has been active in grass-roots peace initiatives since 1997. NSCC is most known for its People-to-People Peace Initiative, whereby the church works with civil society and authorities to promote reconciliation and help achieve peace agreements between Southern tribes and communities - the Wunlit Agreement and the Liliir Conference, being the most well known ones. [...] These efforts are also seen as building blocks in restoring

traditional conflict resolution mechanisms. Although the degree of success differs, the People-to-People Peace Initiative is widely supported by both national and international stakeholders.[...]

182. Perhaps even more remarkable are the efforts by religious institutions in reconciling Northerners and Southerners in the garrison towns. In early March 2004, the Sudan Council of Churches (SCC) together with Muslim leaders and scholars organized an interfaith conference in Malakal. Reaching out to a large segment of the society, the conference was attended by civil society, university students and local authorities, including military and security officials, while the HAC administration contributed S.D. 10,000 to the conference. In promoting tolerance between the two faiths and people, the Southerner facilitator from Khartoum, who was well-versed in both the Bible and the Qu'ran, had skilfully shed light on the interrelation between ignorance and intolerance. "After that, no one wanted to appear ignorant," one participant explained, "instead we all felt compelled to project tolerance, and that set the tone of the conference."

183. While religious institutions and village leaders remain central to conflict resolution and reconciliation, youth and women can and should play a major role. Bahr-el-Ghazal Youth and Development Agency (BYDA) is a principal youth actor that trains communities in resolving local disputes and intra-tribe conflicts. BYDA's philosophy is to liberate people from the recipient- and dependency- syndrome. "The most effective way of assisting people to resolve conflict is to build their capacity to conquer their own fears and gain inner freedom. People might not know how to read and write, but I see in them powerful minds," the founder of BYDA explained with a contagious conviction.

184. Closely linked to BYDA, is the Bahr-el-Ghazal Women Development Center (BWDC). BWDC provides not only legal aid to women, but also engages in conflict resolution to promote women's position within communities and marriages. Adopting a culturally sensitive approach, they conduct negotiations with tribal leaders and elderly as a means of improving the status of women in customary practices." (IRC, 31 May 2004, p.48, 9)

Efforts to create peace between ethnic groups the Liliir initiative:

"The momentum behind the southern Sudanese grassroots peace process continues to quietly, but firmly, progress. Another dramatic breakthrough was achieved in a small village called Liliir, in the Bor area of Upper Nile, between the 9th and the 15th of May [2000].

Under the auspices of the New Sudan Council of Churches (NSCC), over 250 traditional and civil leaders, representing members of the Anyuak, Dinka, Jie, Kachipo, Murle and Nuer ethnic groups from the region, came together to address the deep division and conflict that have arisen between them, especially as a result of the country's 17 year long civil war.

The Liliir assembly was inspired by the success of the previous 'West Bank Dinka Nuer' Conference (in Wunlit, March 1999), and numerous mini 'people-to-people' agreements since then. The Wunlit achievement was unanimously endorsed by the delegates, church leaders, and other observers present (including a letter of support from the SPLM leadership).

The Upper Nile conference was both complex and challenging, given the many ethnic groups that make up the region. While traditional hostilities have prevailed for generations among some of the groups, they have been aggravated (and in many cases manipulated) by the warring parties in recent years. The conference welcomed the public declaration by a number of military officers who, in their capacity as civilian observers, pledged their commitment to the people-to-people peace process.

The conference functioned as a forum for people to face each other, discuss their differences and agree to reconcile and make peace. Given the high attendance, the outcome at Liliir was successful, and practical agreements over issues such as access to animal grazing areas, water points and the return of abducted children and women, were sealed. An amnesty for all prior offences against people and their property was

also agreed. The occasion concluded with the making of a public covenant between the ethnic groups, when 129 representatives signed a comprehensive document pledging peace and reconciliation.

The conference regretted however that the wish of the Gawaar-Nuer to participate in the reconciliation process was denied by an Upper Nile faction. The delegates requested that these, and other groups who did not have opportunity to participate in the conference, be given a chance to meet and reconcile as soon as possible. This, they said, was the wish of the people." (NSCC May 2000)

"All Upper Nile Peace Conference (June 13-18) Panyagor, Bor County [2003]

This historic meeting brought together more than 500 delegates from 25 out of the 30 administrative areas in Upper Nile including representatives of civil society, women and youth organizations, the Diaspora, Chiefs, the Anyuak King, civil administration, members of the diplomatic corps, donor agencies and NGOs, in order to develop common strategies, deepen the resolve for the peaceful transformation of local conflicts in the region, and build opportunities for peace, harmony and security of life and property in the region. Final report is under development.

SIC Peace Consolidation Meetings in Magang

The Sudan Interior Church (SIC) has previously facilitated a number of peace conferences in the Magang area, with attendance limited to Dinka Ngok/ Dinka Luac, Rut, Thoi/ Lou Nuer, and Shilluk. These attempts have shown great community support for the SIC, who has been a main peace negotiator in the area and have been encouraged to continue pursuing peace in the area. Despite these initiatives, cattle raiding, looting, and sporadic killing of civilians has continued, especially between Dinka Rut and Gawaar (for example, peace ambassador Machok Atem, who was killed while carrying out peace mobilization mission earlier this year).

Several important conflict actors have refused to attend the earlier conferences, claiming that travel to Magang is insecure. As a result the last meeting recommended that there should be another conference which will ensure involvement of Dongjol, Gawaar, Jikany and Laak Nuer. Among the Conference expected results are: increased involvement by a wider array of groups, support from local authorities, participation of youth and women in the peace process, the drafting of a resolution document, rebuilding trust and confidence among the neighboring communities, reduction of incidents of insecurity and increase in capacity for monitoring, restoration of cultural values, and strengthening the scope of peace initiatives in the region.

[...]

Nuer Youth Peace Initiative

Also facilitated through NSCC, this seeks to build upon some youth-led initiatives on Nuer reconciliation. 12 Nairobi-based Nuer Youth were flown into 3 locations in Upper Nile with a mandate to mobilize, reconcile, and deliver peace education, as well as HIV/AIDS awareness messages. On the ground in Nyal, Pagak and Jiech, the youth will organize and form youth groups; organize sports teams and mark playing grounds; deliver an HIV/AIDS message; raise awareness about causes of conflict; discuss the traditional method of solving conflicts; establish adult education classes for the youth, and build youth activity centres in these 3 locations. They will have approximately one month in the field." (Sudan Peace Fund, Activity Reports, Upper Nile, 23 February 2004)

Kisumu peace deal to reconcile Nuer people in the south:

"The New Sudan Council of Churches (NSCC) has brokered a peace deal among warring factions of the Nuer people in South Sudan, as part of a wider people-to-people peace process to end Africa's longest running civil war, according to the British-based NGO Tearfund. At a peace conference in Kisumu, western Kenya, part-sponsored by Tearfund, 72 Nuer leaders signed a declaration by which they called for the unity of two factions: the Sudan People's Democratic Front (SPDF) and the South Sudan Liberation Movement (SSLM)[...].

The Nuer signed their Declaration of Unity to alleviate the suffering among their people "as a result of division and conflict", in order to end others' exploitation of differences among the Nuer, and to allow them

play their rightful role in "the liberation struggle of the people of southern Sudan", a press release from Tearfund stated.

The Kisumu conference - which brought together more than 200 traditional leaders, elders, women, civil society representatives and politicians from southern Sudan [but, notably, not the Sudan people's Liberation Movement/Army (SPLM/A), which declined to attend] - called on the international community to respond to the humanitarian crisis in southern Sudan, the South Blue Nile and the Nubah Mountains, according to Tearfund. In addition, it appealed to oil companies to suspend production until there was a comprehensive and just peace agreement in Sudan, and for the NSCC to continue its peace-building work in the region.

The purpose of the Kisumu conference, convened from 16-22 June at the request of traditional leaders, was to work towards "unity of purpose, unity of effort and unity of ideals" among southern Sudanese, according to informed sources. That liberation was "the common and prime agenda" and self-determination the "the central objective" were among the key affirmations of the conference, they said. Unity in the face of "a common threat" and "clarification of the goal of liberation" were said to be constant themes. It was notable that the NSCC was aligning itself with the people in their struggle for liberation from oppression, but was not associating itself with any one movement, the sources added. In the past, the church grouping has been accused of being too close to the SPLM/A" (IRIN, 2 July 2001).

"Progress was also made in conflict transformation with the Abyei (Kordofan) peace process. The people-to-people peace process in Abyei facilitated the return of up to one thousand households to three Dinka villages around Abyei town. Movements of Misseriya herdsman and traders into Bahr al Ghazal and their return northwards have also been relatively free of violence for the second year in a row. Leaders of the Dinka and Misseriya ethnic groups showed strong commitment to the management of conflict over resources. Meanwhile, in the Dilling and Lagawa areas of the Nuba Mountains and in Malakal and the Sobat valley other community-led low-key peace building initiatives, frequently involving women, created new local political realities. For example, in the Malakal area, such an initiative opened up service delivery in previously inaccessible areas. These initiatives underscore the importance of local conflict transformation in setting examples for national reconciliation. United Nations Children's Fund (UNICEF) and United Nations Development Programme (UNDP) promote the critical importance of grass roots peace building as a foundation for humanitarian and rehabilitation interventions. This is reflected in the CAP for 2003.

A breakthrough was achieved in attempts to resolve the conflict between the Didinga community and the military authorities in the Chukudum area of Budi County (Eastern Equatoria) in August 2002 as the New Sudan Council of Churches (NSCC) facilitated Conference on Reconciliation and Healing between the Didinga people and the SPLM/A. The Conference successfully tackled some of the underlying sources of conflict. Once an important base for NGO activity, Budi County, in particular Chukudum, saw a reduction of humanitarian activities as the security situation deteriorated. The security situation has improved and, at the time of writing, an Operation Lifeline Sudan (OLS) assessment team was in Budi County exploring ways of meeting the humanitarian needs of the communities." (UN, November 2002, p.4)

"Ngok of Abyei People's conference (June 2-7), Agok, Abyei County [2003] Despite the last moment denial by the GoS to allow delegates from GoS-controlled areas to participate (Including USAID official Roger Winter and UN Advisor to the Secretary General on IDPs Francis Deng), the meeting brought together over 700 participants in a forum to ring together the Ngok Dinka separated by years of war, and their neighbors, including the Misseriya Arabs. Final report is under development.

Greater Aweil Dialogue for Peace, Reconciliation, and Development (June 7-11), Wanyjok, Aweil East County [2003] The Conference convened 400 participants, including the people of Aweil who are under SPLM/A administration, returnees from the government controlled areas, representatives from the Arab traders, and representatives from the armed groups. The Conference provide them a forum to assess their present situation and map out key recommendations for the promotion and maintenance of stability, peace and development in the greater Aweil area, including plans to expand the options available to

communities displaced and divided by the conflict. Final report is under development.” (Sudan Peace Fund, Activity Reports, Ghazal, 23 February 2004)

See "The Impact of the Inter-Southern Sudanese Dialogue" in the bibliography below.

Overview of various national and international peace initiatives (1997-2002)

- Government and SPLM/SPLA agreed in 1994 on a Declaration of Principles (DOP) which outlined a basic framework for a peaceful solution to the conflict
- In April 1997 the South Sudan Independence Movement/Army concluded a peace agreement with the Government ("the Khartoum Agreement") which by and large remained unimplemented
- Claimed that SPLA violations of the cease-fire in Bahr Al Ghazal was retaliated by the government forces through aerial bombing of the cease-fire area, the rest of the south, the Nuba Mountains, and the eastern front (June 2000)
- Peace talks facilitated by IGAD have a sad history of failures by 2002, SPLA leaders warn that no cease-fires will be reached until GoS agrees to stop oil companies's activities which are displacing thousands of civilians
- Lybian-Egyptian Peace initiative prompting for unity, a transnational government, the revision of the constitution and general elections, was accepted by Khartoum but not by SPLA (July 2001)
- Moi has merged the Lybian-Egyptian Peace initiative with IGAD which principally diverge on the issue of self-determination
- Declaration of Unity between the SPLM/A and SPDF issued on 6 January 2002

Ongoing peace process

"The 1994 Declaration of Principles (DOP) agreed to by the Government of the Sudan, the Sudan People's Liberation Movement (SPLM) and the Sudan People's Liberation Army (SPLA) - united under the auspices of the Inter-Governmental Authority on Development (IGAD) provides the basic framework for a peaceful solution of the conflict in the Sudan. The most important principle set forth in the DOP is the right of self-determination for the people of southern Sudan.

Beginning in 1995, however, the Government of the Sudan began to focus on a political strategy of "peace from within". In April 1996, the Government's Supreme Council for Peace put forward a political charter, a non-binding document containing a general framework for a political solution of the civil conflict in the Sudan. A year later, on 21 April 1997, a peace agreement between the Government of the Sudan and six splinter rebel groups was signed in Khartoum, in which it was emphasized that the general principles of the Political Charter should guide the Peace Agreement. A common feature with the DOP is acceptance of the right of self-determination. The major shortcoming of the Peace Agreement, of course, is the absence of the SPLA" (UN GA 14 October 1999, paras. 30-31).

"In April 1997, the South Sudan Independence Movement/Army, which broke away from the SPLA in 1991, and several smaller southern factions concluded a peace agreement with the Government. However, the SPLM/SPLA and most independent analysts regard the 1997 agreement as a tactical government effort to enlist southerners on the Government's side. The 1997 agreement remains largely unimplemented, and there was significant fighting between pro-government and anti-government elements who had signed the 1997 agreement during the year. In December 1999, Rieck Machar, a Southern leader who had signed the agreement, broke away from the Government and in January formed a new rebel movement, the Sudan People's Democratic Front (SPDF). The SPLM/SPLA and its northern allies in the National Democratic Alliance (NDA) carried out military offensives in limited areas along the borders with Ethiopia and Eritrea and in large parts of the south during the year. As in 1999, neither side appears to have the ability to win the

war militarily; although oil revenues allowed the Government to invest increasingly in military hardware. There was no significant progress toward peace during the year.

[...]

In June [2000] the SPLA launched an offensive in Bahr El Ghazal and fighting between the Government and the SPLM resumed, marking the end of the humanitarian cease-fire.

[...]

The civil war continued despite limited cease-fires, and all sides involved in the fighting were responsible for violations of humanitarian norms. At year's end, the Government controlled virtually all of the northern two-thirds of the country but was limited to garrison towns in the south. In June the SPLA launched an offensive in Bahr El Ghazal, fighting resumed between the SPLA and government forces, and the humanitarian cease-fire broke down.." (US DOS February 2001, "introduction" and sect.1g)

"When SPLA violations of the cease-fire in Bahr El Ghazal temporarily halted the movement of the government's military train, the government counterattacked by bombing not only the cease-fire area, but also the rest of the south, the Nuba Mountains, and the eastern front. In July, 250 bombs hit civilians and their infrastructure in the attacks, which set a new high, according to conservative calculations based on U.N. relief reports. In August, government forces stepped up targeting of relief, health, and school facilities, apparently aiming to deter or shut down the U.N.-led humanitarian operation in the south, Operation Lifeline Sudan (OLS). And despite promises to stop the bombing in September, more government bombs in October hit Catholic church facilities in different locations in Equatoria." (HRW December 2000)

No cease-fire agreement reached between SPLA and GoS at IGAD summits in 1999 and June 2001:

"After several postponements to allow for a broader opportunity for the attainment of peace, a new round of IGAD peace talks took place in Nairobi from 19 to 24 July. It ended after the Government and the SPLM/A failed to achieve a breakthrough in any of the substantive issues at stake, namely a comprehensive ceasefire, self-determination for the south, defining a border, religion, the transitional period and a referendum. The only achievement was the agreement on the setting-up of a permanent secretariat in Nairobi for the talks, under the supervision of a special envoy who would undertake "shuttle diplomacy" between talks." (UN GA 14 October 1999, paras. 30-31)

"A one-day summit called by the Inter-governmental Authority on Development (IGAD) held on June 2 in Kenya between the Sudanese government and the Sudan People's Liberation Movement (SPLA) failed to reach a cease-fire agreement. SPLA leader John Garang said a cease-fire could only be negotiated when the government stops the activities of oil companies which he says is leading to the eviction of thousands of civilians" (AFP, June 2; Reuters, June 2; Xinhua, June 2) (UNDP 6 Jun 2001, p.4).

"The first meeting of the permanent negotiations under the IGAD Secretariat on peace in the Sudan that was scheduled to take place here from September 24 to October 6, 2001 has been postponed indefinitely because the Sudanese government has refused to send a delegation.

[...]

The reasons the government has given for not sending a delegation to Nairobi for the peace talks include its preoccupation with the terrorist attacks on New York and Washington and preparations for a delegates conference of the ruling NIF party.

These reasons, it claimed, are not genuine. The real reason is that the government is backing away from IGAD peace process, preferring other initiatives that do not address the root causes of the war.

The SPLA leadership has also claimed that the NIF are pursuing a misguided policy of peace from within, with the hope of buying time to allow them to exploit the oil in the south and displace the civilian population." (KAIIROS-Africa, October 8 2001, pp.1-2)

"Peace talks under the auspices of the Inter-Governmental Authority on Development (IGAD) scheduled to begin in the Kenyan capital, Nairobi, on 5 September have not taken place - as a result of the non-appearance of the rebel negotiating team.

[...]

The IGAD secretariat in Nairobi said at the weekend that it was hopeful of a breakthrough in negotiations following the work of permanent negotiating committees in the city in recent weeks. These government and SPLM/A committees were working on ways to build on the Declaration of Principles and work towards agreement on a ceasefire, separation of religion and state, and the organisation of a constitutional conference, officials stated." (IRIN-CEA, 11 September 2001, p.1)

Libyan-Egyptian initiative:

"The government of Sudan on Wednesday announced that it had fully accepted all the points of a joint Libyan-Egyptian memorandum, which has not been made public, on their peace initiative for Sudan.

[...]

It had previously been reported that the government of Sudan was opposed to a Libyan-Egyptian proposal to have a transitional government of all political parties to undertake implementation of the agreement, hold a national conference for revision of the constitution and organise general elections.

Although the Libyan-Egyptian memorandum was not publicly released, Sudanese media reported that it included principles insisting on Sudanese national unity; recognition of ethnic, religious and cultural diversity within the country; the need to introduce a pluralist democracy; the guarantee of basic freedoms and human rights; citizenship as a basis for rights and duties; the need for a decentralised rule of law; and the pursuit of a foreign policy that guaranteed national interests while respecting good neighbourliness. The memorandum also provided for an undertaking by all parties on an urgent cessation of violence under military observation, they added.

The opposition umbrella National Democratic Alliance (NDA) is reported to have accepted the memorandum in principle, but to have some reservations about a perceived bias by the Libyan-Egyptian mediators towards the Sudanese government. The NDA chairman and leader of the Democratic Unionist Party (DUP), Muhammad Uthman al-Mirghani, called for the integration of the Libyan-Egyptian peace initiative with that of IGAD (the regional Inter-Governmental Authority on Development) "so that the Sudanese issue does not become an Arab versus African issue", according to the Sudanese 'Al-Ra'y al-Amm'. Mirghani also accused the government of trying to assimilate the opposition into its institutions as part of its efforts to retain power, it added.

Meanwhile, Sudan People's Liberation Movement/Army (SPLM/A) official Mansur Khalid said his movement did not oppose the formation of a transitional government which included members of the other opposition parties and the ruling party, "provided prior agreement is reached on setting the duration of the transition phase, amending the constitution, revoking the emergency laws and the single-party state, and preparing for new legislative elections"

[...]

The Libyan-Egyptian initiative differed from that of IGAD in including all the Sudanese parties to the conflict, including northern opposition forces, rather than just the government and southern-based SPLM/A, according to regional analysts. It also insisted on the unity, or indivisibility, of Sudan, as opposed to the IGAD principles, previously accepted by the Sudanese government, which included the right of self-determination - and therefore at least the possibility of secession - of the south, they said." (IRIN, 5 July 2001, p.1)

"The SPLM/A is refusing talks with the government under the joint Egyptian-Libyan peace initiative without the addition of the principles of separation of religion and state, the right to self-determination for southern Sudan, the creation of an interim constitution, and the creation of an interim government based on it (IRIN-CEA, 11 September 2001, p.1).

Merging the two initiatives as an integrated peace approach:

"The SPLA also said it wanted the two mediation forums -- one spearheaded by the east African Intergovernmental Authority on Development (IGAD) and the Joint Egyptian-Libyan Initiative (JELI) -- merged (AFP, 24 August 2001)

"A new effort to merge two parallel but different peace efforts on Sudan under the chairmanship of Kenyan President Daniel arap Moi has emerged from last week's summit meeting of the regional Inter-Governmental Authority on Development (IGAD).

Moi has been charged with merging IGAD's own peace initiative with the Libyan-Egyptian initiative, the essence of which was distilled in a joint memorandum in July 2001, according to the US peace envoy, John Danforth, as quoted by the Kenyan Television Network on Saturday, after a briefing with Moi in the Kenyan capital, Nairobi."(IRIN, 14 January 2002, p.1)

After 11 years of disunity SPLA and SPDF reunite:

"Sudan's main rebel group announced on Monday that it had reunited with an important militia leader to strengthen its hand in an 18-year-old revolt against the government in Khartoum.

The Sudan People's Liberation Army (SPLA) signed a declaration of unity with Riek Machar's Sudan People's Defence Forces (SPDF) in Kenya, effectively pairing the leaders of the two largest southern tribes, the Dinka and the Nuer."(Reuters, 28 May 2001)

"On 6 January, John Garang de Mabior, Chairman and Commander in Chief of the SPLM/A, and Dr. Riek Machar Teny Dhurgon, Chairman and Commander in Chief of the SPDF, issued the *Nairobi Declaration on Unity* between the SPLM and the SPDF. It was agreed that the two movements would immediately merge under the name of the SPLM/SPLA. Important outcomes of this alliance have been the cessation of bitter hostilities between the SPLA and SPDF since their split in 1991 and a decrease in inter-factional fighting, particularly in Upper Nile." (UN, November 2002, p.4)

POPULATION PROFILE AND FIGURES

Global figures

About 6 million people internally displaced in Sudan (2005)

- There were between 5.3-6.7 million IDPs in Sudan, and average of 6 million IDPs according to a compilation of official UN figures as of November 2004
- GoS estimated there were 35,000 IDPs in 1983, 1.88 million in 1989, and 3.7 million in 2003
- The UN estimated there are about 4 million IDPs in Sudan, with about 1.8 million in Khartoum and 500,000 in eastern Sudan and the transitional zones by end 2003
- IDP Senior Advisor warns that there are no reliable population statistics available for Sudan, thus no accurate statistics for IDPs nor for how many may choose to return
- The UN estimated that about 1.7 million were displaced in Southern Sudan
- OCHA estimated 4,3 IDPs as of August 2002
- 300,000 IDPs believed to be in southern states controlled by GoS
- 1.4 million Displaced are believed to be in SPLM/A controlled areas
- Only about 700,000 IDPs in Sudan live in camps (Nov 2002)
- Aid workers reported 55,000 newly displaced between 2000 and early 2001 from the oil-rich areas
- UN estimate around 2,6 million IDPs in Government controlled areas
- A systematic USAID census identified 1,5 million IDPs in southern Sudan in 1994

The civil war in Sudan have generated the largest internally displacement population in the world ever during the past two decades. Most IDPs are not sheltered in camps which makes it harder to monitor numbers. Despite the scale of the problem, no systematic mechanisms to monitor population movements has been set up in the country and most figures are estimates and projections. As of November 2004, there was no official consensus on the overall figure of IDPs in Sudan.

Based on the below existing official statistics from the UN in Sudan, IDP figures range between 5.3-6.7 million or an average of 6 million, as of November 2004.

Here is a compilation of IDP figures extracted from the 2005 United Nations and Partners Work Plan for the Sudan (30 November 2004):

IDPs in Southern Sudan (p.44)
3.2 million

IDP returns to Southern Sudan in 2004
Over 400,000 (p.44)

IDPs in other Northern areas including Khartoum (p.177)
2.1 million including 1.8 million in Khartoum

IDPs in Darfur (p.98)

1.6 million

IDPs in Transitional Areas (Abyei, Nuba and Southern Blue Nile) (p.144)

“Large number of IDPs” No figure

Appealing agencies cite different figures: 184,000 – 200,000 – 125,000 = average 170,000

IDPs in Eastern Sudan (p.161)

63,000

TOTAL IDPs in Sudan	7,133,000
TOTAL IDP returns in Sudan 2004	400,000

GRAND TOTAL IDPs in Sudan 6,733,000

Here is a compilation of IDP figures extracted from the Sudan 2005 UN Planning Figures (30 November 2004):

IDPs in Southern Sudan

1.4 million from southern Sudan
300,000 in GoS garrison towns
320,000 newly displaced in 2004
TOTAL 2,020,000

IDP returns to Southern Sudan in 2004
281,000

Expected IDP returns to Southern Sudan in 2005
308,000

IDPs in Khartoum

750,000 from southern Sudan
510,000 from Transitional Areas
270,000 from Darfur
25,000 from Eastern Sudan
TOTAL 1,555,000

IDPs in Darfur

1.6 million from Darfur
200,000 from southern Sudan
TOTAL 1,800,000

IDPs in Transitional Areas (Abyei, Nuba and Southern Blue Nile)

300,000 from Transitional Areas
TOTAL 300,000

IDP returns to Transitional Areas in 2004
27,000 to Southern Blue Nile
13,000 to Abyei
100,000 to Nuba
TOTAL 140,000

Expected IDP returns to Transitional Areas in 2005
153,000

IDPs in Eastern Sudan

63,000 from Eastern Sudan
TOTAL 63,000

TOTAL IDPs in Sudan 5,738,000
TOTAL IDP returns in Sudan 2004 421,000

GRAND TOTAL IDPs in Sudan 5,317,000

According to information received from OCHA Sudan, as per the email below, the global IDP figure for Sudan ranges between 5.1-6.1 million.

“The global IDP figure for Sudan (extra Darfur) is 3,5 million – 4,5 million. By state: 1,8 million in Khartoum, no change since Jan 2004 on state numbers (which we don’t have [...]). Darfur: 1,6 million. “ (OCHA Sudan, email, 10 November 2004)

“Estimates suggest that the conflict in the southern part of the country, mainly between successive Governments and the Sudan People’s Liberation Movement and Army (SPLM/A), has led to the internal displacement of 4.5 million persons. At the time of my mission [August 2004], official estimates indicated that the conflict in Darfur had added an additional 1.2 million internally displaced to the statistics, while approximately 200,000 persons had fled across the border to neighbouring Chad.” (UN CHR, 27 September 2004)

According to the National Poverty Eradication Strategy Concept Note, northern Sudan has a population of about 28.4 million people, and the South about 7.5 million including 4 million IDPs. Sudan as a whole has a population of about 35 million people. (JAM, 9 September 2004)

Government of Sudan estimates

“The year 1983 stands for “break-up point” as some 35,000 IDPs, mainly from western Sudan, flocked into the outskirts of Omdurman as a result of meager rains. The IDPs created make-shift shelters in 48 locations in the ‘three towns’ of the national capital. The numbers increased to one million in 1988. It reached 1.88 million in 1989.

[...]

Moreover, the suffering was aggravated by more war-related deaths, approximately two million in the 20 years of conflict and war. There are no war-related fatalities now, because combat activity has been halted. Sudan is estimated to have one of the highest numbers of IDPs in Africa: 3.7 million people, of whom an estimated 2 million IDPs live in Khartoum State. An estimated 70% are women and children” (GoS Ministry of Humanitarian Affairs, 2 September 2003, p.3,6)

“GoS’ Humanitarian Affairs Commission has announced that the number of displaced persons in Khartoum could be as high as 4 million.” (SFP, October 2002, p. 5)

“Some 4.4 million Sudanese are internally displaced, the General Commissioner of Humanitarian Aid, Sulafeddin Salih announced in Khartoum Wednesday.” (PANA, 2 October 2002)

UN and NGO estimates in 2003-4

“Approximately 3.2 million southern Sudanese fled their homes over the past two decades.” (UN, 30 November 2004, p.44)

“IDPs and returnee populations rely heavily on life sustaining and supporting assistance because their coping mechanisms have typically been significantly eroded. Sudan has the largest IDP population in the world. Of the estimated total of 4 million, 1.8 million are presumed to live in Khartoum and 500,000 in eastern Sudan and the transitional zones. Others are displaced within southern Sudan. In certain areas such as Juba in Equatoria the vulnerability of IDPs is further compounded by reported cases of abduction and forced servitude” (UN, 18 November 2003, Vol.I, p.7,25)

"Rebuilding the Sudan will present formidable challenges. The war has resulted in 2 million deaths. Some 4 million people have been displaced - the largest population of internally displaced persons in the world." (UN GA, 6 August 2003)

“Violence that erupted in Sudan's western Darfur region nearly one year ago and continues unrestrained today, has displaced at least 800,000 Sudanese civilians-including more than 110,000 who have fled to the remote deserts of eastern Chad-and has killed countless thousands of others. Although precise numbers are difficult to determine, it is estimated that the displacement caused by the Darfur crisis has increased the number of uprooted Sudanese from more than 4.5 million to nearly 5.5 million.” (USCR, 24 February 2004)

2002 IDP estimates “An estimated 250,000 to 500,000 Sudanese fled their homes during 2002, including many people who were already displaced because of violence in previous years.

[...]

The new population movements during 2002, though massive, did not substantially alter the general pattern of displacement in Sudan. Between 1.5 million and 2 million persons were believed to be internally displaced in the south, including about 300,000 in government-held towns. Some 1.5 million to 2 million remained displaced in and around Khartoum, the capital, most of them southerners who had fled or migrated northward because of the war. Other areas of Sudan contained an additional 500,000 uprooted people.

Some UN and government officials estimated that the country's total displaced population numbered as high as 4.3 million. The country's massive size and remote locations, as well as the long duration of the war, made precise estimates impossible.” (USCR, 1 June 2003)

“With no reliable population statistics available for Sudan as a whole, and certainly no accurate statistics on the numbers of internally displaced persons (IDPs), or whether and when they may choose to return, much of the necessary planning is based on assumptions.” (IRIN, 11 November 2003)

“It is difficult to count 4 million displaced people. The best estimates available are that nearly 2 million internally displaced persons have congregated around or near Khartoum, many of them southerners. About a half-million people are believed to be displaced in central Sudan's transitional zone, particularly in the Nuba Mountains. Many researchers estimate that about 1.5 million to 2 million people are displaced in southern Sudan: 10 to 20 percent are reportedly in government-held areas of the south, and about 80 to 90 percent of the displaced population in the south are in SPLM or other opposition areas.” (Brookings/et.al., 25 November 2002, pp. 45-46)

“During the same period, however, the number of internally displaced persons continued to rise to a current estimate of 25 million persons, of which 10-11.5 million are in Africa, and 4.5 million in Sudan” (Brookings/et.al., 25 November 2002, p.2)

OCHA map of 'Sudan Affected Populations by District Internally Displaced and Refugees' as of 31 August 2002 counts a total of 4,317,720 IDPs as follows:

Red Sea: 15,000

Khartoum: 1,800,000

Kassala: 87,370

White Nile: 58,000
South Darfur: 203,000
West Kordofan: 85,500
South Kordofan: 470,000
Upper Nile: 390,000
Unity: 70,000
Bahr el Ghazal: 683,600
Lakes: 190,000
Jonglei: 122,250
Western Equatoria: 95,000
Eastern Equatoria: 48,000

Total Figure as follows: 4,317,720

To view full map click here [\[External Link\]](#)

“Of the four million displaced persons in Sudan, 1.8 million are presumed to live in Khartoum, 500,000 in eastern Sudan and the transitional zone and 300,000 in southern states. In SPLM/A held areas the number of IDPs is estimated at 1.4 million. Newly displaced persons rely heavily on humanitarian assistance as their coping mechanisms have been eroded and weakened by the protracted emergency.

[...]

Of the estimated four million IDPs in Sudan, approximately 700,000 live in camps, the remaining ones in squatter areas or within the communities. Based on the scenarios foreseen in the CHAP, up to one million IDPs and half a million Sudanese refugees may return to their places of origin, following the successful negotiation of a peace agreement and cease-fire.” (UN, November 2002, p.16)

2001 IDP estimates

"Between July 1999 and 2001, significant additional population displacement had taken place in Bahr al-Ghazal and Eastern Equatoria states as a result of conflict, UN Secretary-General Kofi Annan reported to the UN General Assembly in October last. Estimates of the number of displaced in those two years were in excess of 100,000, far greater than that of reported spontaneous returns - estimated at 25,000." (IRIN 22 January 2002, p.1)

"Many of Sudan's 4.4 million uprooted people have fled repeatedly from place to place during the course of the long civil war. At least 150,000 additional people became uprooted during the first eight months of 2001, according information pieced together from various field reports.

Aid workers reported that 55,000 newly displaced people fled from 48 villages in southern Sudan's conflicted oil zone during 2000 and early 2001. A rebel military offensive in Bahr el-Ghazal Province in early 2001 pushed 50,000 people from their homes. Some 40,000 residents of central Sudan's Nuba Mountains region fled government military attacks during the first eight months of the year. Smaller numbers of people fled their homes temporarily because of aerial bombing attacks." (USCR 24 September 2001, p.2)

2000 IDP estimates

"Conservative estimates put the number of IDPs in the Sudan at 4.0 million. Khartoum alone has 1.8 million IDPs. Most of them are forced to live in large camps on the extreme peripheries of cities, where many regard them as unwelcome visitors." (UN November 2000, p.82)

1999 IDP estimates

"Since the resumption in 1983 of the conflict in southern Sudan, internal displacement is at the heart of humanitarian matters in the Sudan. Yet displacement figures are vague. Today's overall *population* estimates for the country range from of 25 to 33 million, for the *population of the southern states* from 3.5 to 8 million.

The *overall number of IDPs* is said to be over 4 million. The UN Humanitarian Coordination Unit (UNHCU) in Khartoum estimates *IDP-figures in Government areas* at around 2.6 million: some 1.8 million in Khartoum State, 0.5 million in the east and the transition zone, 0.3 million in the southern states. On the distribution of the approximately 1.4 million *IDPs in SPLA-held areas* no consolidated data are available." (OCHA 28 September 1999, p.2)

"Endemic food shortages and massive population displacement resulting from the war reached new extremes during 1998.

Hundreds of thousands of southern Sudanese became newly uprooted - adding to the nearly 4 million people already displaced from their homes - and chronic malnutrition deteriorated into full-scale famine. An estimated 30,000 to 50,000 people perished in the famine, according to most estimates; one estimate placed the death toll at 100,000." (USCR 1999, p.91)

1997 IDP estimates

"More than 350,000 Sudanese were refugees in six countries at the end of 1997: an estimated 160,000 in Uganda, about 60,000 in Congo/Zaire, 60,000 in Ethiopia, 40,000 in Kenya, 32,000 in Central African Republic, and about 1,000 in Egypt. Up to 4 million Sudanese were internally displaced, although some estimates put the number much lower. Large additional numbers of Sudanese were outside Sudan without formal refugee status.

[...]

Years of warfare have left up to 1.5 million Sudanese internally displaced in the south, according to some estimates. In addition, as many as 1.8 million Sudanese – many of them southerners uprooted by the war during the 1980s – have migrated to Khartoum, the capital. Hundreds of thousands more were internally displaced in central Sudan, in the Nuba Mountain region." (USCR 1998, pp. 95, 96)

1996 IDP estimates

"The best data on the internally displaced are available from late 1988 through 1990, the period of greatest NGO activity in both the northern and southern Sudan. A census conducted by the Sudanese government in October 1989 found that there were some 1.8 million internally displaced Sudanese within the three towns (Khartoum, Khartoum North, and Omdurman) that make up the Sudan's capital region. The vast majority were southerners, but the number also included some drought displaced persons from western Sudan. By 1991, more than 2 million displaced southerners were living in 48 "camps", in greater Khartoum. The largest camp, Zagalona, was home to 377,000 displaced southerners; three other camps had populations of more than 100,000 displaced persons each.

Of the estimated 4 million Sudanese displaced in mid-1996, some 1.8 million were living in and around Khartoum in the north, several hundred thousand were located in South Kordofan and South Darfur, and 1.5 million remained within the southern Sudan. Some 600,000 were in areas under SPLA and SSIM control in the southern Sudan, including 235,000 in the Bahr al-Ghazal region, 125,000 in the Upper Nile region, 110,000 in Equatoria west of the Nile, and 120,000 in Equatoria east of the Nile. An estimated 250,000 displaced persons were living in the southern Sudan's largest city, Juba, which was held by the government but surrounded by the SPLA." (Ruiz 1998, p.155)

1994 IDP estimates

"Because widespread insecurity prevented aid workers from making reliable estimates of the number of displaced persons, in May 1994, USAID supported a significant effort to count the displaced. In what was the most ambitious effort to compile a census of the internally displaced in the southern Sudan, large numbers of field reporters enumerated 1.5 million displaced at 112 sites. Those data, however, soon became irrelevant when an attack by the Sudanese military forced hundreds of thousands of displaced to flee toward Sudan's borders with neighbouring countries." (Ruiz 1998, p.153)

Geographical distribution

UD CH 1.8 million IDPs live in and around Khartoum (2004)

New doc cap and (GoS Ministry of Humanitarian Affairs, 2 September 2003, p.3,6) and Interagency assessment

There are between 2 million and 1.8 million IDPs in Khartoum

About 260,000 IDPs in Khartoum live in about four official camps and the rest live in miserable squatter areas

IDPs make up to 40 percent of Khartoum's total population

There were four official camps hosting IDPs: Omdurman es Salaam (120,000 people) Wad el Bashier (74,800 people) Mayo Farms (133,000 people) and Jebel Aulia (45,000) and squatter areas include Soba Arradi (64,000 people)

Average household size was 7.3 people and 22% of the camp population were children under five

The main areas of origin in order of importance were Equatoria, Central, Kordofan and Bahr el Ghazal

Women represent one third of the Khartoum IDP population An estimated 300,000 IDPs live in northern states of Gezira, Khartoum, Northern, Northern Kordofan, River Nile, Sinnar, Western Kordofan and White Nile

"The areas of Sudan covered here [including the states of Gezira, Khartoum, Northern, Northern Kordofan, River Nile, Sinnar, Western Kordofan and White Nile, with an estimated combined population of 14.5 million in 2003] host some 2.1 million IDPs, of whom around 1.8 million are estimated to live in Khartoum State alone. Of these, some 260,000 live in four official IDP camps, while the remainder live in squatter and designated settlements around Khartoum." (UN, 30 November 2004, p.177)

"There are an estimated 1.8 million internally displaced persons (IDPs) in Khartoum State [...]. They are mainly from the western and southern regions of Sudan including Greater Kordofan, Greater Bahr el Ghazal, Greater Darfur, Unity and Nile states (Jonglei, Blue and Upper Nile and Unity states) and from Greater Equatoria.

[...]

Approximately 255,438 IDPs live in four official camps, Mayo Farms, Jebel Awlia, Dar el Salam and Wad al Bashir on the outskirts of Khartoum. The rest live in squatter and designated settlements around Khartoum [...]

The IDP male to female ratio is 1:3, while children under 5 years constitute 17-20% of the population. The average household size is 6 to 7 persons. Dar el Salam camp has the highest population with 14,286 households followed by Jebel Awlia with 7,429 [...]. (UN R/HC, Khartoum, 18 July 2003, p.4,5)

"an estimated 2 million IDPs live in Khartoum State" (GoS Ministry of Humanitarian Affairs, 2 September 2003, p.3,6)

"Wad el Bashier (est. 74,800 people) camp

[...]

Omdurman es Salaam (est. 120,000 people) Camps

[...]

Soba Arradi (est. 64,000 people)

[...]

Mayo Farms (est. 133,000 people)

[...]

In the four areas, the majority of the IDPs (22%) came from Equatoria, with Central Sudan (20%) and Kordofan (18%) being the next largest populations. 13% came from Bahr el Ghazal, 10% were from Darfur, and 9% were from Upper Nile. One percent or less of the IDPs originated from either northern or eastern Sudan.

Of those surveyed who were Equatorians, most lived in the southern areas of Khartoum with 40% living in Mayo Farms and 32% living in Soba Arradi. The majority of those from Kordofan live in OeS (37%) and WeB (34%), and OeS has the highest percentage of those from Darfur (60%). Within each camp the majorities come from the following regions:

Origin of Survey Respondents				
Region	OeS	Mayo	Soba Arradi	WeB
Equatoria	17%	28%	33%	7%
Central	3%	20%	26%	41%
Kordofan	24%	11%	7%	35%
Bahr el Ghazal	20%	15%	4%	11%
Darfur	20%	6%	8%	1%
Upper Nile	7%	14%	10%	1%
OTHER	6%	4%	3%	1%
Khartoum	0%	0%	8%	0%
Eastern	1%	2%	1%	1%
Northern	1%	0%	0%	0%

The average household size was reported as being 7.3 people. Soba Arradi seems to have the largest household size, with an average of nine people, while WeB averaged six, and both OeS and Mayo Farms averaged seven persons.

In OeS the average number of children under five is 1.5 per family (or 22% of the camp population), the figures are 1.7 for Mayo Farms (or 23% of the camp population), 2.0 for Soba Arradi (or 23% of the camp population) and 1.7 (or 26% of the camp population) for WeB.” (Interagency, 19 January 2005, p.19)

“There are an estimated 4 million IDPs (internally displaced people) in Sudan, with almost half of those living in official camp and squatter areas in greater Khartoum. [...]

The rest of the IDPs live in squatter areas and other parts of town. Their houses are generally built of mud and sticks or cardboard structures.” (FAR and CARE, 27 January 2004)

“The most populous Khartoum camps are El Salaam with 14,286 households and Jebel Aulia with 7,429 IDP households. In total the Khartoum camps surveyed by CARE equate to a total of 49,090 households, (326,209 IDPs in total, giving an average household size of 6.5).

[...]

Each household surveyed was represented by a single member, of which, the majority were female; only 35.5% of all those interviewed were male. 48.4% of those interviewed declared themselves the Head of Household.

[...]

83.8% of the respondents interviewed are married, 5.9% are single, 5.8% are widowed and 2.9% are separated. However, of those claiming to be married, many households did not have both husband and wife declared as members of the household. This may be because of confusion among respondents as to the definition of separated. It is believed that more than the declared 2.9% of IDP households have husbands and wives that are separated, albeit for only temporary periods.

[...]

The major ethnic groups are Dinka and Nuba (representing 25.4% and 20.6% of the households respectively).” (CARE/IOM, 28 February 2003, pp.10-12,15,16, 24, 26,27)

"There continue to be nearly two million displaced southern Sudanese people in camps in and around Khartoum. " (ACC/SCN 25 July 2000)

"Approximately 40 percent of Khartoum’s population of five million IDPs. Approximately 200,000 live in four official IDP camps. The remainder is scattered among several squatter and other residential areas.

They are traditionally farmers, pastoralists and fishermen and earn marginal livings as casual and seasonal labourers, petty traders and low-income wage earners. Household size is an average of six to seven." (UN November 1999, p.123)

"The displaced in Khartoum are mainly people who fled conflict or drought in southern Sudan and southern Kordofan since 1983. Among them are also a number of people displaced by drought in western Sudan or deforestation in central Sudan. Making up 41 percent of the capital's current population, they also represent almost half of Sudan's displaced population which, at about four million, is the world's largest, according to UN estimates." (IRIN-CEA 24 November 1998)

Geographical distribution

1.8 million IDPs live in and around Khartoum (2004)

- There are between 2 million and 1.8 million IDPs in Khartoum
- About 270,000 IDPs in Khartoum live in about four official camps and the rest live in miserable squatter areas
- IDPs make up to 40 percent of Khartoum's total population
- There were four official camps hosting IDPs: Omdurman es Salaam (120,000 people) Wad el Bashier (74,800 people) Mayo Farms (133,000 people) and Jebel Aulia (45,000) and squatter areas include Soba Arradi (64,000 people)
- Average household size was 7.3 people and 22% of the camp population were children under five
- The main areas of origin in order of importance were Equatoria, Central, Kordofan and Bahr el Ghazal
- Women represent one third of the Khartoum IDP population An estimated 300,000 IDPs live in northern states of Gezira, Khartoum, Northern, Northern Kordofan, River Nile, Sinnar, Western Kordofan and White Nile

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The rest of the IDPs live in squatter areas and other parts of town. Their houses are generally built of mud and sticks or cardboard structures.

Wad el Bashier (WEB), with a population of approximately 45,000 (conservative estimate – see further details below in the report), is located along the southwest edge of Omdurman. There are several re-planned and squatter areas adjacent to the camp where the vast majority of inhabitants are displaced and where an additional equal number than at WeB reside.

Omdurman Es Salaam (OES), with an estimated population of 100,000, is close to WEB camp. Families displaced from other parts of Sudan, including those affected by urban re-planning policies in Khartoum are directed to OES, resulting in a rapid population growth in recent years.

Jebel Aulia, with a population of approximately 45,000, is located in the southeast of Khartoum and is occupied by war-affected populations from the Nuba Mountains and South of Sudan. Much of this camp has already been “re-planned” with much of the former camp residential area being utilized by a private company Sundas – for agricultural activities

Mayo Farms, with an estimated population of 80,000, is located immediately south of Khartoum and occupied by war-affected population from the South and Nuba Mountains. Adjacent areas to Mayo Farms Camp have been re-planned and sold/allocated to citizens, including IDPs, over the past years.” (FAR and CARE, 27 January 2004)

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About 1.84 million people are internally displaced in Greater Darfur (Mar 2005)

- As of January 2005 1,84 million people were displaced within Darfur living in about 130 camps and settlements
- By February 2004, about 700,000 people had been internally displaced a year after the crisis
- As of end 2003 the Government of Sudan estimated there were about 320,000 IDPs in Darfur
- As of January 2004 there were an estimated 600,000 IDPs newly displaced in Greater Darfur in addition to 200,000 IDPs from Bahr el Ghazal
- As of 2 March 2004 there were an estimated 241,000 accessible to humanitarian workers IDPs in North Darfur, 31,000 in South Darfur and 32,000 in West Darfur

- As of mid September 2003, GoS estimated about 223,000 people had been displaced in Darfur since early 2003
- Over 30,000 displaced by conflict in Darfur Region between December 2002-June 2003
- Around 13,000 Raga IDPs scattered in Southern Darfur by end January 2002

“Roughly one third of the entire population of Darfur has been affected by the conflict, which began in February 2003 between the Sudan Liberation Army/Movement (SLM/A), the Justice and Equality Movement (JEM) and the GoS and supporting militia. As of 1 October 2004, 1.6 million people were displaced within Darfur, 200,000 Darfur refugees had fled to Chad and 420,000 other civilians were affected either directly or indirectly by the conflict.” (UN, 30 November 2004, p.98)

“It is noted that there are 101 locations, most of them camps, throughout the Darfur region hosting IDPs, which include 22 locations in North Darfur, 42 locations in South Darfur and 37 locations in West Darfur. Some camps host up to 70,000 persons while others are more “modest” in size and are host to “only” a few thousand IDPs.

[...]

The Commissioner-General [of the Government Humanitarian Aid Commission] further stated that a total of 400,000 IDPs had returned home; a figure the United Nations could not confirm.” (Commission of Inquiry, 25 January 2005)

“More than 700,000 people have been displaced by violence within Darfur, while over 110,000 have fled to Chad since fighting between government and rebel groups escalated in February last year.” (IRIN, 16 February 2004)

“The Ministry of Humanitarian Affairs in coordination with the United Nations, NGOs and other donors assessed the basic and urgent needs of the population affected by the events in Darfur. It has now been established that the number of the affected population is nearly 600,000 among whom 320,000 are displaced and 28,000 are refugees in Chad Prompt and adequate response by the Government of Sudan, the UN and other donors secured delivery of relief (food and non-food items) exceeding 25,000 tons.” (GoS 31 December 2003)

“The total IDP population in the three Darfur States resulting from the recent conflict is now estimated at more than 600,000 people (approximately 300,000 in North Darfur, 100,000 in South Darfur and 200,000 in West Darfur), not counting the approximately 200,000 IDPs that arrived from Bahr-el-Ghazal in 1988, 1992 and 2001 now living in South Darfur. In total, about a million people are seriously affected by the conflict, including about 800,000 within Greater Darfur Region and an estimated 95,000 Darfur refugees in Chad. Due to the ongoing fighting, these figures are likely to be rising.” (UN R/HC, 10 January 2004, p.1)

“The majority of the IDPs encountered are women, children and the elderly.

5. *North Darfur*: The IDP numbers in North Darfur include: Kutum (123,000: number to be verified by an assessment team) Kebkabiya (45,057 IDPs with a daily influx of new IDPs), Birka Sayira (5,000), Saraf Oumra (49,000) and Tawilla (9,300). GOAL reports that following the placement of 30-40 police officers in Fata Borno, some IDPs have begun to move to the town from Kutum as protection remains their main concern. [...]

8. *South Darfur*: IDP numbers in South Darfur include: Korole (3,000), Kailak camp (16,000) Aburumo camp (9,000), and Kalma camp (3,097).” (UN RC, 2 March 2004)

“*[West Darfur] Numbers*: There are five identified camps in El Geneina with an estimated daily arrival rate of 1,000. These are Ard Amata (8,820), Durti (6,500), Um-Duwein (5,000), El Ryadh/El Zeriba (2,500) and Pilgrims and Schools (5,180) camps. Along with the newly opened areas approximately 80,000 IDPs can be accessed now.” (UN RC, 19 February 2004)

“Nearly 400,000 Darfurians remain sheltered in some 20 displacement camps scattered throughout the Darfur states, including nearly 10 camps with more than 50,000 residents each. An estimated additional 300,000 internally displaced Darfurians remain disbursed in remote mountains, in the desert near the Sudan-Chad border, and with relatives and others in host communities.” (USCR, 24 February 2004)

“There are approximately 110,000 IDPs in North Darfur, mainly as a result of recent conflict.

[...]

Currently, there are about 250,000 IDPs, including 55,000 IDPs currently settled in camps throughout the state.

[...]

There are approximately 30,000 IDPs within West Darfur State.” (UNR/HC, 15 September 2003)

“The Government of Sudan estimates that most of the estimated 223,000 internally displaced persons in Darfur have been displaced since the beginning of this year.” (OCHA, 17 September 2003)

“The total of beneficiaries of humanitarian assistance is 165,231 in South Darfur and 200,000 in North Darfur. This figure includes 17,935 IDPs living in six camps in Nyala, 12,766 in Ed Da’ein, 8,809 in Adilla, 1,779 in Buram.” (UN, November 2002, p.30)

" In addition to these IDPs in camps, there were also perhaps another 13,000 scattered Raga IDPs in the vicinity, outside the camps, according to an aid worker in the Sudanese capital, Khartoum. The overall IDP population of Southern Darfur is now reported to be just over 49,000.” (IRIN 22 January 2002, pp.2, 4)

"As of 30 June, 8,172 people were registered at a temporary reception centre in Ed Daein primary school, according to figures from the UN Office for the Coordination of Humanitarian Affairs (UNOCHA). The town’s population is estimated at 65,000, including some 11,000 IDPs who left the south in the late 1980s and early 1990s.”(IRIN, 2 Jul 2001)

"As of June, 1999, there were approximately 53,500 war-affected displaced persons (mainly Malual Dinka) living in camps and squatter areas in Ad Daein and Nyala, South Darfur." (UN November 1999, p.122)

Large-scale new displacements due to violence linked to oil-exploitation in Unity State/Western Upper Nile (2004)

- Scorched-earth campaigns in Upper Nile displaced 100,000 people during 2004
- Conflict between militias not represented in the peace talks displaced between 110-180,000 people between October 2002 and February 2003 in Unity State
- ICG estimates half a million displaced in Unity State during 2002 first ten months
- 25,000 IDPs entered Mayom fleeing conflict in Mankien (Sept 2002)
- UN OCHA estimated between 150,000 and 300,000 people displaced in Western Upper Nile between January and April 2002
- Between 50-60,000 people were displaced in Rubkona Province by government deliberate attacks on civilians
- 60,000 vulnerable people and IDPs reported in Koch, Upper Nile in December 2002
- 13,000 IDPs in 5 camps in Malakal (Nov 2002)
- 40,000 Nuer displaced from fighting in Upper Nile have sought refugee in Bahr el Ghazal
- Over 127,000 people fled Western Upper Nile to Northern Bahr el Ghazal (Sept 2002)

“During April more than twenty villages were destroyed, several hundred civilians killed and approximately 120,000 people forced to flee their homes, around Malakal region on the west bank of the Nile, southern Sudan.” (Christian Aid, 6 May 2004)

“The omission of provisions in the Naivasha accords to ensure accountability for human rights abuses continues to plague the South. The government and its Southern ethnic militias, starting in early 2004, conducted a scorched-earth campaign that displaced 100,000 civilians from the Shilluk lands in the Upper Nile.” (HRW, 16 November 2004) “Conflict again erupted in Unity State/Western Upper Nile (December 2002-March 2003) between militia neither represented at the peace-talks nor signatories to agreements reached therein. Between October 2002 and February 2003, an estimated 110-180,000 persons had been displaced or ‘redispaced’ as a result of sporadic armed conflict.” (UN, 3 June 2003, p.2)

“Greater Upper Nile: Unity State/Western Upper Nile hosts the highest number of newly displaced persons i.e. roughly 70,000 since August 2002 [...], and an additional 6,000 since January 2003.” (UN, 3 June 2003, p.16)

“In addition, Bieh State hosts over 10,000 IDPs.” (UNR/HC, Bieh, 3 July 2003)

“As mentioned above, the continuing GoS offensive in Ruweng has caused displacements within the county. However, despite its instability, Ruweng still hosts approximately 12,000-13,000 displaced people from Nimni (Leech State) and the Nuba mountains.” (UN H/RC, Ruweng, 27 June 2003, p.4)

“At least 17,000 internally displaced persons (IDPs) had been registered in the state by October 2002”. (UN H/RC, Latjor, 27 June 2003, p.5)

“Continued fighting in the northern parts of Liech (Western Upper Nile) displaced about 50,000 people in January of this year. This is likely to result in the accelerated consumption or loss of grain stocks.” (FEWS, 20 February 2003)

“The worst violence occurred in the lucrative oil fields of Western Upper Nile Province, where 150,000 to 300,000 people fled in the first four months of the year [2002], according to estimates by relief agencies. An additional 70,000 residents of Western Upper Nile became uprooted later in the year.” (USCR, 1 January 2003)

“Fighting in the oilfields region of the South escalated at the beginning of 2002[...] With both sides’ capabilities improved, and the government determined to expand oil exploitation at any cost, estimates are that the last ten months have seen the displacement of nearly half a million civilians in Western Upper Nile.” (ICG, 14 November 2002, p.5)

“Beneficiary figures are difficult to determine due to high mobility and denied access. However in the garrison towns (Bentiu, Rubkona, Pariang, Mayom, Kumagon) the affected populations are estimated at 100,053 people. Most recent fighting in and around Mankien caused the displacement of over 25,000 IDPs into Mayom.

[...]

Mayom, Bentiu and Rubkona, for the above- mentioned reasons and IDPs living in camps i.e. 1,458 in Tong, 26,575 in Bentiu, 25,004 in Rubkona, 11,856 in Pariang, 34,000 in Mayom, 942 in Kumagon and 218 in Tor.” (UN, November 2002, p.36)

“According to UN OCHA, between 150,000 and 300,000 people were displaced in Western Upper Nile from January to April 2002” (USAID, 14 August 2002)

“[...] 13,000 IDPs in five camps in Malakal (Upper Nile)” (UN, November 2002,p.35)

“An influx of 24,000 IDPs entered Mayom as a result of conflict around Weinken in Upper Nile.” (OCHA, 17 September 2002)

Over 650,000 IDPs in Bahr al Ghazal (2003)

- Twic County hosts about 33,000 recent IDPs who fled conflict over oil in Leech State (2003)
- In January 2003, 50,000 people were displaced due to fighting in Leech
- About 50,000 IDPs arrived in Tonj from Western Upper Nile between July and August 2002, adding to the already 30,000 IDPs from the same area
- About 18,500 IDPs in Aweil East in March 2002
- 120,000 displaced reported around Wau town in 2002
- 17,000 people were recently displaced from Tambura and Liech into Wau and Gogrial areas of Bahr El Gazal region

“A government military offensive and militia raids against the local population in Bahr el-Ghazal pushed tens of thousands from their homes. Up to 120,000 new and long-term displaced persons congregated near the government-held town of Wau. Bahr el-Ghazal Province contained more than 650,000 displaced persons by year’s end, according to estimates by UN humanitarian workers.” (USCR, 1 January 2003)

“The affected caseload requiring humanitarian assistance and services (550,000 persons) includes 6,281 IDPs in Aweil, 119,724 in Wau, 15,000 in Raja and 438,755 in Rumbek, Cueibet, Yirol and Tonj Counties. Other vulnerable groups are children and the handicapped, pregnant and lactating mothers, and minority ethnic groups who are given unequal access to resources.” (UN, November 2002, p.29)

“In January 2003, fighting in the northern part of Leech led to the displacement of 50,000 people” (IRIN, 30 April 2003)

Raga County

“Following the fall of Raga under the SPLM/A in June 2001, about 18,500 internally displaced persons (IDPs) fled the town to South Darfur where they were resettled in the four designated camps of Um Herona, Firdos, Buram and Radom. An estimated 11,000 fled to other areas within Bahr el Ghazal. Local authorities estimate that a further 20,000 people fled into Western Equatorial and 5,000 crossed into Central African Republic.” (UNR/HC, Raga, 25 July 2003, p.3)

Wau County

“WFP reports that about 17,000 people were recently displaced from Tambura and Liech into Wau and Gogrial areas of Bahr El Gazal region. There are also reports that people have recently returned from northern Sudan, but there are no confirmed figures to accompany these reports.” (FEWS, 17 July 2003)

“Twic County has hosted Nuer IDPs from neighbouring Leech since 1999. In 2000, about 7,000 IDPs and 30,000 returnees were reported by SRRA10. The number of IDPs moving into the County has increased as fighting around the Leech oilfields has escalated. Currently, Twic hosts approximately 33,000 recent IDPs and 13,000 returnees. According to the last Annual Needs Assessment (ANA) report, the recent IDPs are Nuers who entered Twic County from August 2002¹¹. They fled Leech State due to fighting in areas around Mayom town. In addition, about 13,000 returnees arrived in Twic County from November 2001 to September 2002, according to the same report.” (UNR/HC, Twic, 27 June 2003, p.5,6)

Tonj County

“Some 50,000 people are reported to have fled into Tonj from Western Upper Nile between July and August 2002. The IDPs fled due to the GoS offensive in the oil rich areas of Leech and Ruweng. Tonj

County is stressed as it was already hosting over 30,000 IDPs from the same area who arrived over the previous two years. [...] Approximately 15,000 IDPs arrived in Luacjang payam between May and October 2001.

They came in rather late for cultivation and relied on WFP food aid. [...] Some 22,982 IDPs were reported in Tonj County in 2000. They were displaced from Upper Nile between April 1999 and June 2000, and may still be in Luacjang payam. In addition, some 7,113 returnees were reported to have returned from Wau, Gogrial and Western Equatoria during the same period.” (UNR/HC, Tonj, 4 July 2003, p.4)

Aweil South

“The latest report on IDP’s indicates that there are approximately 5,000 IDPs in Aweil South County [...] in March 2002. The 2002/03 ANA report documented that 6,600 people were displaced from Kuajok and Gogrial payams of Gogrial County to Baarmayen, Mangar Gier, Gakrol and Wathmuok payams of Aweil South County following the fight for Gogrial town. This would be in addition to Aweil South IDPs who were displaced within the County. The World Food Programme (WFP) served approximately 10,000 Internally Displaced Persons (IDPs) in Aweil South between January and July 2002. [...] The 2002/03 ANA report recommended provision of IDP kits to IDPs from Kuajok and Gogrial payams. A total of 3,696 returnees were reported in Aweil South in 2002. They came from northern Sudan and are integrated into the host community..” (UNR/HC, Aweil South, 27 June 2003, p.4)

Aweil East

“Some 18,500 IDPs were reported in Aweil East in March 2002. Some were from the western lowland areas of the county while others were from Aweil West. They were mainly displaced by PDF along the Wau – Babanusa railway line.[...] In addition, some 6,036 IDPs were reported in Aweil town. [...]” (UNR/HC, Aweil East, 8 July 2003, p.4)

“An estimated 120,000 people are displaced due to fighting between the Government of Sudan (GOS) and the Sudan People's Liberation Army (SPLA) around Wau in Bahr el Ghazal province, according to an official from OLS (Operation Lifeline Sudan). The GOS forces are attempting to take the town of Gogrial, but reports from the ground indicate that the SPLA are holding them off as heavy rains are starting in the area. The hope is that this will put a stop to the fighting and that the GOS will retreat to their stronghold in Wau for the duration of the rainy season. Helicopter gunship bombing is taking place on the road between Gogrial and Wau, opening up the route for the retreating Government troops.” (WV, 10 May 2002)

IDPs in Greater Equatoria (2003)

- About 20,000 IDPs in Mabilia camp (2003)
- About 50,000 IDPs lived in Tambura and Ezo camps as of February 2003
- Kapoeta County has sheltered 16,000 IDPs in two camps for over ten years in addition to 5000 displaced in Kapoeta town
- Kajokeji County hosts about 27,748 IDPs
- A total of 140,159 IDPs lived in Magwe County (2003)
- At least 20,000 people were displaced by LRA attacks in 2002
- Over 45,528 IDPs lived in Juba town and its environs, 21,368 of whom in 5 camps (2003)
- 55,522 IDPs beneficiaries of humanitarian assistance in Main towns of the Equatoria region (Nov 2002)
- 11,570 IDPs fled the conflict to Juba after fighting in Torit on 1st September 2002

Tambura County

“Currently, Mabilia camp in northern Tambura hosts approximately 20,000 IDPs from Raja in northern Bahr el Ghazal [...]. About 46% of all households in the Mabilia IDP camp are female-headed households. This is because the majority of males remain at the frontline or died in the battle for Raja town from around August 2002 to date.” (UN R/HC, Tambura, 27 June 2003, p4)

“An estimated 40,000 and 10,000 people are residing in camps in Tambura and Ezo respectively. About 15,000 of these are people who fled from Raja to Tambura in July 2001.” (FEWS, 20 February 2003)

Kapoeta County

“Kapoeta County hosts two Internally Displaced Persons' (IDP) camps, Narus and Natinga, which have a combined estimated population of 16,000. The IDPs are mainly Dinka from Bor County. The camps have been in existence for over 10 years, and the IDPs are relatively settled in the area. The IDPs however, are not allowed to keep cattle or cultivate by the local Toposa, and consequently rely on food aid and trade for survival. In addition, Kapoeta County has approximately 5,000 people displaced from Kapoeta town, following the SPLA capture of the town in 2002.” (UNR/HC, Kapoeta, 14 July 2003, p.6)

Kajokeji County

“Kajokeji County hosts 27,748 IDPs in Kerwa, Mangalore, Bamurrie and Limi old and new camps [...]. The long-term IDPs include the Bor Dinka who have been in the Equatoria region since the 1990s, and Equatorians from Juba and Torit counties. The population has decreased from over 70,000 in 1996 to the current number over the last few years because of ongoing voluntary repatriation to Bor County.” (UNR/HC, Kajokeji, 4 July 2003, p.3)

Torit

“Torit has experienced internal displacement with many of its residents fleeing to neighbouring counties and countries. This is due to the insecure nature of the county, caused by LRA raids and the battle for Torit town between the SPLM/A and GoS in September 2002. NGOs working in Torit report around 10,000 displaced persons in various villages and camps in Momoria 1 and 2, Imotong, Katire and Gile, Chilok 1 and 2 and Tseretenya. Meanwhile, there are also reports of around 700 returnees from Uganda and according to OCHA Sudan in Khartoum there are 6,000 IDPs in the GoS town of Torit and 5,433 IDPs in the GoS held Lafon [...].” (UNR/HC, Torit, 3 July 2003, p.5)

Magwe County

“Magwe's location has caused it to play host to large numbers of IDPs and refugees who reside primarily in three camps located in Nimule, Labone and Parajok as well as Magwe village and its environs. Displaced persons and returnees found in the county originate from Uganda and Bor County. The largest percentage of the IDPs are Bor Dinka who were pushed south as a result of fighting between the Dinka and Nuer in 1989/1990, 1991, and the 1995 fighting between the SPLM/A and GoS in Bor County and Eastern Equatoria.

Recent fighting between the LRA and UPDF has caused the Magwe residents to join the number of displaced. [...]

Currently, the county has approximately 140,159[...] IDPs, a figure higher than the resident population.” (UNR/HC, Magwe, 3 July 2003, p.5)

IDPs in Juba area

“Since 1997, the persistent insecurity has resulted in displacement of population from various parts of Juba County. There are presently about 21,368 IDPs living in the five IDP camps of Wonduruba, Katigiri, Lugware, Kera and Tuliang which are supported by Norwegian People's Aid (NPA) [...] The majority of the IDPs are from Juba town and the surrounding villages.

Civilians escaping attacks by the Lord Resistance Army (LRA) in northern Uganda and skirmishes between the GoS and SPLM/A over the control of Torit, Kapoeta and Lafon, have sought refuge in Juba town and

its environs. It is estimated that camps in Juba town and its environs host over 45,528 IDPs". (UN R/HC, Juba, 23 July 2003, p4)

"At least 20,000 residents fled LRA attacks during 2002." (USCR, 1 January 2003)

"Beneficiaries of humanitarian assistance number over 300,000, of whom 20,000 are IDPs in Juba, 18,000 in Kapoeta, 13,210 in Torit and 4,312 in Lafon." (UN, November 2002, p.31)

"During the Machakos peace talks between the Government of Sudan (GoS) and SPLM/A the warring parties intensified their military activities and, during the second phase of the talks the SPLA captured the strategic town of Torit on 1 September 2002 displacing the inhabitants of the town and surrounding villages in the process. On protest the GoS pulled out from the Machakos peace talks and demanded the return of the town to government control. Approximately 11,570 people were displaced to Juba, the capital of Southern Sudan (about 134 km from Torit)." (ACT, 25 November 2002)

IDPs in Eastern Sudan (2004)

- There were about 63,000 IDPs in Kassala state as of November 2004
- 45,000 IDPs are believed to live in Kassala state (Nov 2003)
- Government estimates numbers of new and old IDPs in Kassala at 60,000 (2003)
- 12,000 newly displaced in Kassala scattered along the 200km line south of Hamish Koreib
- Up to 60,000 people displaced near the Sudan-Eritrea border in 1998 by fighting between government forces, and the National Democratic Alliance

"Although no large population displacements occurred in eastern Sudan in 2004, the region still hosts some 63,000 IDPs in Kassala State and several thousand more in Port Sudan." (UN, 30 November 2004, p.161)

"Kassala is a catchment area for IDPs, refugees and migrants. The population of some 1.6 million are mostly farmers and agro-pastoralists. More than 45,000 are IDPs and considerable numbers are Eritrean refugees." (UN, 18 November 2003, Vol.II, p.42)

"Official government statistics indicate the town has a population of 350,000 people, in addition to 59,294 internally displaced persons (IDPs) from a civil conflict last year, and 24,000 Eritrean refugees (the IDPs and refugees have not, however, been affected by the floods due to their location on higher ground)." (IFRC, 5 August 2003)

"Kassala State: 11,000 new IDPs fled armed conflict in Hamash Koreb Province between October and November 2002." (UN, 3 June 2003, p.16)

"Kassala is a catchment area for IDPs, refugees and migrants. The population of 1,620,000, mostly farmers and agro-pastoralists, more than 45,000 are IDPs" (UN, November 2002, p.32)

"The early October 2002 conflict on the border of Kassala state and Eritrea resulted in displacement of civilians from Hamish Koreib province. By 29 October, some 12,000 people had been uprooted from homes in an area stretching north of Kassala town to Hamish Koreib, with many IDPs walking a distance of up to 200km to seek refuge. Living conditions are basic to extreme and there is an urgent need for food and non-food items.

[...]

Many displaced remain scattered along a 200km line south of Hamish Koreib." (OCHA, 24 November 2002)

"In northeastern Sudan, near the Sudan-Eritrea border, fighting [in 1998] between government forces and NDA [National Democratic Alliance] insurgents aligned with the SPLA left up to 60,000 people displaced during the year. Most of the uprooted families lived in six camps near Kassala town." (USCR 1999, p.92)

IDPs in Transition Areas (2003)

- 115,000 IDPs in Blue Nile State (2003)
- War in Blue Nile has displaced 17% of the population over the last five years (2003)
- UN estimates 30,000 IDPs in Ed Damazin camp (Nov 2002)
- 80,000 IDPs in North Kordofan according to the Humanitarian Aid Commission government agency
- Five camps in government-controlled northern Abyei housed an estimated 70,000 people by end 2002
- 80,616 IDPs and 17,149 displaced returnees beneficiaries of humanitarian assistance in greater Kordofan region
- Overall more than 158,000 Nuba people displaced since 1983
- Sixty percent of the 173,000 IDPs relocated to "peace villages" were war-affected Nubas by 1999

Blue Nile:

"But in the last five years, war between the Sudan Government and the Sudan People's Liberation Movement/Army (SPLM/A) has displaced over 17 percent of the population and played havoc with the region's food security." (WFP, 19 March 2003)

Southern Blue Nile:

"When the GoS took over Geizan County from SPLM/A, in May 2002 there was considerable population movement. An estimated 10,000 – 15,000 internally displaced persons (IDPs) from Geizan moved initially to two camps: Nazila and Himora. Military activity in Keili and Karenkaren payams in September and October 2002 caused further displacement when IDPs left Himora camp. IDPs are now located in three camps: El Jaman, Nazila and Mayaas[...]." (UNR/HC, Blue Nile, 18 July 2003, p.5)

"**Blue Nile:** High levels of malnutrition, inadequate and insufficient water supply, appalling sanitation conditions, and lack of medicine, health and education facilities affect a total of 79,000 persons including 50,000 new IDPs and 1,871 returnees. Agencies began delivery of assistance to Blue Nile for the first time. They started pre-positioning relief items including drilling rigs and other necessary equipment, to assist both GoS and SPLM/A held areas." (UN, 3 June 2003, p.16)

"At least 30,000 IDPs in Ed Damazin in Blue Nile" (UN, November 2002, p.35)

Greater Kordofan"Three categories of the people displaced within the Nuba Mountains have been identified in the SPLM/A areas[...]. These include

- i. Original inhabitants in the hills who now have three to ten times the original population living around them and sharing the same limited resources, and people who no longer have access to their traditional land and livelihoods e.g. the returnees of Shuwa in Saada *payam*
- ii. Displaced people in pre-final return stage: these are people who have returned close to their original homesteads, and those who are displaced very close to their original homes, but for security purposes have elected to stay in a more concentrated settlement area.

iii. People who were and remain displaced by the conflict. Included in this group are those who fled into the mountains and those who settled in government areas to escape the violence.” (UNR/HC, Nuba SPLM/A, 30 June 2003, p.4-5)

Nuba Mountains Region (formerly South Kordofan)

“The total number of IDPs in Nuba number over 80,500.” (OCHA, 14 November 2002)

“The number of displaced varies. For instance, Abu Gebeha province was in 2002, estimated to host approximately 30,000 IDPs living in 12 camps [...], while Dilling province had an estimated 33,000. However, WFP estimates the IDPs and returnees during 2002/2003 is 70,000 and 50,000 for the northern and southern sectors respectively.” (UNR/HC, Nuba, 22 July 2003, p.6)

"A few years later they [the Nuba] joined forces with the SPLA. From a population of one million in the past, they now number less than half that number, and according to the United Nations World Food Programme, more than 158,000 have been displaced or left homeless by the latest fighting in the 18-year civil war in Sudan.

"There are certainly more [Nuba people] [...] now living around Khartoum than in the Nuba mountains" 600 kilometers (460 miles) from the capital, said Christian Delmet of the French National Scientific Research Centre (CNRS)." (AFP 28 November 2001)

"The NRRDO said that an estimated 400,000 people remaining in SPLM/A-controlled territory in the Nubah Mountains had been effectively cut off from the rest of Sudan. Over the last year, it said, Sudanese government forces had increased their military targeting of these people and abducted many, taking them to "peace camps" in government-controlled territory. Houses, farms, food stores and livestock had been "systematically destroyed", and over 50,000 people had been displaced, many for the second or third time, according to the organisation." (IRIN-CEA 22 June 2001)

"Some 60,000 Nuba people became newly displaced during 1997-98, according to one report. Sudanese authorities refused to allow UN workers to enter rebel-held areas of the Nuba Mountains to assess reports of serious humanitarian needs there, despite earlier government promises that it would allow access for such studies. Unidentified attackers ambushed and killed three local aid workers in central Sudan in June." (USCR 1999, p.92)

North Kordofan

“IDPs in the state are mainly war-displaced citizens from Nuba Mountains and southern Sudan. According to Humanitarian Aid Commission, the estimated number of IDPs in North Kordofan is 80,000.” (UN R/HC, 27 June 2003, Kordofan, p.4)

West Kordofan and Abyei

“Abyei has suffered several decades of conflict between the Ngok Dinka in the south and the Misseriya Arabs to the north. Although it has been peaceful since late 2002, thousands of Dinka remain displaced. Five camps in government-controlled northern Abyei house an estimated 70,000 people, with a further 50,000 scattered throughout the province of Bahr el Ghazal.” (IRIN, 10 July 2003)

“The State is considered a transitional zone for IDPs fleeing their homes in northern Bahr el Ghazal and Upper Nile State and drought –affected people on the move from within the West Kordofan State (the northern and western parts of Soq El Gamal and El Khuwei administrative units) and North Kordofan State. [...]

According to WFP, for the past two years there has been no major influx of IDPs into the state with the exception of the attack in July 2002 on one of the peace villages outside Abyei. In addition, a decline in IDPs was registered this year [...]. In Abyei in particular the local peace initiatives have encouraged many IDPs to return home to their original villages namely Naam, Um Balayal/Todaj and Banton.

[...]

West Kordofan provides a safe haven for thousands of IDPs fleeing the conflict areas in Bahr el Ghazal and Upper Nile. Hence the state witnesses high IDP movement. The IDP population is estimated at 17,418. Of this number En Nuhud accommodates approximately 2,478, Meiram 7,244, Abyei, 2,316 and Lagawa 5,380.” (UN R/HC, 1 July 2003, West Kordofan, pp.3,4,)

“However, a total of 80,616 IDPs (34,884 IDPs in Kadugli, 6,000 in Dilling, 4,351 in Rashad, 12,000 in Abu Gabra, 18,000 in Talodi, 5,381 in Lagawa) and 17,149 returnees are in need of humanitarian assistance.” (UN, November 2002, p.34)

IDPs in other states of northern Sudan (2004)

- There were about 300,000 IDPs in northern states of Gezira, Northern, Northern Kordofan, River Nile, Sinnar, Western Kordofan and White Nile
- While Nile state is a heaven for IDPs from neighbouring states and hosts 153,000 war and drought affected IDPs as well as 20,700 IDPs from Nuba Mountains (2004)
- White Nile State hosts 70,000 IDPs who represent 5% of the state’s population (2003)
- Gezira State hosts 60,000 IDPs outside camps who mostly work as labourers in agricultural schemes (2003)
- Northern State and River Nile states host 10,000 IDPs outside camps each according to the Humanitarian Aid Commission (HAC) (2003)

“The areas of Sudan covered here [including the states of Gezira, Khartoum, Northern, Northern Kordofan, River Nile, Sinnar, Western Kordofan and White Nile, with an estimated combined population of 14.5 million in 2003] host some 2.1 million IDPs, of whom around 1.8 million are estimated to live in Khartoum State alone. Of these, some 260,000 live in four official IDP camps, while the remainder live in squatter and designated settlements around Khartoum.” (UN, 30 November 2004, p.177)

Red Sea State

“Red Sea State has a drought-affected population of about 256,000 and hosts approximately 15,000 IDPs. More than 80 households fled to Drodéib area in Sinkat province and to Tokar province due to insecurity and the border war in Hamshkoreib in 2001. [...]

The IDPs have settled in the main towns of Port Sudan, Sinkat, Gebait, Suakin, Tokar, Drodéib, Haya and O’Saif.” (UN R/HC, Red Sea, 22 July 2003, p4)

White Nile

“The State is hosting about 153,000 drought and war affected IDPs in the tow camps of Goz-Es-Salam and Laya in Kosti Province. Another 20,700 settled IDPs, mostly from Nuba Mountains and North Kordofan, are in squatter areas in Kosti province.” (FAO, 11 February 2004)

“White Nile state is currently hosting over 70,000 IDPs. The influxes of IDPs into the state started in 1985 and continue to occur as a result of insecurity in the south and drought in western Sudan.

White Nile State is densely populated with IDPs and is considered to be a major transitional zone for people displaced by war or economic crisis from various parts of the country.

The IDP population is estimated at 5 % of the total population in the state. The IDPs are camped in Laya, Goz es Salam, Dang Kuc, Combo Shiluk, Inagz and Kadugli camps. These camps are all squatter areas close to Kosti and Rabak towns [...].” (UN R/HC, White Nile, 8 July 2003, p,5)

Gezira

“There are no official camps for internally displaced persons (IDPs) in Gezira State. However, there are a number of displaced persons from southern and western Sudan residing in different towns and villages in the state. According to Humanitarian Aid Commission (HAC) estimates, there are 60,000 IDPs in Gezira State [...]. Most of the IDPs work as labourers in agricultural schemes.” (UNR/HC, Gezira, 10 July 2003, p.5)

Northern State

“There are no official displaced camps in Northern State however there a number of displaced persons residing in different towns and villages in the state. According to the Humanitarian Aid Commission (HAC) estimates, there are 10,000 IDPs in Northern State [...]. The IDPs are mainly from southern and western Sudan and were displaced due to war and drought.” (UNR/HC, North, 15 July 2003, p.5)

River Nile State

“There are no official IDP camps in the state however there are number of displaced persons residing in different towns and villages in the state. According to HAC estimates, there are 10,000 IDPs in River Nile state [...].”(UNR/HC, River Nile, 1 June 2003, p.5)

PATTERNS OF DISPLACEMENT

General

Correlation between war strategies and chronic population drain from south to north (1983-2004)

- Pastoralists mainly migrate to Bahr el Arab river, Sobat river, Upper Nile and Bahr El Jebel areas all four regions show significant overlap with areas of conflict and displacement
- About 80 percent of southern Sudan's 5 million people displaced at least once during the past 15 years of war (1999)
- IDPs seek refuge beyond the war zones towards northern towns
- Sudanese law discriminates war displaced in Khartoum by not allowing them to settle in the city while 'squatters' (famine displaced) are allowed
- IDPs in SPLA controlled areas tend to settle temporarily near areas of origin to return shortly after the conflicts
- Protection of IDPs is often undermined because the displaced take refuge in areas under the authority of the groups responsible for their displacement
- Many IDPs in Khartoum have fled the Nuba Mountains
- After having lost all their assets, most war displaced are forced to flee to Northern areas in order to survive and in turn fill GoS demand for cheap labour
- There were reports of systematic destruction of villages and fields in war areas followed by relocation of IDPs to 'peace villages' and 'production' sites for export agriculture

"Livelihood strategies are a primary cause of temporary displacements, but can result in more permanent displacement when other factors interfere. Seasonal migration of nomadic pastoralists is very common, varying in both length of time and distance. Figure 1 illustrates that pastoralists mainly migrate to the following areas for dry season grazing: Bahr el Arab river, Sobat river, Upper Nile and Bahr el Jebel areas. These four regions show a remarkable overlap with areas of conflict and displacement. More recently, new migratory patterns developed such as the Yirol and Bor route to Equatoria. These new trekking routes are mainly used by cattle owners who sell their assets to Ugandan traders in Equatoria.

Some people in search of better economic opportunities find salaried employment through seasonal labour and sharecropping in agricultural schemes in the north of the country. Others leave their hometowns to take up public service jobs in newly established administrations in southern towns such as Yeti and Rumbek.

There are large numbers of "ecological" IDPs; displaced by drought (notably in 1984, 1985 and 1987) from Darfur and Kordofan who came to the east and settled in Khartoum and other towns. These IDPs still represent the majority of the population in the Khartoum camps, squatters and illegal urban occupations." (Paul V. De Wit et al, 1 August 2004, p.5)

"The combined effect of militia attacks, bombing raids and mass evictions, often exacerbated during periods of drought, is to create a state of chronic insecurity and poverty, particularly among rural communities in the south. Over the years, this has led to a chronic population drain from the south towards the transition zone between north and south, and further north to the capital, Khartoum." (IRIN, 31 December 2003, Web Special)

"Several famines or incidents of hunger have made many people to leave the mountains again to join the areas under the control of Government garrisons where food was available." (UNCERO 8 November 1999, pp. 108-109)

"USCR conducted [in 1998] extensive interviews with uprooted families; many had been displaced from their homes for years, or had fled their homes repeatedly over the years to stay alive. An estimated 80 percent of southern Sudan's 5 million people have been displaced at least once during the past 15 years of war." (USCR 1999, p.92)

"Sudan is a huge country, the largest in Africa, and nearly two million internally displaced people have moved well beyond the war zones, seeking refuge in the towns and cities of northern Sudan. [...]

Southerners and Nuba are widely seen as second class citizens and as supporters of 'the enemy', exposing them to discrimination and abuse. Sudanese law reinforces prejudice by differentiating between 'squatters' - people who arrived in Khartoum before 1984 (mainly because of drought and famine in western Sudan) -- and the 'displaced' -- people who arrived after 1984 (mainly southerners and Nuba fleeing the war). Squatters have the right to settle in Khartoum; displaced people do not." (AI 20 June 1997, "Sudan: abuse and discrimination")

"There are also reports of IDPs giving preference to shelter close to their homes, e.g. "Many of the displaced in the SPLA-controlled areas live near their places of origin, in camps or temporary locations where they can farm or herd until the next attack. Others have moved to more distant towns." (Ruiz 1998, pp. 161)

"The existence of large displaced populations in Sudan is not necessarily only a byproduct of internal warfare; there is also evidence to suggest that it constitutes part of a strategy aimed at controlling territory, resources, and peoples [...]. Here, it is important to emphasise several points concerning these populations in the Northern Sector:

First, war-displaced populations are frequently moved to areas where they live under the authority of the same groups responsible for their original displacement. This has important implications for the role of humanitarian operations in protecting war-displaced from violence and other abuses. In Ed Da'ein, for example, Dinka from Northern Bahr el-Ghazal were displaced into areas inhabited primarily by the Rizeigat, from whom the GOS-supported Murahaleen militia have been drawn. In Wau, Fertile militia armed by the government were responsible for both the displacement of Dinka from their home areas, and for violence against them in the town. As noted earlier, massacres of Dinka civilians took place in both Ed Da'ein and Wau in the late 1980s.

Second, war-induced displacement is continuing. In Wau, evidence from UN and GOS annual needs assessments, and interviews by the Review Team, suggest that since 1992 the number of war-displaced has risen every year. There have been periodic increases in numbers of war-displaced in Khartoum since 1989, and large-scale war displacement continues in areas of the Transition Zone, particularly the Nuba Hills. This raises important questions concerning the extent to which present humanitarian operations are addressing the underlying causes of displacement.

Third, those people who have moved into government-held areas as a result of raiding and other forms of military activity have typically lost the bulk of their assets, most importantly cattle. Thus, war-induced migration differs markedly from traditional seasonal migrations of rural people to participate in the labour economy in the North. Indeed, wage labour - once a seasonal activity in the subsistence economy - has now become a survival strategy of the war-displaced.

In this regard, the Review Team found an uncomfortable connection between the GoS's economic development policies with regard to agriculture, its policies concerning the war-displaced, and its assertion

of control over land in the context of internal warfare. Economic policy in Sudan since the late 1970's has emphasised the replacement of subsistence production with capital-intensive, mechanised farming for export; and this policy continues today. For example, The Peace and Development Foundation, created in 1992, and later reconstituted as the National Development Foundation (NDF), has as one of its objectives the consolidation of government control over land through the expansion of mechanised farming [...]. The emphasis that the GOS has placed on mechanised agriculture as opposed to subsistence production fits well with the creation of "peace villages", where war-displaced populations are moved to mechanised farming schemes to act as either producers or wage-labourers. These policies are justified by the GOS on the basis of promoting self-sufficiency among the war-displaced, and of promoting a policy of "Salaam min al Dakhal" or "peace from within". It is in the context of this kind of "development" agenda by the GOS, which has been accommodated by OLS agencies, that the use of humanitarian relief to promote self-reliance needs to be analysed." (Hendrie et al 1996, pp. 185-186)

Conflicts in oil-rich areas lead to complex movement of people both within and outside oil-producing states (2002)

- In 2002 about 127,000 people fled Mayom County in Western Upper Nile into Gogrial and Twic Counties of Northern Bahr el Ghazal
- Displaced from Rubkona, Western Upper Nile crossed to Mayom county
- Some crossed to Twic County
- Others cross to Tonj or Rumbeck Counties
- Most IDPs expressed wish to stay as close to home area as possible within Rubkona

"The security situation in Mayom has remained tense; IDP camps were attacked twice during September due to conflict over cattle. A high number of the population was displaced (34,000) due to this conflict. These individuals were forced to settle in the open with no shelter. IDP movement outside Mayom for grazing purposes was restricted due to insecurity. Many of the IDPs depend on milk from their cattle. The nutrition rate of the IDPs is deteriorating as a result. The UN is currently involved in negotiating access to pasture land for livestock in order to prevent complete loss of this coping mechanism."

"Displacement of over 127,000 people took place from Mayom County (Western Upper Nile) into Twic, Gogrial and Tonj Counties (Northern Bahr el Ghazal) during the month of August. The population comprises 50% children, 30% women and 20% men. Of the total, approximately 75,000 people arrived in Mayen Jur and Thiek Thou (Gogrial County) with another 50,000 IDPs displaced into Bulyom in Twic County. The remainder of the displaced are located in Tonj County. WFP identified 50,000 of the IDPs located in Mayen Jur as most vulnerable and provided them with 353 MT of mixed food commodities. Major priorities for this caseload are water and health care. UNICEF, FAO and other agencies are supplying IDP kits and fishing equipment. Fighting began in June 2002 in Mayom County and continued during August. Agencies on the ground characterized the conflict as the worst witnessed since 1983. Most displaced households have already lost this year's cultivation season. It can be expected that they will be food insecure in the coming year." (OCHA, 17 September 2002)

"Some of the displaced are said to have crossed into Mayom County to villages such as Tam or Manee. Others may have walked as far as Kerial and Kuerbol in Bul areas and onto Twic County. Others may cross into Tonj or Rumbek Counties of Bahr el Ghazal. These locations are accessible to OLS who can carry out assessments there while the non OLS agencies concentrate on the locations that are OLS denied by the government.

However, it was repeatedly stated to us that most people wanted to stay within Rubkona County and be assisted to remain there - within a few days walk of home. The community is in the process of building an airstrip at Chotchar, called Lel. At present it is 700 metres long, but they intend to lengthen it to 1000

metres during March so that larger cargo planes can land.” (Dan Church Aid/Christian Aid, 30 April 2002, p.11)

"An additional 1020 IDPs from Unity State (Western Upper Nile) are reported in Mapear, Rumbek County. These come in addition to the 1300 arrivals in February (source WFP / Tear Fund)." (OCHA 31 July 2001)

"The Sudan conflict has been particularly disruptive in Unity State. Fighting between pro-government militias, inter tribal factions and SPLA has contributed to the displacement of 60,000 IDPS. The influx, mainly from Jikany, Leek, Jagei, and Adok, has been into Bentiu and Rubkona towns." (UN November 2000, p. 142)

Patterns of displacement of Nuba IDPs (2003)

- IDPs in the Nuba Mountains region have moved to areas under Government or SPLM/A controlled or close to their areas of origin or to government resettlement camps
- Half of the Nuba IDPs fled their area of origin between 1985 and 1992
- 25% of the Nuba IDPs answered that security was the main reason for fleeing to Khartoum or other northern states
- People fleeing inside their own county were hosted by relatives and only people fleeing outside their counties were considered as IDPs
- Several famines and insecurity forced many people to flee the mountains to Government garrisons where food and humanitarian assistance were concentrated in the 1990s
- People fled Nuba mountains to large cities like Khartoum, Kadugli, Al Obeid and Port Sudan

“The large population movements in the Nuba Mountains region were caused by famine, civil war and resultant deteriorating economic conditions. However, the escalation of the conflict in 1989, disrupted people’s livelihoods and caused serious destruction of the economic and social set up and infrastructure coupled with massive displacement of the population [...].

According to a recent report compiled by the Nuba Mountains Programme Advancing Conflict Transformation (NMPACT) [...], displacement in the Nuba Mountains region is characterised by firstly, the displacement of rural people within the Nuba Mountains [...]. In addition, populations fled the fighting and Government led raids to the hills and mountains under the SPLM/A control, or into the areas controlled by the Government.

Some IDPs have moved to close proximity of their original homes, while others live in the GoS created resettlement camps. There are also IDPs who have moved into cities in the North.” (UNR/HC, Nuba, 22 July 2003, p.5)

“State of Origin

84% of the IDP households interviewed were originally from the state of South Kordofan with a further 13% from Western Kordofan. Less than 1% were originally from Northern Kordofan.

[...]

For the Nuba survey, the peak year for displacement was 1989, with 15% of all displacements occurring in this year. Over 50% of the displaced households left the Nuba Mountains between 1985 and 1992.

[...]

From both sets of graphics the following can be determined. 1% of the households left their place of origin before 1959, 4% left during the 1960s, 10% during the 70s and 33% during the 90s. However, the decade that saw the greatest displacement was the 1980s – 50%, representing almost half the Nuba IDP households in Khartoum and the northern States.

[...]

When asked what attracted the household to the current location, 21% said family ties, 24% cited employment as the reason and 25% gave security as the reason.

[...]

3.3. The Process of Displacement

From narrations of the displaced and reports of their community leaders, it is stated that the main reason for displacement since the late 1980s was the lack of security. Military attacks on civilian villages, arrests, summary-executions, burning of houses by both fighting factions resulted in the phenomenon of displacement. Displacement took different forms and processes:

3.3.1. Collective Displacement

Whole villages were moved out of the Nuba Mountains due to the collapse of security caused by pressure from the government's forces on the one side, SPLA on the other and the militias on the third side. Examples of such a situation are Teleshi and Nimir Sahgo villages in West Kordofan and other numerous villages in the southern parts of the Nuba Mountains, such as Abu Hasheem, Miri and Shat. The inhabitants of these villages were moved out of the area and transported to different cities in northern Sudan. An example of such an operation was the relocation of 6000 displaced in 11 trucks to Port Sudan in the Red Sea State.

3.3.2. Small Groups and Individuals' Displacement

Some extended families and individual decided to leave home and move to live in safer cities of the North. They found relative security and a roof on the outskirts of these cities. The displaced faced an episode of unrest during the period 1992 – 1995 caused by evacuation campaigns and resettlement plans carried out by the government. Some of the campaigns turned into violent confrontations between the displaced and the police. For example, IDPs who were living in Mayo and El Kalakla were moved, by force, to Jebel Awlia Camp. There was strong resistance, which resulted in the death of 45 people. Other incidents took place in Port Sudan, Kosti and Northern State." (IOM/UNDP, 28 February 2003, p.22,23,25,47)

"Nagorban County has received many people displaced from various places including the Kadugli area, Heiban County, Buram County, and the plains of Nagorban county itself. Because the latter belong to the county and usually joined relatives in the mountains, they are not considered displaced, only those from other counties are. Numbers of displaced people from both within and outside the county are not accurate but the County administration has been able to supply estimates. Only four payams out the county's six are affected by displacement. [...]

Most of the people concerned left the plains for the mountain during a Government offensive during 1996-97. From Heiban there have been several arrivals including an important one in 1995 due to a food gap and the occurrence of hunger. In 1994, a Government offensive drove people out of their homes in Buram and they sought refuge in Nagorban. Several famines or incidents of hunger have made many people to leave the mountains again to join the areas under the control of Government garrisons where food was available. Some went to large cities such as Khartoum, Kadugli, Al Obeid and Port Sudan. In 1998, residents of Nagorban County experiencing hunger left for Buram. The people affected are mostly the former inhabitants of the plain. Some left their families in Buram and came back to cultivate their farms in Nagorban." (UNCERO 8 November 1999, pp. 108-109)

"Populations within the [South Kordofan] State have tended to move from rebel to GOS areas, encouraged by humanitarian services, relief and access to better life. Although, accurate needs assessment have been difficult, reports suggest that several thousand people in the rebel-held areas facing acute food shortage have moved over the last eight months into GOS areas." (UNHCU 11 June 1999, p.5)

Dynamics of displacement from Bahr Al Ghazal towards neighbouring states (1999-2002)

- IDPs from Awoda (Bahr al Ghazal) walked 300 Km across the forest to reach Tambura in Eastern Equatoria four weeks later (2001-2002)
- From Daim Zubair 30,000 IDPs flee towards Timsahah and 8,000 towards Ed Daein (June 2001)
- IDPs who fled Bahr al Ghazal to Timsahah in South Darfur were displaced a second time by the government (2001)
- The north-south civil war has disrupted traditional conflict resolution mechanisms
- The Dinka of northern Bahr Al Ghazal have often looked to their northern neighbours, the Bagara Arab tribes, for labour opportunities in times of strife and famine
- West Kordofan state serves as a transit area for IDPs since 1998
- Difficult to distinguish between displaced and returnees in Bahr Al Ghazal (1999)
- Continuous flows of IDPs from western Bahr al Ghazal to northern Bahr al Ghazal and eastern Equatoria

"Thousands of the displaced from Awoda later continued southwards across difficult forested ground (described by one humanitarian source as a "no-man's-land") towards Tambura, on the border with the Central African Republic, while perhaps 2,000 remained in Awoda as of late December, according to aid officials. The IDPs who remained in were not considered to be in particularly bad shape at that time [...]. Access was difficult by both air and road to those who made the difficult, four-week 300-km walk south to Tambura County (centred on Tambura town, 5.36 N 27.28 E), in Western Equatoria, southwestern Sudan, and little assistance reached the IDPs for much of their journey, humanitarian sources told IRIN."(IRIN 22 January 2002)

"Following the on-going SPLA offensive in Bahr El Ghazal and the capture from GOS military forces of the towns of Daim Zubeir and then Raga from about 2 June 2001, there has been an exodus of the civilian population (and military families) from those towns and surrounding areas heading north and north-west into areas which are still GOS-controlled."(OCHA 10 June 2001)

"Since the recapture of Raga, Khartoum has been engaged in a military campaign to flush out SPLA forces from the area resulting in a mass exodus of civilians to northern Bahr el Ghazal and Western Equatoria regions. Apart from Raga town, the people have been fleeing from the nearby areas of Mangayat, Deim Zubeir, Sopo, Khor Ghana, Awoda and Yabulu. They have headed to camps in Marial Bai, Chelkou, Nyamllell, Makuei and Akwem areas in northern Bahr el Ghazal." (SCIO, 7 January 2002)

"Sudan has urged the UN and its aid agencies to dispatch aid to tens of thousands of citizens displaced by the recent rebel attacks on Daim Zubair and Raja localities of Bahr el Ghazal State in southern Sudan. International co-operation minister Karameddin Abdulmoula has told representatives of the UN, the WFP and the UNICEF that 30,000 persons have moved to Tumsaha town in Bahr el Bhazal while 8,000 persons flocked to Eddiain region in West Kordufan State to run away from the fighting. He said an unspecified number of people had found their way into the Radoum Forest in South Darfur State as a result of the attack from the Southern Sudanese People's Liberation Army (SPLA)."(PANA 10 June 2001)

" In Bahr al-Ghazal, an upsurge in insecurity as a result of an offensive by the Sudan People's Liberation Army (SPLA) in May/June had led to the displacement of over 10,000 people from Abulu, Daym Zubayr, Sopo, Besilia and Raga into Awoda payam (sub-county area), with more expected as a result of the peace prevailing there, USAID's Famine Early Warning System (FEWS) reported in its southern Sudan update, released on Monday. The internally displaced people (IDPs), including 5,350 from Daym Zubayr and more than 4,600 from Abulu, planned to settle in Awoda until the security situation settled in their home area, it

said. Poorer IDPs were living on relief food and wild plants as well as minimal grain supplies from petty trade or relations." (IRIN 17 July 2001)

"The Raga IDPs originally fled in two main directions: one group took a northerly route through Timsahah, from where some pressed on to Al-Ferdows, while others went on to Ed Daein (Al-Duwaym); thousands more took a more westerly route, then swinging north, through Radom and on to Buram.

[...]

After the initial displacement in June, over 5,000 IDPs were forced to move out of Timsahah, 144 km north of Raga, where they had initially sought safety, when the Sudanese government declared it a military operations area.

[...]

Almost 5,000 people displaced from Raga were also among 7,600 IDPs currently living in misery in Aweil West and Aweil North counties in northern Bahr al-Ghazal, the Sudan Catholic Information Office (SCIO) reported on 7 January, citing church and aid sources. The other IDPs referred to were part of a growing number of returnees from abduction by pro-government murahilin militias in the north [...].

The arrival of the IDPs in Aweil North and West had compounded an already parlous humanitarian situation in these parts of northern Bahr al-Ghazal, according to SCIO.

Since the government regained control of Raga and surrounding towns, IDPs had headed north to makeshift camps in Marial Bai, Chelkou, Nyamlell, Makuei and Akwem in northern Bahr al-Ghazal [...].

There were about 1,400 IDPs in Marial Bai and 900-plus in Chelkou (Aweil West), as well as 1,200-plus in Gok Machar and about 1,400 in Marol Deng Geng (Aweil North), the report stated.

The Sudan Relief and Rehabilitation Association (SRRA) - humanitarian wing of the Sudan People's Liberation Movement/Army - has appealed for agricultural kits, cooking utensils, sleeping and shelter materials, clothing and medicine as well as food, it added." (IRIN 22 January 2002)

The Bahr Al Arab is a meeting point for the Dinka of northern Bahr Al Ghazal and the Bagara (cattle-keeping) Arab tribes of South Darfur and Western Kordofan. Here they come to fish and market. While conflicts between the two pastoralist communities are as old as the history of relations between them, in the past, there were traditional conflict resolution mechanisms. However, with the involvement of the belligerents in the north-south civil war, what used to be purely tribal conflicts have now taken on political overtones, thus complicating the situation for the vulnerable civilian population of northern Bahr Al Ghazal.

[...]

It is worth-mentioning that, the political differences between the south and north notwithstanding, the Dinka of northern Bahr Al Ghazal have often looked to their northern neighbours, the Bagara Arab tribes, for labour opportunities in times of strife and famine. Moving southwards entails walking very long distances through areas without food. However, under the current circumstances the best option is to move northwards.

[...]

From past experience, insecurity triggers an uncontrolled movements of IDPs from camps, with the following possible consequences for humanitarian operations in the area and therefore requires preparedness measures:

- By May every year most IDPs families take up share-crop farming contracts with their traditional landlords (one of their coping mechanisms) and start clearing fields in preparation for the onset of the rainy season in June. Therefore, heightened insecurity in northern Bahr Al Ghazal and Bahr Al Arab at this time could force them to abandon their fields in favour of the relative security of the camps, thereby missing out on the agricultural season altogether." (UNHCU 11 June 1999, p.7)

"West Kordofan is host to a long-term population of IDPs who have fled drought and insecurity in northern Bahr Al Ghazal. It is expected that the State will continue to serve as a transit point for displaced populations coming from northern Bahr Al Ghazal and western Upper Nile travelling to urban centres or mechanised schemes in the East and North. Some IDPs from the southern conflict zones are expected to

remain in the State although the majority are likely to transit the area. Most IDPs are dispersed among the host community but approximately 36,000 IDPs live in conditions of chronic emergency in IDP settlements in Meiram, Abyei, An Nahud and in the peace villages near Lagawa." (UN January 1999, "West Kordofan State")

"In most locations, the displaced are grouped according to their county of origin (e.g. the Abyei, Twic, Rumbek, Yirol etc displaced), and have elected a representative for this entire group (the Alek displaced are an exception, as this is a payam). Representatives should represent all different sections, but obviously do not know everyone and cannot be equally accountable to every section or clan. This group is also highly mobile, and sometimes the representative moved without handing over responsibility. Within WFP, there is confusion over the terms displaced and returnees. For example, the category Wau displaced is used in some locations, but are generally returnees; i.e. they belong to the same sections as the resident population. Also, the terms say little about the duration of displacement and where they have come from before arriving in a particular location. For example, the Aweil and the Twic displaced have generally come straight from their areas of origin, whereas the Rumbek and Yirol displaced are generally people who were displaced from Wau, but whose original home is in these counties. They may never have lived in Rumbek or Yirol themselves." (Jaspars 12 April 1999, sect. 4.3.1)

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Genocidal intent missing in Darfur but large scale crimes against humanity and war crimes ongoing (2005)

- The Commission of Inquiry found the government of Sudan and Janjaweed militias responsible of serious international human rights and humanitarian law which may amount to crimes against humanity
- The worst hit tribes were the Fur, Zaghawa, Massalit, Jebel, Aranga and other so-called “African” tribes
- Government counter-insurgency attacks were deliberately and indiscriminately targeted at civilians and in addition the use of force was disproportionate to real threat
- The Commission referred the case of Darfur to the ICC for case by case further investigation
- The various tribes attacked and killed do not appear to make up ethnic groups distinct from that of the persons who attack them belong to and the main distinctive element is that some are sedentary and others are nomadic
- Those who are on the government side have been increasingly described as “Arabs” and those opposing the government as “Africans”
- The perception of members of African and Arab tribes as making up two distinct ethnic groups is the result of years of war over access to resources between the two different production groups
- There was no genocidal intent by militias or government troops as the attackers refrained from exterminating the whole populations but rather forcibly dislodged them from their villages and let them flee to IDP settlements where they received humanitarian assistance
- The systematic attacks and destruction of villages as well as the forced displacement of civilians attest a persecutory intent by the government which makes the government responsible for crimes against humanity

“Acting under Chapter VII of the United Nations Charter, on 18 September 2004 the Security Council adopted resolution 1564 requesting, *inter alia*, that the Secretary-General ‘rapidly establish an international commission of inquiry in order immediately to investigate reports of violations of international humanitarian law and human rights law in Darfur by all parties, to determine also whether or not acts of genocide have occurred, and to identify the perpetrators of such violations with a view to ensuring that those responsible are held accountable’.

[...]

Based on a thorough analysis of the information gathered in the course of its investigations, the Commission established that the Government of the Sudan and the Janjaweed are responsible for serious violations of international human rights and humanitarian law amounting to crimes under international law. In particular, the Commission found that Government forces and militias conducted indiscriminate attacks, including killing of civilians, torture, enforced disappearances, destruction of villages, rape and other forms of sexual violence, pillaging and forced displacement, throughout Darfur. These acts were conducted on a widespread and systematic basis, and therefore may amount to crimes against humanity. The extensive destruction and displacement have resulted in a loss of livelihood and means of survival for countless women, men and children. In addition to the large-scale attacks, many people have been arrested and detained, and many have been held *incommunicado* for prolonged periods and tortured. The vast majority

of the victims of all of these violations have been from the Fur, Zaghawa, Massalit, Jebel, Aranga and other so-called 'African' tribes.

In their discussions with the Commission, Government of the Sudan officials stated that any attacks carried out by Government armed forces in Darfur were for counter-insurgency purposes and were conducted on the basis of military imperatives. However, it is clear from the Commission's findings that most attacks were deliberately and indiscriminately directed against civilians. Moreover even if rebels, or persons supporting rebels, were present in some of the villages – which the Commission considers likely in only a very small number of instances - the attackers did not take precautions to enable civilians to leave the villages or otherwise be shielded from attack. Even where rebels may have been present in villages, the impact of the attacks on civilians shows that the use of military force was manifestly disproportionate to any threat posed by the rebels.

The Commission is particularly alarmed that attacks on villages, killing of civilians, rape, pillaging and forced displacement have continued during the course of the Commission's mandate. The Commission considers that action must be taken urgently to end these violations.

While the Commission did not find a systematic or a widespread pattern to these violations, it found credible evidence that rebel forces, namely members of the SLA and JEM, also are responsible for serious violations of international human rights and humanitarian law which may amount to war crimes. In particular, these violations include cases of murder of civilians and pillage.

II. Have acts of genocide occurred?

The Commission concluded that the Government of the Sudan has not pursued a policy of genocide. Arguably, two elements of genocide might be deduced from the gross violations of human rights perpetrated by Government forces and the militias under their control. These two elements are, first, the *actus reus* consisting of killing, or causing serious bodily or mental harm, or deliberately inflicting conditions of life likely to bring about physical destruction; and, second, on the basis of a subjective standard, the existence of a protected group being targeted by the authors of criminal conduct. However, the crucial element of genocidal intent appears to be missing, at least as far as the central Government authorities are concerned. Generally speaking the policy of attacking, killing and forcibly displacing members of some tribes does not evince a specific intent to annihilate, in whole or in part, a group distinguished on racial, ethnic, national or religious grounds. Rather, it would seem that those who planned and organized attacks on villages pursued the intent to drive the victims from their homes, primarily for purposes of counter-insurgency warfare.

The Commission does recognise that in some instances individuals, including Government officials, may commit acts with genocidal intent. Whether this was the case in Darfur, however, is a determination that only a competent court can make on a case-by-case basis.

[...]

The Commission has collected reliable and consistent elements which indicate the responsibility of some individuals for serious violations of international human rights law and international humanitarian law, including crimes against humanity or war crimes.

[...] including officials of the Government of Sudan, members of militia forces, members of rebel groups, and certain foreign army officers acting in their personal capacity.

[...]

The Commission instead will list the names in a sealed file that will be placed in the custody of the UN Secretary-General. The Commission recommends that this file be handed over to a competent Prosecutor (the Prosecutor of the International Criminal Court, according to the Commission's recommendations [...]).

[...]

The Commission strongly recommends that the Security Council immediately refer the situation of Darfur to the International Criminal Court, pursuant to article 13(b) of the ICC Statute. As repeatedly stated by the Security Council, the situation constitutes a threat to international peace and security.

[...]

A body of reliable information indicates that war crimes may have been committed on a large-scale, at times even as part of a plan or a policy. There is also a wealth of credible material which suggests that criminal acts were committed as part of widespread or systematic attacks directed against the civilian population, with knowledge of the attacks. In the opinion of the Commission therefore, these may amount to crimes against humanity.

[...]

The measures taken so far by the Government to address the crisis have been both grossly inadequate and ineffective, which has contributed to the climate of almost total impunity for human rights violations in Darfur. Very few victims have lodged official complaints regarding crimes committed against them or their families, due to a lack of confidence in the justice system. Of the few cases where complaints have been made, most have not been properly pursued.

[...]

The Commission also recommends a number of measures to be taken by other bodies to help break the cycle of impunity. These include the exercise of universal jurisdiction by other States, re-establishment by the Commission on Human Rights of the mandate of the Special Rapporteur on human rights in Sudan, and public and periodic reports on the human rights situation in Darfur by the High Commissioner for Human Rights.

[...]

However, two other constitutive elements of genocide require a more in depth analysis, namely whether (a) the target groups amount to one of the group protected by international law, and if so (b) whether the crimes were committed with a genocidal intent. These elements are considered separately below.

508. *Do members of the tribes victims of attacks and killing make up objectively a protected group?* The various tribes that have been the object of attacks and killings (chiefly the Fur, Massalit and Zaghawa tribes) do not appear to make up ethnic groups distinct from the ethnic group to which persons or militias that attack them belong. They speak the same language (Arabic) and embrace the same religion (Muslim).¹⁸⁸ In addition, also due to the high measure of intermarriage, they can hardly be distinguished in their outward physical appearance from the members of tribes that allegedly attacked them. Furthermore, inter-marriage and coexistence in both social and economic terms, have over the years tended to blur the distinction between the groups. Apparently, the sedentary and nomadic character of the groups constitutes one of the main distinctions between them. It is also notable that members of the African tribes speak their own dialect in addition to Arabic, while members of Arab tribes only speak Arabic.

509. *If not, may one hold that they subjectively make up distinct groups?* If objectively the two sets of persons at issue do not make up two distinct protected groups, the question arises as to whether they may nevertheless be regarded as such subjectively, in that they perceive each other and themselves as constituting distinct groups. 510. As noted above, in recent years the perception of differences has heightened and has extended to distinctions that were earlier not the predominant basis for identity. The rift between tribes, and the political polarization around the rebel opposition to the central authorities, has extended itself to issues of identity. Those tribes in Darfur who support rebels have increasingly come to be identified as “African” and those supporting the government as the “Arabs”. A good example to illustrate this is that of the Gimmer, a pro-government African tribe and how it is seen by the African tribes opposed to the government as having been “Arabized”. Clearly, not all “African” tribes support the rebels and not all “Arab” tribes support the Government. Some “Arab” tribes appear to be either neutral or even support the rebels. Other measures contributing to a polarization of the two groups include the 1987-1989 conflict over access to grazing lands and water sources between nomads of Arab origin and the sedentary Fur. The Arab-African divide has also been fanned by the growing insistence on such divide in some circles and in the media. All this has contributed to the consolidation of the contrast and gradually created a marked polarisation in the perception and self-perception of the groups concerned. At least those most affected by the conditions explained above, including those directly affected by the conflict, have come to perceive themselves as either “African” or “Arab”.

511. There are other elements that tend to show a self-perception of two distinct groups. In many cases militias attacking “African” villages tend to use derogatory epithets, such as “slaves”, “blacks”, *Nuba*, or

“Zurga” that might imply a perception of the victims as members of a distinct group. However, in numerous other instances they use derogatory language that is not linked to ethnicity or race.¹⁸⁹ As for the victims, they often refer to their attackers as *Janjaweed*, a derogatory term that normally designates “a man (a devil) with a gun on a horse.” However, in this case the term Janjaweed clearly refers to “militias of Arab tribes on horseback or on camelback.” In other words, the victims perceive the attackers as persons belonging to another and hostile group.

512. For these reasons it may be considered that the tribes who were victims of attacks and killings subjectively make up a protected group.

513. *Was there a genocidal intent?* Some elements emerging from the facts including the scale of atrocities and the systematic nature of the attacks, killing, displacement and rape, as well as racially motivated statements by perpetrators that have targeted members of the African tribes only, could be indicative of the genocidal intent. However, there are other more indicative elements that show the lack of genocidal intent. The fact that in a number of villages attacked and burned by both militias and Government forces the attackers refrained from exterminating the whole population that had not fled, but instead selectively killed groups of young men, is an important element.

[...]

514. This case clearly shows that the intent of the attackers was not to destroy an ethnic group as such, or part of the group. Instead, the intention was to murder all those men they considered as rebels, as well as forcibly expel the whole population so as to vacate the villages and prevent rebels from hiding among, or getting support from, the local population.

515. Another element that tends to show the Sudanese Government’s lack of genocidal intent can be seen in the fact that persons forcibly dislodged from their villages are collected in IDP camps. In other words, the populations surviving attacks on villages are not killed outright, so as to eradicate the group; they are rather forced to abandon their homes and live together in areas selected by the Government. While this attitude of the Sudanese Government may be held to be in breach of international legal standards on human rights and international criminal law rules, it is not indicative of any intent to annihilate the group. This is all the more true because the living conditions in those camps, although open to strong criticism on many grounds, do not seem to be calculated to bring about the extinction of the ethnic group to which the IDPs belong. Suffice it to note that the Government of Sudan generally allows humanitarian organizations to help the population in camps by providing food, clean water, medicines and logistical assistance (construction of hospitals, cooking facilities, latrines, etc.)

516. Another element that tends to show the lack of genocidal intent is the fact that in contrast with other instances described above, in a number of instances villages with a mixed composition (African and Arab tribes) have not been attacked. This for instance holds true for the village of Abaata (north-east of Zelingi, in Western Darfur), consisting of Zaghawa and members of Arab tribes.

[...]

Recent developments have led to the perception and self-perception of members of African tribes and members of Arab tribes as making up two distinct ethnic groups.

[...]

519. However, as pointed out above, the Government also entertained the intent to drive a particular group out of an area on persecutory and discriminatory grounds for political reasons. In the case of Darfur this discriminatory and persecutory intent may be found, on many occasions, in some Arab militias, as well as in the central Government: the systematic attacks on villages inhabited by civilians (or mostly by civilians) belonging to some “African” tribes (Fur, Masaalit and Zaghawa), the systematic destruction and burning down of these villages, as well as the forced displacement of civilians from those villages attest to a manifestly persecutory intent. In this respect, in addition to *murder* as a crime against humanity, the Government may be held responsible for *persecution as a crime against humanity*. *This would not affect the conclusion of the Commission that the Government of Sudan has not pursued the policy of genocide in Darfur.*” ” (Commission of Inquiry, 25 January 2005)

IDPs in Darfur killed, attacked and raped during and after flight and villages systematically burnt (2005)

- The government reported to the Commission of Inquiry that IDP camps were used by rebels to launch attacks against government targets
- The Commission reported killings of IDPs in protected IDP sites or when they ventured out of the camp or when they went back to their villages
- Villages inhabited by Fur, Masaalit and Zaghawa tribes were systematically burned to the ground even after people had fled to IDP camps in an attempt to discourage return and many villages were subsequently occupied by “Arab” tribes
- Rape and other forms of sexual abuse were widely reported after and during flight including inside of IDP sites or outside them when women fetch water and firewood
- The Government claimed that up to 12,000 policemen were deployed in Darfur to protect the IDPs however the Commission concluded that their presence plays more of a political role rather than a protective one
- IDPs were reportedly confined to camps and settlements and shot at by Janjaweed when venturing outside while police forces where present did not react nor arrest the guilty
- Thousands continue to flee attacks in Darfur despite government claims that the war was over in February 2004
- Over 700 villages have been burned and destroyed in Darfur
- IDPs camps have been recurrently attacked and looted in the whole region during the past two years and IDPs asked not to be delivered humanitarian assistance by fear of further attacks and lootings
- IDP women were commonly gang raped when collecting water or fetching firewood and shot if showing signs of resistance
- Militias harassed, threatened, looted and taxed displaced people in the Kass region and at markets
- In West Darfur IDPs are not adequately protected in camps: only three policemen guard it but leave at 3PM letting militias free hands to attack at night

“210. With regard to figures on displacement, the [government] Committee said that the Government does not possess accurate figures, but it relies on the figures given by the international organizations. It claimed that the displaced were unwilling to cooperate and attacked Government officials, and that some leaders of the displaced exaggerate figures because they are benefiting from the situation. The Committee said that the Government tries to protect the civilian population, that it does not launch military operations against civilians and only targets rebels. It stated that the IDP camps are now used as places from which to launch attacks against the Government.

[...]

244. The effect of the repeated attacks on villages and the manner in which they were carried out, including regular aerial surveillance at dawn, hovering of helicopter gun- ships and frequent bombing, was to terrorise civilians and force them to flee the villages. Those who managed to find refuge in IDP camps or host communities often refused to return to their villages out of fear of further attacks.

[...]

284. Civilians have also been killed after they have reached IDP sites following displacement. On some occasions, they have been killed as they ventured out of the camp, either to go back to their village or for any other reason. For instance, different witnesses told the Commission of the recent killing of three persons who had left an IDP camp in Kass to go and see their nearby village. The perpetrators were unidentified, but the people interviewed said they were “probably Janjaweed”. They said that the militias stayed around the camps and the village in case anyone tried to return. In another instance in Kalma camp in South Darfur in November 2004, at a time when the Commission was present in Nyala, a number of

IDPs were reportedly killed and injured when police shot into the camp, allegedly in response to attacks from rebels hiding in the camp.

[...]

304. Many reports also note that villages were burnt even after these had been abandoned by the inhabitants who fled to IDP camps in larger urban centres in Darfur, or to neighbouring Chad. This has led many observers to fear that this is a part of the policy executed through the Janjaweed to expel the population from the targeted areas and to prevent the immediate or, possibly, long-term return of the inhabitants. This concern is expressed because the villages reported to have been burnt and destroyed in this manner are almost exclusively inhabited by African tribes, mostly Fur, Masaalit and Zaghawa. [...]

312. Such a pattern of destruction can only be interpreted as having the objective of driving out the population through violence and preventing their return by destroying all means of survival and livelihood. The Commission has also verified that a number of villages previously inhabited by the Fur in South Darfur and Masaalit in West Darfur are now being populated by Arab tribes.

[...]

346. Rape and other forms of sexual abuse were widely reported to continue during flight and further displacement, including outside as well as inside of various IDP sites. The impact of the violence committed outside the IDP sites is exacerbated by the fact that women and their families depended on the collection of firewood for their livelihood and survival. In most of the cases, it was the women and girls who went outside the camps to search for firewood and water, since they had a better chance to survive attacks than the men and boys who risked being killed. [...] In April 2004, a group of 40 IDP women went to collect wood outside of Mukjar, West Darfur and was reportedly attacked by six armed Janjaweed. Some women were badly beaten and at least one woman was raped by four Janjaweed. During the first week of July 2004, a medical team in Mukjar treated 15 women for serious injuries sustained in eight separate incidents. In two of these incidents, beatings were followed by rape. On 22 July 2004, around thirteen women were reportedly raped by Janjaweed when searching for firewood around the IDP camp near Kass, South Darfur. In July 2004, around 20 women were reportedly raped by Janjaweed when searching for firewood around the Sisi camp, West Darfur. Further rapes of women venturing outside IDPs locations, such as Abu Shouk in North Darfur, Ardamata, Azarni, Garsila, Mornei, Krinding and Riyadh in West Darfur, and Al Jeer, Derej, Kalma, Kass and Otash in South Darfur have been reported.

347. The Commission's findings confirmed that rape and sexual violence continue to be perpetrated against women and girls during flight and in areas of displacement. Rape by Janjaweed and Government soldiers surrounding IDP sites have occurred in sufficient numbers to instil fear of such incidents amongst women and girls, and has led to their virtual confinement inside these sites.

[...]

426. The Government claimed that there were between 9,000 and 12,000 policemen deployed in Darfur to protect the IDPs. The impact of this presence was, however, not felt by the IDPs, as the situation at the Fata Burno IDP camp illustrates. The inhabitants there were confined in an area defined by a reddish rock and a riverbed (Wadi). Any attempt by the IDPs to venture beyond the confined area was met with shots from the Janjaweed in their nearby mountainous hideout. The police, located at the edge of the camp, showed no interest in confronting the Janjaweed. It stands to reason to assume that the police presence is more for political reasons than any form of protection. Also, between 27 September 2003 and May 2004, seven villages¹⁶⁶ near Nyala were persistently attacked by the Janjaweed. It resulted in the displacement of over 1000 civilians. No action was taken by police against the Janjaweed." (Commission of Inquiry, 25 January 2005)

"According to some estimates over 700 villages in all the three states of Darfur have been completely or partially destroyed [...]. The Commission further received information that the police had made an assessment of the destruction and recorded the number of destroyed villages at over 2000. The Government did not provide any official figures despite several requests in this regard from the Commission. The Commission nevertheless received credible accounts and itself visited some sites where hundreds of homes were burnt in a single location." (Commission of Inquiry, 25 January 2005)

“Government efforts to end impunity, such as the creation of a committee to address rape, have been wholly inadequate.” (HRW, 15 November 2004)

“Thousands are still fleeing for their lives from militias and aerial bombardments in the western region of Darfur, despite claims by the government this week that the war is over.” (IRIN, 11 February 2004)

“Since the fighting started between rebel groups, militias and the Government of Sudan a year ago, the UN has consistently received reports of systematic raids against civilian populations. These attacks have reportedly included burning and looting of villages, large-scale killings, and abductions. Humanitarian workers have also been targeted, with staff being abducted and relief trucks looted.” (OCHA, 18 February 2004)

“There have been consistent reports and eyewitness accounts of systematic attacks of villages and IDP camps and the looting of humanitarian assistance distributed to vulnerable groups by the UN and NGOs. Some IDPs in North and South Darfur have cautioned the assessment teams not to distribute assistance under present conditions, fearing that such action might make them a more attractive target for looting and harassment.” (UN RC, 29 February 2004)

“Protection of civilians: Reportedly, militia have been looting cattle from resident populations. The GoS is planning to concentrate the IDPs in the two main camps to increase services and better address needs and protection. Three policemen are assigned to guard Ard Amata camp, but leave daily at 1500. There are also reports of Janjaweed entering camps at night, raping some IDP women and looting IDP property.” (UN RC, 19 February 2004)

“In Zaleingi, while 20 policemen have been stationed to provide security, IDPs continue to be harassed when going out of the camp to collect firewood and the relief items distributed to them are stolen.” (UN RC, 7 March 2004)

“In the 5 main locations visited that are now hosting the displaced, it was observed the people remain in fear and under daily threat, harassed/violated when collecting water or firewood and shot if they show signs of resistance. The Kass hospital receives on average two gunshot wound victims per-day. Their movement is also restricted in that they are not allowed to move to Kass or Zaleingi except on market days. Even in Kass the people are feeling very insecure and one area inside of Kass was looted on the 26th February. The Janjawaiet have visited the market in Kass, demanding payment and conducting general harassment. The team discussed the above security issues with the Kass authorities but even they seem to be unable to take action to stem the flow of this destruction.” (UNRC, 1 March 2004, p.3)

Forced returns and relocations in Darfur (2005)

- The Government of Sudan pursued a policy of return of IDPs and refugees after declaring the end of hostilities in Darfur early 2004
- The forcible movement (return or relocation) of civilians is a war crime unless it is a military imperative to ensure their protection
- Forced relocations in order to de-populate rural areas and facilitate the appropriation of land by illegal owners was reported
- Forced relocations or returns to strategic areas aimed to attract foreign aid or undermine population support to a party to the conflict
- The IOM and the UN brokered a deal with the GoS to facilitate voluntary returns while it was seen by many as premature and inappropriate to plan for returns in the midst of insecurity
- The government forced IDPs to return to areas where insecurity prevailed and many were forced to flee again to escape from renewed attacks

- El Geer IDP camp was destroyed and people removed with violence to Abu Zarief new camp in south Darfur in November 2004
- Despite early warnings since August 2004 that forced relocations were planned by authorities neither OCHA nor IOM seem to have taken the necessary steps to prevent them
- Although IDPs expressed the wish to return they felt unsafe to do so due to prevailing insecurity
- In August 2004 UNHCR reported forced IDP returns to unsafe areas by the government in West Darfur as well as intentions to move IDPs to new sites both in West and South Darfur near Nyala
- UNHCR reminded the government that any movement of IDP must be strictly voluntary

“The Government of the Sudan has attempted to negotiate the return of refugees after President Omar Al Bashir announced the ending of military hostilities earlier this year [2004].

[...]

Ordering the displacement of the civilian population for reasons related to the conflict constitutes a war crime, unless the security of the civilians involved or imperative military reasons so demand such action. Furthermore, the forcible transfer of populations constitutes a crime against humanity when carried out as part of a widespread or systematic attack directed against the civilian population. Also, as principle 15 of the United Nations Guiding Principles on Internal Displacement states, IDPs have the right to be protected against forcible return to, or resettlement in, any place where their life, safety, liberty and/or health would be at risk.” (UN CHR, 7 May 2004)

“"[Sudan's Foreign Minister] Ismail provided Pronk with an update on the measures the government of Sudan had taken to end impunity in Darfur," Achouri said. "A number of people, including Janjawid militia, have been arrested, while 70,000 internally displaced persons (IDPs) in Darfur were claimed to have been repatriated."” (IRIN, 25 October 2004)

“Since early October 2004, fears were high in displaced camps around Nyala following radio reports stating that the governor of South Darfur ordered the relocation of displaced people from Kalma, the largest camp near Nyala town, and other areas to a new camp outside Nyala. Some displaced people feared that the relocation was a ruse by the government to forcibly return them to their villages where they would face further militia attacks. Others were suspicious of the role played by Islamic relief organizations in setting up the new camp.

Rumors of impending forced relocations had been circulating in Nyala for weeks prior to November 10, 2004 when government forces entered El Geer displaced camp, destroying shelters, beating people and spraying tear gas in an effort to move displaced people to a new location, Abu Zarief.

[...]

At the moment, there is no coherent strategy agreed upon among the various international actors for facilitating and monitoring returns.” (HRW, 15 November 2004)

“The Government of Sudan is forcibly relocating thousands of internally displaced persons (IDPs) in Sudan, without respect for international law. The government's actions defy both the letter and the spirit of its August 21 Memorandum of Understanding (MOU) with the International Organization for Migration (IOM), in which it committed to international involvement in assuring "voluntary, safe, dignified, and sustainable" return of IDPs in Darfur.

[...]

In the early morning hours of November 2, Government of Sudan security forces surrounded three camps within a five-mile radius of Nyala: Al Geer, Otash and Kalma. At Al Geer camp they forcibly removed all of the IDPs, numbering between six and nine thousand, to the new Saudi Red Crescent Al Surief camp in Nyala town. The authorities are accused of using tear gas, firing shots, raping women and burning shelters in the middle of the night. Some IDPs were shot and needed immediate medical attention for their wounds. Hours after the camp was stormed, 250 families were forced onto 13 trucks and brought to a newly erected

camp outside of Nyala. According to the staff of an international NGO that visited the camp, which was built by the Saudi Red Crescent, it was too small to house so many IDPs.

While the actions of the past ten days took the international community in Nyala by surprise, there were early warnings that the Government of Sudan was contemplating forced relocations:

-In early October, Refugees International raised the issue that there were very few services in the Otash camp despite its proximity to Nyala, the most developed town in the Darfur region. The UN Office for the Coordination of Humanitarian Affairs (OCHA) told us that there were land disputes surrounding Otash camp and they were waiting on the resolutions of these issues before making it a priority to provide services. The Government of Sudan Humanitarian Aid Commission (HAC) was being sued by the landowner and wanted to remove the inhabitants from this land.

-HAC had also discussed concerns with OCHA that Kalma camp, with over 70,000 residents, was growing too large for its site. There had been threats by the HAC "return commission" to sheikhs that they would relocate the population. They told the sheikhs that "anyone who attempted to stop returns would be shot." When the sheikhs reported this to representatives of international agencies, the police arrested them for suspicion of arms dealing.

-Over the summer, inhabitants from a camp near the airport road in Nyala were also forcibly relocated.

At a protection working group meeting in October in Nyala, attended by an IOM representative, OCHA and members of the local police authorities, concerns were raised about the suitability of the Saudi Red Crescent site for new inhabitants. While action was taken to visit the new Saudi site, neither IOM nor OCHA told the local HAC that forced relocations to the new camp would not be tolerated. In fact, the IOM office in Nyala had only one program staff member who has been awaiting guidance from Khartoum as to how to implement the IOM Memo of Understanding. He told RI, "I am unable to take action on forced returns for fear of breaking the agreement." OCHA has also failed to take a leadership role in actively hammering out arrangements with the Government of Sudan to resolve overcrowding issues surrounding Otash, Kalma and El Geer camp in advance. Lack of resources and an unclear understanding of the revised mandate are hampering the ability of African Union protection forces currently on the ground to be present to prevent or at least discourage forced displacements." (RI, 10 November 2004)

"The threat of involuntary return and relocation is real and ongoing, despite a 21 August Memorandum of Understanding signed between the GoS and the IOM on voluntary returns." (UN, 30 November 2004, p.99-100)

"While most [IDPs] expressed a desire to eventually return to their places of origin, they all strongly affirmed their unwillingness to return at this stage due to prevailing insecurity, mainly because of continued attacks by the so-called Janjawid militia and other armed actors," he added.

Deng, a Sudanese national, said the IDPs complained of being pressured by some officials to return home. But some of those who returned home had again fled because attacks had not ceased." (IRIN, 3 August, 2004)

"In West Darfur, UNHCR is concerned that the local authorities and government of Sudan are continuing to put pressure on displaced people to return to villages that are not safe and do not offer any possibility of a decent life, since most of the crops and homes have been destroyed by rampaging militias. In South Darfur, the government has said it intends to move tens of thousands of displaced people now living in Kalma camp and Kas town, both near Nyala. In Kas town, international NGOs and UN agencies estimate the number of displaced people at about 40,000 – outstripping the number of original inhabitants.

In Mornei, a two-hour drive south-east of El Geneina, Sudanese authorities have announced their intention to move displaced people from a makeshift camp into a new camp to be called "New Mornei". UNHCR has

consistently told the government at all levels that any movement of IDPs must be entirely voluntary, because people who have already suffered the trauma of being chased from their homes by armed militiamen do not need the further trauma of another forced move.

The government is posting policemen in empty villages in an effort to convince displaced people that it is safe to return to those villages. However, displaced people tell us they are not reassured by government policemen and do not feel the time is yet right for their return home.” (UNHCR, 10 August 2004)

Displacement in Darfur serves policy of resettlement of lands by nomadic groups (2004)

- Human Rights Watch warns that the plan to create “safe areas” in Darfur concluded between the U.N. special envoy to Sudan and the government may only consolidate ethnic cleansing
- “Safe areas” go along government proposal to create 18 “resettlement sites” (July 2004) for the IDPs in Darfur in areas where they can be safe
- The Sudanese forces supposed to “protect” the IDPs are often the same who drove them out of their homes
- These measures recall “peace villages” in the Nuba Mountains where populations were forcibly confined, abused and exploited by government forces
- Human Rights Watch reported that there seems to be a government policy to resettle nomads on the lands left behind by displaced Darfurians

“the Government called upon local tribes to assist in the fighting against the rebels. In this way, it exploited the existing tensions between different tribes.

68. In response to the Government’s call, mostly Arab nomadic tribes without a traditional homeland and wishing to settle, given the encroaching desertification, responded to the call. They perhaps found in this an opportunity to be allotted land. One senior government official involved in the recruitment informed the Commission that tribal leaders were paid in terms of grants and gifts on the basis of their recruitment efforts and how many persons they provided.

[...]

197. Concerns have been expressed that despite the Government’s assurances to the international community, the security situation has not improved. Most IDPs remain afraid to return to their places of origin out of fear of renewed attacks and due to the prevailing situation of impunity for acts of violence committed against the civilian population. Some more recent reports note that Arab populations have begun to settle in a few areas previously occupied by the displaced populations.

[...]

Only a few settlements were still inhabited, but by nomadic herders who were observed to be settled around or in the villages. The presence of these herders was also noticed by the Commission around the otherwise deserted villages around Sirba and Abu Surug in West Darfur. The Commission spoke to some displaced persons who had sought to return but had again faced attacks.

[...]

329. At the same time, it seems very possible that the Janjaweed, who are composed of tribes traditionally opposing the three displaced tribes, also benefited from this displacement as they would gain access to land. The Commission found evidence indicating that Arab tribes had begun to settle in areas previously inhabited by the displaced, thus further preventing an eventual return of the displaced.” (Commission of Inquiry, 25 January 2005)

“The document from the office of the commissioner of Kutum province, North Darfur State, dated February 12, 2004, also appears to validate claims made by numerous sources (in reports of Human Rights

Watch and others) that the Sudanese government has a plan to resettle lands from which the original inhabitants have been displaced.

[...]

The same memorandum refers also to other measures that are consistent with a plan to move new persons into land that had been emptied of previous occupants and destroyed:

[...]

Human Rights Watch recently gathered new testimony in Chad indicating that resettlement activities in Darfur may be aimed not only at nomadic communities in Darfur, but also at Chadian Arab nomads, who in some locations are being encouraged to cross the border into Darfur and resettle land previously occupied by Darfurian farmers.

Another alarming feature of Sudanese government policy as recently stated by Sudanese Minister for the Interior, Major General Abdel Rahim Mohammed Hussein on July 2, 2004, is the intention to create 18 “settlements” to host more than one million displaced persons, a plan which would “facilitate offering services and protection of the villagers who were previously living in numerous scattered villages.” [...]

These statements raise the concern that rather than returning to their homes and lands, displaced civilians will be forced to remain in camps or permanently resettle in new locations, effectively consolidating the ethnic cleansing that has taken place. Instead of supporting this outcome, the international community should demand that Janjaweed militias are removed from areas they have occupied, thereby permitting displaced civilians to voluntarily return to their lands and villages in safety and dignity.” (HRW, 19 July 2004)

“A plan to create “**safe areas**” in Darfur may only consolidate ethnic cleansing without offering real protection to civilians, Human Rights Watch said today. U.N. Security Council members meeting on Thursday to discuss the situation in Darfur should reject the plan, which the U.N. special envoy to Sudan recently concluded with the Sudanese government.

On August 5, the U.N. Secretary-General’s special representative to Sudan, Jan Pronk, and the Sudanese government agreed to a Plan of Action that would establish “safe areas” for displaced and resident civilians in Darfur. However, this plan appears to be only a slightly revised version of the Sudanese government proposal in early July to create 18 “resettlement sites” for the more than 1.2 million displaced Darfurian civilians. Under the terms of the August 5 agreement, the Sudanese government “would identify parts of Darfur that can be made safe and secure within 30 days.” The plan also proposes that the Sudanese government “would provide secure routes to and between these areas” and use Sudanese security forces to secure the routes and areas.

“Instead of offering real security for civilians, the proposed ‘safe areas’ threaten to consolidate the ethnic cleansing that has taken place in Darfur,” said Peter Takirambudde, executive director for Human Rights Watch’s Africa division. “It’s unrealistic to think that Sudanese forces will provide security to civilians who were driven out of their homes by some of these very same forces.”

[...]

Some of the initial sites proposed as “safe areas” for displaced civilians include the capitals of the three states in the Darfur region, along with nearby displaced settlements and villages. For instance, El Fashir, the capital of North Darfur, and nearby Abu Showk and Zam Zam displaced camps; Nyala, the capital of South Darfur, and nearby Kalma camp, and Geneina, the capital of West Darfur, are among the preliminary locations selected as safe areas.

“These safe areas could become a form of ‘human shield,’” Takirambudde said. “This would allow the government to secure zones around the major towns and confine a civilian population that it considers to be supporting the rebels.”

The Sudanese government has a well-known record of creating displaced camps known as “peace villages” in other parts of Sudan that have undermined, rather than ensured, civilian security. In southern Sudan and

in the Nuba Mountains, for instance, these camps were typically located several kilometers outside the main towns. Particularly in the Nuba Mountains, they developed a reputation for being areas where soldiers and militia could rape displaced women and girls with impunity.

[...]

The proposed “safe areas” in the Darfur Plan of Action ignore key considerations for the genuine security of civilians. It is a bilateral agreement between the Sudanese government and the United Nations that lacks the consent of the rebel forces. The proposed locations of the areas, the lack of specificity regarding modalities of protection — beyond the use of Sudanese police that have already proven to be more likely to commit abuses than prevent them — and their open-ended duration risk that these proposed safe areas become permanent resettlement sites aimed at controlling the civilian population, rather than providing genuine security.” (HRW, 1 September 2004)

Returning IDPs face serious human rights abuses en route and in return areas (2005)

- The presence of militias and mines are threats to the physical security of IDPs
- Freedom of movement of IDPs is constrained by the extortion of taxes of about \$4 per person along return routes between Southern Kordofan and Northern Bahr-el-Ghazal
- Rights abuses include looting of property, rape, and family separation
- Civilian Protection Monitoring Team (CPMT) reports rape, killings, shelling of villages, abductions, theft and excessive taxation against returning IDPs to Abyei in 2003
- GoS has failed to take action against perpetrators and to take preventive measures to eliminate the threat of further criminal conduct by its forces
- Nearly 70% of all Ngok Dinka agriculturalists were displaced by war and Misseriya Arab herders took possession of their vacated lands in their absence
- UN encouraged the return of Dinka to Abyei in the war-devastated villages of Noong, Awuol, Nhom and Todj where they ended up being dependent on humanitarian assistance for food

“32. There are several threats to safe passage en route, notably the presence of militia and mines. While no mine incidents have been reported thus far, some of the return routes are still contaminated [...], and the threat of the militia is a very real one. Arrivals interviewed in Northern Bahr-el-Ghazal testify to the presence of militia along the route between Southern Kordofan and Northern Bahr-el-Ghazal, especially “no-man’s land”, extorting illegal taxes. [...] Allegedly, returnees encounter militia/armed men more than once along the route, and each time they are expected to pay around S.D. 1,000 (\$4) per person.” (IRC, 1 May 2004, p.10)

“Violations of rights have already been seen as populations move and as they start to resettle in communities [of the Transitional Areas]. These include looting of property, informal ‘taxation’ physical and sexual assaults, denial of freedom of movement and choice and the forced separation of families. Further protection concerns around access to land, services, justice and the most basic maintenance of order will emerge. If some of the tensions in the transitional areas do not get resolved these are bound to increase. Women and children are liable to be particularly vulnerable.” (UN, 30 November 2004, p.143)

IDPs returning to Abyei victims of serious human rights violations

“The Kiir provides a natural azimuth for refugees or IDPs moving south into the important State of Bahr El Ghazal. It is in Malual Aleu and its environs that returnees may first be welcomed into the region and provided their first sustenance packages of food, non-food and medicinal supplies. At the point of return into the south, returnees, in light of their status, may be vulnerable to illegal activities, harassments, theft of property or all-out violent attacks. Moreover, returnees fleeing already stressful situations of insecurity, physical exhaustion, hunger or disease may become the easy prey of mal-intentioned soldiers at checkpoints.

[...]

In mid-July 2004, Government of Sudan (GoS) soldiers of the Abyei Garrison beat and raped two civilian women from Malual Aleu on the outskirts of Abyei town.” (CPMT, 7 December 2004)

“Civilians, especially women, children, and the elderly, are extremely vulnerable as they travel along the lengthy all-weather road leading from Abyei Town to Banton Garrison (Abyei-Banton Road). [...]. It may appear that these incidents are isolated criminal acts. When viewed in their entirety, the overall violent criminal activity and flagrant disregard for the cultural customs of the indigenous people have created a hostile living environment in the region.

[...]

During the war the Ngok Dinka (SPLM/A supported) have suffered the most. It is estimated that 70% of Ngok Dinka have been displaced to other regions in Sudan as a result of the conflict. This displacement, and the resulting vacuum, encouraged many Misseriya Arabs (GoS supported) to move into areas that had traditionally been Ngok Dinka land. This “occupation” of traditional Dinka lands by Misseriya Arabs remains a point of resentment.

[...]

While trying to re-establish themselves socially and economically, they are confronted with two major obstacles: first, they suffer from a severe lack of economic and social support, to include adequate health care and educational opportunities; secondly, they are faced with a constant criminal threat to their safety and livelihood, that is illustrated in this report.

[...]

From August 2003 to December 2003: CPMT received nine allegations that implicated GoS militia soldiers of having sexually assaulted and raped women along the Abyei-Banton Area. One victim was pregnant at the time of the assault, and as a result of that rape, suffered a miscarriage. Three of the rape victims were young girls: aged eleven, twelve, and fourteen.

[...]

All of the women, who alleged they were sexually assaulted and raped, also claimed that they were beaten. One woman reported that the attackers (GoS soldiers) fired shots around her to stop her from struggling. Another woman stated that she was struck in the back with the butt of a rifle to stop her from struggling.

[...]

August 2003: Civilians—who purchased food/goods at the Abyei Town market—are excessively taxed by the SPLM/A upon their return to SPLM/A controlled territory.

[...]

The violent criminal acts perpetrated against civilians cited in this report, coupled with the GoS’s failure to produce significant evidence that it is applying military justice against the perpetrators and its continued lethargy in implementing control measures to eliminate the threat of further criminal conduct, highlights this as a systemic GoS malady. Contributory factors, such as idleness of military forces in these remote garrisons, apparent lack of willingness on the part of commanders to exercise control/discipline, and the increased influx of civilians, especially women along the Abyei-Banton Road, combine to create an environment conducive to criminal activity.” (CPMT, 5 February 2004, pp. 1-7)

Returnees to Western Upper Nile subject to continued killings, attacks, rape and looting (2004)

- Between April 2003 and November 2004, the CPMT reported gang rapes, looting and killings in Upper Nile and along the Bentiu-Leer-Adok Road committed by all sides
- GOS and SPLM/A committed themselves to facilitate the return of people displaced from and in Western Upper Nile by signing the February 2003 Addendum to the October 2002 MOU on cessation of hostilities
- GOS and SPLM/A committed to stop all work on Bentiu/Adok road until a final and comprehensive peace agreement

- IDPs who returned to Western Upper Nile found their villages razed to the ground, drought, and continuous fighting
- Returnees were largely dependent on humanitarian assistance for food as insecurity prevents cultivation and whatever they produce is looted by armed groups
- GoS has not attempted to punish its troops for the crimes committed in Upper Nile and along the Bentiu-Leer-Adok Road and denied allegations of rape
- GoS-aligned Militias of the South Sudan Independent Movement (SSIM) continue to commit gross human rights violations against civilians although they were initially deployed to protect them (2004)
- CPMT reports that all parties to the conflict commonly burn villages and raze IDP centres to the ground
- CPMT confirms that fighting in Western Upper Nile since December 2002 was in direct support to the GoS endeavour to complete road construction between its garrisons and oil fields

“The government and SPLA pulled back from the brink of such an escalation, and the likely collapse of the peace negotiations, by signing an “Addendum” to the 15 October 2002 cessation of hostilities agreement. [...]

The new agreement acknowledges the plight of all these IDPs and calls for their safe return, and for the international community to facilitate this. (ICG, 10 February 2003, p.1)

“The government of Sudan and the rebel Sudan People's Liberation Movement/Army have committed themselves to "effect the immediate voluntary return" of civilian populations displaced in the country's main oil-producing area, Western Upper Nile (WUN), to their homes.

A joint communique issued on Tuesday said the new measure would include those displaced within Western Upper Nile, those displaced from WUN to neighbouring Bahr el Ghazal, and all other civilians who had been displaced since the signing of the 17 October Memorandum of Understanding (MOU) on a cessation of hostilities.” (IRIN, 5 February 2003)

“There is an unmistakable pattern of looting of civilian livestock assets, which coupled with harassment and intimidation of civilians, spell grave humanitarian consequences for the IDP population in Malakal. With the few animal stocks they had left being taken away, and with the majority of them unable to access their homes to plant crops, the survival of many IDPS appears grim. Feeding and care of this growing population will now fall on the generosity of the world community through the various UN and NGO humanitarian agencies.” (CPMT, 2 October 2004)

“Since early March 2004, there has been a steady increase in military action against civilians in the Shilluk Kingdom. These actions have been characterized by the systematic destruction of villages; civilian casualties, and the displacement of thousands of villagers. In addition to the loss of their homes and property, these Internally Displaced People (IDP's) have been deprived of their livelihood.” (CPMT, 25 May 2004)

“[...] civilians that had been displaced during earlier periods of fighting ventured back into this area. Slowly, civilians gained the confidence to travel along the road and visit the local markets that had sprung up outside the GoS garrisons of Mirmir and Rubkuai. Unfortunately, due to a brutal drought, the continuous fighting in this region and the complete razing of numerous villages by GoS forces, there was little to no harvest in this area during 2002. Upon their return to this region, civilians found themselves increasingly dependent on grain/food sold in the aforementioned markets, or on relief provided by Non-Government Organizations (NGO's) food distribution programs—quite often conducted outside these very same markets.

[...]

The area along the Bentiu-Leer-Adok Road between Mirmir and Leer saw heavy fighting from the end of December 2002 until the end of March 2003 [...]. This fighting was in direct support of the Government of Sudan's (GoS) designs to complete the all-weather road from Rubkona to its garrison at Leer in the south, and ultimately, to its garrison at Adok on the Nile River.

[....]

Since the beginning of April 2003, the CPMT has received numerous allegations of rape, gang rapes, looting, shootings and killings along the Bentiu-Leer-Adok Road. Aside from several allegations of looting, the overwhelming majority of these allegations are leveled at the GoS forces based at garrisons along this road.

[...]

This report will also cite further growing hardships faced by civilians along the road as they are looted of food (purchased in Mirmir and Rubkuai markets) by the SPLA upon returning to their homes in SPLA held territory.

[....]

The cessation of hostilities agreement between the GoS and the SPLA has been a stimulus for the return of many civilians to the area with the hope of rebuilding their lives. However, as clearly illustrated, the looting, attacks, rapes, shootings and killings of civilians continue to destabilize the area. These criminal acts conducted by GoS soldiers combined with the looting conducted by SPLA create an environment of fear and anxiety in a population that has already lived through countless hardships. These acts make it more difficult for communities to reestablish their normal cultural patterns, if they attempt to return at all.

[...]

This exhaustive investigation clearly signals that despite the fact that civilians are returning to their homes in the vicinity of Bentiu-Leer-Adok Road, they continue to be victims of violent acts perpetrated by both parties. While both the GoS and the SPLM/A continue to ignore the commitments they made when they ratified the agreement to protect non-combatant civilians, the habitual nature of the criminal acts on the part of GoS soldiers is particularly heinous in as much as these men are members of a regular armed force of a sovereign nation; a nation which is signatory to the Geneva Convention and Law of Land Warfare.

There is little evidence to indicate that GoS commanders are making a good faith effort to discipline soldiers for crimes committed against civilians. In fact, just the opposite is the case; the GoS denied all allegations of rape and made no attempt to demonstrate to the CPMT that it sought to control the actions of its soldiers based in garrisons along the Bentiu-Leer-Adok Road.” (CPMT, 19 August 2003)

“Beginning 31 December 2002 military activities occurred in Western Upper Nile, which immediately drew the attention of the Civilian Protection Monitoring Team (CPMT). Reports in news media and by various non-governmental organizations (NGO) indicated deliberate attacks against non-combatant civilians and civilian facilities in a number of locations south of Mankien in the west, and proximate to planned Government of Sudan (GoS) oil field all-weather access roads in the east between Bentiu-Adok.

[...]

In December 2002 and January 2003 the GoS mounted a major offensive in the Western Upper Nile (WUN) that resulted in abductions and death of civilians, looting and destruction of villages and displacement of large numbers of non-combatant civilians in the WUN and contiguous to the “oil road” along the Bentiu – Adok axis.

[...]

Leel is an IDP center with an estimated 8,000 people who had been previously displaced from their homes by fighting to the north. Four different Nuer tribes, displaced by previous GoS-associated actions to the north, are crowded into Leel with little food and a two-hour walk to a dwindling water supply.

[...]” (CPMT, 15 February 2003)

“Due to turmoil between the GoS and GoS-aligned militias, the area of Western Upper Nile region of Southern Sudan has seen major conflict among the factions of the South Sudan Defense Forces (SSDF). These armed militia groups, with the support of the GoS army, have occupied parts of the Western Upper

Nile since the mid-1980's. Ostensibly, the occupation was initiated to protect the local populous from the SPLM/A. In practice, the militia has used the civilian population as a source of personal aggrandizement.

[...]Even after the Protection of Non-Combatant Civilians Agreement of March 2002, under which this investigation was conducted, and the Agreement of Understanding of September 6, 2003 between the GoS and the SSDF militias [...] the areas of Bentiu and Rubkona have been demonstrably wracked by violence.” (CPMT, 14 January 2004)

“As a follow up to U.S. Senator Danforth’s initiative, a US-led Civilian Protection Monitoring Team (CPMT), comprised of both civilian and military staff, has been established and sent to the ground, both in SPLM/A- and Government-controlled areas to investigate some of the human rights violations occurring in Western Upper Nile. Since its operationalization, the CPMT reported on a number of breaches of the agreed ceasefire and confirmed the occurrence of deliberate attacks against non-combatant civilians and civilian facilities in a number of locations proximate to planned Government oil fields all weather access roads in the east of Western Upper Nile. Those attacks were conducted by Government allied militias in the past two-three months. The team concluded that many thousands of civilians have been forcibly displaced from their villages by direct military attack in Western Upper Nile. As a result, most villages have been emptied or destroyed altogether. [...] the team pointed to the fact that the practice of burning villages is common to both SPLM/A and Government-backed militias.” (UNCHR, 25 April 2003, p.3)

Protection concerns in IDP camps in Khartoum (2004)

- IDPs in camps feel unsafe and distrust their tribal leader who some accuse of being informers of the authority
- IDPs in Khartoum camps caught discussing politics are often arrested
- Five students were killed by the police after discussing with newly arrived Darfurians in a Khartoum IDP camp and the displaced were forcibly relocated early 2004

“23. A general sense of personal insecurity prevails in the camps. Besides the presence of small arms and the occurrence of inter-tribe conflicts, many IDPs have lost trust in their tribal leaders, whom they claim are bribed and serve as informers for the authorities. In the North, some believe that the camps have become a sub-platform for the divide-and-rule policy, wherein individual chiefs communicate directly with the GoS authorities, rather than via the elected Popular Committee. The IDPs claim that, by turning tribal leaders into ‘political agents’, the traditional security network has been eroded, reaching a point where people in the same community no longer trust each other.

24. Reportedly, the police and security forces frequently break up groups and question the participants on their discussions, sometimes arresting individual participants: “If we discuss politics during the day, we risk being arrested at the night.” According to the IDPs, surveillance of the camps is not related to protection, but rather to political pressure. Held captive by fear, few attempt to claim their rights.

25. An incident in early 2004 in the then Mayo school camp outside Khartoum (a particularly tense camp) illustrates how the lack of general security can easily escalate into great tragedy. During February and March 2004, over 3,000 IDPs arrived from Darfur to Mayo camp. On 17 March, a group of Darfurian students from Khartoum University visited the camp to speak to the IDPs. In response to their presence, the police and security forces mounted a massive intervention with teargas, stones and beatings. That night, five of the students were reportedly killed. The following day, the IDPs from Darfur were forcibly relocated and, as a result, some were separated from their children.” (IRC, 1 May 2004, p.8)

Forced recruitment and abduction main protection concerns affecting displaced children (2005)

- Serious concerns that children who are not genuine abductees are being returned to the South involuntarily, separated from their families and misinformed about situation in areas of return
- Sudan has one of the worst abduction records with 12,000 cases filed
- UNICEF and GoS established the Committee for the Eradication of Abduction of Women and Children (CEWAC) in 1999, however only 1,700 children have been reunited with their families
- 22% of the children enrolled in primary schools in Unity State were forcibly recruited during 2002 by government allied militias
- About 7,000 Dinka and Jur Luo children and women abducted in northern Bahr al Ghazal by murahleen militia since mid-1980s
- Over 17,000 child soldiers in Sudan
- SPLA and SPDF forces demobilized 9,600 child soldiers between 2000 and 2002
- A growing number of children displaced are left behind in towns while their parents return to rural areas because of lack of jobs and education facilities in towns
- About 34,000 street children in Khartoum displaced by war at risk of arbitrary arrest and abuses
- 7,000 unaccompanied children were stranded in Hamashkoreib in Kassala due to fighting in 2002
- Children sentenced to 20 years of prison for desertion were released in Bahr el Ghazal
- Children sent to GoS and SPLM/A camps in the 1990s were victims of beatings, slavery, forced military enrolment, forced islamization and other human rights violations

“A Government-backed programme whose stated objective is to free and return southern Sudanese people abducted during the civil war resumed in January 2005 despite advocacy efforts to review and modify the operation to ensure respect for the principles of voluntary return and the best interest of children. The GoS’s Commission for the Eradication of Abduction of Women and Children (CEAWC) last year (March-April 2004) delivered some 700 people said to be freed abductees to SPLM-controlled areas in northern Bahr El Ghazal. However, following interviews conducted with some of the returnees, UNICEF, Save the Children UK (SC-UK) and other international agencies, it was found out that some of these returns were not voluntary and some may not have been genuine cases of abduction. Some families were separated; insufficient resources were deployed, including food and NFI assistance and inadequate preparations had been put in place for family reunification and reintegration into their original communities in the South.” (UN RC, 15 February 2005)

“The Government of Sudan’s Commission for the Eradication of Abduction of Women and Children (CEAWC) last year delivered some 700 people said to be freed abductees to SPLM- controlled areas in northern Bahr el Ghazal. However, UNICEF and other international agencies believe on the basis of interviews and case work that a significant number of these arrivals were either voluntary nor were they genuine cases of abduction. Furthermore families were being split up and insufficient resources for tracing and planning were put into the operation, which was not coordinated with agencies on the ground.” (UNICEF, 1 February 2005)

“In early February, 764 individuals were returned by the Committee for the Eradication of the Abduction of Women and Children from South Darfur to Northern Bahr el Ghazal. Agencies on the ground report that up to 15 per cent of these were involuntary returns. Women claimed to have been forcibly moved south, having been separated from their families. Similar allegations were made and verified during previous returns organized by the Committee in April and May 2004. This issue has been repeatedly brought to the attention of Government authorities and was recently placed on the agenda of the Subcommittee of the Joint Implementation Mechanism.” (UN SC, 4 March 2005)

“121. Separation is a core-issue of child protection in Sudan, where abductions, displacement, child mobilization, disintegrated families and poverty have contributed to the separation of children from their families within the country and across national borders. Although separation is caused by several factors, abductions constitute one of the principal and more complex ones. In fact, Sudan has one of the worst records, globally, of abduction of children. At present, the Rift Valley Institute has 12,000 cases on file, of which most (but not all) are related to abductions.

[...]

124. In an effort to resolve the Bahr-el-Ghazal abductions, UNICEF and GoS established the Committee for the Eradication of Abduction of Women and Children (CEWAC) in 1999. CEWAC works with a Dinka Committee in tracing and family-reunification. However, the progress has been slow. Since its establishment in 1999, only 1,700 cases out of 12,000 have gone through the system.” (IRC, 1 May 2004, p.35)

“The Special Rapporteur was informed that no significant progress has been made on the situation of children. Reportedly, street children and juvenile justice remain areas of concern. Only two reformatories exist and children are very often detained with adults and allegedly subjected to inhumane treatment.

61. The Special Rapporteur was informed that child exploitation reportedly continues to take place, particularly in the agricultural and pastoral sectors. Families are poor and forced to send their children to work rather than to school. Agriculture keeps children far from towns and population centres, they roam in dangerous areas where they are potentially more exposed to abuses (armed conflict, banditry, etc.) while in cities the situation is reportedly slightly different, they still run the risk of becoming street children (shoe-shiners, car-washers, etc.). The Special Rapporteur’s attention was drawn to the fact that street children in hartoum are mostly IDPs. Networks that exploit them, including sexually, reportedly flourish. The Special Rapporteur deems that stronger government involvement is necessary.

62. The Special Rapporteur was also informed that forced recruitment of children in war zones has reportedly continued. He learnt that an unconfirmed number of children have been imprisoned in Bahr al-Ghazal because of desertion and sentenced to up to 20 years in prison. He was glad to learn that the Wali of Wau reportedly decided to release them based on the fact that, as minors, they should not have been recruited in the first place.” (UNCHR, 6 January 2003, p. 13 para. 60-62)

“Reports also indicate that over 22% of the total population enrolled in primary schools in Unity State were forcibly recruited during the past year by government allied militias.” (UNICEF, 30 April 2003)

“On the issue of child soldiers, in spite of some progress made on their demobilization, as previously reported, some sources reported that forced recruitment of children around 15 years of age continues to take place in conflict areas. Sources also reported that demobilized children are sometimes recruited again.

Forced recruitment is also reportedly on-going.” (UNHCHR, 12 November 2002)

“Certain long-lasting, deep-seated human rights problems will require action in 2003 whatever the situation. For example, as many as 7,000 Dinka and Jur Luo children and women abducted from northern Bahr al-Ghazal in raids by *muraheleen* militia since the mid-1980s may remain missing and there continue to be reports of new cases of abduction. Meanwhile, inter-tribal abduction is a feature of inter-community conflict involving militia in Upper Nile between the Murle, Nuer, Anuak and Dinka.

[...]

It is estimated that there are more than 17,000 child soldiers, including girls, in Sudan. Child soldiers are exposed to physical risk, abuse and neglect, including when employed behind the front line as non-combatant labourers. Over the past two years the SPLM/A has demobilised over 9,600 children. However, there are still children within the SPLA, other rebel groups, notably the SPDF, and government allied

forces, such as the *muraheleen* militia and the southern Sudanese groups forming the South Sudan Defence Force (SSDF)." (UN, November 2002, pp. 131-2)

"In a context where governance remains a fundamental challenge, progress in the promotion and protection of human rights is never linear. Achievements in one sector or geographical area can be contrasted or undermined by setbacks in another. Nevertheless, during the year over 500 abducted children and women were retrieved in western Sudan and over 300 reunited with their families, 50 of them "cross-line" in Bahr al-Ghazal. In advance of GoS and UPDF military action against the LRA, agencies and NGOs geared up child protection capacity in Juba to receive en masse persons escaping from the LRA. In the event, the mass escape never took place but during the year 20 former LRA were returned home to Uganda. The SPLA and SPDF demobilised over 8,000 child soldiers." (UN, November 2002, p.11)

"However, an alarming phenomenon has been identified. As families return, many of them are fragmenting. Particularly distressing is that many children are not returning with their families to the villages. They are staying behind in urban centres. For example there are a growing number of unassimilated children in Kadugli town, who separated as their families repatriated from Khartoum to rural areas in South Kordofan.

These children have been born and raised away from their traditional homes and have no experience adjusting and coping with, nor commitment to, this dramatically different rural, agro-pastoral lifestyle. While in some cases they are remaining behind because of a lack of sufficient services, in many other cases they are separating in order to seek other opportunities, or to maintain some degree of the lifestyle they are more adapted to. Many of them have already lost many years of education. Often parents leave them in town with relatives to attend school because facilities do not exist in the villages." (UN, 18 November 2003, Vol II, p.332-333)

"It is estimated that in the settlements around Khartoum alone, there are up to two million IDPs, many of them women and children. A recent study of an unplanned settlement in Khartoum found that 40 per cent of the inhabitants were women and 40 per cent children. [...] Children often have to be left alone and unsupervised while their parents seek work. Indeed, many street children originate from displaced families. There are now an estimated 34,000 street children in Khartoum." (Save the Children/etc, 1 May 2002, p.22)

"A correspondent of the London-based Saudi daily *al-Sharq al-Awsat*, who toured the front with other foreign journalists a week after hostilities resumed, reported that the fighting had stranded 7,000 unaccompanied children and preteenagers in Hamashkoreib, including resident students in that town's renowned Koranic schools. The fighting had displaced entire villages." (ICG, 14 November 2002, p.7,8)

"Julianna Lindsey, Projects Officer at UNICEF, reported that displaced children were frequently separated from their parents and communities and therefore faced particular danger. She noted that although some orphans had been taken in by local communities, they frequently faced discrimination and a lack of educational opportunities. In the event of return, Lindsey cautioned that differences in language, culture and experience could generate increased discrimination." (Brookings/etc, 25 November 2002, p. 9)

"According to, Human Rights Watch, the Sudanese government also has been particularly guilty of human rights violations against internally displaced children. Human Rights Watch says that the government removes displaced children from their families against their will, forces them to undergo Islamic religious training, and makes them adopt Arab names, thus suppressing their heritage. As if these abuses were not enough, many southern and Nuba children have been forced into unpaid labor and even slavery. These findings were reinforced in an article by reporters from the *Baltimore Sun* who travelled to the Sudan undercover and demonstrated that it was possible to buy southern Sudanese children. While the government vehemently has denied that forced labor and slavery exist in the Sudan, it has refused the assistance of international organizations in investigating such allegations." (Ruiz 1998, p. 156)

"Internally displaced children are particularly vulnerable to arbitrary arrest. In 1994 official figures estimated that there were 25,000 "vagrant" children in and around Khartoum. In September 1992 the government began to implement a policy of rounding up "vagrant" children and taking them to special children's camps.

Southern Sudanese and Nuba children are often seized by police if they are found on the street without an accompanying adult. They may be held for some days in police stations before being taken to the camps. There are reports of police beating such children.

In 1994 the government admitted that there were camps for children in Khartoum, Kosti, Geneina, Abu Dom and Durdib. Children are reportedly beaten if they try to escape and made to crawl naked on the ground. Reports suggest that there are other camps in remote areas closer to the war zones where the treatment of children is even worse. For example, children were allegedly shot while trying to flee a camp at Abu Dikiri on the fringes of the Nuba mountains in April 1995.

Some children's camps are reported to be run as schools for the teaching of Arabic and the Qur'an, although most of the children are non-Muslim. Some boys in the camps have been forcibly recruited into the army or the PDF.

The SPLA also runs children's camps where youngsters are directed into the armed forces. It seems, for example, that over 1,000 children at Omere camp were recruited to the SPLA in early 1995.

Children have also been abducted from the war zone and taken to the home areas of their captors in Darfur and Kordofan. Some are sold back to their families. Others are taken into domestic slavery, cleaning homes and looking after livestock. Children who try to escape run the risk of severe beatings and even death. In late September 1996, four Dinka boy slaves who escaped during inter-communal fighting between Rizeiqat and Zaghawa cattle nomads were hunted down by their "owner" and shot dead.

While the law forbids abduction and slavery _ the government denies that slavery exists _ internally displaced people often dare not attempt to free their children. In September 1996 Maiwen, an internally displaced Dinka living in al-Obeid, located his 11-year-old daughter, named Acol, in South Kordofan. When he tried to claim her he was beaten and tied to a tree for three days. His daughter, and her "owner", disappeared. In a few cases police and local courts have intervened to free children but Amnesty International does not know of a single case where a kidnapper or slave-holder has been prosecuted." (AI 20 June 1997, chapt. 3)

Women and girls displaced and abducted by armed groups are often sexually abused (2004)

- Rape of IDP women when they go fetching water or collecting firewood are common
- Many IDP women had to resort to prostitution in order to survive
- GBV go unreported or the complaints are totally ignored
- The lack of women gynecologists undermines the defense of women's rights
- Nearly half of IDP households are headed by women compared to 25% nation-wide
- Gang rapes of girls and women by militias and GoS soldiers in oil areas commonly reported by the Civilian Protection Monitoring team in 2003
- No progress made to prosecute those guilty of abducting or raping
- Displaced Nuer women had been raped up to four times by militia-men
- Women and girls face abduction and sexual slavery

- IDP women from the south make up 95% of prison population in Khartoum on charges of beer-brewing and prostitution

“However, sexual violence has by no means ceased, nor triggered any serious intervention on the part of the authorities. Sexual violence is common occurrence in rural areas, and there are still reports of IDP women searching for firewood or water in remote areas in the garrison towns being subjected to rape by individual soldiers. While rape and prostitution appear more prevalent in and around IDP camps, particularly in Juba, prostitution as a means of survival also occurs in Khartoum city.

143. Women and young girls do not report GBV for fear of repercussion and stigmatization. While isolated complaints have been submitted to the CPMT, most cases of GBV go unreported. This can partly be explained by the lack of counseling, referral system and mechanisms for accountability. In the absence of educated females, male professionals run most NGO health-clinics, and there is no access to gynecologists or health officials trained to handle clinical management of sexual violence. [...] An illustration is that of three IDP women in Wau, who recently, reported rape by soldiers to the health facility in their camp. While the women received medical care, their complaints were ignored.” (IRC, 1 May 2004, p.39)

“As a result, women are one of the most vulnerable groups in the Sudan: the percentage of female-headed households (FHH) in conflict areas and among IDPs is estimated at between 40%-50% compared to the already high 25% national average.” (UN, 18 November 2003, p.24)

“During the months of January and February 2003, the CPMT received several reports of gang rapes of women and girls by SSIM militia soldiers during attacks on villages along the southern end of the oil road. There were also allegations that SSIM soldiers intentionally killed civilians, in particular, the elderly, at close range during these attacks.

This pattern changed in March 2003. [...] Women are now reportedly being raped by small numbers of GoS soldiers, not SSIM soldiers, coming to their homes or attacking them as they walk near the garrisons.” (CPMT, 12 June 2003)

“Lawrence Otika, Resettlement Officer for Catholic Relief Services, reported that women made up an overwhelming percentage of the internally displaced. Rape and other sexual violence were both a cause and a consequence of displacement for these women. Unfortunately, rape was rarely discussed in Southern Sudan and women were often unwilling to report that they had been raped for fear that they would not be able to marry. Soldiers and militia members knew this and took advantage of the culture of silence. Although there was little data on the issue, a recent study found that many displaced Nuer women had been raped as many as three to four times by militia members. Women and especially girls also faced abduction into sexual slavery by armed forces such as those of the Lord’s Resistance Army, which frequently entered Sudanese territory. Women’s traditional tasks, such as gathering firewood and cultivating crops, tended to place them at increased risk of rape in a conflict environment. Avoiding such activities made subsistence impossible. Moreover, rape brought with it not only physical and emotional trauma, but also a high risk of transmission of HIV, as was confirmed by a recent study carried out by Médecins Sans Frontières in Upper Nile.” (Brookings/ect, 25 November 2002, p. 9)

"In the current war situation, women are also threatened by the immensely heightened levels of personal violence and the significantly increased risk of rape. There are reports that in some areas rape is used as a weapon of war by both sides to the conflict. In a recent UN mission in the Nuba Mountains, women report that collecting water from the water points has become a hazardous chore as soldiers and other armed men await their arrival and rape and sometimes abduct them. Lack of awareness about the increased incidence of violence against women during the various armed conflicts is evident. Often shame prevents women from revealing their rape and this leads to negative and often life-long psychological effects on those affected women." (UN November 1999, p.50)

"The testimonies of abducted women and children contain descriptions of the ill-treatment and the forced work to which they were subjected, usually involving cooking, cultivation, tending animals, collecting firewood, washing clothes and other domestic chores. Women's and girls' testimonies cite rape, forced "marriage" and other sexual abuses amounting, in certain cases, to sexual slavery. Many of those who were freed were either pregnant or gave birth to children fathered by their captors." (UN Commission on Human Rights 17 May 1999, para.64)

"Of particular concern to the Special Rapporteur was the extremely precarious situation of displaced women and children, in the camps or on city streets. In particular, women lack adequate means of survival for themselves and their children. Many have no choice other than to engage in practices such as beer-brewing (traditional in the south, but strictly forbidden in the north under Shariah law) and prostitution. Displaced southern women charged with these crimes make up 95 per cent of Khartoum's Omdurman Prison population. Another alarming feature is the imprisonment of girls as young as 10, serving sentences for petty crimes, such as theft. The legal situation of these women and girls was examined during the visit to the prison by the Special Rapporteur's team." (UN Commission on Human Rights, 17 May 1999, paras. 76-80)

" In any event, the result is often heavy fines and very hard imprisonment, sometimes children incarcerated along with mothers, further family break up and destitution all round.

The camps themselves are home to rough and ready church buildings, and it is these which often face demolition at the hands of the State authorities. Our information is that, indeed, at the local level, there is a general anti-Christian bias which affects chances of finding a job or being given a proper house space, which the authorities are providing for the Northern "squatters" who come into the city. Camps have Popular Committees which appear to serve as the government's mechanism for informing the people when necessary, and for being informed at all times. There are traditional chiefs, whether the people are Nuer or Dinka, and sometimes they are mixed, but the chiefs seem to have little authority.

In addition to the camps such as El Bashir, Salem, and Mayang, many IDPs are reduced to becoming squatters, erecting rude shelters where they can, and, of course, being regularly subject to demolition. But still they arrive in Khartoum." (Harker January 2000, pp. 44-45)

"Women displaced to the 'peace villages' and garrisons are vulnerable to rape and sexual exploitation by soldiers and PDF personnel. Few women are prepared to reveal that they have been raped; beyond the sense of personal degradation, rape is considered a social disgrace in Sudan. Many southern Sudanese and Nuba women use the phrase "taken as wives" by soldiers and PDF members to describe their ordeal.

[...]

In their home areas, women from southern Sudan and the Nuba mountains can earn money from selling alcohol. However, under the Sudanese penal code, brewing and consuming alcohol are illegal. Internally displaced women often have few other options. Nyandeng Makwak, a Dinka woman imprisoned for brewing beer, has described her experience. Policemen searched her house late at night, found that she had alcohol and demanded a bribe. She was unable to raise the amount and so she was arrested. When she refused to sleep with the police officer who arrested her, she was taken to a Public Order Court and sentenced to six months in jail and a fine after a summary and unfair trial. Although defendants have a theoretical right to defence counsel, trials are often immediate, leaving no time to find a lawyer, and internally displaced people rarely have the means or the contacts to get legal representation." (AI 20 June 1997, chapt. 3)

Indiscriminate aerial bombing on IDP camps, relief sites and people fleeing (2003)

- Latest GOS offensive in the oil area included abduction, gang rapes, ground assaults, helicopter gunship, destruction of relief sites and burning of villages (Dec-Feb 2003)
- Pro-Government militias given power to forcibly recruit Nuer IDPs and arrest them (Jan 2003)

- Less than one week within the signing of the Machakos Protocol (Jul 2002), GOS launched an offensive against civilians in Western Upper Nile
- Gunship helicopters attacks over Mayom killed about 300 and displaced about up to 100,000 civilians (Jul 2002)
- Over 5,000 IDPs in Timsahah forced to flee again after intensified GoS bombings in Bahr el Ghazal
- Intense air strikes during 2001 in Equatoria, Upper Nile, Bahr al Ghazal including IDP camps and relief centers despite flight clearances

“The offensive from late December until the beginning of February was an extension of the government’s long-time strategy of depopulating oil-rich areas through indiscriminate attacks on civilians in order to clear the way for further development of infrastructure. Eyewitness accounts confirm that the tactics included the abduction of women and children, gang rapes, ground assaults supported by helicopter gunships, destruction of humanitarian relief sites, and burning of villages.[...] A senior Sudanese civil society member concluded: “The Nuer militias are the most potent threat to human security and stability in the South, regardless of whether peace is concluded or not.” (ICG, 10 February 2003, p.1)

“Some sources reported that IDPs, particularly from Unity State, have been facing serious problems during the past two months, because of a pro- Government militia led by Paulino Matiep who reportedly has been given the power to arrest Nuer, detain them in a house in Khartoum and/or forcibly recruit them to be sent to war zones. This has reportedly led to inter-tribal clashes and shooting.” (UNCHR, 6 January 2003, p.10)

“The cease-fire has broken down completely in the oil-fields of western Upper Nile, where GoS has launched major offensives in the areas of Tam, Mankien, Leer and Leal, with many villages destroyed and civilians killed or displaced. Leal was attacked shortly after a visit by a UN Operation Lifeline Sudan (OLS) aircraft, and OLS has noted that this is not the first time this month that a location in western Upper Nile has been attacked after such a visit. An NGO working in Mayom County reports that there seems to be a deliberate attempt to attack relief sites, thereby cutting local civilians off from humanitarian assistance. GoS claims that the attacks are just local militia activity but there is little doubt that these militia are under GoS control and are supported by regular forces, including helicopter gunships. It is thought that GoS garrisons along the “oil road” have been strengthened. Cdr Peter Gadet defected back to GoS with some of his senior commanders but few troops, and there are reports of forced recruitment in the Bentiu area.” (SFP, January 2003, p.5)

“Heavy fighting continued in southern Blue Nile after GoS captured the town of Midil. Civilians have deserted Yabus following aerial attacks. Antonovs are now dropping leaflets calling on the citizens of southern Blue Nile to have nothing to do with the “southern rebellion” and to go to Damazin to join GoS in its quest for peace in Sudan. The tracts say southerners have betrayed the country and Islam to the enemy.” (SFP, October 2002, p. 4)

“Aid agencies in southern Sudan have reported that, in September 2002 alone, there has been government bombing affecting civilians in Mundri (11 killed, 10 wounded in a displaced persons camp) and Yei in Western Equatoria; Torit and Kapoeta in Eastern Equatoria; Wunrok (13-year-old boy killed, seven wounded) in Bahr El Ghazal; Atar (nine killed) in Upper Nile; Gar, Kawer and Tanger (Western Upper Nile); Lualdit, Kanawer, Ajajer, Padak and Matiang (three killed) and Lui (13 killed in a cattle camp, including four children), in Jonglei; Ganga in Abyei county (family of six killed). This list does not include all bombing incidents in the war in September, but clearly represents an escalation of aerial bombing.” (HRW, 28 September 2002)

“Less than one week after signing the Machakos Protocol, GoS launched a large offensive in western Upper Nile, presumably as part of its scorched earth campaign aimed at clearing civilians from block 5a to encourage Lundin and OMV to return. Ground forces, Antonov bombers and helicopter gunships were

used. [...] This offensive began soon after GoS had granted a 5-day window for the UN to bring relief supplies into the area, thus encouraging civilians to return to the area, and also ensuring plenty of relief supplies for the attacking forces to loot.” (SFP, August 2002, p.5)

“After the initial displacement in June, over 5,000 IDPs were forced to move out of Timsahah, 144 km north of Raga, where they had initially sought safety, when the Sudanese government declared it a military operations area.

[...]

The IDPs were also endangered by intensified aerial bombing by government forces in Bahr al-Ghazal (including Raga, Malwal Kon and Mangar Angui), they said.”(IRIN 22 January 2002)

““Our sources on the ground estimate something between 200 and 300 were killed by helicopter gunships, ground forces, horsemen and militia” during a three-day attack on the county of Mayom, in Western Upper Nile, said Michael Chang, the regional coordinator of the Sudan Relief and Rehabilitation Association, the humanitarian arm of the SPLA.

Chang added that Mayom's entire population, estimated to number between 80,000 and 100,000, had fled to neighbouring counties and that others had been abducted with their cattle..” (AFP 30 July 2002)

“Sudanese government military aircraft continue to bomb civilian and humanitarian targets throughout southern Sudan and the Nuba Mountains.

[...]

The presence of UN or other humanitarian agency relief personnel is no deterrent to Sudanese government bombing. On February 22, for example, Padit in Upper Nile Province was bombed while the World Food Program (WFP) was preparing an aerial food drop there. Such food drops attract civilians, who are the targets of Khartoum's bombing campaign. In this instance, three bombs reportedly struck the food-drop zone and a fourth fell within 50 meters of a WFP compound.” (USCR 16 March 2001)

“There were also four attacks in Upper Nile (Juaibor, Thokchak, Padit and Maiwut) during July, they added. Each side has accused the other of targeting civilians displaced by fighting in Western Bahr al-Ghazal since late May. In all, there were almost 100 air strikes in the first six months of the year, with attacks on Bahr al-Ghazal, in particular, intensifying in late May and through June [...]” (IRIN-CEA 3 August 2001)

“According to WFP, on October 5, 6 and 8, GOS Antonov military aircraft bombed the village of Mangayat, western Bahr el Ghazal, at the same time as scheduled U.N./OLS WFP emergency food airdrops were taking place to a population of more than 20,000 displaced civilians from Raga. This is not the first time that the GOS has bombed a humanitarian flight that it had cleared. In early June, a similar incident occurred when the GOS bombed the village of Bararud, northern Bahr el Ghazal, just as a U.N./OLS WFP Hercules aircraft was preparing for a humanitarian food airdrop.

On June 11, 2001, the GOS announced that it was resuming aerial bombing of targets in southern Sudan, including the Nuba Mountains. This statement came just 17 days after the GOS announced that they would suspend all aerial bombings in the South.”(USAID 10 December 2001)

“The United Nations World Food Programme today strongly condemned the bombing and subsequent death and injury of civilians living in Akuem, southern Sudan, where the Agency had just finished distributing food to 18,000 people suffering from drought and insecurity.” (WFP 13 February 2002)

Famine and displacement used as weapons of war in Sudan (2003)

- ICG argues that famine not a by-product of war but a deliberate objective of GOS carried through relief manipulation and access denials
- ICG argues GOS rationale that enfeebled displaced southerners will not be able to support the insurgency
- Displacement of populations to attract humanitarian relief where military troops are in need have been a war tactic used by both GoS and SPLM/A

“Instead of adopting a “hearts and minds” strategy to peel away SPLA popular support, the government has consistently targeted the “stomachs and feet” of civilians. By actively encouraging their displacement and steadily undermining their ability to feed and support themselves, including by destroying livestock, the government has sought to leave civilians in broad swathes of eastern and southern Sudan as vulnerable as possible. Famine in the war-torn regions is not a by-product of indiscriminate fighting but a government objective that has largely been achieved through manipulation, diversion and denial of international humanitarian relief. The calculation seems to be that a dispirited and enfeebled population will be unable to assist the insurgency. However, this has done little to persuade southerners that there is any place for them in a Sudan governed by the current leadership in Khartoum, and it poses a direct challenge to the international community’s responsibility to protect innocent civilians from the worst excesses of armed conflict.

[...]

“The government has a consistent record of contravening the Geneva Conventions, the Tripartite OLS Agreement of 1994, the 1999 Beneficiary Protocol of Operation Lifeline Sudan¹⁰ and the recent Nuba Mountains agreement. Khartoum continues its simultaneous policy of launching offensives to depopulate the oilfields while blocking relief access to displaced and war-affected civilians. Despite this clear and persistent infringement of international humanitarian law and a host of other relevant agreements, the international community has remained largely silent at senior policy levels, though it has taken up the issue more vocally in other countries such as Iraq and Bosnia. Most of the protest about the use of food as a weapon has come from the humanitarian community, particularly from U.S. Agency for International Development chief Andrew Natsios. Most of the practical engagement on the access issue has been left to the UN Special Envoy, Ambassador Tom Vraalsen, while the donors held behind-the-scenes meetings in Geneva in an effort to craft common positions. General Sumbeiywo, who brokered the MOU and is now pressing for its extension, is also playing a major role.

At least until recently, however, the silence of and selective enforcement from the international community generally emboldened the government of Sudan to continue using food as part of its military strategy of weakening the SPLA and its population base. As long as its manipulation elicits only occasional verbal condemnation from the Western donors, Khartoum will have little incentive to change. Both the government and the SPLA would then inevitably approach international guarantees included in a peace agreement with great suspicion.

[...]

“Although the government is guilty of the majority of humanitarian related crimes, the SPLA cannot be seen as an innocent bystander. SPLA abuses of food policies and manipulation of humanitarian access to southern civilians during the first decade of the war has been well documented. Abusive policies included the persistent stealing of food and cattle from civilians, forced unpaid civilian labour on SPLA farms, taxation forcibly levied on civilian goods (including relief supplies) and cattle, diversion of humanitarian relief supplies to the military, and the displacement of civilian populations in vulnerable locations in order to draw more relief supplies. Abuses of humanitarian assistance have been less frequent in the last few years, but the insurgents regularly tax relief supplies in the areas they control. Internal fissures within the organisation also continue to disrupt aid activities. A recent trend of desertions from the SPLA in Equatoria led to the freezing of humanitarian operations in some locations. For example, Yambio was temporarily evacuated of humanitarian workers at the beginning of October following repeated attacks on the UNICEF compound by deserters. [...] The SPLA also has used the provision of aid to manipulate population movements and patterns of displacement.” (ICG, 14 November 2002, p1,4, 10, 11)

IDPs relocated into 'peace villages' and 'production' sites since 1989

- In 1990 the GOS resolved to relocate and repatriate over 800,000 IDPs to "areas of origin" and to "areas of production" in Upper Nile, Bahr el-Ghazal, Darfur, Kordofan, and Central State
- Reports of close linkages between GoS's economic development policies, control over strategic territories and forced displacements (1996)
- 400,000 people in the Nuba Mountains SPLM/A-controlled territories are cut off from the rest of Sudan
- GoS abducted and relocated IDPs from Nuba areas contested with SPLA into "Peace villages" in government controlled territory
- 'Peace Villages' are located close to government garrisons and access restricted to outsiders
- 'Peace Villages' are located close to intensive export agricultural schemes and provide cheap labour pools
- Reported that blockades and starvation used to force people out of the Nuba Mountains
- Sixty percent of the 173,000 IDPs relocated to "peace villages" were war-affected Nubas by 1999
- Crop production in 'Peace Villages' barely reaches subsistence levels and health, water and sanitation services are inadequate

"A major impact of war-induced displacement has been the creation of an expanded pool of labour in the North. Since 1989, one element of GOS policy has been the resettlement of war-displaced in "production" sites [...]. In August 1990, the Council of Ministers, announced in Resolution 56 its determination to eliminate the problem of displacement within one year. This was to be accomplished both through repatriation of over 800,000 displaced to "areas of origin", and through their relocation to "areas of production" in Upper Nile, Bahr el-Ghazal, Darfur, Kordofan, and Central State[...]. The stated rationale behind relocation was to reduce dependency on relief. The displaced were expected to work as labourers on production projects, including mechanised farming schemes.

[...]

Upper Nile State in particular has been a destination for relocated peoples. This is likely linked to the fact that, following the signing of a peace charter with the Shilluk, the GOS and the National Development Foundation have invested in the development of Upper Nile, and especially in the area of commercial agriculture.

[...]

[T]he UN and INGOs have refused to cooperate with the GOS on such resettlement programmes, due to concerns over the voluntary nature of relocations, and concerns that such programmes were intended to utilise the war-displaced as a cheap agricultural labour force [...]" (Hendrie et al 1996, pp. 191-192)

"In this regard, the Review Team found an uncomfortable connection between the GOS's economic development policies with regard to agriculture, its policies concerning the war-displaced, and its assertion of control over land in the context of internal warfare. [...]"

The emphasis that the GOS has placed on mechanised agriculture as opposed to subsistence production fits well with the creation of "peace villages", where war-displaced populations are moved to mechanised farming schemes to act as either producers or wage-labourers. These policies are justified by the GOS on the basis of promoting self-sufficiency among the war-displaced, and of promoting a policy of "Salaam min al Dakhal" or "peace from within". It is in the context of this kind of "development" agenda by the GOS, which has been accommodated by OLS agencies, that the use of humanitarian relief to promote self-reliance needs to be analysed." (Hendrie et al 1996, pp. 185-186)

"The NRRDO said that an estimated 400,000 people remaining in SPLM/A-controlled territory in the Nubah Mountains had been effectively cut off from the rest of Sudan. Over the last year, it said, Sudanese government forces had increased their military targeting of these people and abducted many, taking them to

"peace camps" in government-controlled territory. Houses, farms, food stores and livestock had been "systematically destroyed", and over 50,000 people had been displaced, many for the second or third time, according to the organisation. Poor rains across the region had exacerbated the situation, and 33,000 people had been unable to harvest any crops this year, it added."(IRIN-CEA 22 June 2001)

"The government regards controlling the internally displaced as vital. Since 1992 it has organized the systematic clearance of whole Nuba communities from areas contested with the SPLA into so-called 'peace villages', often close to garrisons. Access to outsiders is restricted and some people who have tried to escape have been shot dead.

Many 'peace villages' are sited close to intensive mechanized agricultural schemes growing crops for export. These schemes -- a key element in the government's economic development program -- rely on a supply of cheap labour. An official review of Operation Lifeline Sudan, the UN emergency relief operation for the war-affected populations of Sudan, has pointed out "an un-comfortable connection between the Sudan Government's economic development policies with regard to agriculture, its policies concerning the war-displaced, and its assertion of control over land in the context of internal warfare." (AI 20 June 1997, "Sudan: abuse and discrimination")

"Not even included in the southern famine total were the approximately 400,000 people of the SPLA-held areas of the Nuba Mountains, located in the center of Sudan. There the government continued its efforts to starve civilians out of rebel-held areas into government 'peace villages.' Army troops and Nuba collaborators captured and relocated or killed civilians. They looted and burned villages, animals, and grain. A permanent government blockade, in place since the beginning of the war, barred all U.N. relief operations and even traders from the rebel areas of the Nuba Mountains. A private assessment in March estimated 20,000 civilians there were at risk of starvation." (HRW 1999, p. 75)

"GOS controls most of the [South Kordofan] State, Estimated total population said to be around one million persons, about 20 percent out of them living in Rebel-held areas. There are estimated to be seventy-two (72) peace villages with an estimated population of 173,000. Sixty percent of the inhabitants are estimated to be war-affected Nubians [Note that this group should correctly be referred to as "Nuba" or "Nubas"]. Forty-one (41) of these villages, and 105,000 of the population, have been identified as most vulnerable. Crop production in peace villages barely reaches subsistence levels and is constrained by insecurity and the lack of access to fertile land. Health services are generally very poor and there is inadequate water and sanitation." (UNHCU 11 June 1999, p.5)

"Some 60,000 Nuba people became newly displaced during 1997-98, according to one report. Sudanese authorities refused to allow UN workers to enter rebel-held areas of the Nuba Mountains to assess reports of serious humanitarian needs there, despite earlier government promises that it would allow access for such studies. Unidentified attackers ambushed and killed three local aid workers in central Sudan in June." (USCR 1999, p.92)

Freedom of movement

Authorities in Darfur prevent IDPs to seek protection in some towns and forcibly relocate people to unsafe areas (2004)

- IDPs who sought refuge in towns have at times been repelled by government forces to go back to their villages or stay in unsafe areas
- IDPs in Greater Darfur are commonly prevented to move freely, prevented from seeking protection towns or moving out of towns

- Road blocks prevented IDPs to go back to their village in Shoba to bury their dead and assist the injured
- About 3000 IDPs fleeing to Nyala town were said they would receive humanitarian assistance only if they returned back to their villages, which were still prone to attacks
- In January 2004, government authorities closed Nyala camps after trying to forcibly relocate people to other camps situated in unsafe areas
- 90% of the camp population fled to escape forcible relocation and MSF was prevented from distributing water to the remaining IDPs
- Humanitarian agencies are concerned that the GoS is deliberately directing food into government-held towns to encourage people to move there and weakening the rebels' support-base

“Those who have sought refuge in towns in Darfur have at times been repelled by government forces or been forced to go back to their villages. Amnesty International has received credible and concordant reports that those displaced within Darfur have been harassed and denied protection by the Sudanese army, the Janjawid or the local authorities.

Scores of civilians fled to **Kabkabiya** town between June and August 2003. Reports alleged that 300 villages had been attacked or burnt to the ground in the area. Many displaced were reportedly living in the open or in the local school in Kabkabiya, having very little or no access to humanitarian aid. For instance hundreds had fled after an attack on **Shoba**, a Fur village situated 7 km south of Kabkabiya on 25 July, by armed militia wearing government army uniforms, in which at least 51 Shoba villagers, including many elders, were killed. They were reportedly prevented for two days from returning to Shoba, to assist the injured and bury their dead, by a road block organized by government soldiers. In December 2003, internally displaced persons camps around Kabkabiya were reportedly attacked by the Janjawid.

Thousands of civilians fled Kutum at the beginning of August 2003 and took refuge in surrounding villages or unknown places or tried to reach El-Fasher, the capital of North Darfur, situated some 80 km south-east of their town. Although a few were said to have reached El-Fasher, most were reportedly stranded in Kafut, a village halfway between both towns, because the Sudanese army stopped more civilians from taking refuge in El-Fasher. Civilians were reportedly living under trees, without any means of subsistence and were in desperate need of food, shelter and clothing, until a preliminary assessment of their conditions was allowed by the Governor of North Darfur.

[...]

Some 3000 persons were said to have fled closer to Nyala town in places called Diraige and Al Nil. The local authorities allegedly put as a condition for assistance to them that they return back to their villages, even though these had been burnt and were located in insecure areas prone to attacks.

[...]

[Relocations]

On 15 January, the local authorities in Nyala reportedly closed camps where persons internally displaced by the conflict were living around the town, after attempting to forcibly move them to other camps situated some 20 kilometres away from the town [...]. These other camps are reported to be situated in areas unsafe because of the ongoing fighting and this would be the reason why the displaced did not want to be relocated there, fearing for their own safety. Moreover, these new camps are reported to be less accessible to humanitarian agencies present in Nyala and to be ill-equipped in water, food, shelter and latrines to host people. The forcible relocation of displaced people contravenes the provisions of international humanitarian law.” (AI, 3 February 2004, p.27-8)

“This relocation started yesterday (January 14) when Sudanese authorities arrived at the camps and began the forced transfer of people by trucks to the new sites. This operation was suspended later in the day when, to escape the intended relocation, a number of the displaced fled in panic.

Amongst those who fled were families with severely malnourished children who had been under the care of MSF and did not arrive for their treatment. MSF had almost 30 children in these two camps receiving

treatment for malnourishment. This morning, when Sudanese police and other authorities arrived, the camps were up to 90% empty, the population having already fled. MSF teams were prevented from distributing drinking water to the people who remained. For the second consecutive day, some malnourished children have not been able to receive the vital care their condition demands.” (MSF, 15 January 2004)

“The authorities are planning to move the displaced away from Nyala, so expenses are being kept to a minimum.

[...]

While local authorities insist the process is voluntary, the Intifada inhabitants say they are being pushed away from Nyala town, because their presence is "embarrassing" for local officials. Too many visiting officials have already seen the conditions, they say.

They would rather stay close to the town, which is safer and where they can do odd jobs to survive.

[...]

In northern Darfur, local authorities have started a similar process, dubbed a "mobilisation programme", to move the displaced back to their homes.

[...]

Over 1,000 families have already been moved away from El Fashir to government territory around Korma.

QUESTIONABLE MOVEMENT

Despite the assurances from local authorities who insist the situation in both northern and southern Darfur is calm and peaceful, humanitarian sources fear that the movement of the IDPs could be politically motivated and involuntary.

"I am not satisfied that the movement of IDPs is entirely voluntary," said Mukesh Kapila, the UN Humanitarian Coordinator for Sudan.

"I think we have heard enough to give us cause for serious concern that the way assistance and access is being manipulated is putting pressures on people to move or stay as the case may be - mostly to move," he added. "And this is of course in violation of all international humanitarian principles." (IRIN, 15 December 2003)

“[West Darfur]

It is understood that the national Humanitarian Assistance Commission (HAC) wishes to relocate IDPs around El Geneina town into two distinct camps (Aedamata and Um-Duwein). OCHA was able to visit the areas with HAC, but holds reservations about the feasibility and desirability of relocating IDPs at this time. The UN has strongly expressed the view that any movement of IDPs must be conducted on a voluntary basis as IDPs do not appear to want to move to these areas. Furthermore, the new identified sites would require urgent interventions to improve both security and basic living conditions. The issue will continue to be closely monitored.” (UNRC 29 February 2004)

“Some aid agencies have accused the government of using what small amounts of food are getting through to advance its war aims. Agencies say the government is directing food into urban areas, so that people are drawn out of the countryside to get food in the cities, where they are more easily managed by government troops. As a result, rebel groups are losing support in the countryside.” (RI, 13 February 2004)

“The incident in Tawilla confirm the pattern of Janjaweed attacks all over Darfur, where village lootings often are accompanied by killings, especially of young and middle-aged men. According to some reports, Tawilla IDPs are being prevented from entering El Fasher town, while Kebkabiya IDPs are being prevented by Janjaweed from moving more than 1-2 km out of Kebkabiya town..” (UN RC, 2 March 2004)

Violation of right to freedom of movement during displacement and return (2002)

- Dinka returnees harassed by the military (2002)
- Military controls movement between Bahr el Ghazal and West Kordofan as well as between neighbouring villages to Abyei
- Particularly harassed are young men and the village of Awolnom
- In July 2002, government troops prevented 1,800 IDPs fleeing LRA attacks to seek shelter into Juba Town

“It was also noted that the Abyei Peace Committee had demonstrated its ability to facilitate the resolution of local conflicts between members of the two groups. However, concern was expressed at periodic harassment from the military and control over the movement of civilians, which periodically prevented people, especially youth, from moving across the borders to Bahr el Ghazal in the south or even between the surrounding villages and Abyei town. This was a particular concern in Awolnom, the village sited near the north bank of the Bahr al Arab (Kiir) River.” (UNCHR, 27 November 2002, p.12, para 32)

“Approximately 1,800 IDPs fled to Gomba (5 km east of Juba) following LRA attacks on their villages. During the attacks two of this caseload were killed and seven abducted. The military prevented IDPS attempting to move to Juba from accessing the town, as they were concerned that members of the LRA could filter in with them. OCHA has taken up the issue locally with authorities. LRA activity has also prevented people residing in villages up to 30 km from Juba from accessing their land and in some cases safe drinking water.” (OCHA 29 July 2002)

SUBSISTENCE NEEDS

Food

IDPs' food security undermined by conflict, displacement and drought (2005)

- WFP expects that 3.2 million people in Sudan (excluding Darfur) will need food aid in 2005
- WFP has received only 8% of out of a total \$302 million appealed for Sudan (excluding Darfur as of end of February 2005)
- By contrast already 55% of the \$438 appealed for Darfur had been received as of February 2005 but WFP said it needed to preposition food before the July rains
- Lack of rains will have catastrophic effects on 2005 harvests and WFP plans to assist an estimated 1.5 million vulnerable people in Southern Sudan as well as 650,000 returnees IDPs from Darfur are arriving into northern Bahr el Ghazal traumatized and with nothing
- Recovery of production levels in 2005 will be constrained by difficult access to means of production, and weak or non-existent market links
- Global malnutrition reached up to 40% in western Upper Nile in 2003
- About 30% of Sudanese have a food intake below minimum energy requirements
- Global acute malnutrition in Sudan's worst affected areas ranges from 22 to 39,9%
- Up to 40% global malnutrition in Jonglei State (Jun 2003)
- Global malnutrition higher in drought affected areas than in war-affected areas
- Emergency food assistance in 2003 was revised to cover the needs of 3.5 million war and drought affected people rather than the 3 million yearly average in previous years
- Serious crop production shortages of below 30-50% in southern Sudan during 2002-3

"WFP, she said, had anticipated that 3.2 million people in Sudan, excluding the strife-torn western region of Darfur, would need food aid, and had appealed for US \$302 million to fund operations to help those affected by the shortages in 2005.

The agency was in the process of carrying out surveys to ascertain how many more people might be in need, Melo said. However, she added, the response to the existing appeal "had not been very good". Of the \$302 million appealed for, only \$22 million or eight percent of the requirement had been received so far.

Some of the areas worst affected by the emerging crisis included Kordofan, Bahr el-Ghazal, Kassala and the Red Sea State, Melo said. She added that in some of the regions, the price of sorghum, a staple food in much of Sudan, had doubled since last year.

Melo attributed the problem to a poor harvest as a result of inadequate rainfall. In some areas, a bumper crop in the previous season led people to believe they had adequate food and many had chosen to plant cash crops. Now, the poor were finding it difficult to cope with the rising food prices, she added.

"Our appeal to donors is that they should come forward and provide support," said Melo. On Darfur, Melo said that WFP had so far received 55 percent of the \$438 million appealed for last year, but most of the contributions were in the form of cereals, leaving the agency short of other food items, such as vegetable oils, pulses, sugar, salt and corn soya blend.

Noting that WFP had estimated that about 2.3 million people in Darfur were in need of food aid, she added: "We need funds to continue providing a balanced diet to the people." Melo warned that West Darfur could become inaccessible at the onset of the rainy season in July or August. WFP, she noted, needed to preposition 23,000 mt of food in the area to ensure that there was no break in food deliveries." (IRIN, 24 February 2005)

"By the end of the 2004 planting season many parts of southern Sudan received less than 50% of their normal rainfall. The initial findings of the WFP rapid needs assessment (October 2004) confirm that the effect on the harvest is likely to be catastrophic, with an estimated 1.5 million vulnerable people and a further 650,000 returnees likely to require food aid during 2005 [in Southern Sudan]. Recovery of household production levels in 2005 will be constrained by difficult access to means of production, difficult delivery of and access to basic services such as rural extension and animal health care, and weak or non-existent market links. In addition, the conflict in Darfur is pushing displaced and traumatised people down into northern Bahr el Ghazal. Most of them flee with nothing." (UN 30 November 2004, p.45)

"By mid-year 2003, global malnutrition in drought-affected areas had soared, and in some conflict-affected areas such as western Upper Nile (Unity) rates had reached an alarming 40%." (UN, 18 November 2003, Vol.I, p.7)

"Upper Nile, Northern Bahr El Ghazal, Darfurs, Unity State, Red Sea and parts of Eastern Equatoria including Lafon have malnutrition rates above 20 percent, indicating a serious chronic problem. In general, the malnutrition rates are higher in the south, in particular among IDP and returnee population groups." (FAO, 11 February 2004, p.1,3, 23)

"The prevalence rate of malnutrition is alarmingly high, increasing from 18% in 1995 to 23% in 2001 in the North and the government controlled areas in the South. Furthermore the level of malnutrition among children in drought affected GoS areas has increased in 2002 from 18-23% to over 27%.

[...]

Data indicate that the food intake of about 30% of the total population provides less than their minimum energy requirements of 2,100 kcal. The 1999 safe motherhood survey shows that 30% of all newborn babies were of low birth weight, which indicates low nutritional status of mothers." (UN, November 2002, pp. 101-102)

"The 2002/03 total cereal production, estimated at about 3.8 million tonnes, is nearly 30 percent below the previous year's crop and about 13 percent below the average of the last five years. Serious food shortages have emerged in several parts of the country and prices, particularly for sorghum, are higher than normal at this time of the year. Food security monitoring assessments conducted since January have confirmed that 1.9 million people in southern Sudan will need food assistance estimated at 101 000 tonnes until the next harvest in September 2003. About 700 000 of these were identified as highly food insecure and have been receiving food aid since January." (FAO, 23 July 2003, pp.3,4)

"As of mid-year, global malnutrition rates in drought-affected areas had become higher than in conflict-affected areas and had reached unacceptable levels, varying from 21% in Bahr el Ghazal, 23% in Kordofan and Darfur, 27% in Upper Nile, 30% in Red Sea and 40% in Jonglei. This situation calls for an integrated humanitarian assistance to restore livelihoods in those areas." (UN, 3 June 2003, p.3)

"Those requiring combined food and non-food assistance [...] increased from a previous three year average of three million, to 3.5 million in 2003 (3.38 million for food aid) owing to a combination of factors, including an escalation of fighting in Upper Nile and Eastern Equatoria, prolonged ethnic conflict, expanded access to new areas previously denied, drought in Red Sea State and in South Darfur, erratic rains throughout southern Sudan, prohibitive prices of staple foods and basic commodities, and the combined effects of these factors on household security, health, nutrition and other basic indices." (UN, 3 June 2003, p.3,14)

“Food security projects for drought-affected areas, targeting destitute households and IDPs in Greater Darfur, Northern Kordofan, Kassala, the Red Sea hills and Butana plains, were severely under-funded. As a result, it was expected that targets for food security would not be reached during the planting season. Inadequate and late funding had also severely hampered full implementation of planned livestock activities in southern Sudan.

[...]

However, FAO has so far received only 3% of the total funds proposed for HHFS in the drought affected areas, which is an alarming situation.” (UN, 3 June 2003, p.15-17)

“Continued high malnutrition rates were evident countrywide. All operational areas surpass the national average of 19 percent for global acute malnutrition, according to NGO/UNICEF surveys. In the worst affected areas, global acute malnutrition ranges from 22 percent to 39.9 percent.” (WFP, 1 April 2003, pp.1, 15,16)

“The effects of the drought were disastrous in parts of North Darfur after three consecutive years of drought and in Red Sea State following a fourth year of drought. The total number of affected people is estimated at 633,000.

Occasional agricultural regional surpluses are not channelled to deficit areas because of in-built structural constraints and a weak unbalanced marketing system of surplus production, as prices drop discouraging farmers from re-investing in the following year. Food aid intervention in Sudan constitutes the largest component of the international humanitarian assistance programme.” (UN, November 2002, p. 95)

“Preliminary information from the Annual Needs Assessment was released during the month of December. Main findings indicate that food security has deteriorated in Southern Sudan, Red Sea State and other parts of North Sudan. Crop production in Southern Sudan has declined by 30-50 percent with malnutrition rates remaining above the national average of 18 percent.

Livestock production is on the decline among agro-pastoralists with markets remaining significant to the household's food economy. Poor infrastructure and insecurity limit food from surplus producing areas from reaching deficit areas.

The total estimate of food aid required for Sudan is 197,000 MT for 3.5 million persons comprising of a northern sector requirement of 116,500 MT for 1.75 million persons and a southern sector requirement of 80,500 MT for 1.65 Million persons.

In the non-food sector an increased need for agriculture inputs such as seeds and tools was identified. Provision of fishing equipment to IDPs and the general population in affected areas was also noted as a necessity. Diversification of crops to reduce risks of drought was identified as a possible way forward.” (OCHA, 23 December 2002)

Health

About 670,000 under-five children die yearly of preventable diseases in Sudan (2004)

- In Southern Sudan, there is only one doctor for every 100,000 people and one primary health care centre for every 79,500
- The rate of infant mortality per 1,000 is 150 in southern Sudan
- The rate of maternal mortality per 100,000 live births is 1,700 in southern Sudan

- Under-five mortality rates in Sudan estimated at 104 per 1,000 live births in GoS areas during the 90s
- UNFPA considers HIV/AIDS rate in Sudan at 2.6% as an epidemic and the worst rate in North Africa and Middle East regions together
- Little is being done to address the problem of HIV/AIDS in Sudan as most support is geared towards the humanitarian emergencies and responding to curable diseases
- Under-five mortality rates are estimated to peak at 170 per 1,000 live births in SPLM/A controlled areas and Blue Nile State
- HIV/AIDS rate among IDPs and refugees is considered to be at 4.4% while the national prevalence rate is at 2.6% and 84,6% of women in rural areas were not knowledgeable about HIV
- 60% of children die during their first year and
- Leading causes of morbidity in SPLM/A areas are malaria (29%), diarrhoea (13%) and respiratory infections (11%)
- Maternal mortality at 509/100,000 live births in GoS areas
- 94% of deliveries take place outside the reach of health facilities
- 40% of out patient hospital attendance nation-wide is caused by malaria
- TB prevalence is 90/100,000 and only 500 beds for TB treatment are available in southern Sudan
- Measles outbreaks are cyclical and killed 125 displaced children in the Nuba Mountains in July 2002

“The levels of mortality and morbidity in large parts of Sudan, and most notably in southern Sudan, are symptomatic of an inadequate health infrastructure and low health service coverage in the region. This is illustrated by the fact that in the south one out every four children will die before the age of five and that one in nine women die in pregnancy or childbirth. The abysmally low ratio of skilled health personnel to population (e.g. one physician to 100,000 people), the virtual absence of obstetric emergency care and the shortage of drugs and primary health facilities are glaring indictments of the health system. The fact that safe water is available to less than a third of the population, along with poor hygiene and sanitation practices, means that efforts to prevent or control diseases remains an uphill task.

There is a general lack of reliable and up to date data for tracking performance against the MDGs. Monitoring capacities are weak across the board, and require urgent strengthening. This is especially crucial in the development of Sudan specific indicators and tracking of progress towards the attainment of the MDGs.” (UN. 30 November 2004, p.9)

“[In Southern Sudan, t]here is only one doctor for every 100,000 people and one primary health care centre for every 79,500. [...] The rate of infant mortality per 1,000 is 150. The rate of maternal mortality per 100,000 live births is 1,700.” (UN 30 November 2004, p.45-6)

“The anticipated return of hundreds of thousands of Sudanese refugees, once peace returns to the south and west, could lead to a further spread of HIV/AIDS which already affects 2.6 percent of the general population, the UN Population Fund (UNFPA) warned in a report.

The HIV-infection rate in Sudan, according to UNFPA, is already considered an epidemic, making Sudan the country with the highest infection rate in North Africa and the Middle East region. The infection rates are particularly high among vulnerable groups, such as internally displaced persons (IDPs) and refugees. Data from the mid-1990s onwards suggested the infection rates had risen rapidly in the conflict-affected areas of southern and western Sudan. According to a national prevalence and behavior survey conducted in 2002, HIV infection prevalence was already four percent among pregnant women attending clinics in the refugee camps.

Ishmael Gulliver of the Sudan Evangelical Mission, which has been running HIV/AIDS awareness-raising programs in southern Sudan since 2000, told IRIN on Friday that the situation in the region was "severe". Voluntary counselling and testing centers in the region, he added, had found preliminary HIV-infection rates of four to 10 percent among those tested in the southern town of Rumbek and up to 17 to 21 percent in Yambio, near the border with the Democratic Republic of the Congo.

[...]

"Sudan is on the verge of an HIV/AIDS epidemic," Professor Ali Biely of Ahsad University in Omdurman, near Khartoum, told IRIN. Little, he added, was "being done about it because of the urgency of the humanitarian crisis and the need to respond to those that are immediately dying from curable diseases"." (IRIN, 18 October 2004)

"Sudan continues to be characterised by high levels of infant and under-five mortality rates. The Safe Motherhood Survey (SMS) conducted by UNFPA in 1999 estimated under-five mortality rate at 104 per 1,000 live births in GoS areas for the period 1990-99. The under-five mortality rates ranged between 59 per 1,000 live births in El Gezira state to 172 in Blue Nile state. The SMS (1999) also indicated that approximately 60% of deaths among children under five occur during the first year of life. The infant mortality rate (IMR) was estimated at 68 per 1,000 live births for the period 1990-1999 using direct estimation method. The IMR ranged between 51 per 1,000 live births in Sinnar state to 116 in Red Sea state. Though statistically representative estimates for infant mortality rates in SPLM areas are not available, some sources quote upper limit of infant mortality at 170 per 1,000 live births. The under-five mortality rate for the Sudan, as estimated by World Development Indicators Database 2002 (World Bank), is 108 compared to 89 per 1,000 live births for developing countries while the IMR is estimated at 68 compared to 62 per 1,000 live births for developing countries.

Child health in Sudan continues to be affected by cyclic natural disasters, such as drought/flood in some states and occasional outbreaks of meningitis, acute diarrhoeas, buruli, yellow fever and the spread of HIV/AIDS. About 670,000 under-five children die from preventable diseases every year. Malaria, acute respiratory infections and diarrhoeal diseases, combined with malnutrition, are the leading causes of death among under-five children. The leading causes of morbidity in SPLM areas are malaria (29%), diarrhoea (13%) and respiratory infections (11%). MICS 2000 shows ARI and diarrhoea prevalence rates respectively of 17% and 28% among under-five children nation-wide, but diarrhoea prevalence in some states go up to 40%. The malaria prevalence rate among under-five children was 23% in the north and 37% in the southern towns of Juba, Wau and Malakal. Malaria contributes 22.8-37.2% of all reported diseases, with a high fatality rate of over 4 to 7 % (the accepted ratio is 1-3%). In areas of marked seasonality, such as Khartoum, Kassala, Gedarif and central Sudan, fulminant malaria epidemics occur after high riverine and flash floods. Malaria endemicity is highest in the south. In southern Sudan, regular outbreaks of malaria, as well as increasing chloroquine resistance has necessitated WHO to recommend the use of another drug as a first line treatment. Measles is estimated to affect up to 30% of children in the age group 9-59 months with three years cyclic epidemic. [...] The disparate surveys showed a child in Sudan experiences 2-3 episodes of pneumonia each year with a case fatality rate of 3.6%. The prevalence of diarrhoea in northern states has been levelling out at 28.2% among children under the age of five and at 24.9 in the southern states.

[...]

Several vulnerable high risk groups are already exhibiting higher levels of HIV/AIDS prevalence The rate is considerably higher among sex workers (4%) and refugees/IDPs (4.4%) while the rate is 1% among antenatal clinic attendants and 1.1% among students. Vulnerable youth groups such as out-of-school adolescents and children on the street are more affected by the epidemic with a prevalence rate of over 2 percent. Limited access to information on HIV/AIDS has made them more vulnerable." (UN, 18 November 2003, Vol.II, pp.144, 166)

"147. Approximately 3% of the population in Sudan is reportedly infected by HIV/AIDS. It is estimated that there are some 400,000 – 600,000 incidences of HIV/AIDS in the South, although there are only 12,000 confirmed cases. [...]

148. While current risks are mainly associated with the extensive practice of polygamy and GBV, it is feared that new population movements (disarmed soldiers, traders, and returnees) will increase the risks for infection. [...]” (IRC, 1 May 2004, p. 41)

“In GoS held areas, infant mortality is 68 per 1,000, maternal mortality 509 per 100,000 live births, with average global malnutrition rates between 18% and 23%. Main causes of mortality are reported as diarrhoea, caused by lack of access to safe water, acute respiratory diseases, malnutrition, measles and malaria (35,000 per year). WHO morbidity figures show that malaria is the main cause for attending hospitals and outpatients clinics (63%) in Juba, Wau and Malakal. Tuberculosis is also one of the most serious communicable diseases in Sudan with prevalence of 90 per 100,000. An alarming expansion of HIV/AIDS is being experienced. It is estimated that 600,000 persons are infected (2% of the population). Assuming that this trend continues, Sudan is on the verge of a major Acquired Immune-Deficiency Syndrome (AIDS) epidemic.

Although the polio eradication programme has achieved remarkable success during the national immunisation campaigns, routine immunisation coverage remains low due to impeded access and inadequate technical capacity and infrastructure. Coverage in SPLM/A areas remains half of that in GoS areas between 28-30%. During displacement and despite the efforts of agencies, outbreaks of measles have occurred this year, such as in the Nuba Mountains in July when 125 children died. The health situation is further compromised by the largest IDP population in the world (four million), and the increasing number of mine victims, estimated at over 75,000 in the year 2000.” (UN, November 2002, p.14)

“In Government areas of Sudan, 86% of women deliver at home with less than 57% attended by skilled personnel. [...]

Training for TBA is underway through a number of OLS agencies, but MICS figures show that 79% of women do not receive Tetanus Toxoid (TT) during pregnancy, that 94% of deliveries are done without the benefit of a health facility and 77% without the benefit of a trained birth attendant. Only 86,294 women received the TT vaccine during January and August of 2002.

The number of estimated HIV infected cases has risen to 600,000 in 2001 from 400,000 in 2000. Sentinel sero-surveys recently conducted by the Sudan National AIDS Programme revealed an infection rate of 1.6%. [...] The Multiple Indicator Cluster Survey (MICS 2000) revealed that 84.6% of women aged 15-49 years in rural areas and 57.9% in urban areas are not knowledgeable about HIV/AIDS. Only 33.3% of women in southern states had heard about the problem.

[...]

Only eight OLS agencies are currently dealing with TB cases in southern Sudan and it is estimated that they are only able to service 1.3 million people, or 16% of the population. At present only 500 beds for TB treatment are available in the entire region. This number is not adequate for the 12,000 cases estimated per year.

Malaria, diarrhoea, and acute respiratory infection are the major diseases in Sudan. Malaria is now considered endemic throughout the country. In two years, the prevalence rate rose from 195/1,000 to 250/1,000. About 40% of outpatient attendance nation-wide is due to malaria with a current estimated rate of 7-8 million cases and 35,000–40,000 deaths per year. The Multiple Indicator Cluster Survey 2000 (MICS), conducted in the Northern States and government controlled areas in the South, showed that diarrhoea and ARI prevalence rates are 28% and 17% among children under-five respectively, and diarrhoea prevalence reaches 40% in some States.

[...]

Sudan reported 80% of Guinea Worm cases in the world. In the northern part of Sudan the Guinea worm incidence has been reduced by 98%, however, it remains endemic in the south.” (UN, November 2002, pp. 101-102)

Government of Sudan and United Nations Country Team SUDAN, MILLENNIUM DEVELOPMENT GOALS, INTERIM UNIFIED REPORT, December 2004

Water and sanitation

Lack of water and sanitation facilities cause lethal diarrhoeal diseases (2005)

- Less than 40% of the population has access to clean drinking water [in southern Sudan]
- The incidence of diarrhoea in children Sudan may be as high as 45%
- Hepatitis E epidemic broke out in Darfur during 2004 due to poor water and sanitation services
- 22% of under-five mortality is attributable to water related disease in southern Sudan
- Over 40% and 70% of the population in the northern and southern Sudan respectively have no access to safe drink water
- Southern Sudan hosts 80% of Guinea Worm cases in the world with Jonglei as the worst affected state
- About 65% of the Sudan population have no sanitary facilities
- 40% of under-five children die of diarrhoeal diseases caused by poor hygiene and lack of access to safe drinking water
- Insecurity and inaccessibility have hampered interventions to construct water supply facilities in Upper Nile, Jonglei and Bahr el Ghazal
- In war-affected areas about 70% of water facilities need to be rehabilitated and repaired
- Only 5% people had access to latrines in Upper Nile
- About 670,000 children in Sudan die from preventable diseases each year
- Most women and girls walk two to four hours daily to fetch water

“Estimates suggest that less than 40% of the population has access to clean drinking water [in southern Sudan] and in some counties water points are concentrated in centres while rural populations have no access to safe water at all. As a result, the incidence of diarrhoea in children may be as high as 45%; 22% of under-five mortality is attributable to water related disease. There is, therefore, a need for more emphasis on sanitation and hygiene promotion, which underpins the reduction of otherwise preventable water-borne diseases.” (UN 30 November 2004, p.45-6)

“In general terms, although the situation remains precarious, agencies were able to avert major epidemics and widespread secondary mortality from health-related causes in IDP settlements/camps during 2004 [in Darfur]. The outbreak of Hepatitis E in some locations that occurred between July and November 2004 alerted agencies on the importance of adequate water and sanitation interventions particularly in large and overcrowded IDP sites.” (UN R/HC, 1 January 2005)

“Low level of access to clean water continues to be a major problem in the Sudan with more than 40% and 70% of the population in the northern and southern Sudan respectively drinking unsafe water. The lack of safe drinking water, especially in conflict-affected and drought-affected/prone areas, including areas inhabited by IDPs and returning IDPs, has made water borne diseases a major health hazard. Diarrhoeal diseases are sporadically prevalent in many parts of the country. Guinea worm is endemic in more than 6,000 villages, with southern Sudan representing more than 80% of world’s burden. An estimated 65% of the population has no access to sanitary means of excreta disposal. Approximately 40% of the deaths of children under-five years of age are attributed to diarrhoea caused by poor hygiene and unsafe drinking water.” (UN, 18 November 2003, Vol.II, p.158)

“In spite of the on-going efforts to improve access to safe water, the coverage of the existing water supply facilities remain very low in the Sudan. About 40% of people in the GoS-controlled areas do not have access to safe water for domestic consumption. In urban areas, population with access to improved drinking water sources is close to 80%, but in rural areas it is only 47%. The percentage of population using improved drinking water sources range from 93 in Khartoum to 50 in South Darfur, 42 in North Kordofan, 29 in West Darfur and 24 in Blue Nile. While significant progress has been made in SPLM/A-controlled areas for increasing access to safe water for population, insecurity and inaccessibility have hindered interventions to construct water supply facilities in areas such as Upper Nile, Jonglei and some parts of Bahr El Ghazal. In SPLM/A-controlled areas, only 30% of people have access to safe water.

Low coverage of safe water supply is not only due to the lack of water supply facilities but also to a high proportion of non-functioning facilities. In the country as a whole about 40% of the hand pumps and 60% of water yards are not functional. In the war-affected areas more than 70% of the available hand pumps and water yards need rehabilitation and repair.

The Multiple Indicator Cluster Survey (MICS) conducted in 2000 indicated that in the GoS-controlled areas as a whole, only 60% of the population had sanitary means of excreta disposal. In urban areas, 83% of the population use sanitary means of excreta disposal compared with 48% in rural areas. Despite the work of OLS agencies to advocate for the use of latrines in the SPLM/A-controlled areas, open defecation is still widely practised. MICS 2000 indicated that some of the more stable areas such as Western Equatoria have 88% of the population using sanitary latrines, while only 5% of the population in Upper Nile use them. Lack of access and insecurity have hindered progress in Upper Nile, Lakes and Jonglei, despite continued efforts of OLS agencies to maintain programmes in those locations.

Approximately 670,000 Sudanese children under-five die each year from preventable causes. Of these, about 40% die from diarrhoeal disease, which could be significantly reduced with increased access to safe water supply, and improved personal and communal hygiene and sanitation. In addition to diarrhoeal disease, a large section of the population is afflicted with guinea-worm disease (dracunculiasis), which can be largely prevented with improved access to safe drinking water, sanitary facilities and hygienic practices. Sudan is hosting over 80% of the total Guinea Worm cases (in 2001) with 99% of cases being in the south in which Jonglei State is the most endemic area.

[...]

As is the case in many parts of Africa, the task of fetching water for domestic use falls mainly on women and girls. Water collection typically entails average daily travel for about two to four hours. This daily ordeal has heavy impact in terms of sheer physical exertion and burning up of precious calories from an already meagre dietary intake. In addition, it consumes valuable time, which could be better utilised, for example, in the care of young children in the home or employment in income generating activities. For girls, the task of fetching water from distant sources combined with the lack of educational facilities within easy walking distance from their residences, often stands in the way of their education.” (UN, November 2002, p.198)

IDP needs in Khartoum State

Mortality rates near emergency threshold in Khartoum IDP camps (2005)

- Global malnutrition rated for IDP in northern Sudan and around the capital is at about 30%
- Less than 10% of school age children reported eating 3 meals per day in Khartoum IDP camps (2005)
- Many IDPs have been relocated to isolated and barren areas removed from all basic services and job opportunities

- There is no relief distribution for IDPs in Khartoum who are considered to be long-stayers
- Diarrhoea was the first cause of death among IDPs in Khartoum being the cause of 37% of deaths during 2004
- Crude Mortality Rates in IDP camps in Khartoum in Mayo and Soba Arradi were close to the emergency threshold of 1/10,000/day as of end 2004
- 57% of households could not afford the cost of health care from the clinic
- Health services lacked all together and particularly reproductive health services with the cost of midwives being prohibitive to IDPs
- Prevalence of diseases reportedly increased in IDP camps after demolitions of camps scaled up
- The fact that only few water yards are functioning has raised the price of water by up to 50% in Khartoum IDP camps
- IDPs in Khartoum spent up to 40% of their income for poor quality water in 2001
- 30% of households had no access to latrines and building one was not a priority in the temporary shelters where they lived
- 80% of IDPs in four locations in Khartoum lived in temporary shelters made out of plastic and paper and 90% were regularly flooded

Food and nutrition

“Less than 10% of school age children reported eating 3 meals per day. This indicates that access to food has been an issue in the camps and could be a contributor to other indicators such as health and nutrition.

[...]

During the FGDs with children in Soba it was found that only 4% eat three meals a day, 42% ate two meals a day, and 20% only had one meal a day (the rest were too young to answer).” (F.A.R. et al, 19 January 2005, p.24-5)

“The global acute malnutrition rate for IDP and host community children [in northern Sudan and around the capital] is some 30%. Only 50% of children aged 6-59 receive vitamin A supplement. Only 60% of pregnant women attend anti-natal care” (UN 30 November 2004, p.177)

"The Special Rapporteur and his party were able to visit only one of the camps set up by the Government, where, reportedly, conditions, including primary educational and health facilities, are better than in other makeshift camps. It was, nevertheless, apparent that the displaced have basically been concentrated in an isolated and barren area, removed from any commercial centre offering work opportunities. There is no general relief distribution for the displaced in Khartoum who are considered to be long-stayers, and many complained of insufficient food and clothing. According to reports confirmed by the United Nations, food security in camps such as this one is precarious and malnutrition among children under five ranged from 12 to 24 per cent in 1997-1998." (UN Commission on Human Rights, 17 May 1999, paras. 76-80)

Health

““The practice of witchcraft and use of traditional healers was prevalent in OeS and Soba, but not in WeB, where people tended to use clinics. This may be correlated to the distance to and number of clinics in each camp. WeB is a relatively small camp with a functioning central clinic, so increased access to a healthcare facility may increase the resident’s likelihood to use the service. The use of home birth assistants and midwives was common, although their service costs are sometimes prohibitive. In addition, access to quality healthcare with longer hours, was listed as a priority for residents surveyed.

[...]

The survey asked the households who had died since last Ramadan (approx one year ago), and the cause of death. The results indicate that the Crude Mortality Rate (CMR) in Mayo Farms and Soba Arradi is near the emergency threshold of 1/10,000/day. The number one cause of death in all areas is diarrhoea. Overall, diarrhoea was reported as being responsible for 37% of the deaths in the four IDP areas in the past year.

[...]

FGDs with children reported that since the demolitions there has been an increase in diseases (malaria, diarrhoea and others) [...]. Other diseases mentioned by the children included chest infections, pneumonia, skin rash, eye pain, cold, influenza and measles [...].

In the past two weeks, 53% of surveyed household reported having someone sick in the household.

[...]

Fifty seven percent of households not going to clinics reported that they did not go because it was too expensive, and 3% reported that they did not go because of the quality of the services [...].

In particular for reproductive health, it was reported that there are few clinics providing the full range of reproductive health services, and those that do are expensive. Most deliveries are home based and the cost of midwives is reported as being between 5000 and 10,000 SD, depending on the sex of newborn (higher cost for male newborns)." (F.A.R. et al, 19 January 2005, p.21)

"Dinka, in majority, represent 25% of the IDPs in Khartoum and Nuba 10% Over one third of IDPs interviewed lack awareness about transmission and prevention of HIV/AIDS "A total of 6,300 IDP households were interviewed in formal and informal camps in Khartoum. This caseload represents 3.6% of households in Khartoum.

[...]

The questionnaire was also designed to obtain information on the level of awareness on HIV/AIDS. 87% of those interviewed have declared to be aware of HIV/AIDS. However, during subsequent questions about the transmission of the AIDS virus, a significant proportion (45.5%) of those that believed they were aware of HIV/AIDS, were found wanting. This is of some concern and equates to over a third of the respondents questioned." (CARE/IOM, 28 February 2003, pp.10-12,15,16, 24, 26,27)

Water and Sanitation

"There are complaints by IDPs on water shortages and a lack of access to sanitary facilities. INGOs operational in the area have observed that IDPs use open fields for defecation. In WeB and OeS only five out of nine water yards are operating which has reduced access to water and raised costs, according to the Wad el Bashier Development Association, some areas have increased their water costs by as much as 50%.

[...]

According to the focus groups, access to water has decreased and prices have increased. This seems to be related to both the destruction of water distribution points or of the pipelines leading to them, as well as an increase in brick making (which demands a lot of water), as people try to rebuild their homes. There have been estimates that the cost of water in the IDP areas could be up to three times the cost of Town water to permanent homes.

[...]

It is also reported that many of the water sources are further from the homes than before the demolitions, so they have longer to walk. Water from Donkey carts are at risk of being contaminated between the source and the household. [...]

Currently there are few latrines available; the people either defecate in open areas, in neighbours' latrines, or in public latrines. The latrine coverage was concerning with 30% of households in all areas reporting no access (to either their own latrine, neighbours' or public). However, the areas with the lowest latrine coverage are WeB and OeS.

[...]

Building a new latrine was not reported as being a high priority as most are living in temporary housing." (F.A.R. et al, 19 January 2005, p.22-3)

"The bulk of the IDPs income is spent on food and water, which leaves no extra income for other basic or immediate needs. In both the camps and squatter settlements the most stressful period is July-September. During this period, the demand for labour in the city is very low, as brick-making and general construction, mostly performed by men, stops. As a result, migration to rural farms and the large agricultural schemes for seasonal labour opportunities occurs." (UN, November 2000, pp.143-144)

"The displaced and poor communities in peri-urban Khartoum pay as much as 40% of their income for small quantities of poor quality water." (UN November 2001, p.65)

Shelter

"At the beginning of November 2004 it has been observed and discussed by the IDP communities that over 80% of the families are living in temporary shelters [in Khartoum State two IDP camps, Wad el Bashier (WeB) and Omdurman es Salaam (OeS) and two squatter areas, Mayo Dar Naim and Soba Arradi.] [...]

The enumerators were asked to describe the structures in the homes they surveyed as either "temporary" or "permanent". In the areas which have been demolished, temporary housing refers to houses made of plastic, paper etc (rakubas, hassir and wood) while permanent housing refers to homes made of more permanent materials (mud, cement etc.) However, in Mayo Farms (70% temporary housing), where there have been no demolitions, temporary housing seems to have referred to lower quality housing, while permanent housing may have referred to higher quality housing.

In Soba Arradi 94% of the households surveyed were living in temporary housing, while the percentages in OeS was 80% and in WeB was 66%. It was interesting to note that in OeS and WeB, the number of permanent houses correlated very closely to the number of households expecting to have their households demolished in the future. It was reported by focus groups that those in a temporary shelter (rakuba) were afraid to use firewood for fuel due to hazard of fire and fear of burning down their shelter [...]. In addition, during the rainy season these shelters are prone to flooding.

Of the households surveyed 91% said that their shelters flooded during the rains, 78% said the water leaked through the roof, and 20% said it came from the ground. This is an indication of the poor quality of protection these shelters provide from the elements." (F.A.R. et al, 19 January 2005,p.18)

IDP needs in Greater Darfur

Adding to the needs caused by conflict is near total crop failure in Darfur (2005)

- Average global acute malnutrition rates in Darfur were at 21.8% between August-September, way beyond the 15% emergency threshold
- In early spring 2004 malnutrition rates in Darfur reached up to 39% and several acute malnutrition up to 9.6%
- Food conditions in Darfur as of end of 2004 were worst than during the 1989 Darfur famine, between 2.5 and 3 million people will need food assistance in 2005
- Host communities are sharing whatever they have with the IDPs despite their serious lack of resources
- There is a 40% reduction in planted area compared to 2003 and up to 90% among IDPs
- 90% of IDPs have lost their livestock compared to 40% among residents
- While about half of residents had the means to secure adequate food intake, only about 6% of the IDPs did in 2004
- Global acute malnutrition rates were 21,8% and severe malnourishment was at 3,9% in 2004
- Out of the estimated 37,000 MT of food needed in Greater Darfur between November and February, less than 7,000 MT were provided
- Most needs in Darfur remain unmet due to insecurity nearly halting humanitarian operations and needs assessments

- Conflicts and drought have been ongoing in the Darfur region which has always registered very high malnutrition rates as a result

“The nutritional situation in Darfur is precarious. The prevalence of global acute malnutrition (GAM) was 21.8% (95% confidence interval (CI): 18.2, 25.3), above the 15% cutoff commonly used to define a serious situation. The prevalence of severe acute malnutrition (SAM) is also elevated at 3.9% (95% CI: 2.3-5.6). Of those children with SAM, eight had edema. Micronutrient deficiencies were also common. The prevalence of anemia among children 6 to 59 months of age was 55.3% and anemia among non-pregnant mothers was 28.0%. Iodine deficiency, as assessed by goiter, among mothers was also elevated at 23.6% (95% CI: 15.6, 31.5) and poses a significant threat to health and development in Darfur.

[...]

Mortality rates were higher among those displaced compared with residents and higher among IDPs living in camps and spontaneous settlements than those living with the host community and crisis affected residents. However, these differences were not statistically significant.

[...]

Beginning in the spring of 2004, non-governmental organizations conducted a number of nutrition surveys in selected internally displaced persons (IDP) camps using the Sudanese Ministry of Health guidelines¹ which mirror internationally accepted methodologies. These surveys reported global acute malnutrition (GAM) rates ranging from 12.6 % to 39.0% (< -2 SD) and severe acute malnutrition rates ranging from .8 % to 9.6% (< -3 SD)². These rates indicate that an emergency situation exists in many parts of Darfur, but to date no large scale survey of the affected Darfur population has been conducted. Furthermore, there is little understanding of the nutritional situation among the residents and internally displaced persons (IDP) integrated into towns and villages. In order for the international humanitarian community to plan an appropriate food, health and nutritional response to the emergency, additional information about the status of the population is needed.” (WFP, CDC, 26 October 2004, p.3-4, 6)

“Although a proper evaluation of the nutrition situation must be conducted through systematic nutritional surveys in order to establish the average General Acute Malnutrition (GAM) for Darfur, results of individual assessments carried out in November support the evidence of improvement. ACF conducted a follow-up survey in Abu Shouk in November after one released in June 2004, and the rate of global acute malnutrition was recorded at 27.8%, including 2.4% severe acute malnutrition. This is a substantial improvement when compared to 39% GAM and 9.7% Severe Acute Malnutrition (SAM) of June - but it still indicates an emergency level situation. Also promising was the estimation of the under-five mortality rate of 2.6/10,000/day in comparison to 6.76/10,000/day at the peak of the crisis. Another survey conducted in Serif Umra, South Darfur, by MSF Belgium, revealed a GAM of 14.7% and SAM at 2.7%. Recommendations are for continued SFP and TFP support, general ration distribution, as well as continued nutrition, mortality and morbidity surveillance.” (UN RC, 25 January 2005)

“The displacement of so many people disrupted the micro-economic environment,” explained Harnisch, “This year's harvest will be between 25% and 50% lower than in normal years and most rural populations will be affected by food shortages.”

The looting of both livestock and the meagre food stocks that do exist has not improved the outlook. The ICRC concurs with World Food Programme figures that estimate between 2.5 and 3 million people in Darfur will need food assistance this year.” (ICRC, 9 February 2005)

“The burden for host families is considerable, as they share whatever food or essential items they have with twice or three times as many people. Owing to the disruption of the local economy and the ensuing rise in consumables’ prices, most people are finding it increasingly difficult to make ends meet. And yet, in what is probably the most striking feature of the current situation, Darfuris (the inhabitants of Darfur) welcome displaced families in their homes on a scale that defies the sense of the word “hospitality” as it is understood in other cultures.

[...]

Nomadic tribes with tens of thousands of cattle are stranded in the south because of the conflict, just at the time of year when they should be migrating back to the north. This is disrupting the socio-economic balance in this area, as fodder is becoming scarce and food prices are too high. Fighting and looting have also upset the delicate balance of age-old trading traditions between pastoralist nomads and farmer communities. All of them suffer as a consequence and many no longer feel safe to go to market towns to trade their products.” (ICRC, 31 December 2004)

“Insecurity and displacement continue in Darfur. Compounding the needs associated with the conflict is a near total crop failure. A WFP/FAO/UNICEF Emergency Food Security and Nutrition Assessment carried out in September revealed an alarming deterioration of food security indicators. Conditions are now worse than those prevailing before the 1989 Darfur famine. The region is facing a seed famine as a result of severely depleted traditional seed stocks due to looting and razing of village fields. There is a 40% reduction of planted areas as compared to 2003 (up to 80-90% among IDPs); current food prices are 60% above normal levels and there has been a sharp increase in competition for wage labour opportunities due to a reduction of other income sources. Global malnutrition rates among children are 21.8%, well above the emergency threshold of 15%. As the next main cereal planting season is not until June 2005, with the harvest in the fall, a large-scale humanitarian response—much of which is food aid—will be required in Darfur until at least the end of 2005. In short, the emergency is far from over.

Humanitarian indicators:

Food security and livelihoods: An estimated 465,000 households in Darfur will be in need of agricultural assistance early in 2005 due to crop failure. This assistance is critically needed by January to ensure preparedness for the next planting season in June. Without such assistance, food aid will continue to be needed in large quantities. In addition, 90% of IDPs have lost their livestock, which hampers income generation, water gathering and hinders return. Some 40% of residents have also lost their livestock.

Food aid: In September 2004 70% of IDPs and conflict-affected residents received some form of food assistance. Increasing numbers of people are becoming dependent on food aid, including 1.4 million IDPs and 21% of residents. Another 26% of the resident population require close monitoring. While nearly half of the resident population was found to have the means to secure adequate food intake, the same was true for only six percent of IDPs. Without adequate support to agriculture and livestock support, these numbers may be expected to rise.

Malnutrition: The malnutrition situation remains fragile and well beyond emergency thresholds. Global Acute Malnutrition rates are at 21.8%, with 3.9% severe malnourishment. Among the affected population an estimated 50,000 children will be in need of supplementary feeding programmes and a further 9,000 will be in need of therapeutic feeding programmes.” (UN, 30 November 2004, p.99)

“North Darfur: The 2001 SC-UK survey in North Darfur reported rising global malnutrition rates throughout the state, with a high of 35% recorded in El Fasher followed by 27.1% for Mellit and Sayah and 25.4% in Um Kedada. The percentage of children under five years who are under weight (MDT 4) in North Darfur State was recorded at 48.7%.18 Malnutrition rates in the state were very high at 23.4% among the resident population and 26.10% among the displaced.[...] Relief interventions have not stabilised the situation.

The percentage of children under-five years who are severely or moderately undernourished in the state is 47.4% and the percentage of underweight children under-five is 7.5% [...]”(UN R/HC, 10 January 2004)

“With a population of 5,626,000 mostly agropastoralist, including 12 ethnic groups and Dinka and Fertit IDPs, Darfur is characterised by recurrent drought and increasing ethnic conflict. In 2002 a combination of sporadic and inadequate rains, poor pasture, food shortages, and floods in Kass and Nyala Provinces, led to mass migration to southern Darfur and northern and western Bahr el Ghazal. Drought and insecurity has also caused movement of population to the transitional zone of El Fashir, El Geneina and Nyala. This migration has caused conflict between migrants and host populations leading to attacks, armed robbery,

looting and cattle stealing. At least 7,000 families in Darfur are affected by conflict, more than 80 people have been killed and 108 sentenced to death. The situation is likely to deteriorate. Large areas of North Darfur suffer frequent droughts, which erode the food security of large parts of its population and the rise of armed conflict in competition over scarce natural resources.” (UN, November 2002, p.30)

About 10,000 IDPs died monthly in Darfur during 2004 (2005)

- WHO estimated that between March and October 2004, about 70,000 IDPs had died in Darfur or about 10,000 people monthly
- WHO estimated average death rates at 2.6 per 10,000 with worst cases at 3.2 per 10,000 during 2004
- The main cause of death among children under five was diarrhoea: 42 % in Kalma Camp, South Darfur mainly due to poor water and sanitation services (2004)
- The main causes of death among adults were injuries and violence according to WHO
- About a third of households lacked access to safe water and sanitation as of September 2004
- An Hepatitis E epidemic in 2004 affected 17,720 people due to lack of water and sanitation services
- Most wounded displaced people are left with no medical attention due to the lack of health facilities, lack of health workers who fled to safer areas and lack of agencies operating on the ground
- Only about 15% of the health needs were met in Darfur due to insecurity as of January 2004
- Only one hospital exists in West Darfur in Geneina, where 90% of patients are treated for gunshot wounds
- IDPs not covered by health insurance have to pay for medication in Krenk camp of west Darfur
- Main disease in Krenk and Sisi camps is diarrhoea as the IDPs have no access to safe drinking
- Many IDPs requiring emergency surgery cannot be operated due to lack of adequate facilities and security conditions preventing their transfer to other medical centres
- MSF recorded 6 deaths per 10,000 people per day in Nyala camp which indicates an emergency (Jan 04)
- The hospital in Geneina capital of west Darfur had no regular electricity lacked surgeons and patients had to pay for drugs

“The only major health epidemic for 2004 was Hepatitis E, affecting 17,720 people including 166 deaths. The malaria season was comparatively mild consistent with the lack of rainfall over the wet season. However, there were still 168,584 clinically suspected malaria cases including 319 deaths. The catastrophic mortality figures predicted by some quarters have not materialised.” (UN H/RC, 1 January 2005)

“I estimate that up to 70,000 of the displaced people in the States of Darfur, Sudan, have died as a direct result of the conditions in which they are living since March 1st 2004. Further work will be needed to estimate the proportions of these deaths that are due to different causes, but most are due to diarrhoeal diseases exacerbated by malnutrition.

I estimate that the average mortality rate for all IDPs in Darfur during August 2004 was 2.6 per 10,000 per day, with a worst and best case range of 1.6 to 3.2.” (WHO, 15 October 2004)

“1.2 million people in Darfur region have fled their villages and are camped in 129 settlements across an area the size of France. The "crude mortality rate" that is usually used to define a humanitarian crisis is one death per 10 000 people per day. The WHO survey found the crude mortality rate to be 1.5 deaths per 10 000 people per day in North Darfur, and 2.9 in West Darfur. The survey looked at overall deaths and their

causes between 15 June and 15 August 2004. Results show that displaced people, in North and West Darfur are dying at between three and six times the expected rate.

[...]

The survey found that diarrhoea in particular is linked to the deaths of half to three-quarters of the children under five. Diarrhoea is often caused by unsafe water and poor sanitation. The combination of crowded conditions in the settlements, shortage of clean water, inadequate latrines, insufficient soap, and the mire caused by rain-soaked mud mingling with excreta, have combined to make hygiene an impossible goal for people living in small, tarpaulin-covered huts.

Some households reported deaths due to violence - particularly among men in the age group 15-49 years. Injuries and violence were linked to 15% of total deaths. This data indicates the continuing need to improve health referral services in Darfur, so that people who are injured can be treated with adequate supplies and expertise in health clinics and hospitals.

In the several months since the Government of Sudan eased visa and access restrictions, UN agencies, non-governmental organizations and the Government of Sudan have ratcheted up the delivery of relief assistance. In August sufficient food was provided for more than 900 000 displaced people. 700 000 now have access to clean water. Nearly 30 000 latrines have now been constructed, and 127 health facilities are reaching 950 000 people. An early warning system is detecting and reporting early stages of disease outbreaks which are being contained through widespread measles and polio immunisation, cholera prevention and malaria control. All these interventions help to keep death rates down.” (WHO, 13 September 2004)

“In North Darfur, our estimate of the crude mortality rate is about three times the expected rate for Africa. In West Darfur, our estimates suggest the crude mortality rate is six times greater and in Kalma camp seven times greater than the expected level (0.5 deaths /10,000/day). These estimates suggest that the humanitarian situation is still in the emergency phase.

[...]

The main cause of death reported during the survey was diarrhoea: 24 % in North Darfur, 37 % in West Darfur and 42 % in Kalma Camp, South Darfur. Diarrhoeal diseases are a major cause of death among children under five years of age. Deaths due to diarrhoea are likely to reflect poor environmental sanitation. Among adults between 15 to 49 years of age, injury or violence accounted for 44% of death in North Darfur, 41% in West Darfur and 63% in Kalma camp, South Darfur.

[...]

Among adults under 50 years old, injuries and violence were the main causes of death. A large proportion of IDP households had access to basic services, food and non-food items. However, about a third of households still lack access to safe water and sanitation.” (WHO, 15 September 2004)

“There is one health facility in the camp [in Krenik in west Darfur], which provides EPI services, once a week to approximately 100-150 children. All medical supplies are provided by the health insurance scheme. The IDPs that are not covered by the insurance have to pay for medications. The main diseases reported are diarrhea, dysentery, eye diseases and upper respiratory tract infections. SRC operates a pharmacy in the village, but there are limited supplies. The need to have more facilities and more human resources to address the needs of the population has been highlighted by MSF.

MSF-F reports that IDPs in Krenk and Sisi, NW of Mornei have no access to drinking water and have little food or medical assistance. MSF-France has counted 44 fresh graves - 17 of young children, which could indicate a very high mortality rate. MSF's team in Mornei is treating 159 severely malnourished children and 450 moderately malnourished children. There are concerns that the nutritional situation could deteriorate further. In addition, MSF has diagnosed three cases of meningitis over the past week. MSF has 60,000 doses of meningitis vaccines stored in Zalingei that could be mobilized if needed.

WHO has visited the hospital in Geneina. Although all patients are registered, there is unfortunately no system for keeping basic data on patients. The hospital is fully occupied, does not have regular electricity,

no X-ray machine, very limited laboratory facility and urgently needs additional staff, especially qualified surgeons and drugs. Although drugs for emergencies and accidents are free, patients have to pay for drugs. From the information on communicable diseases collected by WHO, it seems that 30-50% of cases seen are Malaria.” (UN RC, 2 March 2004)

“UNICEF and its partners are trucking water to camps and constructing wells, but the numbers of people who continue to escape the systematic burning of villages is threatening to overwhelm resources. Health services are hampered by the absence of health workers who have fled to safer areas.” (UNICEF, 20 February 2004)

“Major health problems described by IDPs are eye diseases and acute respiratory infections. The referral hospital in Geneina is the only one in West Darfur where 90% of the patients are being treated for gunshot wounds. There is one operating theatre and less than 100 beds in the hospital.” (UN RC, 19 February 2004)

“WFP staff members who just visited the displaced people in both Kutum and Geneina described their situation as deplorable: they have lost all their possessions, many are living in the open, without any facilities.

Women and children arrive exhausted; many with injuries, but there is no medical care. They are traumatised by what they have gone through. Their villages have been burned down, relatives and neighbours have been killed, and in fleeing, they have been forced to walk for days under the constant threat of further attacks.” (WFP, 18 February 2004)

“In the last few days alone, 10,000 newly displaced arrived in Mornay in need of basic medical care, including 50 wounded who were treated at an MSF health center managed by a nurse and logistician. Several patients required emergency surgery, but it was delayed for 48 hours because security conditions prevented their transfer outside the city. Some 30,000 displaced have been in Mornay for several weeks.” (MSF, 17 February 2004)

“At present, mortality rates are already high in the camps [in Nyala region] where there is minimal help: in the last two weeks, there have been 6 deaths/per 10,000 people/per day for children under the age of five. This is a rate that indicates an emergency medical situation.” (MSF, 15 January 2004)

“The situation with regard to medical supplies and vaccinations is also far from ideal. Now more than half ways through the three-month period covered, only 15% of the needs have been met, although the few currently accessible areas have been fully covered. Plenty of supplies are according to UNICEF in the pipeline to help cover the needs but insecurity, lack of health facilities, and lack of implementing partners on the ground are hampering deliveries.” (UN R/HC, 10 January 2004, p.1)

IDPs highly vulnerable to diseases due to lack of shelter, water and sanitation facilities (2004)

- 60% of IDPs in Darfur have no access to safe drinking water and 70% do not have latrines
- 90% of the IDPs in North Darfur have no shelter and registered rising respiratory illnesses
- IDPs camped with thousands others in dry river beds littered with animal faeces
- Tens of thousands IDPs live in the open with roofless shelters made of grass
- The lack of sanitation and crowded conditions in Darfur are breeding grounds for diseases
- Due to ongoing fighting only 6% of the water needs in Darfur have been covered
- While about 40,000 pit latrines are needed to cover the needs of IDPs in Darfur only about 2% have been provided

- Host communities in Western Darfur assist IDPs however the population of the towns swelled four times and coping mechanisms are stretched beyond limits

“Water and sanitation: About 60% of IDPs and conflict-affected residents do not have access to safe drinking water. Some 70% do not have access to sanitary means of excreta disposal.” (UN, 30 November 2004, p.99)

“Approximately 90% of the IDPs [in North Darfur]-- in four unorganised collection areas -- do not have shelter. This is impacting the health situation as respiratory infections are reportedly on the increase. ICRC is planning to distribute to some 3000 families.” (UN RC, 19 February 2004)

“Just back from a visit to the towns of Kutum and El Geneina, JoAnna Van Gerpen, UNICEF's Representative in Sudan, described the condition of displaced civilians as "shocking."

"One mother had arrived in Kutum three days earlier with her nine children from a village just three kms away" said Van Gerpen. "They were camped with thousands of others in dry riverbeds littered with animal faeces. Her only possessions were the clothes on her back and a jerry can for water provided by humanitarian workers."

"Tens of thousands are living in the open or in flimsy roofless shelters made of grass, too terrified to leave the town."

According to Van Gerpen the displaced are in a fragile condition, with the combined threat of insufficient food, poor sanitation, scarce water and crowded conditions providing a fertile breeding ground for disease.” (UNICEF, 20 February 2004)

“Water and sanitation needs still remain huge, despite large-scale interventions in Kebkaiya, Korma and elsewhere. So far, only 6% of the estimated water needs have been covered (94% of the needs in accessible areas). With regard to sanitation, to cover the entire IDP population according to Sphere standards, about 40,000 pit latrines are needed – however, only about 900 (2%) have so far been provided.

[...]

With regard to non-food items (NFIs), although almost 15,000 NFI kits, including shelter materials, blankets, soap and clothing, have been delivered, tens of thousands of IDP households still remain without any assistance of this kind. About 18% of estimated need in accessible areas have been covered so far.” (UN R/HC, 10 January 2004, p.1)

“Garsilla is normally a town of 4,500 residents, but today the town is host to an additional 18,000 internally displaced who have fled brutal and lethal attacks on their villages. This is a pattern that is repeated in all the areas MSF has been able to assess.

In Deleig, which has a population of 5,000 in peaceful times, there are an additional 17,000 displaced. Um Kher, with a resident population of 5,000, is home to a further 13,000 displaced. Today MSF is visiting Mukjar and Bindisi, where a similar situation is anticipated.

The displaced in all of these locations are not living in camps, but rather are gathered in various sites around the town, schools, offices, out in the open, or living with local families. The host community is assisting as far as they are able, providing food and non-food items, but as is to be expected when a population swells to more than four times its original size, resources and coping mechanisms are becoming increasingly strained.” (MSF, 10 March 2004)

IDP needs in Greater Upper Nile (Unity State/Western Upper Nile)

High mortality and malnutrition rates directly linked to conflict in Greater Upper Nile (2002)

- Very poor health, nutrition and water situation in Greater upper Nile due to continued insecurity
- Bieh reports the highest malnutrition rate in Sudan (Sept 2002)
- Global malnutrition was at 28,6% and several malnutrition at 8,7%
- Crude mortality rate was 1.5 deaths/10,000 lives a day
- Malnutrition in garrison towns of Unity State averages 30% (2002)
- Al Khazar malaria and TB are prevalent in the area
- Rub Kona town where IDPs seek assistance, recorded acute malnutrition at 38.4% well above emergency threshold (2001)
- 28,9% acute malnutrition in Bentiu town where relative peace attracts IDPs from oil-producing areas (2001)
- June 2000 survey showed that 75% people had been displaced and 93.4% had lost their cattle

“The population is mainly agriculturist and pastoralist and is estimated at 883,000 in River Nile, 598,610 in Blue Nile, 124,000 in Jonglei and 500,336 in Upper Nile. Floods in 1999, followed by poor and erratic rains in 2000, 2001, 2002 makes it certain that Jonglei will have a fragile food security situation in the coming year. Also reduced water levels due to less rainfall is likely to negatively affect the populations coping mechanisms. Swampy areas are a breeding ground for mosquitoes and water borne diseases such as malaria, Kala Azar and Guinea Worm, which is prevalent in parts of Jonglei and Upper Nile. For the same reason, wells and latrines are difficult to establish. EPI coverage is low and an area of concern with a rate of 8% in Jonglei and 27% in Upper Nile. The overall school enrollment rate is just over 30% in both Jonglei and Upper Nile, 32% in Blue Nile and 79% in River Nile. Schools lack trained and qualified teaching force. The affected caseload requiring humanitarian assistance is approximately 150,000 persons in Jonglei and 398,000 in Upper Nile.

Critical pockets and vulnerable groups: Inter-factional and inter-ethnic fighting, insecurity and limited access due to flight denials make the entire region a priority for life-saving and sustainable interventions. At least 30,000 IDPs in Ed Damazin in Blue Nile and 13,000 IDPs in five camps in Malakal (Upper Nile) depend on humanitarian assistance. Blue Nile is of special concern as access has consistently been denied and reliable data on the current humanitarian situation are not available. Access to areas along the Sobat river corridor has also been constrained by insecurity.

[...]

Operational constraints: Limited access by air, road and river, poor security for humanitarian staff, low capacity of local partners, low community involvement, lack of adequate physical infrastructure such as schools and health centres, lack of qualified and trained health personnel and teachers, low funding and an inadequate telecommunications system.” (UN, November 2002, p.35)

“The population is estimated at 4,091,869 most of them dependent on agriculture and raising livestock. A blanket flight denial existed to non-GoS held areas of this State from January to mid-June 2002 due to continued and intermittent fighting between GoS and SPLM/A over the oil fields. The majority of the population in the State has become increasingly vulnerable as a result of forced displacement, the impact of lack of access and security constraints. Beneficiary figures are difficult to determine due to high mobility and denied access. However in the garrison towns (Bentiu, Rubkona, Pariang, Mayom, Kumagon) the affected populations are estimated at 100,053 people. Most recent fighting in and around Mankien caused the displacement of over 25,000 IDPs into Mayom.

For over three years, malnutrition rates in the garrison towns have averaged approximately 30% with mortality rates ranging from 2 per 1,000 to 4 per 1,000 per day in Bentiu and Rubkona respectively. EPI coverage averages only 11.2%. [...]

The rainy season exacerbates the situation with seasonal outbreaks of malaria and respiratory infections. There is inadequate clean water and sanitation particularly in Rubkona, Mayom and Pariang. Kala Azar and TB are prevalent. Worth noting is the recent expansion of the security perimeter around Bentiu and Rubkona that has allowed beneficiaries to expand their coping mechanisms such as horticulture and pastoralism.

Critical pockets and vulnerable groups: Mayom, Bentiu and Rubkona, for the above- mentioned reasons and IDPs living in camps i.e. 1,458 in Tong, 26,575 in Bentiu, 25,004 in Rubkona, 11,856 in Pariang, 34,000 in Mayom, 942 in Kumagon and 218 in Tor.

Operational constraints: Inaccessibility due to flight denial and lack of roads, insecurity and swampy areas.” (UN, November 2002, p.36)

“Increased insecurity due to factional fighting in Bieh was reported during the month hampering the delivery of humanitarian assistance. Bieh is reporting the highest malnutrition rates in south Sudan. Lack of access to basic services and conflict is expected to perpetuate the food insecurity within the state.” (OCHA, 17 September 2002)

"ACF conducted two nutrition surveys in June 2001 in the two towns to assess the level of acute malnutrition. The survey in Bentiu estimated a prevalence of acute malnutrition of 28.9 % (W/Ht <-2 Z scores and/or oedema) including 4.8 % severe malnutrition (W/Ht <-3 Z scores and/or oedema). In Rub Kona the prevalence of acute malnutrition (W/Ht <-2 Z scores and/or oedema) was estimated to be 38.4 % with 6.8 % severe malnutrition (W/Ht <-3 Z scores and/or oedema) (ACF 23/06/01)." (ACC/SCN October 2001, p.18)

"One of the most common diseases in the region, kala azar, had been brought under control by 1998, but is now spiralling out of control. Kala azar is a bacterial disease of the liver and spleen, to which the malnourished are especially vulnerable. It is fatal in 95 per cent of cases. After renewed fighting and the looting of NGO compounds, key programmes, including a hospital in Leer, were closed. In the absence of medical services, the incidence of the disease today can only be very roughly estimated. But a spot check carried out at Nhialdiu airstrip by MSF-Holland in January 2000 found that 39 out of 50 people tested positive, a dramatic increase on the usual rate of one in three." (Christian Aid 15 March 2001, p. 14)

“However, repeated violent displacement combined with the inability to cultivate, the increase of disease and malnutrition, loss of access to clean water, loss of livelihoods, loss of seeds and fragile food security combined can have serious effects. In addition, traditional sources of income such as labour markets and economic migration have been disrupted, while many families have sold or been robbed of key assets such as cattle. This means that when people displace to other areas, they have few resources and are forced to rely on indigenous communities or relief.

[...]

The link between malnutrition and mortality from disease has been clearly established in medical research.[...] Malnourished children are more susceptible to die from diarrhoea and other basic diseases when they lack treatment. In western Upper Nile, the link between the conflict, food security and malnutrition is clearly demonstrated in the example of Padeah village: Padeah is located north-east of Ler town. In May 1999, armed conflict around Ler affected most villages in the area, right at the start of the period of cultivation in southern Sudan. Between June 1998 and early 2000, no humanitarian agencies had been present in the area, and no food distributions had taken place. MSF initiated activities in Padeah in early 2000 and became alarmed by the visible malnutrition among young children. MSF conducted two surveys in Padeah. The first survey, in June 2000, was a nutritional survey which also gathered information about rates of displacement and cattle losses.

Survey results showed that of the 271 families surveyed, 203 households (75%) had been displaced by the fighting and 253 households (93.4%) had lost cattle in the 1999 fighting. The global malnutrition rate was 28.6% and the severe malnutrition rate was 8.7%.²⁴ The crude mortality rate was 1.5 deaths/10,000/day.²⁵ The high malnutrition rates were related to the fact that people had been unable to cultivate in 1999 due to their displacement, had lost their cattle, had received no relief food, and were forced to await the new harvest in 2000.” (MSF, 30 April 2002, p.13)

IDP needs assessment in Western Upper Nile (2002)

- Shelters built from swamp reed due to lack of grass will not protect IDPs from rains
- One hut shelters from 10 to 35 people due to lack of building materials
- Women's entire days spend looking for food
- People eating only water lily and other wild food
- People have no fishing equipment for the rainy season onsets
- No health clinics neither health NGO present in the area
- No potable water neither any sanitation facilities and people bathe and drink in the same water with livestock
- Lack of firewood does not permit boiling drinking water

“The area of Chotchar is flat and open with few trees but many streams to cross, which provides an element of security for the people - though some streams are dry at this time of year. It is hot, and there are many flies during the day and mosquitoes at night. There are some cattle around grazing in the swamps, though most have gone further south towards the River Dol. Grass for roofing and trees for building are some distance away. People are surviving, but are under increasing pressure, including the host community. All types of assistance are required as soon as possible.

With the onset of the rains, generally by late May-early June, most of the airstrips in WUN become unusable for several months. [...]

Shelter

Some of the displaced people are living with, or alongside, the host population in Chotchar and the surrounding areas within a days walk of Chotchar. Many more displaced are living some distance away from the village proper - south west towards the River Dol. Shelter is a major problem, since there is little grass available this time of year. Many have built makeshift shelters from swamp reeds. These provide some shadeduring the day but will most certainly not keep people dry and warm during the coming rains.

The team found that the lack of building materials mean the *tukuls* being built are smaller than usual. Yet the number of people dwelling in each shelter is much higher than normal. In some huts, the team found anywhere from 10-35 people in residence. [...]

There seemed to be a large number of women-headed households. Some of the women stated that their husbands were dead. For others, it is likely their husbands are fishing at the *toic*, (swamp lands), or had taken their cattle to grazing areas. Many of the women said all of their time was taken up trying to find food for their family. They did not have time to worry about shelter. This will change soon, though, as the wet season kicks in.

Food

Many of the displaced people are surviving on water lily and what little grain relatives or hosts can share. The team was shown water lily in most of the homes, along with other types of wild foods. Many women,

especially those from Nhialdiu, said they were having to learn about these wild foods in order to keep their families alive.

[...] It is also difficult to tell how much seed will be held back for planting, if the host population has to feed the displaced for much longer.

The team heard of people being sent to the fishing camps in order to catch and send back dried fish. However, dried fish was not in evidence as the team toured Chotchar. Few people mentioned having hooks or nets. Once the rains begin, and the rivers and swamps rise, it will be impossible to fish with spears.

Livestock

Many of the displaced people managed to flee with some livestock - though many lost some also. Since the attacks took place during the dry season, most of the livestock had already been taken from the villages to the toic. Those interviewed said milk production is always down during the dry season. The cattle did look relatively healthy. Most of the cattle have been taken towards the River Dol to the south, where there is better security and better grass. However, if the displaced are not able to build proper shelters for their livestock before the rains begin, the health of the cattle will quickly deteriorate when they are constantly exposed to the wet conditions and the mosquitoes. Goats, in particular, do not withstand such weather and are likely to succumb quickly to disease.

[...]

Health

People interviewed said they had little to eat and that this was affecting their health. Although there were no signs of serious malnutrition, people were thin and in need of more nutrition. Children were skinny but were not yet listless. Rather, the children were seen to be attentive and playful. [...]

There is no health NGO in the area, nor are there any health clinics. The team met one medical assistant and several community health workers but they had few drugs with which to treat people and no centre from which to operate. Those drugs had been brought recently by Safe Harbor. The chiefs informed the team that there were the usual health problems - diarrhoea, malaria, upper and lower respiratory infections, fevers and general weaknesses. Kala-azar is one of the most prevalent diseases in Upper Nile but the team was not told of suspected cases. Guinea worm and river blindness are also known to be highly prevalent in the region. A proper technical medical assessment is needed.

There is no potable water in the area and sanitation is non-existent. There were no hand dug protected wells or latrines. The team encouraged the local SRRA to educate the community and organise a campaign. There was a little soap available in the markets but most people are too destitute to afford it.

Food was the first priority

People are bathing in filthy swamps that they share with livestock. This is also the source of their drinking water. Since firewood was at a premium, it is unlikely the SRRA will be able get people to boil their water. Nor was there any evidence that people were attempting at least to filter their drinking water.

As for mortality figures, neither the SRRA nor the health staff are keeping records of numbers or causes of death.

Psycho-social aspects of the conflict

Most of the displaced people gave horrific accounts of bombardments and gunship attacks. Many interviewed were chased and shot at by the horsemen. All too many of those interviewed spoke quietly of relatives, even their own little children, being killed in front of them. There has been a systematic and wholesale abuse of human rights against its own civilians by the government despite the many overtures made by the Sudanese government officials to the US special envoy, former Senator Danforth.” (Dan Church Aid/Christian Aid, 31 April 2002, p. 8-10)

IDP needs in Greater Kordofan, Nuba Mountains, Abyei and Blue Nile

Traditional livelihoods and social services need rehabilitation in transitional areas (2004)

- Under-five mortality rate in the Nuba Mountains is estimated to be 147 per 1,000 live births, and in Blue Nile State 172 per 1,000 live births, the highest in northern Sudan
- People in Blue Nile walk up to 15 Km to fetch water
- 22% global malnutrition in Southern Blue Nile IDP camps and 5,6% severe malnutrition in 2003
- Most IDPs in Jamam camp rely on the river as there is only one water reservoir in Blue Nile
- IDPs are highly food insecure in Nuba Mountains as a result of unequal access to land and unresolved land disputes
- 72,000 IDPs expected to be affected by 40% food-deficit including those living in "peace villages" (2001)
- Peace processes in Abyei have improved access to land however conflicts over access to water between farmers and pastoralists prevail
- IDP pregnant women face serious obstetric dangers in Abyei due to lack of reproductive health services
- IDPs gathered in 72 government-controlled "peace villages" in the Nuba Mountains suffered from conditions associated with chronic emergencies
- Government-held garrison towns dominate the fertile lowlands of the Nuba Mountains and provide a base for militia raids against populations in the mountainous SPLA-controlled areas

"Basic health indicators in the transitional areas are poor. For example, the under-five mortality rate in the Nuba Mountains is estimated to be 147 per 1,000 live births, and in Blue Nile State 172 per 1,000 live births, which is the highest level in northern Sudan.

[...]

Levels of access to safe drinking water and improved sanitation are low across the transitional areas. Access to safe drinking water is particularly poor in Blue Nile State, where many water reservoirs (*hafirs*) dry up during March-June, making it necessary for people to travel long distances (7-15 km) to fetch water." (UN 30 November 2004, p.143)

Blue Nile State

"Since the conflict began in 1987, accessibility to the area has been denied and as a result, no food aid has been distributed in the state. A rapid assessment in February 2003 recommended food aid support to 30,188 IDP beneficiaries for a duration of six months (March – August) 2003." (UNR/HC, Blue Nile State, 28 June 2003, p.7)

"Under these conditions children under five years of age are particularly vulnerable to malnutrition. [...] The total global malnutrition rate therefore stood at 22.22% or 207 out of 932 children. 20 newly born children out of the total group stood out clearly as Oedema cases with mild signs of kwashiorkor. Prevalence of malnutrition was also notably higher in girls as compared to boys (12.88% and 9.33% respectively- possibly due to cultural eating habits which favour boys to girls). It was also noted that the age bracket of 13-36 months, which was basically the weaning period, accounted for the highest number of cases of malnutrition (14.05%)." (ACT, 11 April 2003, p5)

“One existing *hafir* [*manmade water pools or reservoirs*] serves the population of El Jamam IDP camp. For the majority of people, the main source of water is the seasonal river. Open shallow wells have been dug inside the riverbed, which are fragile and collapse regularly, and are an unsafe source of water. Additionally, very few people have adequate jerricans or buckets to store water and possess only gourds or small pots.” (UNR/HC, Blue Nile, 18 July 2003, p.5)

“While the water needed for both human and animal consumption is estimated at 65,405 m³/day, the current water production in the Blue Nile is 10,960 m³/day, indicating a deficit of 83% [...]. Consequently, IDPs suffer severely from water borne diseases, bilharzias as highlighted by the State Ministry of Health [...].” (UNR/HC, Blue Nile State, 28 June 2003, p.12)

Nuba Mountains, so-called “peace villages” and Abyei

“The population in the region is estimated at 3,700,000 of whom IDPs scattered in the three states and some returnees to the Nuba Mountains and Abyei receive humanitarian assistance. They are mainly agro-pastoralists and traders. War has led to widespread destruction of traditional livelihoods and complete breakdown of social services in south Kordofan, while recurrent droughts in North Kordofan resulted in food insecurity for many households. Malnutrition rates in IDP camps and so-called Peace Villages reportedly average 17% in North Kordofan, 8% in South Kordofan and 11% in West Kordofan. Major constraints to livelihoods are recurrent droughts, inadequate access to arable land, because of unresolved land tenure issues, and conflict forcing populations into unsustainable farming practices. EPI coverage registers the lowest rate of 35.4% in West Kordofan, 65% in South Kordofan and 68% in North Kordofan. School enrolment is low in North Kordofan with a rate of 34%, 46% in West Kordofan and 52% in North Kordofan.

The overall humanitarian situation in the Nuba Mountains has been improving over the past eight months as a result of the renewed cease-fire agreement signed in January 2002. Needs assessments have identified a chronic lack of agricultural inputs and depleted livestock assets as key factors behind the deteriorating humanitarian situation. Other areas of concern focus on rehabilitation of livelihoods, healthcare requirements, education opportunities and sustainable food security coupled with economic recovery. Education remains a critical area with enrolment rates standing at 37% for GoS areas and 27% for SPLM/A areas. Few Nuba retain access to their traditional land. In Abyei the grass-roots peace process has facilitated increased access to land, return to some previously abandoned villages and to traditional farming practises which reduces their dependency on relief aid. Conflict over water will continue to be an issue between pastoralists and farmers. Shared management of basic services such as health, education and veterinary services, is being adopted as a mechanism to promote conflict transformation in the area.
[...]

Critical pockets and vulnerable groups: Cease-fire and local peace processes in Nuba and Abyei should reduce needs for emergency assistance and lead to humanitarian-plus programming being a priority. However, a total of 80,616 IDPs (34,884 IDPs in Kadugli, 6,000 in Dilling, 4,351 in Rashad, 12,000 in Abu Gabra, 18,000 in Talodi, 5,381 in Lagawa) and 17,149 returnees are in need of humanitarian assistance.

Operational constraints: Lack of funding for humanitarian-plus programmes, poor infrastructure, landmines, limited access and cumbersome administrative procedures.” (UN, November 2002, p.33-34)

“The majority of the region's IDPs are located in 72 Government peace villages scattered throughout the Nuba Mountains. In the villages where OLS mounts humanitarian interventions, beneficiaries continue to suffer from conditions associated with chronic emergencies. A large part of the IDP population, however, is not accessed by the humanitarian community due to Government restrictions and insecurity, and their condition is not known.” (UN January 1999, “North and South Kordofan States”)

“Garrison towns held by the GOS dominate the fertile lowlands of the Nuba Mountains and provide a base for militia raids against populations in the mountainous SPLA-controlled areas. The impact on the local population has been devastating: over the years many people have died and even more have been forced to

migrate to northern urban centers in search of food and shelter. Primary health care, water, and long-term food security are humanitarian needs than continue in the SPLA-controlled areas." (USAID 20 April 2001)

"The displaced population in Abyei is around 5,009 people. Abyei hospital lacks basic medical equipment, a doctor and a midwife. The drugs supply has run out before the target date due to increase in numbers of displaced. However, the other common diseases are malaria, ARI and diarrhoea. Diarrhoea is usually common at the beginning of the rainy season due to poor sanitation system.[...] In Abyei pregnant women from IDP camps have to travel long distance to the state capital to receive the emergency care because the only doctor of the rural hospital has no equipment and supplies to deal with obstetric complications." (UN November 2001, p.52)

Assessment of Nuba IDPs needs in view of return and reintegration (IOM/UNDP) (2003)

- About 4,400 Nuba households were surveyed in 12 states
- The majority of Nuba IDPs surveyed were between 20-39 years old
- 53% of all Nuba IDPs have no education
- 44% of Nuba IDPs have no documentation
- 94% of IDPs interviewed reported having no health related vulnerability
- Half of the 69% IDPs who claimed to know about HIV/AIDS lacked correct and sufficient knowledge about how it was transmitted or prevented
- Many Nuba youth are victims of poverty and drug addiction
- Children under 10 work in physically demanding jobs such as rock breaking

"For the Nuba Survey, the NNGOs together surveyed approximately 4,400 households.

This report concentrates upon the data collected from the Profiling Survey funded by UNDP, carried out with the Nuba IDPs by SARRD and Ru'ya, in the IDP areas of concentration in the following 12 States of Sudan:

Gezeira, Gederaf, Kassala, Khartoum, North, South and West Kordofan, Northern, Red Sea, River Nile, Sinnar and White Nile.

[...]

Among those representatives of IDP households interviewed, a majority were aged between 20 and 39. Within IDP households, over 50% of the members are under 19 years old, with 18% less than 5 years old. Only 3% of household members were aged over 60 years old.

The majority of Khartoum IDPs originated from Greater Kordofan. In most cases, this is also the place where they want to go back to. Generally, most Nuba IDP households have been in Khartoum for over 10 years, having left their original areas in the late 1980s. Three quarters of the households claimed to own property before leaving their place of origin (house, land and livestock). Of these, only a third claim to have any control over it, through family and friends.

[...]

Before leaving their places of origin, over a third of the respondents were employed in agriculture and half said they were self-employed, which was assumed to probably mean agriculture. When asked if they would return to their former employment, most gave no answer, only a very few said 'Yes'. With respect to the difficulties to go back to their previous activity, over three quarters would welcome professional training in order to do better their previous job or to start a new profession. The type of assistance requested includes support in return transportation, money to start their activity, agricultural inputs, the rebuilding of their homes and clothing, in most cases the IDP households said that they would need a cash grant, money/loans to restart their activity or assistance in a search for a job or employment. A much higher proportion of the

Nuba IDPs compared with the Khartoum IDPs indicated their requirement or expectation of some form of assistance for return and reintegration.

[...]

Education and Professional Training by Age

Some 53% of all Nuba IDPs surveyed, of all age groups, have no education.

[...]

Between 6 – 18 years old, 40% have attended Primary, 4% Secondary education and less than 1% University.

[...]

Identity Documentation by Age

For all age groups, 44% of Nuba IDPs have no documentation, compared to 36% as found for Khartoum based IDPs. 33% have at least a birth certificate, 13% at least a Certificate of Nationality and 5% at least an Identity Document.

[...]

IDP Household Members' Health Status

94% of the IDP household members were reported as having no health related vulnerabilities. Of those declaring health vulnerability, a little fewer than 4% are Chronically Ill, 1% is Physically Disabled and less than 1% are Mentally Ill.

[...]

Awareness of HIV/AIDS and Main Sources of Information

The questionnaire was also designed to obtain information on the level of awareness on HIV/AIDS. 69% of those interviewed have declared to be aware of HIV/AIDS. However, during subsequent questions about the transmission of the AIDS virus, almost half of those that believed they were aware of HIV/AIDS, were found wanting. This is of some concern and equates to over a third of the respondents questioned.

[...]

5. Issue Surrounding the Situation of IDPs

1. Spread of illiteracy among the youth and adults
2. The displaced from the Nuba Mountains are living below poverty level and their inability to overcome the current situation was observed by the teams and expressed by the interviewees.
3. Decay of the social texture of the Nuba community. This situation does not exist everywhere as there are also evident cases of strong solidarity across the different tribes of Nuba people
4. Nuba youth are victims of poverty and drug addiction which has resulted directly and indirectly in the spread of crimes and fatal diseases among the youth
5. Children under the age of 10 are involved in physically demanding jobs, such as sand digging and loading sand, rock breaking and sugar-cane burning
6. Women involved in making and selling alcohol are subjects to continuous harassment by the Public Order authorities
7. Loss of identity and culture among the youth especially younger women; where language and cultural practices that used to be the norm and represent the identity of the Nuba women have been denied.” (IOM/UNDP, 28 February 2003, p8,9,10,19-21, 48)

IDP needs in the Bahr El Ghazal Region

Malnutrition in Bahr el Ghazal due to insecurity and lack of access for emergency food delivery (2002)

- Access constraints reduced the ability to address the needs of 579,760 IDPs (2002)
- Global malnutrition was 10% in GoS controlled areas compared to 29% in SPLM/A controlled areas of Bahr al Ghazal (2002)
- IDPs in Wau town cannot afford to supplement WFP's half food ration due to sorghum price rise

- 75,000 IDPs and the host community in Gogrial counties have no access to safe water (Sept 2002)

“Poor nutritional status, particularly in Aweil and Wau, is reflected by almost 10% of children under-five suffering from moderate malnutrition and 8% severely malnourished. The nutritional situation is worse in SPLM/A held areas with 29% global malnutrition in Twic country, 20% in Aweil east and 18% in Gogrial. Although 80% of employment is in the agricultural sector, harvests invariably fall-short due to drought and exacerbated by the civil war and inter-ethnic conflict.

Critical pockets and vulnerable groups: insecurity and high malnutrition rates critically affect Twic County, Aweil East, Gogrial and Aweil West. EPI coverage is also low in these areas ranging from 25% to 0.1%. In 2002 101,126 children were vaccinated against polio. School enrolment is low, with an overall average of 14%. The affected caseload requiring humanitarian assistance and services (550,000 persons) includes 6,281 IDPs in Aweil, 119,724 in Wau, 15,000 in Raja and 438,755 in Rumbek, Cueibet, Yirol and Tonj Counties. Other vulnerable groups are children and the handicapped, pregnant and lactating mothers, and minority ethnic groups who are given unequal access to resources.

[...]

Operational constraints: Limited access to beneficiaries due to insecurity, lack of adequate physical infrastructure such as schools and health centres, lack of qualified and trained health personnel and teachers, lack of updated statistical and demographic data.” (UN, November 2002, p. 29)

In Gogrial County

“WFP, SC-UK, Supraid and WHO carried out a joint assessment of IDPs from Western Upper Nile displaced into Gogrial, Twic and Tonj Counties. The assessment revealed over 127,000 IDPs. Results indicate that 75,000 IDPs and the host population in Mayen Jur and Thiek Thou (Gogrial counties) have no access to safe water. Major needs include IDP kits, water and sanitation services, health services food, fishing equipment, food and veterinary services and tracing services.” (OCHA, 17 September 2002)

IDP needs in the Equatoria and Bahr El Jebel Regions

IDPs in Equatoria highly dependent on aid (2003)

- 75% of the food consumed in Mabilia camp is from relief aid
- Up to 45% food deficit for IDPs in 2003 in Tambura
- Up to 54.4 % food deficit for 45,528 IDPs in and around Juba town in 2003
- LRA attacks during 2002 have destabilised the Equatoria food surplus area
- IDPs settled in Juba town for over 11 years have been critically food vulnerable
- Juba relies on food air drops from the North which makes food extremely expensive and insecurity often hampers deliveries

“Since December 2001, 26,000 IDPs in Mabilia camp have survived on food aid. WFP reports that 75% of the food consumed in the camp is relief food. For 2003, WFP projected that approximately 15,000 IDPs and 3,000 returnees and refugees would face an annual food deficit of 40-45% with January to July being the most critical time period[...]. Tambura County can be considered to have a minimal proportion of its resident population who suffer from hunger. This does not hold true for the IDP and returnee population.” (UN R/HC, Tambura, 27 June 2003, p9)

“Data for areas under GoS administration indicates that farmers around Juba are projected to produce only 21.6% of the annual food requirements from their own crop production. A total of 45,528 IDPs in and

around Juba town will face a food deficit ranging between 23.5% and 54.4 % of their food requirements during 2003 while 8,130 residents of Mangalla area will face a 53%.food deficit [...].(UN R/HC, Juba, 23 July 2003, p4)

Needs of Juba long-term IDPs:

"Juba is a government held enclave in south Sudan that has received enormous amounts of IDPs over the course of Sudan's 11 year civil war. As a government enclave it depends on supplies from the north of the country and as a result of ongoing insecurity in the Upper Nile and Unity states, the normal supply barges from Khartoum have been unable to get through. This has resulted in a reliance on air support and as a result many food items are extremely expensive." (ACC/SCN October 2001, pp.18-19)

"The displaced people were earlier re-settled in camps in the out-skirt of Juba where they were able to cultivate and earn their livelihood. In June 1992, their camps were destroyed when SPLA attacked Juba, and they were forced to camp in open spaces within Juba town. In 1995, the Government of Sudan stopped blanket distribution of food; this made the IDPs to exert effort and embark on food production. Lately the IDP population has been assimilated in the ordinary population of Juba. In 1997 we witnessed another influx of 15,000 civilians and some refugees into Juba town when the SPLA captured a string of towns along Sudan-Uganda-Zaire borders. In the same year 1997, crops were affected by drought. In 1999, during the month of August and September, there were heavy rains, which caused flood and severe damage to crops.

[...]

The long term displaced in Juba are now assimilated in the town, but still the new arrivals are lodging outdoor in the market verandas. In other areas, where people fled from the war zone to stay in villages under government control, there are also new arrivals in need of shelter before they settle. Especially, groups like widows, elderly people, women heading household, since it became difficult for them to construct a house. Plastic sheets will be the suitable material to use for shelter." (ACT 29 March 2001)

IDP needs in Kassala and Red Sea States

Kassala and Red Sea state IDPs caught between fighting and drought (2004)

- October 2004 survey found that the global malnutrition rate among IDPs in Kassala State is 13%
- Kassala 45,000 IDPs suffer from global malnutrition rates of 18% compared to the state average at 8% in 2003
- Under-five mortality rates in Red Sea State are 165 per 1,000 live births compared to the 94/1,000 average in Northern Sudan
- Water and cooking fuel are scarce resources needed to be trucked from long distances
- Malnutrition rates among IDPs range between 19 and 26% in Kassala
- IDP female-headed households particularly vulnerable due to lack of access to employment outside the home in Kassala
- 30% under-five malnutrition rates due to severe drought in Red Sea State in 2002
- 1/5 women malnourished and 10% are severely malnourished in Red Sea State
- Red Sea State suffers 60% food deficit in 2003
- 15,000 IDPs in Sinkat province meet only 25% of their food requirements

"Levels of malnutrition in eastern Sudan vary considerably but are generally high and volatile. In 2003, for example, surveys in Red Sea State found that the global malnutrition rate was 32%. A GOAL survey from

October 2004 found that the global malnutrition rate among IDPs in Kassala State is 13% and the prevalence of severe acute malnutrition was one percent. Compared to the last nutrition survey there is slight increase in both rates.

[...]

Access to healthcare facilities in eastern Sudan is poor. Reflecting this, under-five mortality rates in the region are significantly higher than the average for northern Sudan, ranging from 117 per 1,000 live births in Gedaref State, to 165 in Red Sea State, compared with an average for northern Sudan of 94. Rates for detection and cure of diseases such as tuberculosis are also considerably below the national average.” (UN 30 November 2004, p.162)

Kassala

“More than 45,000 are IDPs and considerable numbers are Eritrean refugees. The vulnerability of IDPs is highlighted by a global malnutrition rate of almost 18%, which contrasts sharply with the average of 8% for the region. These areas have also been seriously affected by flooding and, as a result, large numbers of people are in need of assistance in order to help them recover from this crisis.” (UN, 18 November 2003, Vol.II, p.42)

“The early October 2002 conflict on the border of Kassala state and Eritrea resulted in displacement of civilians from Hamish Koreib province. By 29 October, some 12,000 people had been uprooted from homes in an area stretching north of Kassala town to Hamish Koreib, with many IDPs walking a distance of up to 200km to seek refuge. Living conditions are basic to extreme and there is an urgent need for food and non-food items. [...]The three locations planned for relief operations offer certain advantages in being closer to natural resources than other locations. Still, water and cooking fuel remain scarce throughout Kassala State and must be trucked in from distant locations. A water well exists at Tugulei but will need to undergo urgent repair. No suitable accommodations or basic services exist in the area, which necessitates agency staff being based in Kassala town and travelling 100 to 180 km daily to and from the area of displacement.”(OCHA 24 November 2002)

“However, for 93% of the IDPs the main source of food was WFP distribution” (RNIS 41, 30 April 2003)

“General overview: Kassala is a catchment area for IDPs, refugees and migrants. The population of 1,620,000, mostly farmers and agro-pastoralists, more than 45,000 are IDPs and 91,000 Eritrean refugees.[...] Their primary source of employment is casual farm labour. The vulnerability of IDPs is highlighted by a global malnutrition rate of almost 18%, which contrasts sharply with the average of 8% for the region. However, the steady decrease in agricultural production and employment is likely to lead to a corresponding increase in the malnutrition rate. The most vulnerable, and likely to be amongst the first affected by a further decrease in food security, are IDP and refugee female-headed households as cultural and social morays inhibit refugee and IDP women's mobility and engagement in employment opportunities outside their homes.

[...]

Critical pockets and vulnerable groups: A significant number of IDPs and refugees in Kassala rely on humanitarian assistance for survival. (Indicative of the vulnerability of IDPs is the 19-26% rate of malnutrition in the Gulsa, Fata and Dabalaweit IDP camps.)

Those living close to the Eritrean border are vulnerable to Unexploded Ordnances (UXO) and landmines. In the Red Sea State the most affected areas are Tokar and Halieb provinces, which register the worst social indicators for malnutrition in adults and children. Mortality rates are also the highest in these provinces, reported at 1 per 10,000.

Operational constraints: Land cultivation has been limited by insecurity, landmines (close to the Wad Sharife refugee camp, the Fata, Awad and Dabalaweit IDP camps in Kassala and in south Tokar), inadequate funding of emergency programmes, limited presence of NGOs, sparsely populated areas, difficult terrain, and the rapid growth of the *Meeskeet*11 Meeskeet is a land protection shrub introduced to stop desertification, which has encroached on arable land. tree. This has constrained livelihoods and caused

major displacement. Other constraints include geographic isolation and low community involvement - particularly due to the exclusion of women.” (UN, November 2002, p.32)

Red Sea State

“According to the WFP/FAO Annual Crop Food Supply Need Assessment, a food deficit of 60% is estimated for Red Sea State in 2003. The most vulnerable persons in the communities who include under five children, pregnant and lactating women, the elderly, school going children, and internally displaced persons (IDPs), can now meet only 25% of their food requirements through purchase. Kinship support supplements a further 15%. Expenditure for non-food items is non-existent for the people, indicating a major compromise on existing health and education services. The MoH and Oxfam have reported progressive annual increases in malnutrition rates.

[...]

This appeal will complement the food distributions [...], assisting about 89,000 of the most vulnerable people in Sinkat province inclusive of the 15000 IDPs.” (IFRC, 1 July 2003)

“The Red Sea State currently suffers from severe drought affecting sustainable livelihoods of most of the population. Lack of basic services such as health care and sanitation negatively affects the health and nutrition status of the population. One in five women is malnourished while one in ten women is severely malnourished. Malnutrition rates for children under-five have steadily increased to 30% and are likely to climb further. Increased incidence of night blindness has been reported with 10% of the population currently affected. Ninety-five percent of the population is nomadic with the remainder being agro-pastoralists and traders. Only 30% of the land is available for agriculture. This land is located around South Tokar where the deltas flood. The affected caseload requiring humanitarian assistance in Red Sea is 250,000. Water is also a critical need and a major determining factor for household migration.” (UN, November 2002, p.33)

IDP needs in White Nile State

IDPs in the White Nile settled on old garbage dump (2003)

- All IDP camps lack water and sanitation services and 90% of the population have no access to these services in White Nile
- Safe drinking water and adequate sanitation services; the Kadogli IDP settlement in Kosti Province is located on an old garbage dump
- In Kadogli there are poor services, overcrowding and sanitation and environmental health are dire
- An international NGO employed women to clean the settlement using a Food for Work approach
- Moderate malnutrition in IDP camps 16% and severe 9%
- Only 39% out of the population have access to drinking water in White Nile
- Exacerbating the poor health status of the IDPs is the absence of sanitation services as a result under five mortality rate is 111 per 1,000 live births
- Most vulnerable are women who make 75% of IDP population and have scarce access to sources of employment

“In all IDP camps in the White Nile state, lack of water and sanitation services have been observed as a major cause for concern. About 90% of the population have no access to safe drinking water and adequate sanitation services; the population drink and use untreated water from the White Nile while some use available water from the stagnant pools during the rainy season [...]”(UN R/HC, White Nile, 8 July 2003, p.13)

“Kosti Province is located in White Nile State. It hosts a large number of the displaced that are living in a situation of poverty and the problems associated with it. Our case here is regarding a group of women living in Kadogli IDP settlement. The quarter is a perfect example of negligence, poor services, overcrowding and an overall situation of deterioration of sanitation and environmental health. The settlement is established on the site of an old garbage dump for Kosti. Another problem facing the residents of the settlement is that the site where the settlement is built was also used as an area for digging and collection of sand leaving behind a number of ditches which constitute a health problem as they catch rainwater, creating a suitable environment for the breeding of mosquitoes.

An INGO decided to solve the sanitation problem of the settlement through organizing a cleaning campaign to employ women to clean the settlement using a Food For Work approach. The initiative is *positive* to start with, as the intention was to create job opportunities for women and result in a clean settlement. However there are some reservations vis-à-vis the following:

The nature of work is hazardous for women’s health as there is no protection or health insurance or cash to cover the cost of treatment.

The Nuba women are the only group employed in this program, making the observer wonder about casting of Nuba people in jobs that are not done by other ethnic groups. The marginality of the jobs may compound the marginalization of the people who perform them.

INGOs may fall into the trap of reinforcing marginalization of certain groups by developing projects with particularly unfavourable working conditions

Public health is, primarily, the responsibility of the government and not of the Nuba community and if the Nuba women are expected to take over such a responsibility then the terms and conditions *have to change* to protect their own health and welfare.” (IOM/UNDP, 28 February 2003, pp.48-49)

“The IDPs are largely reliant on humanitarian aid as their traditional means of livelihood support, agro-pastoralism, is largely thwarted by drought and the limited availability of arable land. Moderate malnutrition rate in the IDP camps is 16% and 9% severe. The IDPs are particularly vulnerable to waterborne diseases, which proliferate during the periodic floods that the White Nile State is particularly subject to. Floods have affected 35,000 people in El Geteina and Ed Duem Provinces in 2002.

Throughout the State only 39% of the 1,389,106 people have improved drinking water sources. Further exacerbating the poor health status of the IDPs is the absence of sanitation services. It is therefore not surprising that the under five mortality rate is 111 per 1,000 live births and the Infant mortality rate 101. Conversely, EPI coverage is relatively good at 79%.

Critical pockets and vulnerable groups: Dan Kuch, Goz Es Salam and Liya IDP camps in Kosti, where labour opportunities are scarce, disaster-affected persons, women who make up 75% of the IDP population, especially widows, and 3,000 street children.” (UN, November 2002, p.37)

ACCESS TO EDUCATION

General

War and lack of education facilities have deprived displaced and other children from learning opportunities (2005)

- Adult literacy in southern Sudan is only 24%, adult female literacy half of that
- Only one in five children of school age is in class in southern Sudan with gross primary enrolment rate at 22%, of whom only 27% are girls
- Only 6% of the teachers have been formally trained while 45% have received limited in-service training in southern Sudan
- For some 55,000 children of IDP, returnee and refugee families, enrolment rates are only 40% in Eastern Sudan
- Gross enrolment rate in 2001-2 in GoS areas was 57.7%
- Gross Enrolment rates in areas controlled by SPLM/A is about 31% but it is only 10% in some areas of southern Sudan
- Inadequate school facilities and inability of parents to pay fees are causes for low enrolment and high drop-out rates
- Most IDPs depend on NGOs and UN agencies for access to education
- In SPLM/A areas only 12% of schools have permanent structures and over 70% have no latrines
- In Sudan children have less than 16% of the teaching materials needed
- In GoS areas only 12% of the teachers are qualified and about 7% in SPLM/A controlled areas

“Access to basic social services in southern Sudan is one of the lowest in the world. Adult literacy is only 24%, adult female literacy half of that. Only one in five children of school age is in class. The gross primary enrolment rate is estimated at 22%, of whom only 27% are girls; school infrastructure is rudimentary or non-existent. Only 6% of the teachers have been formally trained while 45% have received limited in-service training.

[...]

Gross primary education enrolment rates in the three states of eastern Sudan are between 50 and 60% of primary school age children, compared with over 80% in Khartoum State. For some 55,000 children of IDP, returnee and refugee families, enrolment rates are only 40%.” (UN 30 November 2004, p.45, 162)

“By the end of December, primary school enrolment increased from 91,015 to 153,168 IDP pupils through the construction of 1,193 temporary classrooms and the training of 1,756 teachers [in Darfur]. Each of the new schools was supplied with teacher and pupil kits, a limited supply of library text books as well as skipping ropes, footballs and other items for recreational use in the school playgrounds. In addition, school uniforms were distributed to the female pupils.” (UN RC, 25 January 2005)

“The civil strife in southern parts of the Sudan, the successive waves of displacement of population from areas affected by conflict and recurrent drought/flood, coupled with the lack of adequate educational facilities in these areas and areas inhabited by internally displaced persons (IDPs) and returning IDPs continue to deprive thousands of primary school-age children of access to quality learning opportunities. The data available with the Federal Ministry of Education indicate that the gross enrolment rate (GER) for

primary cycle of education (grades 1-8) in 2001/02 in GoS areas was 57.7%. The GER for girls was 53.4% compared to 61.9% for boys. The total number of out-of-school children (6-13 years) was 2.65 million in 2001/02. The enrolment rate for children of nomadic families is estimated at 36%. Though there is insufficient data on enrolment rate for internally displaced children, it is estimated that the vast majority of the school age children of IDPs are not enrolled in schools. While the GER in SPLM areas is 31%, in some parts of the south, enrolment rates are below 10%. The GER for girls in SPLM areas was estimated at 16% compared to 37% for boys in 2001/02. Of those who are enrolled in schools in GoS areas, over 30 per cent of them do not reach fifth grade. In SPLM areas, only 21% of enrolled children were in upper classes (Grade 5-8) in 2001/02 and the dropout rate remains very high, particularly between Grades 1 and 2. The number of pupils in grade 2 was only 57% of those in Grade 1 and the number in Grade 3 was only 40% of those in Grade 2.

Frequent disruptions of education, insufficient educational facilities, unattractive learning environment and the inability of parents to meet the direct costs of schooling are the major factors contributing to low enrolment levels and high drop-out rates. A sizeable number of schools are housed in dilapidated structures and are deficient in terms of essential classroom furniture, and teaching-learning equipment/materials and water supply and sanitation facilities. The total number of primary schools in GoS areas in the country in 2001/02 was only 12,106 for a primary school age (6-13 years) population of 6.84 million. Children of IDPs and returning IDPs have only limited educational opportunities with basic education services being provided mostly by local authorities and NGOs with support from international NGOs and UN agencies. The estimated number of schools in SPLM areas is 1,500 with an average of just over 200 children per school for a school-age population of over 1.06 million. Only 12% of classrooms in SPLM areas have permanent structures and 43% of all classes in these areas are taught outdoors. More than 70% of schools have no latrines and 58% have no source of clean water.

Available information indicates that learning achievement of significant proportion of pupils do not measure up to the expected levels. This reflects the poor quality of education, which is attributed to the unsatisfactory learning environment, non-availability of teaching-learning materials and shortage of qualified teachers. The average textbook to pupil ratio is 1:3 in GoS areas but in many schools in rural areas it could range from 1:5 to 1:10. A baseline survey results in the southern Sudan recorded a total of 94,387 books in the schools. Assuming that there should be one textbook shared between two pupils for at least each of the four core subjects, this indicates that the available books cover less than 16% of the total books needed. In GoS areas, out of the 127,987 primary school teachers in 2001/02, only 12% of them had the prescribed qualifications. About 41.3% of the 76,616 female teachers and 34.3% of the 51,371 male teachers are untrained. In SPLM areas only 7% of teachers have the prescribed qualifications, and only about half the teachers have received some in-service training. Only 7% of teachers are women, which has negative effect on girls' enrolment." (UN, 18 November 2002, Vol.II, pp. 130-1)

Fourty-four percent of IDPs in Khartoum have no education (2005)

- In Khartoum camps, 42.5% of IDP children are enrolled in schools, while in North Kordofan the average enrolment rate of is 82%
- One third of heads of households reported having no education in Khartoum IDP camps
- IDP camp demolitions had demolished schools and churches which had no funds nor plots where to re-build new buildings
- Demolitions in IDP camps had prevented children from going to school because they had to guard the temporary shelters and schools were too far
- 67% of IDPs in Khartoum between 6-18 years old had attended primary school
- 20% of IDPs between 6-18 years old had no education
- 38% of IDPs between 19-25 years old had attended primary school

- No secondary schools available in Jabaronna IDP camp (2002)
- Education in IDP camps was Islamic biased even though most of the IDPs were from other religions
- Many primary children not enrolled due to incapacity of parents to afford the minimal fee or because children had to look after their younger siblings
- Only 12% of the teachers have a basic Teacher's Training Certificate
- Only 11% of school and classroom structures are permanent

"In Khartoum camps, 42.5% of IDP children are enrolled in schools, while in North Kordofan the average enrolment rate of is 82%." (UN, 30 November 2004, p. 177)

"The re-planning process has had a significant impact upon access to schooling, especially within the population's culture and religion, as private or church related schools which have been demolished have not received plots yet and often cannot afford the cost of the plot procurement process.

[...]

One third of the heads of households reported having no education, 1/3 reported have primary education, while 1/3 reported other or no data. Only 26 % of FHH reported having primary education, and 41% reported having no education at all. Of the male headed households, 36% had at least primary education, and 23% reported having no education. 1% of women, 3% of men had any vocational education. For secondary school attendance, 18% of women had attended secondary education, and 21% of men. Eight percent of women and 10% of men household heads reported having attended university.

[...]

Demolitions were reported to have negatively affected their ability to go to school as they needed to stay at home and guard the shelter [...], they sometimes got lost on the way to school because of the road changes, and the distance to their schools had become greater." (F.A.R. et al, 19 January 2005,p.17-8,29)

"Some 44% of all IDPs, of all age groups, have no education. However, this data should only be analysed by age group as a significant percentage of IDPs are below school age (18.2% are between 0 and 4 years old). Between 0 – 5 years old, 11% are in preschool and 83% have yet to start any education. Between 6 – 18 years old, 67.6% have attended Primary, 5.9% Secondary education and only 0.2% University. Whereas, 20% of this age group have had no education. Between 19 and 25 years, 38.7% have been to primary school, 20.7% Secondary school, but only 6.9% have attended University. Between 26 and 50 years 25% have been to primary, 12.7% Secondary schooling and 4.2% University. In all age groups, less than 1% has had Vocational or Technical training. Over 50 years old, only 11.3% have attended only Primary education, less than 10% have attended either Secondary or University education and 65.5% of the IDPs have received no education at all." (CARE/IOM, 28 February 2003, p.14)

"An emergent reintegration issue is that of merging the educational systems of those educated in the North in Arabic and those who have been educated in SPLM areas in English using an East African curriculum. The implications of this are that IDPs from the North may experience problems continuing their education in southern schools. Southerners educated in English will have difficulty entering Sudanese universities. Refugees from Uganda and Kenya returning to such places as Juba or Wau will also experience problems as schools there are following the Arabic curriculum. Therefore, any assistance by the international community to the rehabilitation of the educational system must also attempt to also address this language problem." (Inter-Agency Mission, 18 December 2002,p.18)

"Provision is made for primary schools in some of the IDP camps by the government, however there are no secondary schools in the camps. The education offered by the government is said to have a heavy Islamic bias and tends to be under funded and under resourced. NGOs, in particular religious organisations also operate schools in the IDP camps. These schools are run either by the Churches or the Dawa Islamia, an Islamic Organisation providing religious based education. In spite of the general availability of primary schooling many children are not enrolled. This can be attributed to the fact that many parents are not able to

afford even the minimal fees charged and also the fact that older children – some as young as 5 or 6 are made to care for their siblings, while their mothers search for employment. The school I visited while in the camp, was funded by the Church. The facilities can only be described as inadequate. Primary 1 consisted of a reed shelter with only blackboard and no desks or chairs. The teachers I spoke of complained of inadequate funding, lack of teaching materials and also of the fact that students often fainted in class because of a lack of food. (Bekker, 19 September 2002, p. 22)

“The prospect of peace in the Sudan provides an opportunity to address issues concerning the progressive realisation of the right of all primary school-age children to quality basic education. The lack of educational facilities due to the widespread destruction of educational infrastructure in conflict-affected areas, massive displacement of population groups from areas affected by conflict and recurrent drought and flood combined with inadequate educational facilities for internally displaced children, inability of parents to meet the cost of educational materials, the discontinuation of schooling by pupils due to illness and severe malnutrition, unattractive learning environment, teachers without the required qualifications and the lack of basic amenities like drinking water supply and sanitation facilities in the schools as well as in the community, and poor quality of instructional processes continue to deprive thousands of primary school-age children of adequate and appropriate learning opportunities. As a result, the primary education system in the Sudan continues to be characterised by low enrolment levels, significant gender gaps and serious regional disparities, unsatisfactory learning achievement of pupils, and low efficiency.

There is a dearth of reliable educational statistics. Data available with the Federal Ministry of Education indicate that the gross enrolment rate for primary cycle of education (6-13 years group) in the GoS-controlled areas was about 54% in the year 2000/01. In absolute terms, the phenomenon of out-of-school children, according to the same source, was largest in South Darfur (362,274), West Darfur (278,497), Gedarif (211,281), South Kordofan (171,921), North Kordofan (171,921) and Blue Nile (112,320). A survey conducted in SPLM/A-controlled areas showed that of an estimated 1.06 million primary school age-children (7-14 years), less than 30% of them were enrolled in school in 2001/02.

[...]

Low enrolment levels are a product not only of children never entering school, but also of the cumulative effect of a high dropout rate at every grade of the primary cycle.

[...]

Available information indicates that the learning achievement of a significant proportion of pupils does not measure up to the expected levels, indicating that the quality of schooling is inadequate. The unsatisfactory educational quality is attributed to the poor physical and academic facilities in schools leading to unattractive learning environment, non-availability of basic learning materials such as textbooks and shortage of qualified teachers. In GoS-controlled areas, only 12% of the teachers have a basic Teachers' Training Certificate and of the remainder, 27% do not even hold a Sudan School Certificate. Fifty percent of teachers do not have the prescribed qualifications and in many schools the textbook to pupil ratio is 1:3. In SPLM/A-controlled areas only 7% of teachers have the prescribed qualifications, 48% have received some in-service training while 45% of the teachers are completely untrained. The textbook to pupil ratio is about 1:9 in most of the schools and teachers' guides are not available in 78% of the schools. The issue of medium of instruction for children of returning IDPs and refugees remains a major concern.

The physical and learning facilities in a majority of schools do little to attract children to attend. A sizeable number of primary schools are housed in dilapidated structures and are deficient in terms of essential classroom furniture, water supply and sanitation facilities. Large proportion of classrooms remains overcrowded. Majority of schools in the war-affected areas is 'bush schools' or 'one-teacher multi-grade schools'. Around 45% of schools in southern Sudan function in the open, under trees and the percentage of permanent classroom structure is just 11%. More than half of the schools do not have source of safe drinking water and almost three quarters of schools are without latrines.” (UN, November 2002, pp. 84-85)

“Education at primary level is generally available in the IDP camps, though not in the squatter areas. Even when available, the quality of education is poor due to lack of teaching resources, trained teachers and a

dilapidated environment. Considerable numbers of children do not attend school because they cannot afford school fees. There are no secondary schools in the camps." (UN November 2000, pp.143-144)

Decade without education for many children of the Nuba Mountains on both sides of the conflict (2003)

- 6,920 IDP students given UNICEF education material in South Kordofan (December 2002)
- School enrollment in main southern towns Kapoeta and Torit was at 2 and 4% (2000)
- 34% of teachers are untrained
- No schooling in SPLM areas between 1987 and 1996
- Schools in Government areas in an advanced state of deterioration

"The Ministry of Education distributed UNICEF education materials to 3,241 pupils in 54 nomadic schools and 6,920 pupils in IDP schools within the five provinces of South Korodofan." (OCHA, 23 December 2002)

"In Juba town, the gross school enrollment rate is estimated to be 70.3% and it is also relatively high in rebel held parts of Western Equatoria. However, in Kapoeta and Torit enrollment rates are only 2 and 4% respectively. In all areas, the drop out rate for girls is high with only a few girls left after Grade 4. The percentage of untrained teachers is 34%. There is congestion in classrooms, insufficient textbooks and materials and buildings are in need of maintenance. Most IDP households cannot afford to pay school fees." (UN November 2000, pp.140-141)

"The civil conflict has had a very serious impact on education in the Nuba Mountains both in Government- and SPLM-controlled areas. In most cases, schools were closed at the beginning of the hostilities and children's schooling remained interrupted for several years. In SPLM areas there was practically no schooling during the decade 1987 and 1996, whereas in the territory under Government control, the interruption lasted from 1990 until 1994. In the latter case, however, the failure of the public sector to sustain children's education, mainly through an inability of local authorities to pay the salaries to teachers and other staff, has brought the education system to a standstill. The result is a fresh series of school closures begun in 1997 and a new interruption to the schooling of the area's children.

Both sides of the civil conflict presently have a massive deficit in educational equipment including the most basic school supplies. Schools are in a state of dilapidation or are established in the most rudimentary way, which constitutes a serious impediment to learning. In the SPLM areas there are hardly any schools with stone or brick buildings. The remaining few which have not fallen into ruin because of disuse, or have not been destroyed in military operations, are a coveted asset which figures prominently in educational projects such as the establishment of teacher training institutions.

The territory under Government control boasts a number of schools dating back to the 1950s and 1960s. Some of them enjoyed a good reputation both for the quality of the education they provided and their capacity to offer full board to pupils from far away villages. Most of them are now in an advanced state of deterioration and the local authorities do not have the resources to restore or rehabilitate them. Furthermore, a number of schools whose construction began in the 1970s or 1980s were never completed and they either stand unfinished and unused or have been quickly mended with makeshift thatch additions. Both in the SPLM and in the Government areas, schools do not, on the whole, constitute a favourable environment for learning.

In both cases, the majority of teachers and headmasters have no access to any school equipment or furniture. They have no offices, no desks, no tables, no chairs and all records are kept in rudimentary filing systems making use of exercise books and writing pads. Children at best sit on home made, uncomfortable,

benches, on logs, on stones, or directly on the floor. They rarely have a desk and stationery is scarce. The isolation of the SPLM areas has increased the scarcity of materials and only minute quantities of supplies are smuggled in and reach the schools. In the Government areas, the increase in parents having to subsidize schools has excluded many children from school. It has also limited access to education to a very small number of children whose families are unable to meet the necessary expenses determined by the communities to compensate for the lack of Government inputs.

The bare and highly alarming reality is that an entire decade has passed without education for many of the children of the Nuba Mountains on both sides of the conflict. This fact has enormous consequences on other sectors of life including health, nutrition, and, of course, the economy. Recovery measures are threatened by failure due to the scarcity of educated persons who could undergo essential training, especially where a degree of basic knowledge is a requisite. The number and quality of teachers in the SPLM areas is seriously deficient and the situation necessitates an earnest intervention." (UNCERO 8 November 1999, pp. 17-18)

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

IDP coping mechanisms in Khartoum (2004)

- In 2004 IDPs said economic opportunities were so low that increasingly women resorted to illegal activities like prostitution and beer brewing which increased their risk of imprisonment
- The UN Special Rapporteur who visited IDP camps in the late 90s in Khartoum said conditions for basic services were better than in squatter areas however IDPs had been settled in desert areas far removed from any commercial centre providing job opportunities
- Small numbers of IDPs manage to obtain jobs on construction sites or as domestic workers, but cannot afford transport to go to work
- Women displaced had very little means to provide for themselves and their children and resorted to beer brewing which is an illegal activity, as a result many ended in jail
- 74,7% IDPs in Khartoum were unemployed while 33% were employed in agriculture before fleeing and 16% were self-employed. Claimed that a general anti-Christian bias affects IDPs' chances to find jobs or plots for adequate shelter

"People stated that the economic situation has reached such low levels that some girls have turned to prostitution, and women are producing alcohol, risking criminal charges and imprisonment. This overall economic factor was stated by the majority of IDPs as their most pertinent concern at present, in relation to their social and economic wellbeing." (CARE, IOM, F.A.R, 1 February 2004, p.3)

"Greater Khartoum is estimated to be accommodating about 1.8 million IDPs. 260,000 of these IDPs are settled in the four officially designated camps (Mayo, El Salam, Jabal Awlia and Wad El Bashir) and the remainder are squatting in a variety of planned and unplanned areas.

The main sources of income for the IDPs are daily, casual and seasonal agricultural labour, as well as petty trade. Women generally provide the core income and perform most of the work. By way of the above, IDPs in Khartoum are expected to secure 85% of their annual food needs in 2001, while the remaining 15% of needs are expected to be met through a variety of coping mechanisms and targeted food relief.

The bulk of the IDPs income is spent on food and water, which leaves no extra income for other basic or immediate needs. In both the camps and squatter settlements the most stressful period is July-September. During this period, the demand for labour in the city is very low, as brick-making and general construction, mostly performed by men, stops. As a result, migration to rural farms and the large agricultural schemes for seasonal labour opportunities occurs." (UN, November 2000, pp.143-144)

"The displaced and poor communities in peri-urban Khartoum pay as much as 40% of their income for small quantities of poor quality water." (UN November 2001, p.65)

Information by the Special Rapporteur of the Commission on Human Rights apparently confirms the difficult situation facing IDPs in Khartoum:

"The Special Rapporteur and his party were able to visit only one of the camps set up by the Government, where, reportedly, conditions, including primary educational and health facilities, are better than in other makeshift camps. It was, nevertheless, apparent that the displaced have basically been concentrated in an

isolated and barren area, removed from any commercial centre offering work opportunities. There is no general relief distribution for the displaced in Khartoum who are considered to be long-stayers, and many complained of insufficient food and clothing. According to reports confirmed by the United Nations, food security in camps such as this one is precarious and malnutrition among children under five ranged from 12 to 24 per cent in 1997-1998.

Although a small number of the displaced manage to obtain odd jobs on construction sites or as domestic workers, the majority cannot afford to pay the cost of transportation into town. According to certain accounts, not all of the camp dwellers are war-displaced from the south; some have migrated to Khartoum for economic reasons or for reasons related to drought and deforestation in various areas of the country. As things stand, despite efforts under way to promote income-generating projects, it cannot be said that this population has any real prospects of economic and social integration; hence their fervent desire for peace that would enable them to go back home.

[...]

Of particular concern to the Special Rapporteur was the extremely precarious situation of displaced women and children, in the camps or on city streets. In particular, women lack adequate means of survival for themselves and their children. Many have no choice other than to engage in practices such as beer-brewing (traditional in the south, but strictly forbidden in the north under Shariah law) and prostitution. Displaced southern women charged with these crimes make up 95 per cent of Khartoum's Omdurman Prison population. Another alarming feature is the imprisonment of girls as young as 10, serving sentences for petty crimes, such as theft. The legal situation of these women and girls was examined during the visit to the prison by the Special Rapporteur's team." (UN Commission on Human Rights, 17 May 1999, paras. 76-80)

"78% of the IDPs in Khartoum welcomed professional training and 43% stated they would need cash grants to re-establish their activities 33% of the IDP households interviewed declared that they were working in agriculture before leaving their place of origin; 16.5% were self-employed, 14.1% were students, 16.6% were unemployed and 9.1% were working for the government or in the public sector.

[...]

Data on employment was collected for all household members. 74.7% are currently un-employed, 10.3% are in casual labour, 7.1% are in wage labour employment and 2.6% are in petty trade.

[...]

Out of the 78.3% that would welcome professional training, 65% said that training would help them to return to their former job and do it better, 23% stated that it would help them in starting their own business and 7% that it would help to change the profession or occupation.

[...]

42% would value training in life skills, 24% in vocational or technical training and 6% in literacy skills. 23% of IDP households are not interested in any training activities.

[...]

The IDP households that stated that they wished to return to their place of origin were also interviewed on the reintegration assistance needed to return to normal civilian life. 43.8% stated that they would need money (cash) grants to re-establish their activities and 4.7% would need starter equipment/kit; 4% stated that they would need support to search for a job or employment, 7.5% would need some credit or loan scheme and 1.5% would need some training or education. 37.6% did not specify any type of assistance." (CARE/IOM, 28 February 2003, pp.10-12,15,16, 24, 26,27)

A mission commissioned by the Canadian Government made in January 2000 confirms the above pictures:

" In any event, the result is often heavy fines and very hard imprisonment, sometimes children incarcerated along with mothers, further family break up and destitution all round.

The camps themselves are home to rough and ready church buildings, and it is these which often face demolition at the hands of the State authorities. Our information is that, indeed, at the local level, there is a general anti-Christian bias which affects chances of finding a job or being given a proper house space,

which the authorities are providing for the Northern "squatters" who come into the city. Camps have Popular Committees which appear to serve as the government's mechanism for informing the people when necessary, and for being informed at all times. There are traditional chiefs, whether the people are Nuer or Dinka, and sometimes they are mixed, but the chiefs seem to have little authority.

In addition to the camps such as El Bashir, Salem, and Mayang, many IDPs are reduced to becoming squatters, erecting rude shelters where they can, and, of course, being regularly subject to demolition. But still they arrive in Khartoum." (Harker January 2000, pp. 44-45)

Poor work conditions for Nuba IDPs (2003)

- About 4,400 Nuba households were surveyed in 12 states by IOM/UNDP (Feb 2003)
- 66% of Nuba IDPs between 19-25 years old are unemployed
- 50% of Nuba IDPs were self-employed before fleeing
- 42% of self-employed wish to return to their former activity
- 19% Nuba IDPs said that their former business or farm had been destroyed
- Many Nuba displaced men depend on seasonal work in brick making, or date harvesting and agriculture
- Rock breaking for building industry involves burning the rocks with old tyres and is done by displaced women, children and men
- Young girls working as domestic servants are exploited, working up to 133 hours per week for a salary covering 1-2 day basic needs
- Domestic servants suffer from sexual exploitation

"Of those of working age, 66% of those between 19 - 25 years of age are currently un-employed, whereas for those between 26 – 50 this falls to 44%. For the age group 19 – 25, 17% are in casual labour and 8% are in wage labour jobs. For the age group 26 – 50 these figures are 29% and 13% respectively. For those over 50 years old, 51% are unemployed, 23% are in casual labour and 11% are in wage labour jobs.

[...]

Difficulties in Restarting Previous Activities

Out of those interviewed that stated that they were self-employed before leaving their place of origin (50%), 42% stated that they would like to go back to their previous civilian activity and 7% said "No". The remaining failed to answer the question. When asked about the difficulties in restarting their previous employment, 19% said that the business or farm had been destroyed, 21% said they would need money/loan to restart their activity. 0.5% mentioned that the market no longer existed. Unfortunately, most failed to offer any answer to this question.

[...]

All the reports of the supervisors of the 7 states confirmed that the Nuba displaced are living in a situation of extreme poverty. Although there is no criterion by means of which level of poverty is measured, yet their condition was judged by the types of jobs performed, which are hard in nature and low paying. Their level of poverty was also judged by direct observation of their housing conditions.

The types of jobs the displaced do are hazardous especially to the health of women and children. We would like to make a special reference to the working conditions in the Northern State; there able-men work in brick making which is reported to be a physically demanding job and pays very little, which is not enough to meet their daily needs and the needs of their families. Women work as domestic workers, which again is low paying, and not without social complications.

[...]

As illustrated above, different segments of the Nuba displaced community perform different types of jobs. Most of the jobs performed are of seasonal and casual nature. A vivid example of seasonality is construction work in Port Sudan, where the authorities forbid construction work in the summer months due to the severe shortage of drinking water. In Kassala and the White Nile states the kind of jobs available are predominantly agricultural and seasonal in nature. Women are involved in marginal and outlawed jobs (brewing and distillation), which are risky and make them subject to harassment and legal complication. Girls, on the other hand, are predominantly involved in domestic work. Exploitation and sexual harassment at their work places is reported.

[...]

CASE (2)

Human Rights Violation in Bergeg (Northern State)

Bergeg is located in Dongola Province with 5750 Nuba IDPs inhabitants. They live by the banks of the River Nile. They work in brick making, date harvesting and agriculture. All of these jobs are of a seasonal nature.

Recently, the police destroyed their houses and gathered the displaced at one location. They were forbidden from working and their working tools were confiscated. All those who complained were arrested. In another unlawful act, the water supply was disconnected; milk and fodder sellers were denied access to the areas of gathering and every 5 families were combined together into one house.

The police have subjected the displaced to a number of violent acts. For example, a member of the displaced community was shot dead in front of the rest of the group, as a sort of terror. There are 400 men and women detainees held in the prisons without any sort of trial.

CASE (3)

Harsh Working Condition in Mukram (Kassala State)

Mukram Mountain is located 30 Km to the east of Kassala town. The job under investigation is breaking of rocks into stones for building. This process is done by burning the rocks using old car tyres. This job is performed by IDPs from the Nuba Mountains including men, women and children.

They arrive to the work place after walking a distance of 30 Km.

They voiced their problem as follows:

The walking distance between town and the work place

Low demand for the product

No alternative jobs to meet their essential daily needs

Health hazards in the form of respiratory tract infections, specially among women and Children

Low wages

A physically demanding job especially for the children.

CASE (4)

Exploitation and sexual assault of girls in El Doeim.

This case is about the sexual exploitation of 8–15 years old displaced girls and was raised as an issue of concern by the Nuba community in El Doeim Province in the White Nile State. Given the overall situation of poverty the Nuba displaced face, many of the girls work as domestic workers to supplement the scanty resources of their families. There are two patterns of the work they do: casual, where the girls work for a few hours whenever and wherever a job is available; this pattern of work is low paying and uncertain. The second pattern is working on weekly basis; the majority of the workers here are young women and girls. During their work they face different types of exploitation, for instance they work for long hours i.e. 112–133 hours per week. The payment they get is scanty at 15,000 – 20,000 pounds per week. It is hardly enough for 1-2 days basic needs. The girls interviewed mentioned the hardship of domestic work, which consumes their energies. A few of the girls were shifting work places where they faced exploitation and sexual assault. The community noted around 100 girls who are mothers as a result of the sexual exploitations they faced at the work place.” (IOM/UNDP, 28 February 2003, p.28,46-49

IDPs in 'peace villages' rely on subsistence farming (2003)

- Nuba IDPs were denied freedom of movement therefore could not access agricultural land
- IDPs identified 48% of their own group as poor
- Among the poor IDPs 24% of food came from own production and 39% was purchased
- Petty trade contributes to over 50% of the West Kordofan IDPs' income

"Nuba IDPs in the peace villages, were restricted from free movement denying them a chance to access more cultivatable land [...]. Their living conditions were deplorable, lacking basic human needs.

[...]

When IDPs were independently assessed, their own ranking revealed that they perceived 48% of their own group as poor, 30% as middle and 22% as well-to-do[...]. However, there was a noticeable discrepancy between property ownership of rich IDPs in relation to host community. The same was also true for the middle and the poor groups.

[...]

Among the poor IDPs, access to food was mainly from own crop 24% and purchases 39%. The rest was from kinship support. The middle-income group access 60% of their food needs from own crop and 20% from own livestock. They access the rest of their food from the market. The poor process 32% of their food from own production, 45% from labour and exchange, 8% from kinship and have a food deficit of about 17% after expanding on other coping strategies [...].

[...]

Traditionally, livestock ownership and numbers reflected wealth and prestige in the community. Household also had livestock to provide milk and other by-products. Over the years, many households have lost their livestock through cattle raiding and looting. Presently, livestock ownership is limited to a third of the community [...]. Meat and milk produce contributes about 10-12% of the needs of the residents and less than 5% for IDPs. Poor households access milk mainly through kinship support." (UNR/HC, Nuba, 22 July 2003, p.8,9,)

"The majority of the IDPs in the state live in Peace villages [...] and rely on subsistence farming for their livelihood. Insecurity in Abyei has continued to hamper the capacity of IDPs to expand their livelihood. Insecurity in Abyei has continued to hamper the capacity of IDPs to expand their land for cultivation and it remains for the most part inaccessible to IDPs in Meiram as the latter are considered a highly vulnerable administrative unit. Sharecropping[...] continues to be widely practiced in other areas inhabited by IDPs. IDPs in El Nahoud have access to land provided under a resettlement programme [...]. IDPs mainly cultivate sorghum and limited quantities of millet and maize for their own consumption.

[...]

Grass and firewood collection (predominantly undertaken by women), casual and domestic labour (undertaken by children) and limited fishing (undertaken by men) contribute to the livelihood of the majority of households. In general, petty trade contributes to over 50% of the IDPs' income." (UNR/HC, West Kordofan,, 1 July 2003, p6,7)

IDPs in Kassala State lack employment opportunities and access to land (2003)

- IDPs use about 50% of their income on water and non-food items
- The small number of IDPs who have access to land face problems due to lack of agricultural implements
- IDPs in Kassala have access to 2% of the land and represent 10% of the total population
- Better off IDPs give 7% of their annual food requirements to poorer IDPs

- Food deficit for IDPs in Kassala was 66%

“IDPs constitute 10% [...] of the state population and currently live in seven camps around Kassala town namely, Fedayeeb, Galsa, Amara, Dabalawet, Fatu, Adarman and Ad Imair. Wage employment as a potential source of income for IDPs has become limited due to competition with Eritrean refugees, who have been present in the area since June 1980. IDPs use about 50% of their income on water and non-food items, making them completely dependent on relief and the limited labour opportunities. There are also unregistered IDPs residing in unofficial camps, who make their living within the suburbs of main towns such as Kassala, New Halfa, Aroma and Khashim El Girba. Other groups of IDPs have integrated within the host communities or joined their relatives. A section of the IDPs located in Shagrab camp returned to their original home areas in May-June 2001.

[...]

The issue of land tenure for IDPs has remained unresolved. Landowners represent 2% of the whole IDP community in the state¹³. In many cases, the few IDPs who have access to arable land face problems of pest infestation, lack of improved seeds and agricultural tools. Due to these drawbacks, the concepts of self-reliance, self-sufficiency and food security are decreasing among the IDP communities.

[...]

Wealth ranking among IDPs in Kassala State indicates that 50% of the poor group comprising mainly female headed households, the elderly, orphans and the disabled, may own a goat, depend on firewood and kinship support.

[...]

The land tenure for the IDPs in the state is confined to 2% of the whole population (mainly the better off group).

[...]

The better off group of IDPs donates some of their food to the poor group, and a better off member lends a livestock unit to a relative from the poor group to assist in accessing milk for their children. This donation represents 7% of their annual food requirements.

[...]

The 2002 rainy season was poor and therefore the IDP community continued to suffer from food deficits, estimated at 66%³⁷. The prevailing drought in the region has also resulted in high food deficits among the population and IDPs, both of whom have limited access to land and natural resources.”(UNR/HC, Kassala, 30 July 2003, p.5,8,9,)

Common coping mechanisms of IDPs in various areas (2002)

- Jarbonna camp is situated in a barren area where nearest employment opportunities are four hours drive away
- Most IDPs in Jarbonna camp purchase water at exorbitant prices and are unable to raise animals nor crops
- Women earn their living through casual domestic work and men work on construction sites
- Women in Jarbonna spend half of their income on transport and the rest on food
- Women with no other income-generating opportunity resort to illegal beer brewing and are often jailed as a consequence
- Bahr al Ghazal IDPs rely mostly on petty trade and casual agricultural labour
- In Kassala and Red States people cope by borrowing assets and producing charcoal
- IDPs in Unity State fled in search of shelter and wild food in the sandfly-infested acacia forest and were contaminated with Kala azar as a result
- Agro-pastoral IDPs in Kosti (White Nile State) lack access to land and are prey to exploitative landlords

- Long-term displaced in Kosti worked as seasonal laborers on rain-fed agricultural schemes (1999)

“The name of the IDP camp I visited, Jabaronna (“they forced us here”) was indicative of the situation in which the displaced find themselves in. (I interviewed a group of between 50-60 women, within the “church compound”. I was not able to interview any men, given that I had come to the IDP camp on the pretext of praying with this group of women and did not want to raise suspicion of the people’s committees by walking around in the camp randomly speaking to people.) Jabaronna is located in an isolated and barren area at least an hour’s drive from the nearest possible employment opportunities.

What struck me upon arrival in the camp (which can be termed a long-term settlement as it has been in existence for 10 years) was the complete absence of livestock and small scale, farming. When I inquired, I was told the main reason behind this was because of lack of access to water. I noticed that around Jabaronna there were a few boreholes, which CARE had drilled (I was told that many of the pumps were no longer functioning), but that many, particularly those situated in outlying areas had to purchase their water from donkey carts at exorbitant prices.

From speaking to the women in the IDP camp, it appeared that they were for the most part primary breadwinners, and were more often than not the heads of households, with many having lost their husbands as a result of the war. They informed me that they earned their living through casual domestic work – washing, ironing and cleaning in Omdurman, Khartoum and Khartoum North. They told me that they would occasionally go for days without finding any work. All the women I spoke to told me that they spent almost half of their day’s earnings on transportation to and from work, and the remainder on food. They told me that they often were not even able to provide one meal (which normally consists of a sandwich) for their families. Francis Bassan, the Executive Director of Sudan Aid, informed me that the organisation was involved in some school feeding schemes in the IDP camps, but that this was limited to certain parishes. Many women told me of how Islamic Organisations were providing food aid, but that this went hand in hand with religious instruction, often requiring people to convert in order to obtain assistance.

Many women resorted to illegal brewing of alcohol in order to survive. One young woman I spoke with had been imprisoned on 5 separate occasions for brewing for periods ranging from 3-7 months. Women spoke of their children being incarcerated with them and also of instances where their children were left for neighbours to care for, while they were in prison. The prison conditions they described spoke of inadequate food and lack of sanitation. One woman described how in the absence of any brooms or other cleaning materials they were forced to sweep up feces and urine with their hands in their cells. Simeon Bolis an advocate associated with the Catholic Bishop’s Conference briefed me on their efforts to assist women who have been imprisoned for the brewing of alcohol by providing legal assistance to them. He noted that they had had some success in this regard, but that the numbers of women who were imprisoned for these offences were overwhelming.

Men on the whole seemed to have a harder time at finding work. They mostly engaged in odd jobs on construction sites. The months of July-September were said to be particularly hard, as practically all construction and brick making ceased due to the rain. The rain also caused severe problems for those living in shelters made from sacks, plastic and cotton and even those living in more permanent mud brick structures. The rainy season also brought with it the onset of malaria and other diseases. (Bekker, 19 September 2002, p. 20)

“Casual agricultural labour and petty trade provides an important source of revenue, particularly for IDPs and poor resident households. Alternate coping mechanisms rely on reducing food intake and wild food collection. However, in the garrison towns of Wau and Aweil the coping mechanisms are constrained by insecurity, as the IDPs are unable to move far beyond the cities.” (UN, November 2002, p.29)

“Coping mechanisms include kinship support, borrowing and selling of assets and livestock, extensive rural to urban migration, and charcoal production, which is a major cause of environmental degradation.” (UN, November 2002, p.33)

“During the nearly two decades of war in the region [Unity State], most civilians have been forced to resort to survival strategies even outside of the traditional lean times; foraging for wild foods: leaves, plants, fruit, digging out the grain stored in ants’ nests, and fishing have become vital food sources. [...] The second strategies have sometimes had unexpected long-term consequences – the rapid increase of the kala azar epidemic is believed to be linked to the fact that in the late-80s, many people were forced to seek shelter or forage for food in the acacia forest. The acacia forest is the known habitat for the sandfly – carrier of the kala azar disease. Even aside from the potential health threat of the sandfly, these survival strategies are by no means sufficient when the majority are hungry and no other source of food, including humanitarian relief, is available.” (MSF, 30 April 2002, p. 18)

“Collection of wild foods, which used to be a significant component of the Nuba diet, has also become extremely difficult. Most of these foods are to be found in highly insecure areas in the plains. The threat of ambush, abduction and rape has severely reduced access to these important food items.” (WFP 14 November 2001)

"Kosti town received most of these displaced persons since early 1980s as a transitional period. [...] The IDPs having lost their traditional livelihood, have escaped from their home areas in search of survival and labour opportunities. Following the relocation of the displaced camps in Kosti in 1992 from their previous Combo, to Goz Al Salam and Allaya camps (4 to 6 Kms South east Kosti) [...]

Ethnically the two camps are inhabited by IDPs originated from south Sudan, Darfur Kordofan and White Nile States. The major ethnic groups are the Dinka, Shuluk, Nuir, Latoka and Bari from the southern states representing 75% of the caseload. Falata, Fur and other Arab tribes represent the remaining 25%. In previous years only two NGOs were serving the two camps, MSF Holland and CONCERN but they had phased out their activities since 1994.

IDPs had to change their coping mechanism as their traditional livelihood was lost as well as their assets were depleted to suit the new situation. Although most of the IDPs came from an agro-pastoral background but unfortunately they could not have access to land for cultivation. The land is owned traditionally by the indigenous tribes and persons. The IDPs when tried to have access to land faced a lot of unfair production relationships as crop-sharers.

An attempt to seek self-reliance

The majority of the IDPs had shown interest to practice agricultural activities in their new area/environment but the difficult conditions attached by landlords have been beyond the abilities of the displaced people. the tenant displaced have to pay an amount agreed upon with the landlord before the beginning of the cultivation season in addition to the yield to be divided equally whatever it would produce between the tenant and the landlord. And even when there is a crop failure the landlord would be still demanding compensation in cash. This situation is unfair for the IDPs and discourages them to cultivate. Only 2% cultivate small plots near their homes but have experienced 90% crop failure this season mainly because of soil fertility which was exhausted years ago by the landlord and spoiled by extensive repeated cultivation and the uneven rainfall in most of the agricultural seasons.

Traditional IDP movements from the area

The rest of the displaced people move towards central and eastern Sudan to the rain-fed agricultural schemes working as seasonal laborers. This always depends on the success of the season for production and unfortunately it happened recently to be unsuccessful to satisfy their need and fill the food gap. This population movement to these areas seasonally has its negative impact on children education as they move with their parents and on health and protection because they are unstable and poor.

Other small groups of shuluk and Fllata practice fishing and rice production as cash crops to cover some of their needs. In addition some weaker members of the families are working in petty trade, cheap casual labor, house servants and other marginal jobs in Kosti and Rabak towns. Using wild food collection as a coping mechanism is also recognized among the poorer IDPs in Kosti. But wild food is a rare product in that area." (UNHCU 11 June 1999, p.15)

Public participation

Almost complete lack of an independent, civilian led judicial system in the South (2004)

- The South suffers a severe competence- and capacity-deficit in the area of rule of law
- Community-based and statutory mechanisms to address crimes and violations of human rights are minimal
- Customary law dominates the south, mostly revolving around conflict-resolution, arbitration, compensation and rehabilitation rather than punishment
- War has eroded traditional tribal law structures and influence
- In southern Sudan, only 26 statutory laws exist, there are only 22 judges, less than 500 police officers and absence of roads and communication make maintenance of rule of law difficult
- Local peace-building and human rights committees are prevented to do their jobs in the absence of freedom of movement, security and international monitoring
- SPLM/A control and martial law undermine the power of chiefs, civil society and civil authorities

“93. While the North has more developed governing and judicial structures, the independence of the judiciary and the code of conduct of law-enforcement are seriously compromised. The South suffers a severe competence- and capacity-deficit in the area of rule of law, where traditional justice mechanisms have disintegrated as a consequence of the war, and statutory law is grossly underdeveloped.

94. Current community-based and statutory mechanisms to address crimes and violations of human rights are minimal and nascent at best. Women and children are particularly vulnerable. Not considered legal subjects (e.g. right to own property), women enjoy limited guarantees, while juvenile justice appears non-existent.

95. Customary law through chief and tribal structures dominates the South. Traditional conflict-resolution and arbitration have been reasonably effective in the past, mainly revolving around compensation and rehabilitation – rather than conventional punishment. In many ways, the indigenous policies illustrate a more progressive and humane approach to redress than do more technically advanced punitive systems.

96. However, the traditional system has been undermined by the war and military rule, crushing the traditional conflict-resolution and arbitration instruments of chiefs. Moreover, customary law is based on oral tradition, and thus justice varies from area to area, and tends to be more arbitrary. While the traditional system can and should be restored, a statutory system is indispensable to establishing rule of law.

97. In the South, at present, only 26 statutory laws exist, but even these are undermined by the lack of competent judiciary and enforcement capacity.³⁴ The absence of trained lawyers, prosecutors, and paralegals exacerbates the problem of an inadequate legal framework, as does the lack of a functional police force. “The judiciary needs professional law-enforcement officials to function. But, whenever SPLM

needs police, they appoint army soldiers who have no training in operational procedures or basic human rights,” one judge explained, making no secret of his frustration.

98. A region the size of Kenya, Tanzania and Uganda together, Southern Sudan has only 22 trained judges, and less than 500 police officers - the overwhelming majority untrained, prone to bribing and corruption, and lacking basic equipment (stationary, communications and transport). The undeveloped infrastructure further compounds the problem. In the absence of paved roads and communication, it is extremely difficult for local authorities to maintain rule of law.

[...]

100. Because of fear of repercussions, local peace building- and human rights committees formed in connection with training tend to be ineffective. Exposed to military rule and a police force that is either abusive and corrupt, or powerless, these committees end up viewing protection as “too sensitive”. “We will be crushed, if we start claiming our rights before the authorities without international monitoring,” a member of a human rights/protection committee in Bahr-el-Ghazal said. Similarly, a peace building committee in Upper Nile expressed concern that its activities were reduced to resolving trivial quarrels. In the absence of freedom of movement, security and international monitoring, the committee is prevented from engaging in any substantial conflict resolution.” (IRC, 1 May 2004, p.27-8)

“The breakdown of just and equitable political and legal systems. The almost complete lack of an independent, civilian led judicial system in the “liberated areas” controlled by the SPLM/A, coupled with the administration of justice through field commanders who have little knowledge of law, has led to the administration of ad hoc laws and violations of human rights.

The taking over of traditional authority by the SPLM/A and imposition of martial law has seriously undermined the power of chiefs, civil society and civil authorities.

The long war has brought about the militarisation and brutalisation of society. This has been accompanied by “rule of the gun” resulting in the destruction of moral and ethical bonds, traditional responsibilities, and mutual respect for individuals and the values of communities.

[...]

The SPLM/A has recognised the need for increased administrative capacity, as its citizens begin to lay heightened expectations on the administration of their civil structures, health institutions and security apparatus. While the SPLM/A has produced draft laws and is in the process of establishing the attorney general’s chambers, appointing judges and establishing courts, which will bring benefits in the long run. Short-term measures struggle to be effective due to a lack of resources.” (NPA January 1999, p.28)

“The SPLA had not instituted a judicial system or any mechanism for civilians to complain about arbitrary actions by local commanders, which ranged from food diversion or looting to forced conscription, rape, and summary execution. Although some commanders showed greater respect for the civilian populations, this appeared to be the result of personality rather than SPLA policy. SPLM reformers complained that SPLM leader John Garang promulgated a constitution by executive order instead of submitting it for SPLM debate and promulgation. An SPLA military intelligence officer, Maj. Marial Nuor, was accused of many summary executions and the detention in 1996 of a priest and nuns. He was court martialed by the SPLA and sentenced to five years—for mutiny—but was not sanctioned for the killings or abductions. People reported detained by the SPLA years ago but never acknowledged remained unaccounted for. The SPLA released most of several thousand Sudan government forces it had captured in battle; released prisoners complained of inadequate food and very poor conditions of detention. The government, with few exceptions, did not report any captures of combatants.” (HRW 1999, p.76)

Gender roles excluded displaced women’s participation in decision-making (2005)

- Women are seen by men as weak and relegate them to a role of “listener”

- Women were excluded from leadership of IDP organisations
- Community-based organisations were the only for a where displaced women could participate
- Generally IDPs felt better represented through community-based organisations and distrusted camp leaders

“Although there are minor differences in the roles of men and women between the different tribes [...], in all three IDP areas that participated in FGDs women are reported to be excluded from leadership with the exception of being involved on CBO committees (although still low positions.). Women’s roles were seen to be in the household, sorting family problems and providing basic needs such as food and water. It was reported that women do not play a role in conflict resolution due to the attitudes towards women by men, who see them as weak. They are only to listen and not make decisions.

[...]

in all areas, the participants stated that any problems are taken to the traditional leaders, sultans, and in serious cases, the police (i.e. murder). In addition, members of the focus group in WeB mentioned that their leaders do not accurately represent them, that they have little confidence in them, and that they prefer any activity or program to be conducted through the CBOs, whom they trust more” (F.A.R. et al, 19 January 2005, p.20)

The people of Abyei call to be fully involved in the planning for IDP return (2004)

- The IDP Task Force has limited geographical coverage and should make more efforts to include civil society

“The need for an integrated strategy in the post-Machakos period is most obvious in the area of IDP return and repatriation of refugees from neighboring countries. The IDP Task Force headed by UNDP is a good start in this respect; however, its geographical coverage is limited and there is still significant room for greater participation at the grassroots in the process. This was the message of the Ngok of Abyei People's Conference where the resolutions pertaining to Repatriation and Return called for greater participation of the people, especially those on the south side of the river Kir, with the IDP Task Force. In addressing the wider issue of return and repatriation, the IDP Task Force should be expanded, reconstituted or otherwise refashioned as necessary.” (Deng D., 7 January 2004, p.31)

Outline of the civil administrative structure within SPLM/A held areas in the Nuba Mountains (1999)

- Traditional forms of leadership disrupted by the war
- New three tier-civil administration set up in seven counties
- Nuba Relief, Rehabilitation and Development Society, a local NGO, plays an important role in delivery of relief aid

"Civil Administration

Traditional forms of leadership based on ethnic affiliation have been disrupted as a result of the war. In Heiban County, the five main ethnic groups (Atoro, Tira, Lira, Abul, and Shwaia) used to be represented in a Council that last met in 1985. Today the seven counties have a new form of Civil Administration organised at three levels: *boma*, *payam* and county. Each *boma* (village) has a committee composed of 12 members (in Heiban, 5 women and 7 men), with a chairwoman and a chairman (in Nagorban the village Council consists of 11 members). The villagers elect the members of the committee and their chairpersons every three years. In Heiban County, for example, there are 65 *bomas*.

At the *payam* level, 20 members (in Heiban, 15 men and 5 women) constitute the committee. The committee has a male and female head elected every three years. The County Committee has 42 members (in Heiban, only 9 are women) which is headed by the County Chief and the County District Officer (DO). Both the County Committee and the County Chief are elected every three years, while Commander Kuwa appoints the DO. Representatives from all the County Committees take part in the Congress, an advisory council that meets every five years.

The Nuba Relief, Rehabilitation and Development Society (NRRDS)

The civil administration interacts very closely with the civil society which in Heiban and Nagorban Counties has many significant actors. The most prominent of all is the Nuba Relief, Rehabilitation and Development Society, a local NGO based in Gidel (Heiban County), which has a representation office in Nairobi where the Executive Director is based, and one in London, where the Chairman of the Board of Trustees sits.

NRRDS was set up in 1995 with the aim of collecting financial support from donors and NGOs abroad in order to fund local initiatives and undertake service-oriented projects in the area. Some of the activities carried out so far include basic health care provision; teacher training and provision of school materials to self-help schools in the area; water development (borehole drilling and hand-pump installation); support to income generating activities (agriculture, soap-making, blacksmithing, tailoring); paravet training; and community development work (including management training). The organisation also distributes food and non-food relief to the poorest in the community, their priority targets being widows, disabled and orphans.

NRRDS management is responsible for the implementation of the projects and the delivery of humanitarian assistance and submits regular reports to its donors. All NRRDS workers are volunteers and do not receive any incentive payment for their work. Most of them derive their livelihoods from their own farming land or livestock. Training for NRRDS workers is organised locally, particularly in community development methodology and development management. Because of the precarious security situation in the area, NRRDS leaders are not continuously based in one location but have to move between different counties. Collaboration with NRRDS is imperative for any future form of intervention in the area, in order not to undermine their development efforts to date and ensure to long-term sustainability of any initiative." (UNCERO 8 November 1999, pp. 97-98)

DOCUMENTATION NEEDS AND CITIZENSHIP

Documentation needs

Documentation needs of IDPs in Khartoum and from Nuba origin (2003)

- 36% of all IDPs in Khartoum have no documentation
- 37% of IDPs in Khartoum have a birth certificate and 8% an ID document
- Among newly born babies of displaced families in Khartoum 39% have no documentation
- Of all Nuba IDPs 44% have no documentation
- 33% of Nuba IDPs have a birth certificate and 5% possess an Identity Document
- For the under-5 Nuba IDPs, 42% have no documentation

“For all age groups, 36% of IDPs have no documentation, 37% have at least a birth certificate, 15% at least a Certificate of Nationality and 8% at least an Identity Document. These percentages vary greatly when the data is analysed by age. For the Under-5s, despite a significant effort by NGOs to issue birth certificates to all newly born, 39.9% have no documentation, with 57.7% having a birth certificate. Between 6-18 Years old, 33% have no documentation and 58.5% have a birth certificate. Between 19-25 years old, 39.2% have no documentation, 23.6% have at least a birth certificate, 21.7% have a Certificate of Nationality and 10.5% have an Identity Document. For those aged 26-50 years old, 36.7% have no ID, 33% have at least a Certificate of Nationality and 19.8% an Identity Document. Over 50 years old, only 44.4% have no documentation at all.” (CARE/IOM, 28 February 2003, p.14)

Nuba IDPs:

“For all age groups, 44% of Nuba IDPs have no documentation, compared to 36% as found for Khartoum based IDPs. 33% have at least a birth certificate, 13% at least a Certificate of Nationality and 5% at least an Identity Document.

These percentages vary greatly when the data is analysed by age. For the Under-5s, 42% have no documentation, with 53% having a birth certificate. Between 6-18 Years old, 23% have no documentation and 20% have a birth certificate and 19% with a ID card. Between 19-25 years old, 25% have no documentation, 20% have at least a birth certificate, 10% have a Certificate of Nationality and 24% have an Identity Document. For those aged 26- 50 yearsold, 46% have no ID, 29% have at least a Certificate of Nationality and 11% an Identity Document. Over 50 years old, only 53% have no documentation at all.” (IOM/UNDP, 28 February 2003. p.20)

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

Identity and Culture

Sudan is undergoing a serious crisis of identity as a result of decades of war (2004)

- The conflict in Sudan has been analysed simplistically as one between the Arab and Muslim North and the African Christian animist south
- The first war in the South (1955-1972) was fought mainly by soldiers from Nuba Mountains and Darfur
- During the second war (1983-) Black or African consciousness was promoted by the SPLM/A through mobilising aggrieved populations in the South, the Nuba Mountains and Southern Blue Nile to struggle for equality under the banner of a New United Sudan
- The non-“Arab” identity has been shifting along perceptions of grievances
- Today the people of the South, Nuba Mountains, the Southern Blue Nile, the Beja and the non-Arab groups of Darfur are challenging the one-sided Arab orientation of national identity
- Sudanese society is composed of different nomadic herders who are said to be Arabs and agriculturalists said to be Black Africans
- While these groups had agreements to share resources and effective tribal conflict resolution mechanisms, the abolition of native administrations eroded the existing equilibrium
- The “Arab” and “African” labels reflect perceptions because in reality Sudanese citizens are Arab-African hybrids as a result of centuries of intermarriages
- Historically and throughout Africa, having some claim to Arab ancestry was a mark of superiority while Black Africans had a lesser status and were legitimate targets for enslavement

“47. The tragedy the Sudan has been going through for decades in the southern part of the country, since the 1980s extended into the Nuba Mountains and Southern Blue Nile and now dramatized by the unfolding crisis in Darfur, signifies a nation in painful search of itself. The Sudan used to be viewed in terms of a simplistic dichotomy between an Arab Muslim North and an African Christian and animist South. For Southerners, all Northerners were Arabs and Muslims. The first war in the South, 1955-1972, was fought mostly by soldiers from the Nuba Mountains and Darfur. With the resumption of the war in 1983, the SPLM/A reversed the separatist agenda of the South and called for a New United Sudan, free from any discrimination on the grounds of race, ethnicity, religion, culture or gender. The Nuba and the Ingassana or Funj of the Southern Blue Nile began to disavow Arab identity and joined the South in the struggle for equality. The Beja in eastern Sudan, though not part of the SPLM/A, are also asserting their non-Arab identity

and demanding equal rights as citizens. The non-Arabs of Darfur, though belated in the assertion of their non-Arab identity, appear now to be undergoing a similar transformation. The identification of the conflicting parties as Arabs or Africans, or Blacks, is certainly new to Darfur.

48. With the people of the South, the Nuba Mountains, the Southern Blue Nile, the Beja, and now the predominantly non-Arab groups in Darfur challenging the one-sided Arab orientation of the national identity framework, the country is called upon to transform itself and start a new common and inclusive framework of national identity in which all Sudanese would find a sense of belonging as citizens with the equality and dignity of citizenship. To resist this unfolding identity reconfiguration and demand for equality

would be imprudent, unsustainable and self-defeating. It is time for a genuine national dialogue towards a comprehensive peace, security and stability in the country.” (UN CHR, 27 September 2004, p.15-17)

“The developments in the Darfur region are often presented as having deep historical roots, marked by complex intertribal conflicts between two sets of tribal groups, nomadic herding tribes, most of whom are said to be Arab, and the farming tribes, mostly Black Africans. The historical tensions and conflicts between these groups have recently been aggravated by the creeping desertification, recurrent drought and competition for scarce resources. Traditionally, relations between the herders and farmers were regulated by conventional arrangements between them and conflicts were managed and resolved by traditional leaders in accordance with the principles of customary law. With the abolition of native administration by the military regime of General Jaafar Mohamed Nimeiri (1969-1985), traditional methods of conflict management and resolution began to be eroded. Although the present regime has tried to revive the system of native administration, the authority of tribal leaders has been weakened to the point where they have virtually lost most of their traditional influence.

12. With the social fabric destroyed, tribes began to organize themselves into armed factions, the most notable of whom are the Arab militias, known for attacking on horses and camels, with modern weapons, targeting Black African civilians. Indeed, the term “Janjaweed”, though reportedly ambiguous and elastic, is mostly applied to Arab militias and is said to be a concoction which means, “a daredevil on a horse, carrying a gun”. It should be emphasized, however, that Arab and African labels, as noted earlier, reflect perceptions rather than realities, since even those who can claim with some justification to be Arabs are African-Arab hybrids. Historically, being a Muslim, Arabic speaking, culturally Arabized and with some claim to Arab ancestry elevated one to a level of dignity that contrasted sharply to the denigrated and downtrodden status of a Black African, a heathen, and a legitimate target for enslavement. As a result, people passed as Arabs whose visible characteristics betrayed a different African reality. But the more questionable the Arab identity, the more it was claimed and asserted. It should be noted, however, that in Darfur, as indeed throughout the North, Islam and the use of Arabic as the lingua franca had been overriding uniting factors. It should also be noted that there has been considerable intermarriage between the African and Arab tribes in Darfur. In fact, the labels “Arab”, “African” or “Black” are new to Darfur and indeed to all regions of the North, which used to be collectively labelled as Arab-Islamic. The change is probably the result of the Black or African consciousness that was initially championed by the liberation struggle in the South, but has spread to regions of the North, notably the Nuba Mountains, Southern Blue Nile, and now Darfur.” (UN CHR, 27 September 2004, p.7-8)

Practices identified by IDPs in Khartoum as harmful (2005)

- Practices identified by IDPs in Khartoum as harmful included early marriages, female genital mutilation (FGM), prostitution, witchcraft (jujoor), and the brewing and selling of alcohol
- Prostitution was reportedly not common in the camps and was said to have decrease due to the fear of the HIV/AIDS contagion
- Only 9% of households resorted to witchcraft and 65% attended the clinic

“Traditional practices in the communities that were identified by the FGs that were harmful included: early marriages, female genital mutilation (FGM), prostitution, witchcraft (jujoor), and the brewing and selling of alcohol.

Early marriage was reported as being rarely practiced with the exception of within Nubian and other northern communities. In Soba, the focus groups reported that the practice is decreasing as the population understands the negative effect upon child delivery.

FGM was reported as still being practiced in the IDP areas, although it has been discouraged. The type of FGM identified is “sunni”. It was reported that those practicing sunni will pretend that they are circumcising the boys, when it is the girls who are being “circumcised”. The practice of FGM was identified as being connected with religion, but something that should be stopped. There was no discussion regarding which tribes practice FGM.

It was reported that prostitution is not common, although it does exist within the communities. Both OeS and Soba reported that the prevalence has decreased due to the fear of HIV/AIDs.

The practice of witchcraft (kujoor) and traditional healers were reported by focus groups in WeB as being uncommon and that most of the population used clinic services when they are sick. This was backed up with the data from the survey, which indicated that only 9% of households relied upon traditional healing for their first treatments, while 65% attended the clinics. However, FGs in both OeS and Soba reported a continued reliance upon traditional healers.” (F.A.R. et al, 19 January 2005, p.19-20)

Displaced children in Khartoum camps influenced by other tribal cultures (2005)

- Displaced children in Khartoum camps are interested in different cultures
- Many children adopted Nuba Kereng traditional dances as part of their play
- Parents were concerned about enculturation into one of the dominant cultures

“Children in Soba consider homeland as a place where there is love, care and protection, especially compared with Khartoum, while their caregivers reported that they teach their children about their homeland because it is part of their responsibility to tell the children about their origin. However, the children indicated that they are interested in different cultures, such as different traditional dances. Some caregivers were concerned about enculturation into one of the dominant cultures (Nuba, for example) and that children were not learning enough about their own cultures (many of the children adopt Nuba Kereng dances as part of their play). Some in Soba mentioned that discrimination and inequality would have an impact upon their decision to return.” (F.A.R. et al, 19 January 2005, p.24-5)

Sudanese criminal law discriminates against southern and mostly Christian IDPs

- Tradition of beer brewing condemned under the Criminal Act while it is often the only source of income for displaced and destitute southern women
- Khartoum Courts do not recognize southern marriage practices and charge people of adultery and/or prostitution

"As a result of the failure of the Sudanese courts to adequately ensure the individual rights in the constitution, the laws of Sudan continue to have disproportionately adverse effect on internally displaced persons. The provisions of the Criminal Act 1991 that are especially relevant in this regard include the prohibition of drinking (art. 78) and "dealing in" alcohol (art. 79); the law prohibiting indecent and immoral acts (art. 152); the law prohibiting prostitution (art. 154) and adultery (art. 145-146). As the brewing, drinking and selling of alcohol is often a part of the culture and social life of non-Muslim displaced persons from the south, but not of northerners who are predominately Muslim, the displaced are more frequently affected by the law. Similarly as indigenous marriages are not always recognised by the authorities because they do not follow the procedures prescribed by law and instead adhere to customary practices and as a result, couples are charged with adultery and indecent behaviour or the women with prostitution, although they are in reality joined in a family bond as wife and husband." (Curtis Doebbler 1999, p.6)

Breakdown of traditional kinship ties in Bahr el Ghazal (1998)

- Traditional hospitality and inter-dependence in Dinka society stressed by the war
- Non- residents marginalized as chiefs and traditional tribal structures tend to focus their attention on their immediate constituents

"[I]t is difficult to maintain strong kinship ties and networks in a famine situation. Most of the areas that fall within the BEG region have experienced increased insecurity over the last four years. With each incidence people fled their original homes and were taken in by kin in different payams or counties within the region. This hospitality and inter-dependence is very strong in Dinka society but has been continuously stressed in the last few years. With large influxes of people from the towns, the situation has further deteriorated and it has become increasingly difficult for many of the host populations to continue supporting displaced populations. Thus, as competition over scarce resources increases, it is easy to understand the tensions displayed between host and displaced populations. The breakdown of traditional kinship ties is one of the main causes of the marginalisation of displaced populations in food distributions.

The Issue of Representation

In addition to the above, if one is to understand the process of marginalization described throughout this Report it is necessary to understand the traditional system of representation and the shifts which have occurred in relation to this system due to the changing environment.

In the tradition of Dinka society, the chief (Bany) is the leader of the tribe or sub-section of a tribe. The senior leader is the paramount chief (Bany-dit), followed by sub-chiefs (Bany-kor) followed by clan, or ghol leaders (Nhom-ghol).

Traditionally the chief holds almost absolute power over all of the affairs of the ethnic section he presides over. With such absolute power comes numerous responsibilities, including resource management, particularly at times of food shortages. It is important to note that while the chief is responsible for resource management, he is only responsible for the welfare of the people he presides over. Generally, this is an easily identifiable population according to the household, sub-clan, clan, sub-section, section and tribe. With traditional chief structures, rights and duties are easily realized and preserved during normal conditions (the reasonable food security and minimal or only traditional conflict/cattle raiding).

Non- residents are more likely to be marginalized during times of food shortages as chiefs and traditional tribal structures tend to focus their attention on their immediate constituents (subjects), as opposed to outsiders (displaced).

In addition to the marginalization of non-resident persons, traditional structures also recognize a social hierarchy in which members of the tribe with a lower social status and underprivileged tribes could be equally marginalised within the host community.

Prior to the outbreak of the current conflict in 1983, towns in southern Sudan were administered by town councils, which were responsible for the social well being of the resident population. The councils took precedence over any traditional tribal structures. In general, tribal structures tend to be inward looking and segregative, while town and rural councils are more outwardly orientated and inclusive. Populations from towns tend to have little or no experience with a system of tribal administration and when they leave a town they continue to be 'de-tribalised'.

In towns recently taken under the control of the SPLM, such as Rumbek, Tonj and Yirol, County Commissioners have attempted to group displaced and returnee groups under newly appointed chiefs. These 'town chiefs' may or may not have been elected, or may or may not have been appointed after consultations with the displaced/returnee population they are intended to represent and administer. The

towns have been divided into residential areas and, in the creation of town chiefs as administrators of these areas, an attempt has been made to reconcile an urban administration system with traditional values and accepted and recognised practices. This attempt to provide displaced and returnee populations living in urban areas with some form of representation has been partially, but not entirely, successful, at least where the distribution of relief food is concerned.

The system of town chiefs is an interim measure and it is intended that it will ultimately be replaced by the SPLM with a system of Village Committees, which would actually discourage tribalism and sectionalism.

Under the present situation of acute hunger in many places, the traditional structures are placed under enormous pressure and in many instances, the chief's capacity to manage his resource allocation function is overwhelmed." (SPLM/OLS 27 August 1998, pp. 6-7)

PROPERTY ISSUES

General

Conflicts over land and property likely to rise whether IDPs chose to stay, return or resettle (2004)

- Contrary to authorities' assumptions IDPs will not necessarily all return to rural areas and some will want to return or remain in urban areas and others will be unable to return to rural areas
- Customary land rights need to be legally recognised and registered on a communal basis to enable IDPs returning to rural areas of origin to reclaim their land and property
- Female-headed-households constitute up to 50% of returnees and women do not enjoy same land and property rights as men
- In urban areas the main problem will arise because abandoned plots by IDPs and refugees have been occupied by others, possessed or illegally sold by non-owners and occupied by military groups
- New residential plots will need to be urgently created in urban areas in order to facilitate resettlement and or compensation for lost property
- IDPs who settled in peri-urban settlements have no rights at all because their stay is considered as temporary therefore they are considered as illegal squatters
- Change of administration in garrison towns will not be all smooth as most records and surveys of land and property are lost and land and property are increasingly viewed as an individual legal right
- Many IDPs have occupied property and lands left behind by refugees and allocation of new plots to returning refugees might be less cumbersome than restitution
- Some returnees are expected to compensate for the reconstruction made by tenants before being able to re-possess their land or property in the town
- In the past twenty years, some 100,000 Bor Dinka IDPs have occupied land in East and West Equatoria that belongs to refugees in Kenya and Uganda
- It is unclear whether the people forcibly displaced in Unity State to give way to oil concessions will be compensated
- Only 17 judges operating in SPLM area will leave many property disputes unresolved

“The signing of a comprehensive peace agreement will not necessarily result in a voluntarily return of all displaced people to rural areas, as the leadership seem to assume. An important number will return or remain in urban areas, while others will not be able to return to their areas of origin even if they wish to do so.

Authorities in southern Sudan, both from the GoS and the SPLM, underestimate the land and property problems that certainly will surface when the return process will amplify. New forms of displacement may emerge in the wake of the peace process if the GoS and the SPLM do not address properly the land question, including new requests for investment in rural and urban areas.

The mission has identified six scenarios of return and settlement for IDPs and refugees, each with a number of specific problems and challenges. All immediate and mid-term corrective, and preventative land and

property related measures that are envisaged to facilitate the return and recovery process need to be streamlined with an overall land policy, implemented according to an appropriate land legislation and supported by relevant institutions.

Rural areas

A return to rural areas of origin and re-integration into existing communal institutions is the most likely scenario for a majority of displaced people. They will return to the customary land management territory where they have established rights through occupation and membership of a social group. These territories may correspond with boma or payam territories, where people encounter social networks, institutions and safety-nets that will facilitate their reintegration. There exist customary rules and regulations to reclaim their land and property, to guarantee the use of natural resources such as pasture land and water.

The present statutory legal framework is however not friendly to the customary handling of land issues. There is a need to legally recognise customary land rights and turn customary entrenched land management practices into legal instruments. The strengthening of customary land administrations entails a longer term capacity building programme that must turn customary institutions into more efficient community land administrations.

The return process of IDP and refugees, and even more so the increasing colonisation of community land by private interests is putting pressure on the local land management institutions, and undermine the rights of rural dwellers. The only viable, quick solution to extend a safety net and safe-guard land rights of rural people is to legally recognise and register these rights on a communal basis. Land speculation by powerful actors needs to be addressed urgently and must be contained by a number of measures such as a moratorium on new long term leaseholds over big tracts of land, involvement of local communities in any process of land allocation, issuance of shorter term conditional land use contracts.

It is acknowledged that women and female headed households do not enjoy the same quality of land rights than men under most of the southern Sudan customary systems (conditional use of land, problems with inheritance laws). It is estimated that up to 50% of the returnees may be female headed households, hence securing land rights for women needs urgent attention. It is well possible that more formal forms of land access and holding need to be considered, such as association or co-operative land registration.

Customary legislation such as the restated Dinka customary law include a number of provisions to addressing land and property disputes as well as to restitute ownership rights. It is advised to explore possibilities to extend the use of these rules and regulations in other areas of customary jurisdiction. A major step forward could be a unified restatement of Dinka and Nuer customary law, as proposed in the resolutions of the Wunlit Dinka-Nuer Peace Reconciliation Conference from 1999. Such a unified restatement would constitute an excellent tool to assist the local courts, law enforcement and administrative officials to deal with disputes in a significant geographic area of expected return. The restatement could be followed by an updated jurisprudence, with special attention for land and property. The South Sudan Law Society can act as a driving force to achieve this.

[...]

Urban areas

Land and property issues in urban areas are being dealt with by public administrations, the GoS in garrison towns and SPLM in other towns that are mainly located in Equatoria. After the signing of a comprehensive peace agreement, the garrison towns will fall under a majority ruling of SPLM. The influence of customary authority in land management and dispute resolution in cities and towns is much less than in rural areas.

A number of problems seem to be similar in GoS and SPLM administered cities and towns such as: abandoned urban plots of IDPs and refugees being occupied and possessed by non owners; erection of infrastructure on non-owned plots, resulting in claims for compensation; illegal sale of non-owned plots. When non owned plots are occupied by military or other influential groups, there is little chance for this property will be returned to the legal owners.

[...]

A major challenge for all cities and towns is the provision of new residential plots that need to be created through an exercise of urban planning. Presently there is a serious mismatch between the expected urban population and the number of available plots, resulting in major obstacles for the return process. This encompasses the preparation of an urban masterplan, a better use of the exiting urban space, eventually an extension of the present gazetted areas with the compulsory expropriation of land from customary land owners. The availability of new residential plots is also essential in the context of a compensation-in-kind strategy for lost property by returnees.

The rights of IDPs in provisional peri-urban settlements are very weak to non existent, mainly because their stay is considered as a temporary solution. It is well possible however that IDPs want to remain in the peri-urban areas, while the authorities are not providing the necessary provisions. This may create situations of illegal occupation and squatting. New settlement schemes with guaranteed access to plots and land need to be considered.

The expected change of administration in garrison towns is a special issue of concern. The withdrawal (or at least the reduction) of GoS local government officials and administrations and their replacement by SPLM structures may provoke insecurity which could have direct effects on land and property rights. The survey department of Juba city for instance is in shambles, important data and records are lost, there is no information base with which to deal with new land allocations and transfers or for securing tenure rights. This situation is very conducive to corruption, land grabbing and other undesirable practices. In the advent of a new administration, there is of course no incentive to deliver fair and transparent services to the public. [...]

The desired strategy of a phased return of IDPs and refugees in Equatoria seems to be difficult under the present conditions. Influential IDPs, including military and economic displaced Dinka occupy temporary abandoned land and property from refugees and are not likely to vacate these before or upon the return of IDP. It may be more pragmatic and probably more cost-effective altogether to consider the allocation of new plots to returning refugees, instead of embarking on a cumbersome restitution process, of course with the consent of the legal rights holders. It is also an opportunity for considering investment in urban areas, so much needed after years of war. Urban investment projects need to be coordinated into a coherent programme so that new opportunities for returnees are simultaneously created and do not lead to new displacements.” (UNHCR, 1 August 2004, p.44-6)

“158. Furthermore, although land is abundant in the South, some areas are more fertile than others, such as East and West Equatoria. IDPs who have settled on fertile land may ignore customary law. A potential illustration of this is the oft-quoted example of Bor Dinkas in Eastern Equatoria. For the past twenty years, some 100,000 Bor Dinka IDPs have occupied land that belongs to refugees in Kenya and Uganda. The return of the refugees might require the return or relocation of the Bor Dinka IDPs, and this could become a cause for friction.[...]

159. An added dimension to the issue of land relates to the displacements and forced relocations that have taken place around the oil fields in Unity State and Western Upper Nile. With the continued extraction of oil in the region, it seems highly unlikely that they will be able to return in the near future, nor is it clear whether they will receive adequate compensation. [...]

160. In the urban areas land and property are increasingly viewed as a legal right based on individual claims and documentation. Many foresee potential problems in the towns, where the authorities have allocated or leased plots to traders, prominent individuals, or others who can afford to lease land and property. While the authorities assure that they will comply with customary law as relates to land in the countryside, ongoing practices in the towns indicate that returnees must compensate for the reconstruction made by tenants before being able to re-possess their land or property in the town.” (IRC, 1 May 2004, p.44)

“In several parts of the South, displaced communities have been replaced in their traditional home areas by IDPs from elsewhere. In such cases, access to land or reassuming ownership of former lands, risks becoming a source of inter-community conflict, especially in the event of any sudden or mass return. Such

situations may require a process of sequenced return movements that the authorities appear ill equipped to promote or manage.

In urban areas, land and property disputes are more difficult to resolve. With returnees coming back to urban areas, disputes over land rights and the restitution of property are expected to rise. Statutory judicial systems are woefully under-capacitated to manage this task, especially in the SPLM area where there are only 17 judges currently employed. Consequently, support to strengthening the judicial system is key to the reduction of potential conflict and the promotion of reconciliation.

Access to land presents a special problem with respect to the displaced that choose not to return to areas of origin. It is incumbent, therefore, upon the GOS and regional authorities to ensure that IDPs choosing to remain in an area of displacement have equal opportunity of acquiring access and/or title to land that other local residents have. To a limited degree, such accommodation is already in place in parts of Khartoum where some IDPs now have title to land. Likewise, access to rural land has been provided to IDPs choosing to relocate to the Sanam el Naga settlement scheme in southern South Darfur. The appropriate authorities must be prevailed upon to continue promoting such initiatives.” (OCHA, 18 December 2002, p. 17)

“Participants noted that large-scale return would likely provoke disputes over entitlement to property as displaced persons found others on their habitual lands. These disputes would be complicated, inasmuch as many persons had been displaced several times and had made connections with properties in several areas.” (Brookings/ect, 25 November 2002, p.11)

Tens of thousands homes burnt across Greater Upper Nile and Darfur (2005)

- In Darfur villages are burned to the ground even after people have fled
- More than 700 villages have been burnt in Darfur together with all means of survival in order to prevent return
- Hundreds of thousands villagers forced to leave their burned villages in the oil-producing areas
- The scorched-earth strategy used in Greater Upper Nile is designed to make way for the construction of roads to oil concessions
- Huts burnt to the ground, means of livelihood destroyed, harvests and livestock looted are widely used war strategies in Sudan

“304. Many reports also note that villages were burnt even after these had been abandoned by the inhabitants who fled to IDP camps in larger urban centres in Darfur, or to neighbouring Chad. This has led many observers to fear that this is a part of the policy executed through the Janjaweed to expel the population from the targeted areas and to prevent the immediate or, possibly, long-term return of the inhabitants. This concern is expressed because the villages reported to have been burnt and destroyed in this manner are almost exclusively inhabited by African tribes, mostly Fur, Masaalit and Zaghawa. [...]

312. Such a pattern of destruction can only be interpreted as having the objective of driving out the population through violence and preventing their return by destroying all means of survival and livelihood. The Commission has also verified that a number of villages previously inhabited by the Fur in South Darfur and Masaalit in West Darfur are now being populated by Arab tribes.

According to some estimates over 700 villages in all the three states of Darfur have been completely or partially destroyed [...]. The Commission further received information that the police had made an assessment of the destruction and recorded the number of destroyed villages at over 2000. The Government did not provide any official figures despite several requests in this regard from the Commission. The Commission nevertheless received credible accounts and itself visited some sites where hundreds of homes were burnt in a single location.” (Commission of Inquiry, 25 January 2005)

"Since construction of the pipeline to the Red Sea began in 1998, hundreds of thousands of villagers have been terrorised into leaving their homes in Upper Nile. Tens of thousands of homes across Western Upper Nile and Eastern Upper Nile have been burnt to the ground. In some areas, the charred remains of the humble mud huts that got in the way of oil are the only evidence there is that there was ever life in the region.

Government forces and militias have destroyed harvests, looted livestock and burned houses to ensure that no-one, once displaced, will return home. Since the pipeline opened, the increased use of helicopter gunships and indiscriminate high-altitude bombardment has added a terrifying new dimension to the war. 'The worst thing was the gunships,' Zeinab Nyacieng, a Nuer woman driven hundreds of miles from her home, told Christian Aid late last year. 'I never saw them before last year. But now they are like rain.'" (Christian Aid 15 March 2001, p.6)

Problems over access to land during return and resettlement in Transitional Areas (2004)

- Many IDPs on their way home from Khartoum will pass by the Transitional areas and may decide to resettle there instead of to their areas of origin
- Land conflicts might rise in the Transitional Areas as a result of highly unequal land distribution and growing number of returnees
- Lack of water is a key problem in the Transitional areas
- Traditional land use practices provided northern Arab nomads with dry season pastures and southern Dinka and Nuer groups used these drier lands during rainy-seasons
- Conflicts undermined agreements over access to resources between pastoralist and farming communities
- Resettlement of residents from Abyei town and Dinkas in traditional Dinka villages was viewed by some as encouraging Arab encroachment on Dinka land
- SPLM/A representatives expressed concern about resettlement of Missiyira Arab nomads on Dinka land due to problems over tribal land ownership and use
- IDPs settled closer to their place of origin in Abei enjoyed more dignity, security and autonomy compared with those settled around Khartoum
- Displaced in Khartoum were believed to have been removed to camps around the city to "clean" the city of undesirable presence and were still living in shanty dwellings
- The UN Representative recommended that IDPs should be assisted to return to areas of origin, or to resettle in an area of their choice or if they wished to stay that their situation be improved
- Residents in areas of origin are provided with titles to their plots and benefit from much better housing quality compared to newly arrived IDPs
- Land allocation procedure discriminates against IDPs without identity documents and female-headed households
- Land allocation is limited to peripheral government-owned land risks to further marginalize IDPs from access to health, water, education, trade and job opportunities

"However, land distribution [in Abyei, Blue Nile state and Nuba Mountains] is highly inequitable and return is likely to result in increased conflict over land.

[...]

Responding to return will also be critical. Abyei County (SPLM/A controlled Abyei) is a major gateway for IDPs returning from Khartoum, many of these move on but others stay. Many of these say they hope that

they may eventually be able to return to their villages north of the in Kir River/Bahr el Arab Abyei but security is not such that this is currently possible. Lack of safe water is also a major problem for those returning. Large numbers of IDPs have also returned to Nuba, particularly the SPLM/A controlled areas, where the shortage of cultivable land and competing claims have already led to fears of conflict” (UN, 30 November 2004, p.143).

“An issue which will continue to pose a serious challenge for the peace and stability of the area is the problem of land and who is to return or be resettled where. Traditionally, the Arab nomads moved into the area during the dry season in search of grazing and sources of water. During the rainy season, southern Dinkas and Nuer also moved into the area to avoid floods. The movements of both the nomadic Arabs and the southern tribes were well regulated through convention and cooperation between their respective leaders. Certain routes, grazing areas, water sources and camping sites were designated for the respective groups. Over the last two decades, the Dinka have been forced off their land. The Arabs, too, have not been entirely secure in their use of the land as the Dinka have endeavoured to arm themselves and strike back. In the discussions with the Arabs in the area, they were remarkably frank in admitting that they had been responsible for the attacks against the Dinka, but that they also had been devastated by the war and had decided to turn their back on violence and commit themselves to peaceful coexistence with their Dinka neighbours. The history of amicable ties between the Ngok Dinka and the Missiriya Arabs under their respective leaders Babo Nimir and Deng Majok was repeatedly invoked as a model to go back to and build upon.

The joint resettlement of the Arabs and Dinka in the traditional Dinka villages was viewed with mixed feelings by many. On the one hand, it symbolized the two groups coming together in the context of peace agreements. It was also seen as a pragmatic way of giving the resident Arabs access to the humanitarian assistance which was being provided by the international community to the Dinka in the area. On the other hand, it appeared to the Dinka as representing Arab encroachment into their land, a first step which, it was feared, might encourage their occupation of Dinka land. To mitigate Dinka fears, it was explained that the number of Arabs involved in the resettlement was relatively small and represented only those who were already resident in Abyei town, and that the pattern would not be repeated in the traditional homes of the Dinka to which the preponderant number of IDPs would return. It is important in this context that the traditional sharing of resources between the settled Dinka and the nomadic Arabs and the cordial relations that had existed between them be reaffirmed and supported.” (UNCHR, 27 November 2002, p.19, para 61-61)

“While they strongly supported the local peace process and the return programmes, representatives of SPLM/A expressed serious concern about resettling the Missiyira Arab nomads in the land of the Dinka. Although the nomads were free to enter the area in their traditional seasonal migration in search of water and pastures for their livestock, and while individual Arabs who had settled among the Dinka were welcome, the representatives maintained that any large-scale resettlement of Arabs in the land of the Dinka would be a major impediment to peace and stability in the area. Indeed, the essence of ownership and use of tribal land is a volatile issue which, if not well managed, will continue to be a source of conflict in the area.” (UNCHR, 27 November 2002, p.13, para35)

IDPs relocated in/near areas of origin are better off than those relocated outside main cities:

“With regard to the camps around Khartoum, as the Representative reported following his first visit [1992], conditions at the camps revealed an unmistakable tension between the range of humanitarian services reported to be provided to the displaced and the obvious resentment the people felt about the inherently degrading conditions of their displacement, far away from home and in relative isolation from the adjacent city. The situation in Abyei, on the other hand, where the people were either indigenous or were displaced but close to their roots further south, contrasted sharply with the conditions in the camps around Khartoum. Although relief supplies had not arrived because the area becomes isolated from the rest of the country during the rainy season, people had managed to survive through their own resourcefulness by cultivating land within the constraints of the territorial restrictions imposed by the security situation, or by gathering wild food from their natural surroundings, despite the limitations of the war conditions. The critical

difference between the settlements around Khartoum and those in Abyei was not so much that the people in Abyei were better provided for, but rather that they enjoyed a minimum acceptable degree of security, dignity and autonomy.

[...]Several conclusions emerged from the two contrasting cases which the Representative presented to the Government for consideration and which remain valid today. First, whatever services were being rendered, the location of the displaced just outside the city, where they were neither part of the urban community nor in their own natural setting, was inherently degrading, especially as it was popularly believed that they had been removed in order to “clean” the city and rid it of undesirable elements. Secondly, the physical conditions of the displaced as reflected in their shanty dwellings did not adequately compensate for their removal from the city.

[...]The alternative approach which recommended itself was that, security conditions permitting, people should be given the choice to go back either to their areas of origin or to settlements closest to their natural setting, and accorded the protection and assistance necessary for them to resume normal and self-sustaining rural life. Alternatively, those who choose not to go back should be assisted to move freely into any area of the country, including urban centres, and given the necessary assistance to integrate themselves as ordinary citizens. The third alternative proposed by the Representative was that those who choose to remain in the camps should not only be given the services of the kind described to the Representative as necessary, but should also be assisted with materials to build for themselves more appropriate and durable accommodation to help compensate for their isolation from urban conditions" (UNCHR 5 February 2002, para 12-14)

Land allocation procedures for IDPs:

"Although these visits were not extensive, he [the Representative] was able to discern improvements which had occurred as part of an ongoing and at times controversial urban replanning programme around Khartoum. Accompanied by representatives of the Khartoum State Government, as well as the former Minister of Engineering and Housing who, until his retirement a few months prior to the mission, was responsible for the urban replanning programme, the Representative visited areas of Khartoum North, including El Shigla, El Isba, Suk Sita, Karton Kassala, Takamul and Haj Yusef. The contrast between the areas which the former Minister of Engineering and Housing referred to as “treated” and those that were “untreated” was striking. The area of origin of the residents, all of whom were reportedly provided with title to their plots, could be ascertained by the type of housing, as well as the extent of construction. More recent arrivals from conflict areas tended to live in one-room mud housing or basic tukuls in open spaces, and longer-term residents, mostly from different regions of the north, had constructed more substantial housing and fenced compounds. It was evident that the area had been developed and enhanced since the Representative’s previous visit in 1992, but that southern displaced populations were still relatively worse off, presumably because they were more impoverished and lacked the resources for self-enhancement.

[...]

The Representative was informed that a planning process was under way in the camps which required residents to be registered and their identity and status checked in order to qualify for land ownership. A survey had also been initiated which demarcated the future locations of the main streets. It was envisaged that all other streets would subsequently be laid out, and that those who qualified for ownership of plots of land would remove their current shelters and reconstruct houses on the new plots according to the regulations and criteria of the Ministry of Housing. It was explained to the Representative that priority is given to married couples with families and claimants must present marriage and nationality documents. While the merits of these criteria are obvious, they could potentially exclude the needy displaced who are not married and those who have lost relevant papers, especially as it is not clear how easily replacement documentation can be obtained. It also raises concerns about access to land by female-headed households, of which there are a significant number and whose humanitarian needs should receive high priority.

[...]

Although this process commenced in 2000, it was noted that progress to date has been slow. Concerns were expressed also with regard to the implementation of the replanning programme and in particular the fact that it has often been erratic and poorly communicated to those displaced households directly affected by the process.

[...]

In addition, the Representative was informed that the process is subject to the limitations of Government-owned land, as a result of which an estimated 6,000-7,000 displaced households may be relocated more to the periphery of the current area of Omdurman and will become further removed from access to health care, education, transport, markets and employment opportunities" (UNCHR 5 February 2002, para 15-19)

Law and policy

Over 40,000 displaced houses demolished as government re-plans four IDP camps in Khartoum (2003-2005)

- Demolitions in Khartoum since October 2003 have affected approximately 250,000 displaced people and many IDPs have left the capital as a result
- Of the four camps surveyed Wad el Bashier, Omdurman es Salaam, Mayo Dar Naim and Soba Arradi and Salaama, only 23% had received a plot, while 77% still did not have a plot
- Among those who did not receive a new plot, 55% reported they would return home if they didn't receive one
- By November 2004, 80% of IDPs in four locations in Khartoum were living in temporary shelters
- Many IDPs have been excluded from accessing a plot especially those who have lost their identification, female-headed households, those arriving in Khartoum after 1996 and those who could not afford to pay for a new plot
- As of December 2004 no known government policy addressed the needs of IDPs whose houses had been demolished and who were not eligible for a new plot
- During the mid-80s, many IDPs arriving in Khartoum fled the famine in Kordofan and those arriving in late 80s mostly fled war
- In 1991, four areas were assigned to IDPs, WeB, OeS, Jebel Aulia, and Mayo and other IDPs squatter areas were demolished and IDPs relocated to newly established camps
- In 1994 the government re-planning the Angola camp, demolishing 16,000 homes and only 8,000 received new plots
- Haj Yousif was demolished in 1998 and 80% of IDPs received plots while the remaining 20% could not afford them and ended up in squatter areas
- Since 2003 over 40,000 homes and thousands of latrines had been demolished in Wad el Bashier, Omdurman es Salaam and Soba Arradi and Salaama since 2003
- Facilities built in the camps including schools, health and latrines have all been destroyed
- No alternative shelter was provided for the IDPs who were given 48 hours to find alternative shelters
- Only a very small percentage of IDPs who were allocated a new plot started rebuilding their house, due to lack of financial means (\$300-\$600) and manpower
- UN Representative for IDPs reported that IDPs who had been removed away from Khartoum to 'cleanse the city of undesirable non-Muslim elements' were relocated to makeshift dwellings in isolated areas (1992-2002)

“Plot procurement: There are still a high number of those who have had their homes demolished who have not yet had a plot re-assigned, as well as some concerning practices that exclude specific people from accessing a plot. In particular this concerns those who have lost their identification and female headed

households who are not allowed to register. In addition, many who may receive a plot will not be able to afford the cost of the plot, especially in Soba Arradi, where the plots are based upon a commercial rate.

[...]

In October 2003, the Ministry of Planning in Khartoum State began the re-planning process of two IDP camps, Wad el Bashier (WeB) and Omdurman es Salaam (OeS) and three squatter areas, Mayo Dar Naim, Soba Arradi and Salaama. The process was accelerated during the last months of 2004 and has led to some challenges that need addressing. It is believed that the current demolitions have affected over 250,000 people in Khartoum State.

[...]

At the beginning of November 2004 it has been observed and discussed by the IDP communities that over 80% of the families are living in temporary shelters.

[...]

The issue of eligibility is closely connected with the official status of IDPs. According to the Ministry of Engineering anyone registered up to 1996 is considered an IDP. For example, those registered since 1993-96 (especially in Soba Arradi and WEB) were considered for plots, and this targets less than 60% of the total households in need for plots.

[...]

Until the beginning of December it was also impossible to attain a clear Government policy as to where the IDPs who do not receive a plot will go.

[...]

The demolitions worsen the social economic conditions among the IDPs. Those who managed to acquire a plot need to reconstruct their shelter which means they cannot earn an income at the same time. Those who did not receive a plot have had their houses demolished without a place to go to. Therefore, it is important to assess the impact of the demolitions upon the economic situation of both groups and to identify the most vulnerable people and their specific needs.

[...]

Three of the targeted areas are official IDP camps, WeB, OeS and Mayo Farms, and the fourth area is a squatter area with a high percentage of IDPs, Soba Arradi.

[...]

Mid-Eighties

A severe drought and famine occurred in Kordofan State. Many families and individuals from Kordofan fled from the famine areas to Khartoum where they settled themselves as squatters scattered throughout Khartoum. The majority of these IDPs gradually incorporated themselves into the area of Salama, Haj Yousif, and Angola which were later re-planned.

Displaced individuals established temporary shelters out of plastics and cardboard to protect themselves from the elements. Disease and malnutrition was a major problem, severely affecting the IDPs.

Late Eighties

People from the South first began to arrive in Khartoum, driven from the civil conflict between 1988/1990. The people squatted in groups on the outskirts of Khartoum, building temporary shelters and sanitation areas. The squatter population numbers continued to increase as the conflict continued.

Nineties

The first NGOs involved in Khartoum State started in the early nineties, including MSF France and Holland, Goal, ADRA, FAR and IRC.

In 1991, four main areas were assigned to the southern IDPs, WeB, OeS, Jebel Aulia, and Mayo. Those who had squatted previous to the establishment of the camps had their shelters demolished by the government and were loaded onto lorries to be transferred to the newly defined camp boundaries. The demolitions took place in the winter time and some into the rainy season, leaving the IDPs in very difficult circumstances. In squatter areas near Mayo the demolitions became a volatile issue as IDPs attempted to stop the demolitions, resulting in the shooting death of eight IDPs in the squatter area.

When new IDPs came from the South they were directed to the 'new arrival camps', where they settled without any plan or organization. Generally, they settled according to their tribal lines for security as well as because of the familiarity of traditions and language, creating zones within the camps.

In 1994 the government began the process of re-planning the Angola camp, beginning with the demolitions of homes in the winter season. Approximately 16,000 homes were demolished in this process, while only 8,000 received plots. Of the 8,000 who did not receive their plot, 4,000 settled in present day squatter area Salahin, near WeB, while the other 4,000 scattered to various locations throughout Khartoum. The humanitarian situation of these people was extremely difficult. Outbreaks of diseases were extensive, forcing the creation of 'emergency centers' in the camps by NGOs and the International Community.

The health situation of the people was severe with acute watery diarrhea and measles outbreaks. The camps were very densely populated, facilitating the spread of diseases, and increasing the sanitation and hygiene vulnerabilities of the people. Shelters for the IDPs consisted of plastic, cardboard and fabric. It was not until 1996/1997 that more permanent shelters were built out of mud.

[...]

The numbers of IDPs being relocated from the war continued until the end of 1996-1997, when the numbers entering began to decrease substantially, and the population figures stabilised.

The re-planning process in Haj Yousif began in 1998. All houses in Haj Yousif were demolished leaving the people in temporary shelters. Approximately 80% of those with houses demolished received plots, while the remaining 20% did not have the means to acquire a plot, forcing them to move to squatter areas. The demolitions took place over the rainy and winter months, being extremely difficult for people in terms of health and sanitation.

2000 Onward

[...] The Ministry of Planning began to undertake a broad policy of re-planning of IDP camps in Khartoum in 2003. This process included demolishing WeB and OeS camps, and has initiated demolishing in Mayo Farms camp, Soba Arradi and Salaama. As of November 2004, the demolishing has resulted in the destruction of over 40,000 homes and thousands of latrines. The government has distributed plots of lands to IDPs who meet established criteria, while thousands have yet to receive plots. The living and sanitation conditions of the IDPs are very low.

[...]

Metropolitan Khartoum includes Khartoum, Omdurman, and Khartoum North, and its estimated population ranges from 6-7 million, including approximately 2 million displaced persons. [...]

Wad el Bashier (est. 74,800 people) camp

WeB is located 15 km northwest of Khartoum. There is an estimated 13,500 families with demolished houses in WeB. As of November 2004, only 5,400 have received plots and 8,100 have not. [...] According to responsible authorities these families will be given plots in new blocks 51 and 52 south of OeS camp approximately 6-8 kilometres from WeB.

Omdurman es Salaam (est. 120,000 people) Camps

OeS is located 20 northwest of Khartoum. In OeS as of end of October 2004, approximately 13,000 households were reported to have been demolished, of which 9,000 have received plot allocations. There seem to be numerous levels of fees that are to be paid for plot allocation, for example to the survey department (SD 4,200 per plot) to the locality (SD 7,500), and sometimes to the engineer. In OeS it has been assessed that 6,000 households are unable to pay these fees and therefore will not be able to secure a plot.

Soba Arradi (est. 64,000 people)

Soba is a squatter area composed of twelve zones (Muaba'at) or blocks. Soba Arradi is mainly settled by people from Darfur, Nuba and Falata, Gezira, and Damazine. Demolitions started in Soba during August 2004. By November 2004, all 12 blocks were demolished. According to the Ministry of Engineering and

the Ministry of Planning, the residents of Soba Arradi are not considered to be IDPs, because there is said to be a high level of involvement of business men (Samasra) and there are also illegal citizens suspected of grabbing free land. [...]

Mayo Farms (est. 133,000 people)

Mayo Farms is an IDP Camp, located immediately south of Khartoum. The residents of Mayo are war-affected population from southern Sudan and the Nuba Mountains. Areas adjacent to Mayo Farms Camp have been re-planned and sold/allocated to citizens, including IDPs, over the past years. Mayo Farms itself has not yet been re-planned.

[...]

Of those surveyed, only 23% had received a plot, while 77% still did not have a plot in all four areas. However, the breakdown between IDP areas is quite diverse. In Mayo, where there have not yet been demolitions, 4% reported that they had received a plot (presumably they are from the squatter areas around Mayo that have been re-planned).

[...]

It has been reported that certain groups have been excluded from being able to access a plot, including female headed households, those who have lost their registration documentation, and those who have recently arrived in Khartoum.

[...]

For those who had not received plots, when asked what they would do if they don't receive one, 18% reported they would stay in Khartoum, 6% would move camp, 55% reported they would return home, and 3% would change to another state." (F.A.R. et al, 19 January 2005)

"With the exception of some return flows, no mass movements of IDPs occurred in northern Sudan. However in 2004 the GoS started to implement a new planning scheme in some of the IDP camps around Khartoum. This involved house demolitions, which prompted an undetermined number of spontaneous returns." (UN, 18 November 2004, p.177)

"Approximately half of the more than four million IDPs have fled to Khartoum, Sudan's capital, in waves that reflect both the severity and scope of fighting between government and rebel forces, as well as fighting among various tribal groups in the south. Most of the IDPs have moved in with family members or set up squatter communities in neighborhoods and fields around Khartoum. Some 270,000 live in four large camps.

[...]

To deal with the crowding and chaos in the haphazardly constructed camps, the government launched a program to turn them into more stable residential communities, with planned streets and utilities, including electricity and piped water. A lottery system will allow some of the camp residents to purchase land in the re-zoned camps. The initiative is sound in principle. It recognizes that many of the displaced will choose to remain in Khartoum. The plan is not working in practice, however. Whole neighborhoods of homes built by the displaced have been bulldozed into piles of rubble, leaving families with no place to live. A system to enable camp residents to purchase plots on which to build new houses is slow, complex, and expensive.

[...]

But even after a family purchases a new plot, which can cost a minimum of about \$70, they must pay from \$300 to \$600 to build a new house, depending on how many pieces they can salvage for the old house after it is bulldozed. This is a sizable amount of money for many Sudanese, displaced or not.

Sudanese officials insist that the program is not designed to force people out of Khartoum at a time when many are contemplating whether they should return home following a hoped-for peace agreement. Rather, they insist that the program is an attempt at urban planning that will turn IDPs into property owners rather than squatters." (RI, 19 February 2004)

"[...] yet the procedures used to date have lacked a clear implementation plan beyond the demolition of homes, shelters and latrines as well as some service facilities (schools and places of worship); a lack of clear procedures for IDPs to purchase plots and rebuild homes; no provision for temporary shelters and

emergency assistance for those whose houses have been destroyed, and no clarity in general that the process will indeed result in improved lives and less vulnerability. CARE, FAR, UNDP, OCHA and some donor representatives are currently engaged in a dialogue and advocacy process with the authorities to ensure that issues related to the demolition and re-planning are addressed and that a clear plan of action is in place to ensure that the process benefits those it is intended to help.

[...]

Although it is understood some form of re-planning should take place, the manner in which it is being conducted raises many concerns pertaining to the basic rights of citizens. The following issues/questions were raised (verbally and in written form as requested by the GoS representatives) with the Ministry and CVHW at the most recent meeting on December 9th:

1. A clear (written) presentation of the plan – in addition to WEB, which other areas are to be affected and when;
2. A clear (written) presentation of the criteria under which IDPs will be allocated new plots – criteria for selection, documentation required, payments required and their timeframe for completion – and how the Government will deal with IDP households who are not allocated a plot, i.e. potential for an Ombudsman function / service to IDPs;
3. Possibility for exemption for IDPs without documentation – too poor to pay – particularly after demolition of their existing housing and stress of having to construct new shelter;
4. Provision of immediate assistance to the households affected by the demolitions – assistance to find suitable living location while waiting for assigned new plot, shelter, protection of properties, blankets, provision of water, sanitation, health care, education services;
5. Maintenance of existing social services – health centers, schools, worship places, other public service providers.” (UN RC, 1 December 2003)

UN Representative of the Secretary-General for IDPs' 1992 mission

“During his 1992 mission to the Sudan, the Representative visited two camps for the displaced near Khartoum - Dar-es-Salaam, west of Omdurman, and Jebel Awlia, south of Khartoum - [...]

However, the displaced had been relocated away from the city to desolate desert areas, where there were no employment opportunities or social services other than essential minimum humanitarian assistance. The dwellings, which were built by the displaced themselves from local materials, did not differ from those often found in the shantytowns in which they had lived in Khartoum, although they were more spread out. The officials defended the relocation policy by pointing to the contrast between the conditions under which the displaced now lived and what they described as the dehumanizing conditions in the squalid areas of the industrial periphery of Khartoum-North, under which they had lived.

People at the camps, however, far away from home and evicted from the city, demonstrated an unmistakable resentment at the inherently degrading conditions of their displacement. Their faces reflected a sense of rejection, uprootedness, alienation, and anxiety, a suspension between hope and despair, all of which they communicated by various means.

[...]

First, whatever services were being rendered, the location of the displaced just outside Khartoum, where they were neither part of the urban community nor in their own natural setting, was inherently degrading, especially since it was popularly believed that they had been removed to cleanse the city of undesirable non-Muslim elements. Second, the fact that their shanty dwellings in the camp were not better than those they had lived in before, except for more open barren space, did not adequately compensate for their removal from the city.” (UNCHR, 27 November 2002, p.9-10, para18-20, 22-23, 25)

Sudanese land legislation led to conflicts and displacements (2004)

- The Unregistered Land Act of 1970 and the Civil Transaction Act of 1983 allowed the GoS to interfere in customary land management and dissolved customary authority involvement in local administration
- Mass displacements were due to the two acts (1970 and 1983) whereby large tracts of land were leasehold for mechanised farm projects in south Darfur and south Kordofan and for oil concessions in Unity
- The Native Administration Act in 1970 substituted legitimate customary authorities by new traditional leaders selected by the warring fractions
- The government does not respect anymore the outcome of dispute arbitration by customary authorities
- Access rights to land are derived from one's individual membership in a group similarly conflicts over resources will lead to group conflicts and the group is involved in settling the dispute
- Investors interests in buying large tracts of land to exploit natural resources may lead to new expropriations and displacements
- Customary land rights are the right of the community derived from ancestors but there is no formal registration or documented ownership
- According to southern customary law ancestral land with shrines should be returned to displaced owners
- Customary rules of communal land ownership did not preclude individual property entitlement
- A 1990 law stipulated that the government shall destroy temporary housing built on land not owned by the people inhabiting it
- Unregistered land becomes government land
- The rights provided by decree 941 stating that demolition should only take place after IDPs have been given alternative accommodation are seldom put before Sudanese courts

“The approval of the Unregistered Land Act in 1970 and consequently the Civil Transaction Act in 1983 provided the Government of Sudan (GoS) a legal mechanism to interfere at will in customary land management. Leaseholds over large tracts of lands in South Darfur and South Kordofan (of land issued under the mechanized farming programme) generated massive displacements of the local population. Similar displacements occur in areas where oil concessions were issued, such as in Unity State.

[...]

The dissolution of customary authority involvement in local administration in 1970 with the passing of the Native Administration Act is regarded by several temporary political leaders as a watershed in local government. New traditional leaders are frequently selected by the fighting fractions to substitute legitimate customary authority. Hence, conflict prevention and resolution can not always rely on these experienced and efficient institutions.

[...]

Grazing agreements between different groups were previously facilitated by local administrations. Today this cooperation between customary authorities and local governance has eroded. When agreement is reached between two parties through customary mediation techniques, the government does not always respect the outcome. There is a clear lack of a single and strong arbitration system.

[...]

Access rights to land are derived from an individual's membership in a social group or a community. This implies that individual conflicts related to these resources automatically become group conflicts. Belonging to a group also implies obligations towards that group. Proof of manhood through cattle raiding and cooperative payment of marriage dowry can engender conflict. The same can be said of the customary penal system, where larger groups become involved in the settlement of individual fines.

[...]

There are signs now that new expropriations or the recuperation of old land leases and concessions, legally or not, may, yet again, cause a new wave of displacements, or jeopardize the return of people to their areas

of origin. In Equatoria, for instance, there is already a major interest from the private sector to “invest [...]” in rural areas, acquiring vast areas of land for coffee estates, exploiting its rich timber resources, investing in new teak plantations. The recuperation of conserved areas or natural parks, presently being occupied by displaced people, may add another dimension to the displacement. The eventual pressure from the private sector on the resettlement process should not be underestimated.” (UNHCR, August 2004, p.4)

“155. Access to resources is at the root of most protection problems in Sudan. [...]

156. Generally, land in the rural areas is a right of the community, and seen as a resource issue. Land rights are derived from ancestors, collectively owned by the community/tribe. There exists no formal registration or documented ownership, and the right to land is safeguarded by a respect for customary law.

157. At the local level in the South, conflicts related to resources in the form of grazing land are long-standing occurrences, which have been rendered more violent as a result of the war and a consequent increase in the flow of small arms. Previously, elders of agricultural and pastoralist tribes would conclude an agreement on the seasonal use of grazing-land, which also expected young herdsmen to keep the cattle away from the crops. Not only has the war weakened local agreements, but in case of dispute, the aggrieved resort to guns, rather than spears, causing much larger numbers of casualties.

[...]

However, whatever the outcome, the Southerners will be reluctant to subscribe to property laws, if these contravene customary law. As they see it, the only problem at hand is the need to identify an appropriate resolution mechanism.” (IRC, 1 May 2004, p.44)

“Some participants voiced the view that those currently putting property to beneficial use should be entitled to remain there. Others asserted that customary law in the south would require at least that ancestral lands where shrines have been erected be returned to their displaced owners. It was noted that the customary rules of communal land ownership in Southern Sudan were nuanced and did not preclude individual entitlement to property after displacement. There was consensus that equitable laws and a responsive judicial system should be put into place as soon as possible to address all potential disputes.” (Brookings/etc, 25 November 2002, p.11)

“The planning and land laws also disproportionately adversely affect displaced persons. Foremost among these laws is Decree 941 from 20 May 1990 that states in paragraph 2(d) that the government “shall immediately destroy” temporary housing that has been built on land not owned by the people inhabiting it. This decree is supported by article 7 of the Civil Transaction Act 1983 that states that all matters of land registration are to be dealt with by the government through ‘special laws’.

An amendment of 10 October 1990 to the Civil Transaction Act 1983 states in article 1 that all non-registered land is government land and then goes on to provide that no legal action may be taken concerning government land. As a result even long-term displaced persons who should have otherwise gained title to land by the common land means of prescription-the acquisition of land by peaceful and unchallenged occupation of the land for at least ten years-are henceforth disenfranchised without a means of obtaining compensation. Even before the 1990 amendment, the Unregistered Land Act 1970 had decreed that all unregistered land was henceforth deemed to be government land and could not be registered by private owners, although at the same time the Land Settlement and Registration Act 1925 continues to provide that ownership must be proven by registration. The consequence is that the government is the discretionary owner of all land and that persons who inhabited land after 1970 will not be able to acquire ownership and/or prove their ownership of the land. Attempts to prove that a right to use the land exists will also be unsuccessful against the government after the 1970 Act because in article 7 it prohibits any action concerning government land.

[...]

Another relevant instrument of Sudanese law is Decree 941, which is the above-mentioned authority for the government's policy of demolishing the houses of internally displaced persons. This decree also provides that demolitions should only take place after the displaced persons have been given alternative accommodations that have adequate services and after appropriate notice has been given to the persons

whose houses are being destroyed so as to allow them to move to their new residence. Although it appears that these rights are at best irregularly respected, it is more striking that many internally displaced persons do not even know of the existence of these rights or do not invoke them against the government. Despite the numerous relocations or forced evictions that took place in 1998 and 1999, almost no Sudanese lawyer raised these rights before the Sudanese courts." (Curtis Doebbler 1999, pp. 6,7)

For more information about property laws in Sudan see Land and Property Study in Sudan, Study on arbitration, mediation and conciliation of land and property disputes Domenico Nucci (November 2004) in the bibliography below.

PATTERNS OF RETURN AND RESETTLEMENT

Return

Over 400,000 IDPs returned home in 2004 while about 320,000 people were newly displaced in southern Sudan (2005)

- About 300,000 IDPs returned from northern Sudan to the South during 2003 according to FAO GoS and SPLM/A estimate that about 950,000 people may try to return to the south in 2005 and the UN planning assumptions are between 500,000 and 1.2 million people
- Return movements may be massive but may also be small groups trickling back home
- Many people might also move from South to North in search of economic and education opportunities
- Spontaneous returns and go-and-see-visits have been ongoing since the agreement on a cessation of hostilities in late 2002
- WFP estimates that 20,000 displaced have returned via Northern Bahr-el-Ghazal since 2003 while NGOs and authorities estimate about 10 to 100 arrivals daily
- Return seems most feasible to the relatively stable areas of Nuba Mountains, Bahr-el-Ghazal, Western Equatoria, Northern Upper Nile and Lakes
- Tow thousand IDPs living in Khartoum returned in a convoy of barges along the Nile River to Juba, Bor and Adok
- The number of returnees is three times higher than in previous years barges are overcrowded with only one military doctor accompanying the IDPs an no medicines
- IDPs said among reasons for returning was the lack of job opportunities, harassment due to beer brewing and peace prospects

“According to OCHA, an estimated 360,000 IDPs had returned to the southern areas during 2004, the majority coming from the Khartoum area. They have returned to places such as Kosti, Bentiu, Juba and Malakal.” (IRIN, 21 February 2005)

“2005 return projections from Khartoum IDP camps and squatter areas

Intention of staying in Khartoum: **17%**

Intention of returning: **51%**

Undecided: **30%**

Of these, in the period

Jan – March 2005: **67,500**

March – May 2005: **30,000**

May – Dec 2005: **60,000**

Year + : **472,500**

Return destinations

Equatoria: **32%**

Nuba/ Central: **17%**

Bahr el Ghazal : **15%**

Kordofan/Abeyi: **14%**
Upper Nile: **9%**
Darfur: **8%**
Other: **5%**” (OCHA, 1 January 2005)

“Encouraged by progress in the peace negotiations, over 400,000 of these people returned to their home areas in 2004.

[...]

The GoS/SPLM/A Framework Plan for Spontaneous Return in Sudan suggests that 950,000 people may try to return to the south in 2005. [...] The UN’s planning assumptions are that between 500,000 and 1.2 million people could return depending on the signing of the peace agreement and its timely implementation. [...] In 2004, returnees reported violations during and upon return.” (UN 30 November 2004, p.44-45)

“15. Over the past year, the humanitarian community has conducted assessments to determine the scope and number of returnees in an organized return/repatriation exercise, following signature of the peace agreement. [...] However, there is still a degree of uncertainty as to whether there will be a massive flow of displaced returning back in a shorter period of time, or, rather, small groups trickling back over a longer period of time. There is also a possibility that some people will move north towards urban centers in search for economic and educational opportunities. [...]

16. Spontaneous returns and go-and-see-visits have been ongoing since the agreement on a cessation of hostilities in late 2002, and seem to continue to areas that have gained a certain level of stability and tranquility.[...] There have been ongoing return movements to the Nuba Mountains since the ceasefire agreement there in January 2002. WFP estimates that 20,000 displaced have returned via Northern Bahr-el-Ghazal since 2003, while NGOs and authorities on the ground report anything between 10 to 100 arrivals daily (given the lack of systematic monitoring and registration, numbers tend to vary).[...]

[...]

17. According to the UN Emergency Population Returns Program, of the 4.5 million displaced persons, an estimated 1.1 million displaced persons may return spontaneously to Southern Sudan in the coming six months (March – August 2004). [Footnote no.6: The planning figure provided by the Sudan Relief and Rehabilitation Commission (SRRC) amounted to 3 million and was modified in a compromise with the UN to 1.1. million, and thus the number is rather a political figure.] At this point of time, return seems most feasible to the following areas due to their relatively stable security situation:

- Nuba Mountains
- Bahr-el-Ghazal
- Western Equatoria
- Northern Upper Nile
- Lakes” (IRC, 1 May 2004, p.6,7)

“Preliminary analysis shows that about 400 000 IDPs will be moving back from the north to their places of origin or choice during the initial 12 months of the implementation of the peace agreement. Major concentrations of returnees are currently in Aweil (Bahr El Ghazal), Abeyie, Nuba Mountain (Kordofans), Bentui (Unity), Bor, Pibor, Phou (Jongley) and Magwi (Equatoria). Estimates suggest that the highest number of returnees will settle in Bahr El Ghazal, South and West Kordofans, Blue Nile, Jongley, Upper Nile, Unity and Equatoria.” (FAO, 11 February 2004, p.1,3, 23)

“The numbers of beneficiaries for food assistance could have been lower but the voluntary return of about 300,000 IDPs who will require food assistance in 2004 caused the estimates to be readjusted upwards.” (FAO, 11 February 2004, p.3)

“About 2,000 displaced southern Sudanese who have been living in Khartoum are on their way home in a convoy of barges, proceeding along the Nile river towards Juba, Bor and Adok, according to the World Food Programme (WFP).

"In the past we have witnessed a migration south at this time of year for the harvest season," said Lara Melo, a WFP spokeswoman, "but this year the numbers are three times as large as normal, and they say they are going home to stay".

The displaced told WFP staff that they were moving south for a number of reasons, including the lack of employment opportunities in the capital, harassment due to the brewing of alcohol, and because of the prospects of peace in Sudan.

[...]

The two thousand passengers began to arrive in Kosti as early as the beginning of September to wait for the barges, where they camped in a warehouse in poor conditions.

Humanitarian sources told IRIN that sanitation on the barges was very limited, with little space for each person as well as the possibility of people falling overboard en route. There was only one military doctor accompanying the convoy, and no medicines were available." (IRIN, 7 November 2003)

Needs upon return to Southern Sudan (2004)

- Many more people will return in 2004 to areas with no schools, limited access to safe water, waste disposal and health care
- Despite the peace agreement, returnees will face continued violence particularly in Upper Nile and Equatoria where government-backed militias and the Lords Resistance Army respectively are active
- Disputes between returnees and host communities are likely to rise due to tensions over property claims or allocation of aid and services
- Support for the establishment of the rule of law is urgently needed as well as protection mechanisms along return routes
- Returnees have already been victims of property looting, informal 'taxation,' physical and sexual assaults, denial of freedom of movement and choice and the forced separation of families
- Mines and UXO litter about 50% of the country according to official sources, and will need to be cleared to enable the safe return of populations
- 33% IDP household in Khartoum were employed in agriculture before fleeing and 16% were self-employed as of 2003, 74,7% IDPs in Khartoum were unemployed
- IDPs returning will need assistance along the 14 return routes
- 35% of returnees are expected to go to Equatoria, 20 to Bahr el Ghazal, 20 % to Upper Nile and 15 % to Southern Kordofan
- Local authorities are unprepared to cope with returning IDPs and infrastructure is close to inexistent
- Return movements are often assumed to be massive but they are likely to be more gradual

The JAM cluster 7 focusing on Livelihoods and Social Protection is planning for "solutions for displacement – return, integration in place, reintegration, and resettlement of estimated 6.7 million displaced persons (IDPs and refugees).

[...]

Key issues and challenges

[...]

About 550,000 IDPs/regugees have recently returned to South/transitional areas, but about 320,000 people newly displaced [in southern Sudan during 2004]

Reported incidents of militias attacking and illegally taxing groups of returnees en route

3.6 million Sudanese required food aid in 2004

[...]

Estimating the pace and number of likely returnees is technically challenging – best estimate is that 70% of IDPs from South and transitional areas who have been long displaced in the North will return in the Interim Period” (JAM, 25 January 2005).

“One in nine women die in childbirth; one in every four children born does not reach the age of five. There is virtually no physical or administrative infrastructure. Approximately 3.2 million southern Sudanese fled their homes over the past two decades. [...] Encouraged by progress in the peace negotiations, over 400,000 of these people returned to their home areas in 2004. If a final peace settlement is signed, many more are expected to return. Many of these will go back to rural areas with no schools, limited access to safe water and health care. Urban return will pose an equal, if different, challenge. With no urban planning, inadequate water supplies and little in the way of waste disposal systems, the risks are obvious. So too are the protection issues as new groups of people crowd into towns, including the garrison towns. On top of this, there is serious harvest failure in many places.

[...]

Although GoS and SPLM/A military activity has decreased since 2003, southern Sudan remains a volatile environment. Militia groups remain active in a number of areas, particularly in Upper Nile and Equatoria (Lords Resistance Army, or LRA), while conflict over land and resources are prevalent in many parts of the country. The absence of an effective civil administration means that these can easily spiral out of control. It is well recognised that a peace agreement could initially give rise to more tension in some areas as groups jostle for position in the new administration, or where groups not represented at the peace talks seek to gain power by the gun. Competition for resources may also occur if assistance is not properly coordinated. Mechanisms for dealing with these tensions will be of the utmost importance. Equally important will be support to the establishment of the rule of law, both in terms of the formal systems of the judiciary, police and prisons, and to traditional systems.

Human rights violations have already been observed as populations move and as they start to resettle in communities. These include looting of property, informal ‘taxation,’ physical and sexual assaults, denial of freedom of movement and choice and the forced separation of families. Further protection concerns around access to land, services, justice and the most basic maintenance of order will emerge. Many groups of women and children are particularly vulnerable to abuses and denial of protection rights in population movement but others who have not been displaced remain extremely vulnerable in their communities. There is a need for the rapid development of a policy environment to protect the vulnerable. Furthermore, the very limited capacity of local authorities and rule of law agents to provide a safe and secure environment must be addressed.

A further risk to human security is posed by contamination from mines and unexploded ordnance (UXOs). The full extent of the problem is still unknown, although the GoS and SPLM/A estimate that mines and UXOs affect 50% of the country. [...] There is a desperate need for surveys, with subsequent demining of several key roads to allow for the safe movement of aid and people.” (UN 30 November 2004, p.44-45)

“78% of the IDPs in Khartoum welcomed professional training and 43% stated they would need cash grants to re-establish their activities 33% of the IDP households interviewed declared that they were working in agriculture before leaving their place of origin; 16.5% were self-employed, 14.1% were students, 16.6% were unemployed and 9.1% were working for the government or in the public sector.

[...]

Data on employment was collected for all household members. 74.7% are currently un-employed, 10.3% are in casual labour, 7.1% are in wage labour employment and 2.6% are in petty trade.

[...]

Out of the 78.3% that would welcome professional training, 65% said that training would help them to return to their former job and do it better, 23% stated that it would help them in starting their own business and 7% that it would help to change the profession or occupation.

[...]

42% would value training in life skills, 24% in vocational or technical training and 6% in literacy skills. 23% of IDP households are not interested in any training activities.

[...]

The IDP households that stated that they wished to return to their place of origin were also interviewed on the reintegration assistance needed to return to normal civilian life. 43.8% stated that they would need money (cash) grants to re-establish their activities and 4.7% would need starter equipment/kit; 4% stated that they would need support to search for a job or employment, 7.5% would need some credit or loan scheme and 1.5% would need some training or education. 37.6% did not specify any type of assistance.” (CARE/IOM, 28 February 2003, pp.10-12,15,16, 24, 26,27)

“The challenge to the government of Sudan in Khartoum, the Sudan Peoples Liberation Movement (SPLM), which has fought Khartoum for expanded rights in the south, and the UN and humanitarian agencies is to protect returnees during difficult journeys home and to absorb them once they get there. The UN was slow to focus on these issues, although planning to protect returnees has accelerated in the last two months.

The return of Sudanese refugees and displaced persons will be by bus, train, barge, and foot. The UN plans to provide transportation only to refugees and vulnerable people. The UN will establish feeding, health, and shelter centers along 14 major routes. The plan to protect returnees includes close monitoring by staffs of humanitarian agencies, providing mine education, and establishing links with local authorities. The UN is also rushing to launch programs, including well-drilling, agriculture enhancement, and construction of education and health facilities, to improve life in the south, and to allow it to absorb returnees while raising the standard of living for all residents.” (RI, 23 February 2004)

“Most of the IDPs are expected to move from north to south with about 35 percent of the first million going to Equatoria, 20 percent to Bahr al-Ghazal, 20 percent to Upper Nile and 15 percent to Southern Kordofan.” (IRIN, 25 February 2004)

“The lack of capacity among national, regional and local authorities and institutions was discussed as a constraint to the level and quality of support for the displaced. It would therefore be imperative for programming to address capacity building, management and ownership issues in order to promote sustainability. The mission recommended that special attention should be given to the promotion of the return of skilled persons displaced by the war. Planning for the return and reintegration of the displaced must be undertaken in close cooperation with GOS and SPLM authorities, including ascertaining their levels of potential resourcing for the displaced. It was also recommended that a common reintegration package for rural returnees should be established and food assistance should, where practical, be delivered through community-based food for work modalities. The mission noted that regional and local administrations appear unprepared for the potential needs arising with a substantial return movement. Finally, the mission looked at the actual process of return. It noted a disconnect between both the GOS and SPLM assumptions that there will be massive return movement and predictions from other sources based on surveys which envisaged a more staggered process.” (OCHA, 23 December 2002)

See the Sudan Relief and Rehabilitation Commission (SRRC), IDP Project Proposal for the year 2004 (10 January 2004) for more information on the challenges and needs identified by the SRRC concerning the return and integration of IDPs.

Voluntary return of IDPs to Transitional Areas (2004)

- The Joint Monitoring Commission estimated about 150,000 have returned to the Nuba Mountains since the 2002 cease-fire
- The Governor of the Nuba Mountains estimates between 120,000 and 150,000 have returned to the Nuba Mountains since the 2002 ceasefire

- 32,000 IDPs were assisted in return areas of Abyei and Nuba during 2002-2003
- IDPs forced to sell their assets to afford transport costs back to Nuba Mountains
- About 30,125 IDPs said to have returned to SPLM/A areas of the Nuba Mountains since January 2002 cease-fire (Aug 2003)
- 800 households have already moved back to Abyei (2002)
- 28,000 IDPs in Khartoum registered to return to Kadugli (August 2002)

“JMC [Joint Monitoring Commission] figures put the number of people who had returned to their homes at 150,000 in the two and a half years the ceasefire has been in effect.

Wilhelmsen said that, although the people were able to move more freely since the ceasefire, there were still some government restrictions in force.

Returnees have said they have found the Nuba mountains area more developed because of the ceasefire, with shops and markets opening up, but restrictions were hampering political activity.

Under the May 26 agreement, Nuba Mountains will be an autonomous state within northern Sudan, with elections to be held three years after a final peace deal is signed.” (Sudan Tribune, 23 July 2004)

“A chart on the governor's wall shows that the SPLA-controlled areas of Nuba Mountains are home to about half a million people, about 150,000 of whom have returned since the 2002 ceasefire.” (AFP, 28 November 2003)

“There is no question as to which side of the line the inhabitants of Nuba Mountains, whose numbers have swollen with more than 120,000 returnees since the ceasefire, feel they belong.” (AFP, 30 November 2003)

“Peace-building efforts were supported in Abyei and Nuba, where 32,000 internally displaced persons and resettling households were assisted in 2002 and 2003” (UN GA, 6 August 2003)

“Major constraints face IDPs who wish to return voluntarily to their home regions in Nuba Mountains. The most important being poverty, the majority of IDPs cannot afford transport fares back to the Nuba Mountains. IDPs who have succeeded in returning during this year, managed to do so by selling of some of their assets.

Ra’ya Women Association is an example of a national NGO that compiles lists of persons willing to return voluntarily home, if supported with transport.” (UNR/HC, 15 September 2003, p.11)

“Rains have made most of the villages inaccessible by land. Monitoring of the humanitarian situation is therefore hampered. Approximately 17,000 IDPs are reported to have moved to the Nuba Mountains from January to August 2002. The total number of IDPs in Nuba number over 80,500.” (OCHA, 14 November 2002)

“A total of 30,125 returnees are said to have registered in SPLM/A areas [of the Nuba Mountains] since the signing of the cease-fire agreement [...]” (UNR/HC, Nuba SPLM/A, 30 June 2003, p.4-5)

“It was reported that a number of IDPs from Abyei town have begun moving to their former villages, in addition to the previous 800 households to Awolnohm, Todaj and Noong. They are cutting logs for house construction and hope to cultivate during the second cultivation season, and complete their shelters when the grass is ready for harvesting.” (OCHA 17 September 2002)

“During the month of July, the return of IDPS to Kadugli from the surrounding areas of Butana, Rufaa and Khartoum was noted. A total of 28,000 IDPs in Khartoum have registered to return to Kadugli.” (OCHA 20 August 2002)

Voluntary returns to Bahr El Ghazal (2004)

- Over 108,000 IDPs had returned to Bahr al-Ghazal between January and March 2004, according to the SRRC
- There were 29,400 registered returnees in Raga as of July 2003
- In the event of peace, half of South Darfur IDPs (40,000) are expected to return to Bahr El Ghazal
- Over 100,000 returnees from Northern sector and South Kordofan are putting additional strain on seriously food insecure communities in Aweil West (2003)

“According to the Sudan Relief and Rehabilitation Commission (SRRC), the humanitarian wing of the rebel Sudan People's Liberation Movement/Army (SPLM/A), between January and March 2004 over 108,000 southerners returned to areas of Bahr al-Ghazal. These comprised 4,700 to Abyei, over 8,000 to Aweil East, 44,400 to Aweil North, over 28,000 to Aweil West and 23,500 to Twic County.” (IRIN, 14 May 2004)

“In the eventuality of a successful peace dialogue, about half of the IDPs in Southern Darfur (40,000) would return to Bahr El Ghazal “For the medium term (12 months), and subject to the success of the peace negotiations, over half the IDP caseload (40,000 IDPs) is expected to move out of the state and into Bahr el Ghazal. A reduction in the caseload and in the total food quantity required will then be expected. However it is also noted that some IDPs expressed the wish to remain in South Darfur, and will then require resettlement schemes to improve their access to food and income sources.” (UN R/HC, South Darfur, 1 July 2003, p. 9)

“Following the recapture of the town by the GoS army in October 2001, around 8,000 of the IDPs who fled into Bahr el Ghazal have returned. Between April and May 2002, about 19,500 IDPs were repatriated from the camps in South Darfur back to Raga totalling 29,400 registered returnees.” (UNR/HC, Raga, 25 July 2003, p.3)

“Over 100,000 returnees reported to Aweil West (Bahr el Ghazal)

On 3 May, SRRC in Aweil West reported 107,240 returnees to the area. The same source reported population figures of 282,443 persons for Aweil West. The influx is from northern Sudan and is cause for concern.

[...]

Recent assessments and surveys have revealed a worsening food security situation than was predicted by the ANA 2002/2003. This is due to an estimated 50,000 to 60,000 recent returnees who have overstretched coping strategies of the resident communities.

Aweil West: SPLM/A controlled Aweil West is seriously food insecure due to the failed cropping season in 2002, insecurity and a high number of returnees. An influx of more than 19,000 new returnees from South Kordofan and other northern sector towns is a major stress factor.” (UN R/HC, 15 May 2003)

“Spontaneous return from Khartoum to date: Spontaneous return to northern Bahr el Ghazal has been ongoing since 2000, with several thousands having made the journey from Khartoum and arriving via three entry points, namely Warawar and Mangar Ater near Aweil and through Abyei. Reasons given for their return is the lack of opportunity for attaining livelihoods, improved security in Bahr el Ghazal, and local peace initiatives in Abyei. Returnees travel for five days by road to Meiram and then by foot for another five days. The cost of such a journey is approximately twenty dollars per person (or two months savings for

an IDP in Khartoum). It is likely that the numbers returning to northern Bahr el Ghazal would increase substantially if safe passage was guaranteed and regardless of levels of services in the places of return.” (OCHA, 14 November 2002)

Return prospects

Return for IDPs is inextricably linked to access to land (2005)

- Return for IDPs is undissociable from access to land both within Khartoum and in their place of return
- 17% of IDPs in Khartoum plan to stay, 30% have not yet decided and 51% plan to return
- It is not clear whether the measures to enable IDPs to make free and informed decisions have been put in place and most IDPs have hardly any information about their areas of return nor can they afford visits (except to the Nuba Mountains)
- One of the first priority need identified by IDPs was transportation
- 63% of IDPs undecided or wishing to return are not planning to do so during 2005 and only 9% planned to return during the first trimester of 2005
- In areas of return, IDPs commonly stated that they needed, in order of importance, education, their family settled, health services and employment
- Those not keen on returning to the South gave the following reasons: partly because they had received plots in Khartoum and services were available and partly because of loss of property and security in the South
- For those who had not received plots in Khartoum, when asked what they would do if they don't receive one, 55% reported they would return home

“The return is linked to access to land, both within Khartoum as well as in their place of origin. Many stated that they would return if they did not receive a plot in Khartoum, and it was also mentioned that they were concerned regarding the status of their land in their home area.

[...]

The survey will indicate the IDPs views towards their expectations to move or stay in Khartoum and their motives to do so. It is not clear yet how many IDPs prefer going back to their place of origin or staying in Khartoum. It is also not clear whether the right measures have been put into place to enable IDPs to make free and informed decisions.

[...]

Overall, only 17% of the surveyed households said that they were planning on staying in Khartoum permanently, while 30% indicated that they are not yet decided and 51% stating that they plan to return home. Mayo Farms had the lowest percentage of respondents who stated that they would remain in Khartoum (11%) and WeB had the highest.

Percentage of Population returning to origin or staying in Khartoum				
	WeB	OeS	Soba Arradi	Mayo Farm
Planning to stay in Khartoum	25%	16%	20%	11%
Planning on leaving	44%	56%	53%	51%
Undecided	30%	28%	25%	34%

However, 63% of those who plan to return, or are undecided, were not planning on returning within the next year. In both WeB and Soba, 73% indicated that they would not return within the next year, while

59% and 54% in Mayo Farms and OeS respectively indicated that they would not move within the year. Only 9% indicated that they planned to return in the next 3 months, with much lower percentages in OeS (5%), WeB (7%), and Soba Arradi (8%), while 15% in Mayo indicated that they planned on returning in the next three months.

[...]

In the survey, when asked what they would like to have in their homeland upon return, the most frequent mentioned service mentioned was education, second was to have their family settled, third was health and the fourth need was employment.

[...] Others reported that it would be difficult for them to return to an agricultural lifestyle as they are now educated and there are no job opportunities. Children in WeB reported they knew where they came from and wanted to return when there is peace.

[...]

Although only 16% of respondents in the survey indicated that they wanted to remain in Khartoum, focus group participants in OeS reported that they were not keen on returning partly because they had received plots in Khartoum and enjoyed the availability of services in Khartoum, and partly due to the security situation in their home areas. Some are not sure about how their absence affects the status of their property at home and fear losing it.

[...]

In addition, the simplicity of life, access to land for cultivation and grazing of livestock was seen as a drawing factor. Issues that discourage them from returning are fears of war breakouts, loss of land and property, lack of safety and security. [...]

[...]

Support, Advice and Services Needed to Return to Place of Origin		
WeB	OeS	Soba
Transportation	Transportation	Transportation
Skill training	Skills	Money
Social services and employment	Food	Food and other basic needs (blankets etc)
Agricultural tools and seeds for planting	Security	Medication
Schools and health centres		Basic social services
Security and stability		All services available in Khartoum should be available in their homeland
Source of income		Security

Visits to places of origin:

It was reported in all three areas that primarily the Nuba are able to visit their homelands frequently, and have the possibility to communicate with their families. Some have reported to have built homes when the ceasefire was signed (2002) and some have returned for good. For southerners, the cost of visiting was seen as prohibitive due to the cost of plane tickets.

[...]

Of those surveyed, only 23% had received a plot, while 77% still did not have a plot in all four areas.

[...]

For those who had not received plots, when asked what they would do if they don't receive one, 18% reported they would stay in Khartoum, 6% would move camp, 55% reported they would return home, and 3% would change to another state." (F.A.R. et al, 19 January 2005, p.24-5)

"With the exception of some return flows, no mass movements of IDPs occurred in northern Sudan. However in 2004 the GoS started to implement a new planning scheme in some of the IDP camps around Khartoum. This involved house demolitions, which prompted an undetermined number of spontaneous returns." (UN, 18 November 2004, p.177)

Expectations upon the return of internally displaced people (2004)

- Although no accurate figures exist, HAC/SRRC jointly estimate about 1, 000,000 IDPs will move south within the first 6 months after peace, or about 6,000 persons/days
- Half of the returnees will go via the White Nile river corridor
- FAO estimates about 400,000 returnees will return during the first year
- IDPs most likely to want to return immediately after a peace deal will be those in camps and informal settlements
- IDPs used to urban life and with some employment likely to prefer to stay in urban areas rather than to return to rural areas lacking job opportunities, schools and health facilities
- Expectations of IDPs seemed unrealistic to the inter-agency 2002 mission and beyond what authorities or the UN could provide
- IDPs settled near urban centres where they were exposed to services like education are unlikely to return to rural areas where these are lacking
- Most Sudanese authorities assume IDPs will return to the south and primarily to rural areas, and that those choosing otherwise must be already integrated and thus not entitled to aid
- Not all IDPs may wish to return in their area of origin because of multiple displacements and different definitions of homes
- Cultural changes due to prolonged stay in culturally different areas should be taken into account and IDPs may not speak local languages anymore nor wish to go back to farming

“Financing needs for the return of IDPs outlined below assume that roughly 950,000 IDPs and 50,000 refugees will be assisted during the 9 month period to June 2005. This is based on the document signed by the GOS and SPLM on July 13, 2004 [...] entitled “Framework Plan for Spontaneous Return in the Sudan”. On the northern side it is mostly a matter of transport and some life-sustaining assistance along the way (food, water, medical). On the southern side there is concern that the capacity to handle a large flow is limited and that such an influx could potentially exacerbate local tensions over access to already scarce services, water and land. It is for this reason that potential flashpoints need to be identified and attended to through peace-building and conciliation activities. It is also important that the receiving communities are to receive equal treatment - hence the reintegration and resettlement portion of the return should be community based.

[...]

The HAC/RRC joint agreement anticipates that about 1, 000,000 IDPs will move within the first 6 month period; this is close to 6,000 persons/days along all corridors. The White Nile river corridor will take about 50% of the total load, about 3,000 persons/day, which represents a full barge. Hence the strong need to rehabilitate barges and associated infrastructure, including workshops.” (GoS/SPLM, 29 September 2004)

“Preliminary analysis shows that about 400 000 IDPs will be moving back from the north to their places of origin or choice during the initial 12 months of the implementation of the peace agreement. Major concentrations of returnees are currently in Aweil (Bahr El Ghazal), Abeyie, Nuba Mountain (Kordofans), Bentui (Unity), Bor, Pibor, Phou (Jongley) and Magwi (Equatoria). Estimates suggest that the highest number of returnees will settle in Bahr El Ghazal, South and West Kordofans, Blue Nile, Jongley, Upper Nile, Unity and Equatoria.” (FAO, 11 February 2004)

“But for the local authorities, donors, UN and aid agencies grappling with the prospect of 570,000 Sudanese refugees, and between 3 million and 4 million displaced returning home en masse, the challenges ahead are staggering.

With no reliable population statistics available for Sudan as a whole, and certainly no accurate statistics on the numbers of internally displaced persons (IDPs), or whether and when they may choose to return, much of the necessary planning is based on assumptions.

[...]

But everyone involved agrees that the uncertainties are huge. "No one knows at all how many will return home," Stephen Houston, a senior IDP adviser in the office of the UN humanitarian coordinator in Khartoum, told IRIN..” (IRIN, 11 November 2003)

“Types of returning populations:

IDPs in Khartoum and other major northern towns: The scenarios for urban IDPs in the North are that many will stay, some will go back immediately, and some will delay their decision. Hence, the survey of IDPs currently being undertaken is timely and is expected to provide improved indicators on the decisions that IDPs are likely to make. The IDPs most likely wanting to return immediately after a peace settlement are those living in the camps and informal settlement. However, many will not have the means to return spontaneously. A much larger number of southerners in Khartoum are not in camps but live and work throughout the city. Many of them have been there for 10-20 years and will likely adopt a ‘wait and see’ approach. Many others are fully integrated and thus unlikely to return.

IDPs in garrison towns: Most IDPs in the garrison towns are likely to return to their home area as soon as possible. Indeed, many have been moving back and forth throughout the war as security increased or decreased. However, some may hesitate while they monitor the situation in their home areas, especially the rehabilitation of basic services, or may even remain permanently if conditions in their home areas remain unchanged.

Rural IDPs dispersed in rural camps: These are among most aid-dependent IDPs and most will return as soon as security allows. However, even among these IDPs, some have settled, or even married, in their new communities. Distances to home areas are generally short and most can be expected to return spontaneously as soon as security is perceived to exist in home areas.” (Inter-Agency Mission, 18 December 2002, p. 19)

“Expectations of returnees

Expectations of assistance among potential returnees vary with location and length of displacement. In most cases, they are unrealistic and beyond what either the authorities or the international community are ever likely to provide. The overarching requirement for return among all displaced is that of human security. This is usually followed by expectations of basic productive inputs and food aid until at least the first harvest. The availability of basic services is the third most widespread expectation, with access to education invariably given priority over access to either health or clean water. Provision of shelters, household kits, transportation to areas of return, as well as skills enhancement and access to micro-credit are further common expectations.

Rural to rural returnees will likely be the easiest to rehabilitate since their requirements seldom extend beyond the provision of basic agricultural inputs and interim food assistance until the first harvest. Rural IDPs currently in camps adjacent to towns will likely have similar rehabilitation needs, albeit their exposure to basic services, especially education, has clearly raised their expectations and some may hesitate in returning to areas that are likely to remain unserved.

IDPs that have been in urban areas for extended periods, especially in Khartoum and other large northern cities, will be less likely to return to rural areas unless basic services are in place. If they return, it will likely be to urban destinations where services and opportunities similar to those they have become accustomed to will be perceived to exist. Similar expectations will exist among most repatriating refugees from Kenyan, Ugandan and Ethiopian camps.

Expectations of authorities

The authorities in both GOS and SPLM areas also have unrealistic expectations. This is especially the case among local-level administrations, some of which firmly believe that responsibility for the return of IDPs

rests solely with the international community. Moreover, the view that most displaced will return to the South, and that such return will primarily be to rural areas of origin, is also deeply engrained.

It is also widely assumed that IDPs who choose not to return do so because they are economically and socially integrated into host communities and, therefore, there are no expectations of further assistance. This is a false assumption since many who may wish to return, but do not have the means to do so, will likely remain highly marginalized in both economic and social contexts and will, therefore, be in need of rehabilitation and integration assistance into their host communities.” (Inter-Agency Mission, 18 December 2002, p.13-14)

“What impact does sequential displacement have on relief programs and, eventually, on reintegration programs? For some displaced people, sequential displacement changes their sense of where their home is. A significant number of displaced southern Sudanese - - especially youths -- have no intention of returning back to their original homes when the war ends. After constant movement from place to place, and after restarting their lives over and over again, some uprooted people no longer yearn to go all the way back home. They now define their home in a different place.

[...]

Some international aid workers, as well as residents of southern Sudan, probably will mistakenly assume that the main goal of peace is to return all Sudanese to where they were before, with the same rules, the same relationships, the same customs and community boundaries. But reintegration might not work quite that neatly.

[...]

For example, perhaps some displaced persons -- especially those in government-held areas -- have adopted new religious practices that they will carry home with them. Some Sudanese will return home speaking new languages and be unable to speak a traditional local language. Some returnees might have a different way to build homes, a different way to farm, or perhaps they will not want to farm at all.

[...]

Because of drought, some Sudanese will take longer to get back on their feet. They will need more time to become economically self-sufficient. This means that humanitarian agencies should do more than distribute seeds and tools to facilitate reintegration.” (Brookings/etc, November 2002 pp.47-48)

Survey on opportunities for return and reintegration of Khartoum IDPs (2003)

- Main areas of return from Khartoum are Kadugli, Aweil East, Dilling and Juba
- CARE, UNDP and IOM collected socio-economic and demographic information of IDPs in Khartoum to better prepare for their return and reintegration
- 56% of IDPs surveyed in Khartoum were under 20 years old
- Two thirds of IDPs interviewed in Khartoum wished to return to their area of origin
- One third of IDPs interviewed stated economic reasons for coming to Khartoum in the first place, and wished to stay there unless there were better economic alternatives in areas of return
- 31% of IDPs in Khartoum originated from Greater Kordofan, 19% from Greater Bahr El Ghazal and 14% from Greater Darfur
- Most IDPs fled in the 1980s and 32% for security reasons and 31% for economic reasons

“The major ethnic groups are the Dinka, Nuba, Missiriya and Fur. The smaller groups include the Shilluk 4.1%, Bari 4%, Firtit 3.2%, Nuer 2.3% and Fonj 2%¹³. IDPs cited insecurity, search for employment and social services as their main reasons for moving. The CARE report identified Kadugli (South Kordofan), Aweil East (North Bahr el Ghazal), Dilling (South Kordofan) and Juba (Bahr el Jebel) as the key regions IDPs would return.” (UN R/HC, Khartoum, 18 July 2003, p,5)

“Among the 29% wishing to remain in current area, most were from Fonj and Arab ethnic groups Among the 24% of IDPs who wish to wait to return, most of them expressed security concerns The five top provinces of return for Khartoum IDPs were kadugli, Aweil East, Dilling and Juba “With the advancement of peace negotiations, there is a corresponding increase in opportunities for large-scale return and reintegration of IDPs. Many of these returns are expected to be spontaneous, unassisted by the International Humanitarian Community. The UN country team has linked community development to sustainable return in their framework for population stabilization. Programmes have been initiated for the Nuba Mountains and Abyei in collaborative efforts by UN agencies, NGOs and CBOs to address conflict transformation and sustainable livelihoods. A systematic approach to return and reintegration will involve a process of assessment at the community level to determine the absorption capacity of return communities. Similarly, return communities will require development programming to ensure that the social infrastructure for sustainable return is in place, which will require a well-coordinated conceptualisation of programmatic interventions, and linkage of international assistance.

Many agencies and government interlocutors point out that lack of vital information on IDPs and return communities is a major constraint for the formulation of effective IDP assistance strategy and implementation of concrete activities to support return and reintegration. Indeed, this theme was fully endorsed in the recommendations of the OCHA IDP Unit’s Report on its Inter Agency Mission to Sudan, Dec 02.

[...]

With the above in mind, CARE, IOM and UNDP agreed to conduct a joint socioeconomic/ demographic survey of IDPs in Khartoum camps and squatter areas, and to support the rapid documentation and analysis of information on the socio-economic and demographic profiles of the aforementioned IDP families.

[...]

The IDP population was found to be a relatively young with 56,6% of the population been under 20 years of age and only 3% are aged over 60.

The majority of Khartoum IDPs originated from Greater Kordofan. In most cases, this is also the place where they want to go back to. Most IDP households have been in Khartoum for over 10 years, having left their original areas in the late 1980s.

[...]

Approximately 2/3 of persons interviewed declared their intention to return to home of origin on the conclusion of a political peace settlement. Of these 67% reported their desire to return immediately within 3 months. This unlikely for two reasons. Firstly, before returning they would need to be sure that they could sustain their livelihoods in their home areas. Secondly 1/3 of IDPs quoted that the reason for coming to Khartoum in the first place was economically motivated and unless there are better economical alternatives in their home areas, which is unlikely, there is no reason for them to return. The most likely scenario is that they would start by sending individual family members home to investigate the possible opportunities whilst the majority of the family would remain in Khartoum. If the economic opportunities in the home areas prove adequate, repatriation might take place. It does not seem plausible that families would relinquish their stake in Khartoum, the capital city and completely uproot and transfer themselves and all their assets to their home of origin, certainly in the short to medium term.

[...]

A total of 6,300 IDP households were interviewed in formal and informal camps in Khartoum This caseload represents 3.6% of households in Khartoum.

[...]

21.5% of the IDP households interviewed were originally from the state of South Kordofan. This represented the largest group from an identified state. If one groups the states into the regions, as used in the CAP 2003 document, then 31.4% of the households interviewed originated form Greater Kordofan, 19.2% from Greater Bahr El Ghazal, 14.9% from Greater Darfur, 11.7% from Unity and Nile States (comprising Jonglei, Blue and Upper Nile and Unity States) and 10.9% from Greater Equatoria.

[...]

Many households became displaced in the late 1980s with most households leaving in 1988. Some of the conflict in the Nuba Mountains occurred during this period. As did the droughts of the late 1980s.

[...]

The majority of households reported that the reasons for displacement were employment (31% or Security (32%) related.

[...]

When asked if the whole household moved at the same time, 69% said “Yes” and 27% “No”. Of those households that replied “No”, most reported that the Head of Household moved first (72%) and 10% that the senior woman moved first.

When asked what attracted the household to the current location, i.e. Khartoum, 26% said family ties, 13% cited employment as the reason and 14% gave house or land as the reason.

[...]

Of the 1,746 IDP households interviewed, 1,159 households would like to return to their former place of origin (66.4%). The former place of origin (village) corresponds to the state or province that the household declared that they originated from. 29% of IDP households said that they wish to remain in their current location and 1.4% wishes to move to another location.

The intentions of households on whether to return to their areas of origin, move to a new location or remain in their current location varied between ethnic groups. Some ethnic groups responded very strongly a wish to return to their area of origin, i.e. Bari – 91%, Nuer – 90%, Dinka – 87%, Achali – 87%. A few ethnic groups expressed a markedly stronger wish to remain in their current location – Fonj – 68%, Arab – 66%.

[...]

Of those households expressing a wish to return to their place of origin, 68.9% expressed the wish that they wish to return immediately 24.2% would like to return later, with the period of time unspecified, but timescales of up to 3 months after the Peace Treaty is signed was offered by the surveyors as a guide for the definition of the ‘Immediate’ timescale. The remainder gave no answer or were uncertain of the timescales of the return.

Of those returning later, the reasons given for this decision were; Wait for security situation to improve – 41.7%, Wait for further developments/information – 34.2%, Wait for work/employment – 12.8%. For those households that were undecided as to when they would return, when asked what would motivate their departure, they chose fairly evenly between Availability of employment - 27.5%, availability of land – 23.2% and availability of services (i.e. health, education) – 21.7%.

[...]

The majority of returning IDP households from Khartoum would be travelling to Southern Kordofan (22%) and then Northern Bahr El Ghazal (13%). Grouping the states into greater regions, in accordance with the CAP 2003 classification, most households wish to return to the Greater Kordofan region (31.4%). The data indicates that Greater Bahr El Ghazal region will see 19.2% of the returns, Greater Darfur 14.9% and Greater Equatoria 10.9% of returning households.

[...]

Within S Kordofan, the data indicates that the majority of returning households will be travelling to Kadugli (59.9% of S Kordofan returnees) and Dilling (27.4%). For returnees to N Bahr El Ghazal, 59.4% will return to Aweil East and 13% to Aweil West and for those returning to Northern Darfur, 44% will go to Kottom, 24.6% to El Fashar and 16.4% to El Genina.

[...]

The top five provinces for returning Khartoum IDP households are, in decreasing order, Kadugli (S Kordofan), Aweil East (N BEG), Dilling (U Nile) and Juba (BAJ).

For the households moving to a new location, many gave no location (28%). Of the remaining households, 36% stated that they wanted to move to other parts of Khartoum state and 16% to Bahr Al Jebel. Their reasons for wishing to move were quoted as being availability of education (18%) quality of life (17%), availability of services (15%), availability of employment (9%) and peace (9%).” (CARE/IOM, 28 February 2003, pp.6,8,9,18-23)

Return and reintegration wishes of Nuba IDPs (2003)

- IOM and UNDP surveyed about 4,400 Nuba households in 12 states (Feb 2003)
- 93% of Nuba IDPs wished to return to their area of origin and 5% wished to stay in current location
- Among Nuba IDPs in Khartoum, 29% expressed the wish to stay
- Among those willing to return, 14% said they would like to wait, mostly for security to improve
- 84% of returning IDPs would return to Southern Kordofan

“Return Intentions

Of the 4,475 Nuba IDP households interviewed, 93% of all households would like to return to their former place of origin, only 5 % expressing desire to stay in current location . The former place of origin (village) corresponds to the state or province that the household declared that they originated from. Compared to the Khartoum IDP survey where 29% of IDP households said that they wish to remain in their current location Nuba IDP population expressed a much higher desire for return. This could be correlated to the relative physical proximity and /or related to the current conditions and opportunity provided by the Cease Fire Agreement.

[...]

For those households returning to their place of origin, 79% said that they wish to return all together and 10% said that they would send certain household members ahead first. This is a higher percentage to return together than was recorded during the Khartoum survey (approx 50%).

[...]

Of those households expressing a wish to return to their place of origin, 82% expressed the wish to return immediately. 14% would like to return later, with the period of time unspecified, but timescales of up to 3 months after the Peace Treaty is signed was offered by the surveyors as a guide for the definition of the ‘Immediate’ timescale. The remainder gave no answer or were uncertain of the timescales of the return.

Of those returning later, the reasons given for this decision were; Wait for security situation to improve – 41.7%, Wait for further developments/information – 34.2%, Wait for work/employment – 12.8%. For those households that were undecided as to when they would return, when asked what would motivate their departure, they chose fairly evenly between Availability of employment - 27.5%, availability of land – 23.2% and availability of services (ie health, education) – 21.7%.

[...]

Areas of Return

The majority of returning Nuba IDP households from Khartoum would be travelling to Southern Kordofan (84%) and then Western Kordofan (13%).

Within each returning state, there is a further breakdown, by province, of the percentage of households wishing to return to that state. For the Nuba IDPs, the majority wish to return to Kadugli (48%) and Dilling (35%), both in S Kordofan.” (IOM/UNDP, 28 February 2003, p.25,26)

Return and resettlement programmes

GoS and SPLM/A may have different political agendas on return (2004)

- The GoS may wants to slow down IDP return to retain cheap labour in the North while the SPLM/A want to speed it up to have their full electorate before the referendum

- Many IDPs were prevented to seek refuge abroad during the past war and were directed to territories under GoS in order to weaken support to the rebellion
- Authorities might impose restrictions on freedom of movement preventing IDPs to resettle in areas of their choice
- IRC recommends that the international community works closely with authorities in administering transition centres in order to monitor registration procedures and freedom of movement
- The SPLM/A does not want returnees staying in towns but to direct them in the countryside to boost agricultural recovery
- SPLM/A should however also provide for urbanized returnees and those who choose to stay in towns
- The HAC envisages to set up transit camps in main southern towns to receive and register IDPs before allowing them to return
- The international community does not encourage long-term transit camps which may end up moving people from the North to new camps in the South but IRC advocates for 48 hours transitory reception centres
- There is no official plan to facilitate local integration of IDPs wishing to stay in the North
- Many northerners interpret the move of southerners fleeing northwards as a vote of confidence rather than a search for security
- If southern self-determination materializes, the southerners who chose to stay in the north should not be forced to return

“40. As in many other return/repatriation movements, there is a possibility that the parties (GoS and SPLM/A) will seek to influence and orchestrate return and repatriation. While the GoS prefers a slower, incremental return process, SPLM wants to accelerate the return. It is believed that both approaches are underpinned by political objectives, such as solidifying support in connection with the referendum, retaining cheap labor and/or increasing funding for long-term transit camps and returnee projects. Thus, the displaced stand the risk, once more, of becoming pawns in a larger power struggle.

[...]

42. Furthermore, Southerners, including those displaced in the North, express fears that the latter will not be allowed to return *en masse* to the South. The displaced trace these fears back to the time of displacement. Reportedly, the GoS Army blocked routes out of Sudan during the war, preventing most Southerners from seeking refuge in neighboring countries. Allegedly, the only escape route that was open to these fleeing groups led to Khartoum and the North. As a result, threatened populations either made their way on the only escape route or were directed to the garrison towns by the GoS army for transport by cargo planes to Khartoum.

43. Reportedly, the political objective of this containment policy was to place a significant number of Southerners under GoS control, and thus undermine political and military support for the rebellion. There is now a concern that these policies will resurface and impact the return of Southerners. “Something will happen. It might be big, it might be small,” is a frequently voiced warning.

[...]

55. In addition to registration and assistance needs, there is a possibility that authorities will try to impose restrictions on freedom of movement, attempting to influence the returnees’ rights to settle wherever they wish. [...] There are already indications that returnees may not be able to choose their place of residence, should it conflict with the parties’ political and/or economic interests.

56. In the garrison towns, HAC authorities state that they intend to convert existing IDP camps into transit centers, where the returnees are meant to stay until basic service and civil administrations have been

established in their destinations (mainly SPLM area). HAC in Wau envisages that returnees will have to remain in the transit centers up to 18 months. These plans indicate potential protection problems.

[...]

58. The humanitarian community strongly opposes the establishment of long-term transit-camps, but recognizes the need for short-term reception facilities. The UN Emergency Population Returns Program envisages “transition-centers”, which will be run by the authorities for the purpose of registration of arrivals. It will, however, be imperative to work closely with the authorities in administering these transition centers. Unless there is an international presence to monitor registration procedures and ensure freedom of movement (accommodation should not exceed 48 hours), many protection issues affecting returnees may go unnoticed.

59. The SPLM/SRRC, on the other hand, does not want the returnees to stay in the towns, but intends to direct them to the countryside. The authorities in the South appear concerned with promoting agricultural productivity, thus paying little attention to the needs of urbanized returnees. Said the SPLM County Secretary in Rumbek: “We don’t want people idling in the towns, they need to go out and cultivate the land”.

60. Even though there might be justification for the SPLM/SRRC to promote agricultural self-reliance and farming activities in the South, the individual’s right to choose his/her residence in this context supersedes the ‘interest of the state’. Urbanized returnees will most probably want to settle in, or nearby, the towns, which will require investment in urban services to accommodate a large number of urbanized returnees and allow an organic development of urban centers and towns.” (IRC, 1 May 2004, p.12-16)

“Regional analysts argue that despite losing a cheap source of labour, not having up to two million southerners living in slum areas around the capital - jails are reportedly full of poor southern women who have been caught brewing alcohol - might also be a welcome peace dividend for Khartoum.” (IRIN, 11 November 2003)

“Similarly, the SPLM/A is keen to have the returnees home before elections are held, a census conducted and, most importantly, before a referendum on self-determination for the south follows a six-year interim period..” (IRIN, 25 February 2004)

“Transit camps

In both the garrison towns and in Rumbek, local authorities advised the mission of their intention to set up transit camps to receive and register IDPs before allowing them to return to home villages. The purpose of such centres was not well articulated by either GOS or SPLM authorities. In some cases, it was suggested that returnees would be medically screened, though to what end was unclear. In general, the setting up of such transit camps should not be encouraged and the UN should avoid getting drawn into such plans. Based on experience elsewhere, there are a number of reasons for this, namely: they have the potential of restricting freedom of movement; they tend to remain open for much longer periods than initially planned; IDPs risk getting stuck in them; they create a host of protection issues; and are expensive and unwieldy to manage. A worst-case scenario is that such a policy might end up moving people from camps in the North to new camps in the South. Also, the donors are unlikely to be supportive of such ventures, preferring that their limited resources be directed to reintegration and livelihood creation.” (Inter-Agency Mission, 18 December 2002, p.20)

“29. At present, the authorities are demolishing Wad el Bashir Camp and Omdurman al Salam Camp outside Khartoum with an intention to allocate permanent plots to the IDPs. According to the authorities, the demolitions are done in an effort to address the problem of overcrowded and hazardous camps, replacing them with residential and commercial areas for the benefit of the displaced. However, the methods used are seen as excessive and harsh, as they leave many IDPs without alternative accommodation. While the demolition of camps and allocation of plots might indeed be an effort on the part of the authorities to facilitate local integration, many IDPs believe that the plots are meant to serve as an incentive to stay in Khartoum, so as to solidify the presence of Southerners in the North.

30. FAR and CARE closely monitor the ongoing demolitions and follow up with the authorities. Major concerns relate to criteria under which plots are allocated, the financial implications for the IDPs (who have to pay for reconstruction of new houses) and the need for alternative accommodation for those who have not yet been allocated a plot. However, other than the demolition of camps and distribution of plots to some, there is no official plan (neither by the authorities, nor by the UN) for the local integration of IDPs wishing to remain in the North.” (IRC, 1 May 2004, p.9)

Pending questions on IDP returns:

“Many in the north tend to see the move by southerners to the north as a vote of confidence in the system and for the unity of the country. The fact is that it is a search for security. On the other hand, although the displaced populations yearn to return and may even favour a separatist agenda for the south, it is not easy to tell whether they would live up to the rhetoric of return, should the situation permit. The prospect of return therefore raises a number of critical questions: Do the displaced populations seriously want to return? And if so, would they rather wait for peace to be achieved or would they want to return even before the war ends? And assuming they do return, whether during the conflict or when peace is achieved, are the existing socio-economic conditions likely to sustain their remaining in their areas of origin, or will they once again move northwards in search of better opportunities? And what would be the mid- to long-term implications of this interconnectedness with the north? Assuming that the large numbers of southerners who now reside in and around the capital city become integrated there, what would be the demographic implications for the state and province, not only in terms of the social and cultural dynamics, but also in terms of the local government? What if the south were to exercise the right of self-determination in favour of full independence: Would the southerners now living in the north choose or be forced to return?” (UNCHR, 27 November 2002, p.18, para. 58)

Project to resettle IDPs from Abyei in their area of origin initiated by the Secretary General's Representative for IDPs (2003)

- IDPs returning to Abyei town were assisted with a transit center in Abyei (2000)
- Dinkas to be resettled in their area of origin
- The return project built upon local reconciliation initiatives between the Dinka and the Missereya
- UN and NOGs assisted the returnees with food, seeds and shelter rehabilitation
- Displaced Dinka with skills in health and education will be recruited to initiate and assist the return process (2002)

“Talks held by the UN SG Representative for Displaced People, Dr. Francis Deng in Khartoum last resulted in the approval of the United Nations and USAID to adopt a programme for the return of some 460 families of the Dinka from Khartoum to Abeyei.” (UN R/HC, 12 June 2003)

“The Abyei Task Force is currently supporting the voluntary return of up to 500 Dinka households from Khartoum to rural villages around Abyei.” (UNRC, 16 June 2003)

“As outlined by the Office of the Resident/Humanitarian Coordinator of the United Nations system in the Sudan in the document entitled “Programme Advancing Conflict Transformation in Abyei” of 1 June 2002, the project was based on a multi-agency coordinated approach to support return of the Dinka IDPs to the Abyei area, as a bridge between north and south Sudan, to support the search for peace for the Sudanese people. [...] The focus of the project was to support conflict transformation in the region, building on a local peace agreement that had recently been concluded between the Arabs and the Dinka, both the Ngok and the Twich, which would facilitate the return of the Dinka IDPs to their villages and the resumption of sustainable livelihoods.” (UNCHR, 27 November 2002, p.11, para 26)

"Since January 2002 the collaborative efforts of the task force,[...] have seen some significant progress, [...] returning IDPs were assisted with food for work for the construction of shelters and people received seeds and tools to cultivate food and cash crops. Missiriya Arab households in the Abyei area also benefited from the food for work programmes, provided they met the criteria for registration set by the World Food Programme (WFP)." (UNCHR, 27 November 2002, pp.6-7)

"In terms of assisting the displaced to resettle in areas closest to their natural setting, one initiative in which the Representative is himself involved concerns the resettlement of displaced Dinka households from their present locations in northern Sudan to their areas of origin in the district of Abyei. [...] The Representative made [an award of US\$ 25,000] available to support the establishment of a transit centre in Abyei which would, given the significance of Abyei as a meeting ground between north and south Sudan, provide basic services to displaced persons who had either left their homes in the south and were moving to alternative locations in the north of the country or who were returning from the north to their homes in the south.

[...] Previously, there were 23 functioning village councils in Abyei district. However, in the current conflict situation, all civilian populations have either moved into Abyei town or have been displaced, mostly northwards, and their villages destroyed. The displacement has had a severe impact on the local food security situation, as Dinka farmers have been unable to have access to their traditional agricultural land. Moreover, the situation has been exacerbated by tensions between the pastoralist Missereya and Dinka farmers which have at times been fuelled by the distribution of arms to either side by the Government and the SPLA, respectively. The need for reconciliation between the Dinka and the Missereya and support for systems which would lead to cooperation and conflict resolution have become major concerns for the leadership of both communities.

[...]Against this background, the project aims, in a pilot stage, to facilitate the rehabilitation of selected communities in Abyei district with a view to creating conditions conducive to the return of Dinka households from north Sudan and to provide support to their return to sustainable livelihoods as well as peaceful relations with the Missereya. A return to the traditional status of Abyei as a peaceful crossroads and enhanced potential to influence the political situation in the Sudan is an underlying objective.

[...]After more extensive consultations with Dinka leadership in Abyei and Khartoum, and with NGOs and United Nations agencies, the project will assist a number of households displaced in Abyei to return to their villages, prior to assisting households which had been displaced outside of the Abyei area. Some Dinka households with specific skills in the fields of education and health may also be recruited specifically to return from other areas to the rural areas of Abyei. It is hoped that this would be a more sustainable way to initiate a return programme, and would be a base for further return and resettlement initiatives in the future, which would offer opportunities to displaced households currently in Khartoum and other areas of north Sudan." (UNCHR 5 February 2002, para. 20-25)

War-displaced forcibly resettled into 'peace villages' and 'production' sites since 1989

- Deliberate policy by the Government in the early 1990s to relocate IDPs to agricultural 'production' sites in order to eliminate the problem of displacement country-wide
- UN and INGOs have refused to support such resettlement programmes due to concerns over the voluntary nature of the relocations
- Under the banner of 'self-sufficiency' IDPs are resettled in 'peace villages' where they work on export-orientated, capital-intensive and mechanized agriculture schemes (1996)

"A major impact of war-induced displacement has been the creation of an expanded pool of labour in the North. Since 1989, one element of GOS policy has been the resettlement of war-displaced in "production" sites [...]. In August 1990, the Council of Ministers, announced in Resolution 56 its determination to

eliminate the problem of displacement within one year. This was to be accomplished both through repatriation of over 800,000 displaced to "areas of origin", and through their relocation to "areas of production" in Upper Nile, Bahr el-Ghazal, Darfur, Kordofan, and Central State[...]. The stated rationale behind relocation was to reduce dependency on relief. The displaced were expected to work as labourers on production projects, including mechanised farming schemes.

[...]

Upper Nile State in particular has been a destination for relocated peoples. This is likely linked to the fact that, following the signing of a peace charter with the Shilluk, the GOS and the National Development Foundation have invested in the development of Upper Nile, and especially in the area of commercial agriculture.

[...]

[T]he UN and INGOs have refused to cooperate with the GOS on such resettlement programmes, due to concerns over the voluntary nature of relocations, and concerns that such programmes were intended to utilise the war-displaced as a cheap agricultural labour force [...]. In October 1991, for example, the GOS unsuccessfully tried to enlist donors to provide food for the transport of some 60,000 able-bodied men to participate in a harvest campaign, which was intended to alleviate labour shortages in the mechanised and irrigated agricultural sector in Upper Nile. Despite pressure from the COD, INGOs also refused to assist. One donor concluded that the project was not a voluntary relocation effort, but a "profit-making venture", and as such humanitarian relief should not be provided in support [...].

Again in June, 1995, the GOS, through the Supreme Council of Peace, sought to elicit the support of the UN and INGOs for the repatriation and relocation of war-displaced from Khartoum, to agricultural production sites[...]; UNHCR support was particularly sought for the relocation of displaced to areas that had vacated by Ethiopian refugees. UNCERO responded with a set of conditions, agreed by an informal UN and INGO task force. These conditions included: that relocations were voluntary, that appropriate employment conditions and basic services would exist at each site, that labourers would be granted land if required, and that UN staff would be able to monitor the process of relocation [...]. The GOS rejected these proposals, however, on the grounds that any attempt by the UN to impose conditionalities represented a violation of Sudanese sovereignty[...]." (Hendrie et al 1996, pp. 191-192)

"In this regard, the Review Team found an uncomfortable connection between the GOS's economic development policies with regard to agriculture, its policies concerning the war-displaced, and its assertion of control over land in the context of internal warfare. Economic policy in Sudan since the late 1970's has emphasised the replacement of subsistence production with capital-intensive, mechanised farming for export; and this policy continues today. For example, The Peace and Development Foundation, created in 1992, and later reconstituted as the National Development Foundation (NDF), has as one of its objectives the consolidation of government control over land through the expansion of mechanised farming [...]. The emphasis that the GOS has placed on mechanised agriculture as opposed to subsistence production fits well with the creation of "peace villages", where war-displaced populations are moved to mechanised farming schemes to act as either producers or wage-labourers. These policies are justified by the GOS on the basis of promoting self-sufficiency among the war-displaced, and of promoting a policy of "Salaam min al Dakhal" or "peace from within". It is in the context of this kind of "development" agenda by the GOS, which has been accommodated by OLS agencies, that the use of humanitarian relief to promote self-reliance needs to be analysed." (Hendrie et al 1996, pp. 185-186)

Obstacles to return and resettlement

The conditions that led to displacement remain unchanged and forced many returnees to go back to IDP camps (2004)

- IDPs stated that many of those who had returned spontaneously to the South were forced to come back to the camps in Khartoum because drought, lack of services and insecurity prevailed and taxation of movements made return expensive
- IDPs expect that transport will be provided to assist their return and protect them
- IDPs in Khartoum from Darfur have no intention to go back home
- IDPs are sceptical about the truthfulness of the implementation of the peace agreement and many will “wait and see” whether services and security come true
- Lack of resources and monitoring mechanisms will hamper the safe and dignified reintegration of returnees
- No registration nor assistance is organised for newly arrived returning IDPs
- IDPs lack all basic amenities
- The SRRC tries to register arrivals in Northern Bahr-el-Ghazal but have no resources to assist returnees to re-build their livelihoods
- While refugees will receive starting kits, none are planned for returning IDPs
- Return kits would enable IDPs to re-start their livelihoods rather than being a burden to local communities, but some agencies argued against kits, fearing that the assistance would be abused

“In general the IDPs stated that there have been movements of people returning to their places of origin. However, many of these individuals have returned to the camps, stating that there is no change in the current situation in their places of origin, with drought and personal insecurity still existing. In addition, it was stated that the taxation of movements back to their areas, make it expensive to return. It seems that there have been substantial movements of people primarily to the Nuba Mountains in particular as a result of the cease-fire in the region.

[...]

The majority of this information is gained from people who have traveled and then returned to the IDP camps. IDPs stated information was also gained from letters from relatives, friends, and through “tribal communication linkages”. In addition, IDPs talked about information that was communicated from Red Cross messages to the IDPs about the situation in other parts of the country.

[...]

In general, the IDPs expressed their intentions to return to their places of origin in the event of a peace agreement (with the exception of those from Darfur areas, who declared their wish to stay in Khartoum). However, some of the IDPs are skeptical about how soon the peace agreement will be signed and the truthfulness of its implementation.

It is important to consider that the few spontaneous returns that have occurred from IDP camps in Khartoum to places of origin, have resulted in unsuccessful reintegration of the IDPs due to the consistent irregular condition of the environment (places still insecure, no health or education services, no employment, etc), consequently forcing them to come back to Khartoum.

Therefore, although they have expressed their wish to return if a peace agreement is signed, it can't be clearly stated how soon they would return and in many cases, the IDPs have mentioned their expectations to be provided with transport.

[...] some expressed their wish to “wait and see” what kind of services will be provided and how fast the basic services are implemented in their areas of return.” (CARE, IOM, F.A.R., 1 February 2004, p. 4)

“48. At present, there is no organized registration or provision of assistance to spontaneous arrivals in the South, who usually lack food, water, shelter and basic tools (even though they might carry other personal items). Local authorities lack training in registration, supplies and transport, and the capacity, unless addressed immediately, will fall far short of the needs they will encounter.

[...]

50. An illustration of the current needs and lack of capacity to meet those needs is that of Warawar in Northern Bahr-el-Ghazal. In the absence of transport, the SRRC County Commissioner relies on the NGOs to give him a lift to the gates, where he valiantly attempts to register the arrivals in a worn-out notebook. Lacking any commodities, the commissioner has pathetically stocked up a handful of dried grass-huts to provide shelter to women and children as male members of the family go back-and-forth, assessing the villages.

[...]

52. While refugees will be provided with basic kits before their departure, there are no plans to distribute starter kits to returning IDPs. [...] Some argue that distribution of kits will lead to abuse by locals, who may be tempted to cross back-and-forth to pick up returnee packages. Although this concern is valid, it should not lead to the dismissal of basic kits for returnees, but should rather serve as an additional argument for the need to establish systematic registration and monitoring of “departees” and arrivals.

[...]

54. It is indeed understandable that the bulk of assistance and development should be community-based and target receiving communities. However, this should not exclude consideration for the specific needs of returnees. The provision of arrival kits would not only enable returnees to settle in deserted or previously non-inhabited areas, but would also empower them to return in dignity to their own impoverished communities - arriving as someone who contributes, rather than someone in need.” (IRC, 1 May 2004, p.14-15)

Mines may hinder return and hamper agricultural recovery as Sudan is among the top ten worst affected (2005)

- There are about 1-2 million mines in Sudan affecting 21 out of 26 states, yet limited information is available only in 11 affected states
- Mine casualties are likely to increase in the event of peace as many IDPs will cross mine fields when going back home
- Many mine-contaminated areas are not marked and mine education mainly concentrates around Khartoum
- While GoS ratified the Ottawa Convention in 2003 and SPLM/A signed similar agreements for non-state actors, there is no guarantee that the multitude of GoS-backed militias and other splinter groups will abide by these agreements
- 200,000 square feet of mines were cleared in the Nuba Mountains therefore there are nearly no mines in the North
- In the South, generally an area of 60 kilometres between the garrison towns and SPLA territory is mined
- Mines and UOX prevent people returning to their homes and resuming agricultural activity
- Mines also hinder the delivery of emergency assistance and WFP delivered most food by air
- According to UNMAS latest estimates there were about 10,000 mine victims in Sudan (2004)

According to the JAM multi-stakeholder consultation on livelihoods and social protection, there are approximately 1 million mines laid mostly in southern Sudan and in Transitional areas of Kordofan, Nuba Mountains, Abyei and Blue Nile. Approximately 32% of the national territory (80,000km²) may be affected by mine contamination. Mines are thought to affect 21 out of 26 states, but information is only available on 11 states and is very limited. The true extent and impact of mines is largely unknown and most dangerous areas remain unmarked. As of January 2005, no in-depth, countrywide mine survey has been carried. Only limited Mine-Risk Education is taking place and mainly around Khartoum town. (JAM, 25 January 2005)

"The Sudanese government Monday [13 October 2003] ratified the Ottawa Convention also called the Mine Ban treaty six years after signing the pact. The SPLA has twice signed the Geneva Call 'Deed of Commitment,' an agreement for nonstate actors pledging not to use land mines in any circumstances, and at a conference in southern Sudan held by Geneva Call last month, reaffirmed its commitment.

Despite these actions, mine experts warn that the government-backed militias that have played a significant role in Sudan's 20-year war will not necessarily abide by these agreements to halt mine use.

According to Jim Pansegrouw, senior technical adviser for the UNMAS program for Sudan, it is unclear whether mines are still being laid in Sudan. The report on this month's deadly accident says there is no evidence the mine was recently laid." (UN WIRE, 30 October 2003)

"Roads in the North are not mined with the exception of the Nuba Mountains. [Footnote no. 38: 200,000 square feet of mines have been cleared in the Nuba Mountains (CAP 2004) Yet, unexploded ordnances (UXOs) remain a big threat in the South, as do anti-personal mines planted in buffer zones around garrison towns.

114. Generally, an area of 60 kilometers between the garrison towns and SPLA territory is mined. Likewise, all major routes are contaminated from Abyei towards Wau; and, from Kadugli via Bentiu to Malakal, which means that some of then return routes might be contaminated" (IRC, 1 May 2004, p.32-3)

""According to relief workers, widespread mine and UXO contamination has already discouraged millions of displaced Sudanese from returning to their homes and resuming agricultural activity. It has also affected the delivery of vital emergency assistance.

"One suspected mine can close down a road or a field for a long time," Stephen Robinson, technical advisor for the Southern Sudan Regional Mine Action Office, told IRIN. In October, for example, 75 percent of food assistance to the region of Kapoeta had to be delivered by air because of the poor conditions of the roads and the suspected presence of mines, he added.

Although the estimated number of mines in Sudan is believed to be smaller than that in some other conflict-affected areas in the world, their impact is high because many of them have been planted in unpredictable ways, rather than as part of larger minefields.

"According to our latest estimates, there are about 10,000 mine victims in Sudan,"
[...]

From the moment UNMAS started its operations in Sudan in September 2002, we have received 907 reported cases of deadly mine incidents, [as of December 2004[...] "We estimate that 3,000 or more people have been killed by landmines."" (IRIN, 1 december 2004)

"The UN Landmines database puts Sudan among the ten worst affected countries worldwide. Villages have been deserted, roads abandoned and livelihoods paralysed because of fear of landmines. In many areas, landmines constrain overland delivery of aid, which must then be delivered by air. Those most at risk include children, farmers, pastoralists and persons on the move into unfamiliar areas. Returning IDPs and refugees are often particularly vulnerable." (UN, November 2002, pp. 131-2)

"According to the UN's landmines database, the Sudan is one of the ten most seriously mined countries in the world. Yet, capacity to inform and warn remains critically deficient. An estimated 500,000 to two million mines are thought to have been laid by the army and armed opposition movements. Several thousands of people, mainly civilians, have fallen victim. In 1999, both the Government and SPLM/A pledged to no longer use mines, but old and reportedly newly laid mines continued to claim victims throughout 2001. IDPs, farmers, women and children are at particular risk. Local populations are often negligent of the dangers, as mine awareness is generally low." (UN November 2001, p.82)

IDPs' return to Transitional Areas hindered by lack of basic services and protection (2000-2004)

- According to the Governor of the Nuba Mountains, about 60% of Nuba's fertile land owned collectively by about 50 ethnic groups in the past had been expropriated during war
- The UN estimated that 100,000 IDPs who had returned to SPLM/A areas in the Nuba Mountains went back to their camps due to lack of funds to rehabilitate infrastructure and basic services in 2003
- 60% of returnee households are headed by women and lack community support
- Return of IDPs in Nuba Mountains may be curtailed unless protection and assistance to rehabilitate livelihoods is delivered
- UN encouraged the return of Dinka to Abyei in war-devastated resettlement villages where they ended up being dependent on humanitarian assistance
- IDP returnees lack economic and social support and basic services such as health and education
- About 1,300 IDP families returned to Abyei in 2003 after ten years of displacement
- IDPs who returned to Abyei have to walk two to three days to access health care
- Programme Advancing Conflict Transformation in Abyei: a multi-agency collaborative approach to support Dinka IDPs return built upon grass roots peace initiatives

“186. At the regional level, JMC and the Nuba Mountains Pact are generally seen as having played a significant role in confidence building. The return movement to the Nuba Mountains following the 2002 ceasefire is considered a successful model because it rests on a political framework, a ceasefire that is verified by JMC and the establishment of the

Nuba Mountains Pact (NMPACT), a consortium of humanitarian and development NGOs and UN actors. [Footnote No.53: While the general view is that the Nuba Mountains is a success story, one observer with in-depth experience of the area expressed doubt as to what extent the root-causes had been addressed in the Nuba Mountains. He argued that the balance of power and resources allocation had not changed as those living in the SPLA-controlled Nuba Mountains still remained a disadvantaged group.] [...] In contrast, while IDPs were assisted in returning to Abyei in 2003, the overwhelming majority did not integrate due to the absence of basic services and insecurity, and, in fact, they returned to Khartoum. Thus, confidence building and reconciliation, ultimately, require a multi-sectoral approach, which rests on a political framework and security guarantees.” (IRC, 1 May 2004, p.49-50)

“Lack of funds to implement programmes in the Nuba Mountains in spite of a two-year cease-fire, discouraged the return of IDPs. During January - April 2003 an estimated 100,000 returnees to SPLM/A held areas went back to their camps due to lack of social infrastructure and minimum social services.” (UN, 3 June 2003, p.15)

“Since late March, a number of spontaneous IDP returns to the Nuba Mountains have been noted (the nearest estimate is about 25,000 to 30,000 persons). Cost of transportation has prevented other IDPs from returning. Among the problems faced by returnees is the chronic water shortage and competition over water resources between the nomads and pastoralists.” (UNRC, 16 June 2003)

“The cease-fire agreement in January 2002, allowed some returnees to come back to their places of origin. The majority of returnees arrived between June and August mainly from displaced camps, with little or no assets. On arrival, some joined their relatives, while others were accommodated in new villages with no host residents hence hindering reliance on kinship support. Overall, percentage of female-headed

households (FHH) is 30-35%. With the migration of male heads in search of labour and others joining the war or being killed at war, the percentage of FHH among IDPs is around 60%. Serious gender gaps exist in participation of women in public decision-making, literacy and access to health facilities.” (UNR/HC, Nuba, 22 July 2003, p.9)

“The Nuba Mountains provides an opportunity to demonstrate an appropriate principled approach to peace building, from which neighbouring communities and intransigent leaders might learn from and replicate. There is a risk that the Nuba Mountains cease-fire may fail because of the inability or lack of will of the international community to support an enabling environment for ensuring that practical and immediate benefits, including protection, accrue to the civilian population. There is also an expectation from the war-affected population that sufficient support to sustainable peace building, livelihoods and community-based rehabilitation will facilitate the civilian population to more fully participate in the peace process.” (UN, November 2002, p.9, 11)

“The multi-agency supported Abyei peace conflict transformation process led to the return of over 800 IDP households to villages outside the town. However, the vulnerability of such processes to wider political events was demonstrated in late September when action by the army and the SPLA led to the people being temporarily relocated back to Abyei town.” (UN, November 2002, p.11)

“In an effort to encourage displaced Ngok Dinka to return to the Abyei region, the United Nations established three resettlement villages in the area: Noong, Awuol Nhom, and Todaj. Unfortunately, as people who already suffered from the devastating effects of war and displacement returned to the area, they found themselves increasingly dependent upon Non-Governmental Organization (NGO) food distribution programs, in addition to the food/goods sold in the GoS controlled Abyei Town market. While trying to re-establish themselves socially and economically, they are confronted with two major obstacles: first, they suffer from a severe lack of economic and social support, to include adequate health care and educational opportunities; secondly, they are faced with a constant criminal threat to their safety and livelihood, that is illustrated in this report.” (CPMT, 5 February 2004, pp. 1-7)

“An NGO survey of rebel-controlled Abyei county has found that there are no health services available to a population of about 32,000 people, forcing them to walk for between two and three days to access medical care.

About 60 percent of people relied on traditional healers and "spear masters" who performed witchcraft, the Irish charity GOAL reported, with about 20 percent opting for formal health care in Abyei town, where there is a hospital, or neighbouring Twic county, which has primary health clinics.

[...]

The Abyei Community Action for Development (ACAD), a local NGO, estimates that 1,300 households have returned to southern Abyei so far this year, while another 750 people are expected within the next week. The returnees, mostly from Khartoum, were visibly better off than local people who had not been displaced, Reuben Haylett, a medical coordinator with GOAL, told IRIN.

Many others who had returned, had chosen not to stay due to the lack of services, and moved on to neighbouring Twic county or to the IDP camps in northern Abyei, Deng Mading, director of ACAD, told IRIN.

A regional conference held in Agok, Abyei county, in early June expressed "outrage at the subhuman conditions" in which the IDPs were living.” (IRIN, 10 July 2003)

“While expectations of the Dinka community in Khartoum and other urban centres in the north regarding substantial support for the return of IDPs to Abyei were high, the priorities of the international community in Khartoum focused on promoting and supporting a strong conflict-transformation base to mitigate competition and frustration between communities that would undermine any return of IDPs to the Abyei rural areas, as had occurred in the past.

[...]

Concerns were expressed regarding the slowness of ensuring adequate access to basic services, and it was clear that people had expected much more than had been delivered. The level of services available to the three villages also varied substantially. Only one, Today, had a functioning borehole and water delivery system, while the other two relied on water from the adjacent river and streams. In Today, a market had begun and a school had started on the initiative of the community. Regular transport was available to take residents back and forth to Abyei as needed. These services were not yet present in Noong and Awolnom.” (UNCHR, 27 November 2002, pp.6-7; 11-12 par.5; 29;31)

HUMANITARIAN ACCESS

General

Overview of access situation (2005)

- International monitors and peacekeepers should be deployed all over Sudan to improve security and ensure respect for the peace deal and cease fires
- The UN is planning a deterioration of security in 2005 particularly in eastern and potentially northern Sudan, southern Blue Nile State, Upper Nile State and Darfur
- International advocacy and pressure momentarily improved access in Darfur during 2004, however the situation further deteriorated since end 2004
- The lack of freedom of movement between government-held towns and SPLM/A-controlled territories for humanitarian agencies will hinder their protection activities for returning IDPs
- The Nuba Mountains ceasefire was generally respected and is monitored by the Joint Military Commission (JMC)
- Abyei and Blue Nile States continue to be under the general 'cessation of hostilities' agreed in October 2002 and monitored by the Verification and Monitoring Team as part of its monitoring of adherence to the GoS-SPLM/A cease fire in southern Sudan
- As of November 2004, cross line access in Abyei and Blue Nile remained problematic
- There were reports of militia training and movements in transitional areas during 2004
- Attacks by LRA in 2004 continued to be an obstacle to delivering humanitarian assistance in Equatoria

"Insecurity should be reduced in some areas by virtue of a comprehensive peace agreement and the presence of international monitors or peacekeepers. However, access to parts of the south and the west may deteriorate during 2005. Armed groups or militias may also become more active in eastern and potentially northern Sudan, and insecurity may increase in southern Blue Nile State and Upper Nile State. Scarcity of resources, particularly water, arable or grazing land, is likely to contribute to second tier, localised conflicts, which in some cases may be exacerbated by conflicts between returning populations and existing resident populations. Security in Darfur, which declined sharply for civilians and aid workers in the last quarter of 2004, is not expected to improve in the short term due to the activities of the GoS, its allied militia, and the Sudan Liberation Movement/Army (SLM/A) and Justice and Equality Movement (JEM).

[...]

Partially improved access: Advocacy by the international community in Khartoum, coupled with growing international support, played a major role in encouraging the GoS to increase access to Darfur in general and to conflict-affected populations in particular. As a result, during the year access improved both to areas held by the GoS and to areas held by the SLM/A and the Justice and Equality Movement (JEM), and constraints on the movement and use of vehicles and materials were also reduced. As mentioned above, access is once again being constrained by heightened insecurity and is affecting the provision of life-saving aid.

[...]

In the Transitional Areas (Abyei, Blue Nile state and Nuba Mountains) the GoS and the SPLM/A agreed in May 2004 on two protocols covering the areas, and the extension of the cease-fire arrangements covering the areas also facilitated humanitarian and development assistance work.

[...]

In 2004 increased political tensions marked eastern Sudan. Economic issues, in particular the combination of severe poverty in some areas and the growing possibility of oil extraction, may have a bearing on regional developments.

[...]

The presence of monitors **[in southern Sudan]**, both local and international must be visible to encourage transparency and safety from violations. Specialist agencies working with, among others; separated children, sexually abused women, forced returns, female and child headed households, and children returning from armed forces need to scale up their programming radically to have professional competence in all affected areas. While some parts of the population can now move with more freedom across lines from government held towns in the south to SPLM/A territory and vice versa, United Nations and non governmental agencies cannot. Protection training, monitoring, violation reporting, services to victims of abuse, challenges to policy and political decisions which affect people's rights will at times be difficult and even more so when done across lines.

[...]

The Nuba Mountains ceasefire has continued and is monitored by the Joint Military Commission (JMC). Abyei and Blue Nile State continue to be under the general 'cessation of hostilities' agreed in October 2002 and are covered by the Verification and Monitoring Team as part of its monitoring of adherence to the GoS-SPLM/A cease fire in southern Sudan. The number of cease fire violations in the Nuba Mountains in particular has declined and cross line access has become much easier, resulting in a big increase in trade. This has been largely due to the work of the JMC. However, as of November 2004, **cross line access in Abyei and Blue Nile remained problematic**. There have also been reports of militia training and movements in all of the transitional areas, although not all reports have been substantiated. Renewed or increased conflict in any of the three areas therefore remains possible." (UN, 30 November 2004, pp.5-18, 46, 143)

"The areas close to the borders of Uganda are still unstable. The roads from Ikotos to Kitgum, Kitgum to Parajok and Nimule to Ajumani are still inaccessible to humanitarian operations due to fear of attacks by the Lords Resistance Army (LRA)." (UN RC, 15 January 2005)

Insecurity in Darfur intermittently prevented the delivery of humanitarian relief (2005)

- 88% of the affected population could be accessed in December 2004
- Humanitarian workers increasingly under attack in Darfur, many killed and taken on hostage despite the AU expanded mandate to protect relief workers
- Save the Children UK withdrew from Darfur following the deaths of four of its staff members
- The Security Council in December deplored the "serious degradation of the security and humanitarian situation in Darfur"
- The humanitarian ceasefire agreement signed in April 2004 between the GoS, the SLM/A and the JEM has been systematically violated
- The number of humanitarian workers increased from 200 in March 2004 to 9,100 by end of year
- The affected population in Darfur is expected to rise in 2005 due to drought, conflict, and as a result of increased access
- Two Security Council resolutions urging to end violence were not implemented
- The Government of Sudan and the rebels signed two protocols in October 2004 to improve the humanitarian situation and security in Darfur were nullified by gross violence and attacks on the day of signing and subsequently
- Security deterioration in December 2004 halted food delivery to 250,000 people in need
- When access conditions were at their best in September 2004 up to half a million IDPs were inaccessible to any assistance whatsoever and only 30% had access to clean water

- Insecurity and the lack of capacity on the ground have impeded agencies to establish humanitarian operations in Darfur
- On the 9 of February 2004 the GoS promised to provide access to aid workers to reach millions of people in need of assistance
- Only 15% of the IDPs are estimated to be accessible to humanitarian workers because of insecurity and difficulties in obtaining travel permits (Jan 04)
- Only 13% of the estimated 3 million people directly affected by war are accessible to humanitarian workers out of a population of 6 million in Greater Darfur (Jan 04)

“Humanitarian agencies and organizations have been more successful in providing lifesaving assistance to the affected population where they can be accessed (88% of the affected population in December 2004). The tables below summarize the percentage of the population receiving assistance as of the end of September 2004 and the end of December 2004.² The number of people directly affected by the conflict increased by 16 percent, from an estimated 2.02 to 2.40 million, over the last quarter of 2004. As a result, more people had to be reached to maintain the same coverage percentage.” (OCHA, 3 March 2005)

“Roads and even whole areas were intermittently cut off from assistance. The rate of increase in assistance, especially food, which had been destined for two million people, reduced as a result of disruptions caused by insecurity.” (UN RC, 25 January 2005)

“Sustained and heavy military operations in North and South Darfur triggered further insecurity, limited humanitarian access and led to further displacement in December. This resulted in the increased overcrowding of some already congested camps, or the impossibility for humanitarian actors to reach beneficiaries who took refuge in inaccessible areas.

[...]

In March 2004 there were just over 200 aid workers and in Darfur. By April this had increased five-fold to over 1,000 aid workers to reach over 9,100 by the end of the year as the Government of Sudan somewhat relaxed restrictions and following the visit of the UN Secretary General, and the subsequent signing of a joint communiqué between the two parties on 3 July to speed up all bureaucratic procedures such as visas, NGO registrations, imports of cars and communications. Much credit to the increased presence of humanitarian organization, thus the provision of assistance to the population in need has to be given to the Humanitarian Affairs Ministry whose officials worked tirelessly to enforce the provisions of the communiqué.

By the end of December 2004 some 77 NGOs have established their presence in Darfur, together with the 11 operational UN agencies, and other international organizations such as the ICRC and the Red Cross/Red Crescent societies. The affected population passed from over one million people in June to some 2.4 million at the end of 2004.

[...]

The affected population is expected to increase further in the coming months as a result of increased access and capacity to reach outlying areas. This will include villages that do not host IDP populations, as well as the pull-factor effects, which may draw more and more residents into IDP locations as they exhaust local resources, exacerbated by the failed agricultural season, while assistance in IDP locations most likely will continue to improve. Even if the fighting were to stop immediately, no new people were forced out of their homes, assuming no change in the general security situation and thus no IDP return movement, it is expected that the numbers of vulnerable populations will increase due to drought and new accessibility

[...]

The deteriorating security situation throughout Darfur is the greatest constraint to humanitarian operations in the region today. Despite the Ceasefire Agreement and the multiple agreements between the different parties, and notwithstanding international attention and pressure, violations are on the rise, severely impacting civilians and rendering the provision of humanitarian assistance more difficult. Civilians continue to be exposed to violence in their daily activities; they are subject to sexual and gender based

harassment and involuntary relocations. The level of harassment, detentions and other security incidents involving relief workers have significantly risen since September with the detention of international NGOs humanitarian workers on separate occasions by the GoS during December. The UN and diplomatic community are extremely concerned about this latest development. Actions are being undertaken at the highest level to try to resolve the issue.” (UN R/HC, 1 January 2005)

“The Security Council members held consultations on the situation in Sudan on 21 December 2004. In a statement they revealed that they are deeply concerned with the “serious degradation of the security and humanitarian situation in Darfur and at the repeated violations of the ceasefire”. The members condemned these violations of the ceasefire as well as the shooting at an African Union helicopter. They called on the parties to abide by the ceasefire accord and by the security humanitarian protocols they signed in Abuja.

[...]

Save the Children UK announced on 21 December 2004 that it was withdrawing from Darfur following the deaths of four staff members in two separate incidents over the previous two months, as well as a number of other serious security incidents.” (UN RC, 1 January 2005)

“At the time of writing, conflict in Darfur continues, with an increase over the previous quarter in security incidents for aid workers, and abuses against civilians. The Darfur crisis has had a devastating impact on the people of Sudan, displacing 1.6 million people in Darfur, 200,000 refugees from Darfur sheltering in Chad, and severe hardship in the lives of several hundred thousand other conflict-affected people. Despite the large humanitarian effort to date, an average of 30% to 50% of these needy people do not yet have access to assistance.

[...]

The actual number of displaced and affected people has risen due to continued insecurity in Darfur. At the same time, increased access by humanitarian aid workers has led to more people being assisted. By October, relief was being delivered to between 50% and 70% of the conflict-affected population. [Footnote 1: For example, by 1 October food relief was being distributed to 70% of the conflict-affected population, compared with 57% at the start of September, while shelter and non-food items were being delivered to around 52% of the target population.] However, as of September, the security situation for aid workers has deteriorated and is affecting the provision of aid.” (UN, 30 November 2004, p.5-18)

“These attacks launched on the 27th December 2004 and the consequential retaliatory attacks by Government forces both inflicted not only serious casualties to civilians but also led the UN’s World Food Programme to suspend further deliveries of much needed food aid to North Darfur. This suspension by the WFP involving nearly one and half million tons of food aid will seriously affect some 250 000 people who depend on it.” (AU, 30 December 2004)

“Aid workers are increasingly at risk in Darfur. Several organisations have lost staff. This is the second Sudanese nationality MSF aid worker who has been killed over the last three months.” (MSF, 22 December 2004)

“At the time of my mission, the humanitarian situation was reported to have been much improved with better cooperation on the part of the Government in facilitating access. Humanitarian workers, however, complained that persistent insecurity still impeded access. There were also complaints about the shortfall in the donor response, with less than 50 per cent of the humanitarian appeal having been funded. Indeed, at the time of writing, it is reported that only 30 per cent of those in need have clean water and that up to 500,000 IDPs remain inaccessible to any humanitarian assistance whatsoever.” (UN CHR, 27 September 2004, p.12)

“Politically there were several important developments in Darfur in 2004, yet peace remains elusive. A Humanitarian Ceasefire Agreement was signed in April between the GoS, the SLM/A and the JEM. It has been violated numerous times. The ceasefire included a protocol on humanitarian assistance in Darfur. Two Security Council Resolutions [...] were passed, calling on the parties to cease all violence, protect civilians and seek a political solution to the crisis. [...] On 20 October the African Union Security Council issued a

Communiqué expanding the size and mandate of the African Union Mission in Sudan (AMIS). Though initially established to monitor adherence to the April Ceasefire, the increased number of AMIS troops now have a more protective role in relation to both civilians affected by conflict and to humanitarian actors. Peace talks conducted under the aegis of the African Union in Abuja in August closed after three weeks without resolution; the Abuja talks seeking a resolution to the crisis resumed in late October, leading to the welcomed signing of two protocols related to the improvement of the humanitarian situation and the enhancement of the security situation in Darfur. Unfortunately, on the very day that the protocols were signed there were several very worrying incidents of insecurity in Darfur, further underlining the imperative of a political agreement between the parties – an agreement that the AU is diligently pursuing with the GoS and rebel groups.

In spite of the Ceasefire Agreement and the multiple agreements entered into between the GoS and the UN, and notwithstanding international attention and pressure, ceasefire violations continue, and are on the rise, severely threatening civilians and rendering the provision of humanitarian assistance more difficult. Civilians continue to be exposed to violence in their daily activities; they are subject to sexual and gender based attacks and harassment and involuntary relocations and returns. Humanitarian aid workers are also increasingly subject to harassment and attack. Aid workers have been detained and are routinely robbed. Two landmine incidents in the region involving humanitarian organisations resulted in the death of two aid workers; two others were severely wounded.” (UN, 30 November 2004, p.98)

“Assessment teams cite ongoing insecurity along major transport routes, the paucity of the number of implementing partners on the ground, and the very limited capacity of agencies currently operating in Darfur, as some of the major constraints inhibiting the establishment of full-scale humanitarian operations on the ground.” (UN RC, 29 February 2004)

“Only 15% of all IDPs and 13% of the war affected are currently accessible as determined by UN Security, and even access to these people has reportedly been hampered by difficulties in obtaining travel permits. Other civilian protection issues include the reported burning and looting of more than 500 villages, reports of the killing of thousands of civilians, and of attacks on IDP camps. Many more have died as a result of diseases and malnutrition related to the displacement.” (UN R/HC, 10 January 2004, p.1)

“The Darfur region of Sudan remains highly volatile for civilians and the humanitarian community. The security situation outside the three capital towns throughout Darfur is of particular concern. Access to most areas outside the three capitals is impaired by daily incidents of militarized violence on major roads routes. These include systematic disruption of railroads and communication lines. Recent concerns over mines and unexploded ordnance (UXO)--a new problem for Darfur--add to the difficulty of reaching people in need. "Ironically, at the moment we receive access clearances, insecurity on the ground precludes us from accessing populations in need.

[...]

Ambassador Vraalsen arrived in Sudan on 12 February. His visit was instrumental in ensuring the prompt issuance of travel permits from the authorities. In both Khartoum and Darfur, he urged the authorities to keep their promises [made on February 9] for unimpeded access to the populations in need..” (OCHA, 18 February 2004)

“Nearly three million people affected by the conflict in Sudan's Darfur region have remained beyond the reach of aid agencies trying to provide essential humanitarian aid. UN aid agencies estimate that they have been able to reach only 15 percent of people in need. Half of Darfur's six million people are directly affected by the conflict. The number of people who have fled from Darfur to Chad has nearly doubled to 110,000 in the past three months. More than 700,000 people have been internally displaced in the past year.” (OCHA, 12 February 2004)

“The UN, meanwhile, has welcomed the government's move on humanitarian aid, saying that up to now it had been "prevented" from providing aid in the region. "This represents a breakthrough, since for months we have been prevented from reaching large numbers of displaced civilians in what is one of the worst

emergencies in Africa," said Jan Egeland, the UN Emergency Relief Coordinator. "We must now ensure that this positive development becomes a reality." (IRIN, 11 February 2004)

"Most alarmingly, a new conflict erupted in 2003 in Greater Darfur involving military elements, bandits and the Sudan Liberation Movement and Army (SLM/A)[....] and the GoS. By August 2003 the conflict had escalated significantly, resulting in internal displacement, disruption of livelihoods and the destruction of villages, though a cease-fire agreement was signed by the two parties in early September [2003] which was rapidly followed by a Greater Darfur Initiative to help consolidate fragile peace on the ground. During the fighting, the movement of humanitarian personnel was drastically limited to the main cities and a restricted number of villages. It is estimated that access restrictions accompanying the conflict in greater Darfur prevented the delivery of humanitarian assistance to some 500,000 people in need of relief. More significantly for the future, fighting in Greater Darfur has prevented crop cultivation for 2003. As a result, the region could face serious food shortages next year." (UN, 18 November 2003, Vol.I)

Insecurity and access denials remain top obstacles to humanitarian activity (2004)

- Western Upper Nile was off limits to aid workers following attacks on humanitarian staff in late February 2004
- Humanitarian delivery continued to be constrained by both insecurity and difficulties in obtaining travel and work permits, as well as restrictions on the use of communication equipment
- Access continued to be constrained by insecurity in Western Upper Nile, particularly in Bieh and Latjor, despite the February 2003 Addendum to the Cessation of Hostilities MoU of October 2002 whereby the two parties should facilitate access and return of IDPs
- LRA continued activity impeded efforts to contain Yellow Fever outbreaks in eastern parts of Equatoria
- Attacks on civilians and conflict in Greater Darfur prevented delivery of humanitarian assistance to over half a million IDPs during 2003 despite September 2003 ceasefire
- Clashes in Kassala state, impeded the access to IDPs in Hamash Koreb since October 2002
- Humanitarian operations largely depended on high-cost air-lifts due to insecurity and lack of all-weather roads
- Insecurity prevented access to displaced people in 2003 particularly in Unity state, Darfur State and in Kassala state

"Eight United Nations and non-governmental staff were deliberately targeted in a sustained attack by armed militia during a relief operation in Nimnim, Western Upper Nile in southern Sudan on February 20.

[...]

The attack has led to the suspension of humanitarian relief activities to about 30,000 people in the area.

[...]

The area is now off-limits to aid workers of the Operation Lifeline Sudan (OLS) consortium." (UN RC, 27 February 2004)

"Building on the foundations laid in 2002, the operational environment improved significantly during 2003. As a result, humanitarian access has been less obstructed than at any time over the past thirteen years. Nonetheless, emerging conflict in the Greater Darfur region and escalating conflict in parts of the southeast have added to other security concerns, which continue to constrain access.

The impact in terms of lives saved as a result of positive developments in the operational environment cannot be overstated. However, lack of access continued to restrict assistance from reaching a number of vulnerable populations dependent on relief and protection for survival. In certain parts of the country the movement of humanitarian personnel continued to be constrained by both insecurity and imposed obstacles

such as lengthy delays in obtaining travel permits, work permits, and restrictions on the use of radio communications equipment and sat phones.

Western Upper Nile (Unity) saw a severe outbreak of fighting in December 2002-January 2003 associated with road construction linked to oil-field development [...]. The hostilities were brought to an end by the signing in February 2003 of an addendum to the Cessation of Hostilities MoU of October 2002, which also stipulated that the two sides should facilitate the return of displaced populations. Just after the addendum was signed, a report by the Civilian Protection Monitoring Team [...] confirmed that humanitarian needs were ‘desperate’ though access during the period of fighting had been impossible. Throughout 2003 other parts of Upper Nile, in particular Bieh and large parts of Latjor continued to receive inadequate attention, due to continuing security concerns caused by militia activities.

The continued presence of the Lord’s Resistance Army (LRA) [...] in parts of southern Sudan was a significant impediment to the multi-agency effort to contain the outbreak of Yellow Fever in the eastern part of Equatoria and other humanitarian relief operations in the region. Unconfirmed reports indicate that the LRA has abducted 8,000 people since 2002 and killed, robbed, maimed and mutilated an unknown number of others.

Most alarmingly, a new conflict erupted in 2003 in Greater Darfur involving military elements, bandits and the Sudan Liberation Movement and Army (SLM/A)[...] and the GoS. By August 2003 the conflict had escalated significantly, resulting in internal displacement, disruption of livelihoods and the destruction of villages, though a cease-fire agreement was signed by the two parties in early September which was rapidly followed by a Greater Darfur Initiative to help consolidate fragile peace on the ground. During the fighting, the movement of humanitarian personnel was drastically limited to the main cities and a restricted number of villages. It is estimated that access restrictions accompanying the conflict in greater Darfur prevented the delivery of humanitarian assistance to some 500,000 people in need of relief. [...]

In addition, frequent staff relocations due to insecurity took place throughout 2003 as a result of militia activity, looting, tension and ethnic clashes, mainly in Upper Nile and parts of Equatoria. Hamash Koreb in Kassala state has been inaccessible for humanitarian workers since October 2002

[...]

Partly due to these access constraints, though also because of the total absence of all-weather roads in southern Sudan, humanitarian operations have continued to be largely dependent on high cost airlifts and airdrops. Furthermore, concerns for the security and safety of humanitarian personnel have limited activities in some locations to “in and out” interventions, the effectiveness of which is limited.” (UN, 18 November 2003, Vol.I, p.2,7,8,11)

Institutional arrangements

Cease fires and access agreements improve humanitarian access (2002-2003)

- Cease fires and agreements on unimpeded humanitarian access enabled to reach an additional 1 million people in need in 2003 particularly in the Nuba Mountains, Blue Nile, and Western Upper Nile
- The October 15 2002 MoU between the Government of Sudan and the SPLM/A led to both sides agreeing on cessation of hostilities and permitting unimpeded humanitarian access
- Access agreements were established for the UN to reach populations in need in Kassala, Blue Nile and SPLM/A-held southern Blue Nile previously outside OLS mandate
- GoS was planning to ease the issuance of travel permits late in 2003
- Sustained ceasefire in Nuba Mountains since Jan 2002 and first cross-line road delivery of food aid to the region in 2003

- The reopening of the Nile corridor for delivery of humanitarian aid saves operational costs US\$250 per ton of food
- The 17 Oct 2002 MOU promotes the return of all those displaced from Western Upper Nile after the signing to be monitored by the Verification and Monitoring Team (VMT) in co-operation with the CPMT
- Government of Sudan, SPLM and the UN signed a security protocol and minimum operational standards for use of rail and cross-line road corridors at a TCHA meeting in 1998

“This improvement in the available humanitarian space began with the July 2002 signing of the Machakos Protocol between the government and SPLM/A, which placed the issue of civilian protection high on the agenda of those talks.

A major breakthrough came in [15] October 2002 with the signing of a Memorandum of Understanding (MOU) on Cessation of Hostilities, thereby undertaking, among other things, to take all necessary steps to facilitate the immediate voluntary return of the civilian population of western Upper Nile to their villages. Under the same MOU, the parties agreed to allow "unimpeded humanitarian access to all areas and for people in need, in accordance with the Operation Lifeline Sudan [OLS] Agreement." (IRIN, 9 April 2003)

“The MoU also agrees “to maintain a period of tranquillity during the negotiations by ceasing hostilities in all areas of the Sudan and ensuring a military stand down for their own forces, including allied forces and affiliated militia”. The cease-fire came into effect at noon on 17th October and was scheduled to “remain in effect until the negotiations are concluded, and no later than 31st December 2002”. (GoS & SPLM/A, 15 October 2003)

Access granted in areas normally outside OLS coverage

“The United Nations has made separate bilateral agreements with the government of Sudan and the country's main rebel group, the Sudan People's Liberation Movement/Army, to allow it to provide humanitarian aid in Kassala State and Southern Blue Nile.” (IRIN, 22 January 2003)

“The unimpeded access agreement reached in Nairobi, Kenya on 26 October 2002 has facilitated greater flight access by OLS agencies to previously denied areas. During the months of November and December this agreement has allowed a scaling up of activities in addition to safer means of transporting personnel in areas of Eastern Equatoria affected by LRA activities.

[...]

The most significant impact of this access agreement was noted in Western Upper Nile, adjacent to the Bentiu and Rubkona oilfields. Western Upper Nile has been an active theatre of conflict for the past four years with flight access extremely constrained. (OCHA, 23 December 2002)

“Another breakthrough regarding civilian protection in Sudan was achieved in March when the UN's leading humanitarian agencies began sending food relief to Blue Nile State, in the east.

[...]

The humanitarian assessment had indicated that over 90 percent of the total population were in need of food assistance.” (IRIN, 9 April 2003)

“The cessation of hostilities and associated agreement on unimpeded humanitarian access reached by the two Sudanese parties in 2002 has permitted the assistance community to reach an additional 1 million people in need in 2003. However, the achievements could have been significantly widened had sufficient and timely resources been made available. Ongoing access constraints resulting from localised conflicts and intermittent insecurity in key locations have also continued to obstruct assistance efforts in parts of the country. This combination of under-resourcing and continuing access constraints have not allowed the assistance community to take full advantage of the gains of increased humanitarian access.

The MoU was operationalised through a tripartite agreement by the GoS, SPLM/A/A and the UN to clarify the parameters for ensuring unimpeded access, based on monthly notification lists of locations to be accessed together with a listing of all Operation Lifeline Sudan (OLS) locations at payam (district) level. This was further clarified at the Technical Committee on Humanitarian Assistance (TCHA) meeting held in Nairobi in January 2003, on the margins of which UN access to Kassala, Blue Nile and SPLM/A-held southern Blue Nile was also established. The cessation of hostilities has since been renewed at three-monthly intervals. This was accompanied by the extension of the cease-fire agreement for the Nuba Mountains and the (TCHA) agreements to facilitate access and cross-line operations. These changes led to several tangible improvements in the operational environment.

[...]

The October 2002 MoU permitted the assistance community to reach an additional one million vulnerable Sudanese, notably in Upper Nile, Blue Nile, and the Red Sea. As part of this, two cross-line barge operations were able to deliver assistance along the Nile. In July, a two-month operation completed the first cross-line barge movement along the White Nile and Bahr el Zeraf corridors between Malakal and Juba after a four-year break. A total of 2,648 MTs of mixed food commodities were distributed to additional 304,350 beneficiaries, saving US\$ 240 per metric tonne (MT) in delivery costs compared to airdrop deliveries. By end August 2003, a second operation along the Sobat River had delivered nearly 1,200 MTs to an additional 76,000 beneficiaries. The MoU also facilitated the cross-line road delivery of food, seeds, tools and veterinary drugs and vaccines in those areas of the Nuba Mountains most adversely affected by conflict. The first-ever cross-line training of animal health workers in the western Jebels of the Nuba Mountains with Sudanese staff was also undertaken.

In addition, further to the MoU and in anticipation of a peace agreement, the GoS was planning to establish a system to ease the issuance of travel permits during the last quarter of 2003. This is anticipated to permit unprecedented freedom of movement inside the country, including no prior notification to several states/regions and cities throughout the country and the issuance of travel permits within 24 hours to facilitate missions elsewhere.” (UN, 18 November 2003, Vol.I, p.2,7,8)

4 February 2003 Addendum to the 15 October 2002 MOU

“The government and SPLA pulled back from the brink of such an escalation, and the likely collapse of the peace negotiations, by signing an “Addendum” to the 15 October 2002 cessation of hostilities agreement.

[...]

The new agreement acknowledges the plight of all these IDPs and calls for their safe return, and for the international community to facilitate this. (ICG, 10 February 2003, p.1)

“An addendum to the MOU, agreed upon on Tuesday, stated that both sides agreed to notify the MOU Channel of Communications Committee of all troop movements in Sudan, and to provide information on the identity and location of their own forces, allied forces and affiliated militia groups.

They agreed to allow a Verification and Monitoring Team “free access” to travel in and around areas where any complaints were filed by either side, and that any area captured would be “immediately restored” to the party that had control prior to the violation.

Both sides agreed to suspend work in the Bentiu-Adok road until “the final, comprehensive peace agreement” was signed. They also agreed to take further measures to “freeze media wars and propaganda” against one another.” (IRIN, 5 February 2003)

Verification and Monitoring Team (VMT)

“On 5 February this year, the parties signed an addendum agreement that further strengthened the October 2002 MOU. It also announced the formation of a Verification and Monitoring Team (VMT), which would incorporate elements of the work of existing Civilian Protection Monitoring Teams (CPMTs) already working on the ground to verify reports of civilian violations.”(IRIN, 9 April 2003)

“Two Eritrean members of the Verification and Monitoring Team (VMT) were denied visas by the government of Sudan, which cited "security problems" along the Eritrean-Sudanese border, after which the Council of Ministers of the Inter-Governmental Authority on Development - which is facilitating the peace process - had refused to authorise any missions, VMT staff told IRIN.

The VMT, which was mandated in February, has been dogged by problems ever since its inception due to a lack of funding and manpower, burdensome bureaucratic and diplomatic processes, and four changes of leadership.

[...]

He added that delays had occurred as a result of disagreements between the government and the SPLM/A on the tasking of the VMT, then on its composition, and finally they had had to "figure out" what the team would actually do.

[...]

The team – which currently consists of 15 members – was now focusing on the creation of a field base by next month around Ler in Western Upper Nile.”(IRIN, 29 October 2003)

Technical Committee on Humanitarian Assistance (TCHA)

"At a meeting of the Technical Committee on Humanitarian Assistance (TCHA), convened in November [1998] at the request of the Inter-Governmental Authority on Development (IGAD), the Government of Sudan, SPLM and the UN signed a security protocol and minimum operational standards for use of rail and cross-line road corridors. These agreements, the first OLS documents signed since the 1994 Inter-Governmental Authority on Development and Drought (IGADD) access agreement, outline the minimum standards which must be met to facilitate assistance along rail and cross-line road corridors. Negotiations concerning the use of these corridors will continue in 1999." (UN January 1999, "Year in Review")

“During the TCHA meeting in January 2003, both parties committed themselves to uphold the principle of unimpeded access, to establish a tripartite Committee on Access and Cross-line Corridors, to allow free movement of international humanitarian staff, and to agree on practical arrangements for national personnel. In separate bilateral meetings, the parties also reached agreement on the facilitation of access to areas traditionally not covered by Operation Lifeline Sudan (OLS), including the Blue Nile and Kassala States.

[...]

Access constraints maintained the high costs of humanitarian operations, which in the southern sector remained largely dependent on airlifts and airdrops. Destroyed infrastructure, the presence of landmines, and the inability to rehabilitate locomotives and purchase spare parts, to repair roads and to use barges without escorts, coupled with significant administrative hurdles, resulted in programmes falling short of their targets.” (UN, 3 June 2003, pp.1-2)

See the full MOU between the GoS and the SPLM/A on cessation of hostilities, (15 October 2002) [in the bibliography below.](#)

See the full MOU between the GoS and the SPLM/A on aspects of structures of government, (18 November 2002) [in the bibliography below.](#)

See also Addendum to the Memorandum of Understanding on Cessation of Hostilities Between The Government of Sudan (GoS) and The Sudan People's Liberation Movement/Army (SPLM/A) (GOS and SPLM/A, 4 February 2003 [in the bibliography below.](#)

Operation Lifeline Sudan: a mechanism to negotiate access for humanitarian agencies (1989-2003)

- OLS consortium of 5 UN agencies and 41 NGOs was the first programme to rely on negotiated access in a sovereign state
- The Arrangement on Ground Rules signed between OLS-South and individual armed groups sets standards for safe and unimpeded access
- Half a dozen agencies outside OLS are free from delivery restrictions imposed by national authorities
- OLS operations and needs assessments have been limited to geographical areas agreed by the warring factions: IDPs in non-recognised camps were excluded from assessments
- Access agreements and the work of OLS have depended on ad hoc international pressure on warring parties
- A system for monitoring the level of insecurity for humanitarian operations in the conflict zones facilitates flexible access for humanitarian aid in the context of ongoing warfare
- WFP and UNICEF provide assistance to Nuba Mountains outside normal OLS framework
- All sides accuse OLS of partiality towards the other
- GoS bombed OLS relief sites in 1990 and suspended all OLS programs outside northern Sudan in 1991

“A combination of international and local agencies address the humanitarian needs of war-affected populations in southern Sudan. The southern sector of Operation Lifeline Sudan (OLS), a UN-coordinated international relief effort which includes more than forty UN and international non-governmental organizations, serves as the main operational framework through which international relief is delivered to the south. OLS-South works in operational partnership with the humanitarian wings of rebel movements to coordinate and distribute humanitarian aid. These arrangements, formalized through the Agreement on Ground Rules signed between OLS-South and individual armed groups, are based on minimum operating standards designed to facilitate safe and unimpeded humanitarian access to populations in insurgent areas on the basis of respect for human rights and humanitarian principles. Half a dozen international aid agencies operate outside the OLS framework, which frees them from restrictions on relief delivery imposed on OLS by the national authorities, and allows them access to otherwise inaccessible populations.” (Brookings/ect, 25 November 2002, p.22)

“A consortium of five UN agencies and 41 humanitarian NGOs (international and indigenous) with a budget of roughly U.S.\$150 million, OLS currently provides humanitarian assistance to some 2.5 million people in southern Sudan as well as to camps for internally displaced persons (IDP) in Khartoum. [...] It was the first UN program to rely on negotiated access with the primary warring parties to provide relief assistance to war-affected populations within a sovereign country.” (ICG, 14 November 2002, p8)

"There appeared to be some confusion in the Review about OLS being a "safe area programme." In fact, OLS operates on the basis of negotiated access. OLS seeks the agreement of the parties to the conflict to allow humanitarian agencies access to war affected populations. This access is negotiated with the parties on a continual basis. Contrary to some humanitarian operations in other parts of the world, OLS does not attempt to designate specific areas as safe areas and then to allow agencies to work inside of these. Instead, OLS seeks permission from the parties to provide assistance to the war-affected populations in all areas where security conditions permit. The review correctly pointed out that the key to OLS has been a flexible, highly efficient security umbrella that allows agencies to operate in active conflict zones. Agencies in Sudan have been able to work in areas threatened by insecurity because the security umbrella is capable of immediately evacuating at-risk personnel. In terms of its legal framework, OLS operates within the tripartite framework established by the 1994 IGAD Agreement as well as on the basis of the "useful" practices that have developed over ten-year course of the operation." (UN OLS 29 January 1999)

"From the end of 1992, following the involvement of the Department of Humanitarian Affairs (DHA), OLS has developed into a form of safe area programme in South Sudan. In place of military protection, however,

access has depended on the vulnerability of the warring parties to international pressure. In the case of the GOS, this has largely been the wish to avoid punitive diplomatic action. For the opposition movements, the courting of international recognition has been central.

[...]

During the initial phase of OLS, emphasis was placed on a series of ad hoc arrangements that promised access to war-affected populations wherever they may be. From 1992, while agreements remained ambiguous, there has been a growing formality, and, significantly, a tendency to interpret access as relating to specific war-affected areas only. In other words, there has been a definitional shift in OLS from principle to geography. This has major implications for OLS's modus operandi.

[...]

From the end of 1992, the non-government areas of South Sudan emerged as a form of 'safe area'. While lacking military protection - for example, through UN Peacekeeping troops - a sophisticated security apparatus has nevertheless emerged which monitors the level of insecurity for humanitarian operations in the conflict zones. This monitoring has allowed for the development of a system of flexible access for humanitarian aid in the context of ongoing warfare." (Hendrie et al 1996, pp. 21, 22, 33)

The OLS review points to problems of access associated with government control of the OLS Northern Sector operations:

"[T]he scope of coverage of OLS Northern Sector is determined not by overall needs, but by negotiated agreements with the GOS which delimit the areas OLS can formally access. More specifically, needs assessments - which define the scope of OLS in any given year are limited to sites that have been agreed by the RRC [Relief and Rehabilitation Commission]. This has led to considerable unevenness in coverage; for example, war-displaced populations in Greater Khartoum were excluded from OLS needs assessments until 1994; at present, only those war-displaced living in GOS recognized displaced camps are included in OLS, while displaced living in unofficial settlements continue to be excluded.

[...]

In the case of the Nuba Mountains, WFP is using OLS resources to respond to needs in areas where the GOS has facilitated access, despite the fact that these areas have been systematically excluded from formal agreements, and despite on-going efforts by the UN to negotiate their inclusion [...].

Hence, government control over the scope of OLS needs assessments allows for the formal exclusion of certain sites from the framework of OLS agreements. At the same time, by extending access selectively outside the OLS framework, the GOS is de facto sidestepping the application of OLS principles, while still obtaining its resources. Moreover, in the case of the Nuba Mountains, efforts by the UNHCU to promote strict adherence to OLS principles were eclipsed by WFP and UNICEF's sense of obligation to respond operationally to urgent needs in the area [...]." (Hendrie et al 1996, pp. 89-90)

MSF similarly questions the influence given to the rebel movements in the OLS framework:

"The ultimate conclusion to be reached from the experience of this terrible famine [in Bahr el Ghazal in 1998] is that the OLS system, which has been in place for the past ten years, has become overly institutionalised and must be overhauled. Indeed, the inadequacies of the OLS framework significantly contributed to the inability of the humanitarian organisations to reach the most vulnerable because they were not permitted to carry out independent needs' assessments (including estimating population numbers), to control distributions or to conduct post-distribution monitoring. At the beginning of 1999 MSF therefore called for radical changes to the OLS and hopes that these will eventually be implemented." (MSF 23 December 1999)

"The difficulties that OLS 1 had experienced in late 1989 - such as relief trains not moving, barges remaining moored at the docks, and ICRC flights increasingly being curtailed-intensified in 1990. The government bombed OLS relief sites in the southern Sudan in September 1990. Some of the bombings occurred while UN and Red Cross planes and personnel were on site.

Each side in the war accused the UN of partiality toward the other. The government, alleging that OLS had violated Sudanese sovereignty by providing cover for military support for the insurgents, demanded tighter

operational controls and accountability. The SPLA, which claimed to control more of the south than it had at the beginning of OLS I, sought a larger proportion of the available relief supplies while resisting calls for increased accountability. At the beginning of 1991, the Sudanese government suspended indefinitely all OLS programs staged out of northern Sudan." (Ruiz 1998, pp. 148-149)

"From the end of 1992, there has been a significant expansion in the scope of OLS in the Southern Sector. The number and diversity of programmes has increased beyond the original concerns of food and health. Due to GOS restrictions and interfactional insecurity, since 1995 access has been steadily reduced." (Hendrie et al July 1996, p. 3)

See also "Accords reached between the UN, Government and SPLM about access and protection of aid workers (1999)"

To view the three Protocols signed between the UN, GOS and SPLM/A see annex V of CAP 2003 click here [External Link]

January 2002 ceasefire in the Nuba Mountains conducive to IDP returns (2004)

- 19th January 2002 Nuba cease-fire agreement between SPLA and GoS was signed
- The cease-fire in the Nuba Mountains was extended and the cease the Joint Military Commission (JMC)/Joint Monitoring Mission (JMM) reported no major violations in 2003
- GoS violates the 19 January cease-fire in the Nuba Mountains on the grounds the SPLM/A are hiding in public services buildings in 2002
- The UN, GOS and SPLM/A agreed to US Envoy's Days and Zones of Tranquility in 2001
- Zones of Peace to be established for risk-free humanitarian relief delivery, cost-effectiveness and improved trade networks

"The signing of the Cease Fire Agreement (CFA) in January 2002 by the GoS and the SPLM/A led to the cessation of hostilities in the region. It has allowed freedom of movement and improved access to assets and resources. The Agreement is monitored by a Joint Military Commission (JMC)/Joint Monitoring Mission (JMM) with the broader objectives of assisting in the disengagement and redeployment of combatants and facilitating the provision of humanitarian aid to the Nuba Mountains region [...].

The SPLM/A areas remained inaccessible to international humanitarian agencies prior to the signing of the cease-fire agreement in January 2002. It was not until May 2002, when the JMC became operational, that flights to the region actually started." (UNR/HC, Nuba SPLM/A, 30 June 2003, p.4)

"The Sudanese government and the Sudan Peoples Liberation Movement/Nuba (SPLM/Nuba) meanwhile formally agreed to renew the ceasefire for another six months on a fifth JMC/JMM mandate.

However the region's population had steadily reached 1.3 million as a result of the significant improvement in working conditions in terms of security wise and the free movement of the indigenous population in the Nuba Mountains." (DPA, 19 January 2004)

"The monitoring bodies said they had observed "no major violations of the ceasefire". " (IRIN, 25 June 2003)

"The ceasefire is being managed and monitored by a Joint Military Commission, comprising representatives from both the government and the SPLM/A and an international monitoring presence, including military and civilian staff.

The negotiated ceasefire, which came into force on 22 January 2002, curbed large-scale fighting in the Nuba Mountains and paved the way for large humanitarian operations, which helped avert what had been flagged as a potential famine looming in the region.

The region had been blocked to humanitarian access for over a decade by access denials - flying in the face of international humanitarian law - and intensive fighting.

[...]

Despite the success of the Nuba ceasefire, analysts have stressed that the humanitarian agreements signed could not be implemented without a clear framework for enforcement of the recommendations of the monitoring teams. Some sources have said the success of the agreement depends on sustained pressure being brought to bear by the US on the Sudanese government, which it still lists among the world's leading state sponsors of terrorism." (IRIN, 9 April 2003)

"Other positive outcomes of Senator Danforth's initiatives included the visit by the international Eminent Persons Abduction and Slavery Committee to Sudan, which made recommendations for action to eradicate abduction and forced servitude. Additionally, some progress was made with respect to Periods of Tranquillity. Since March 2002 the GoS has allowed the UN access to denied locations at the latter's own risk, but only for polio immunisation and surveillance." (UN, November 2002, p3-.4)

"But the bombardments continue, to Danforth's disappointment. The Khartoum government justifies the practice, saying the rebels, who are fighting for independence from the Islamist north, hide in hospitals, schools, and relief sites before launching attacks.

Tripartite agreement about monthly Days of Tranquility and Zones of Peace to be implemented in 2002

"The UN has proposed to both the GOS and the SPLM/A that they declare **Days of Tranquility** for four days early each month (the first Monday, Tuesday, Wednesday and Thursday) to facilitate access to war-affected areas and denied locations, primarily for polio surveillance. Both sides have agreed in principle, the GOS through HE the President of the Sudan directly to UNUSG Humanitarian Affairs Mr Kenzo Oshima on 10 September 2001, the SPLM/A in writing on 9 November 2001.

[...]

A related geographic-based concept which is currently being explored by the UN and its donor and other humanitarian partners for the Sudan, is that of **Zones of Peace**, whereby discrete areas straddling both GOS and SPLM/A-controlled adjoining territories would be identified and established for the risk-free delivery of humanitarian assistance to beneficiaries on both sides of the line.

A range of advantages would accrue, not least an enhancement of so-called cross-line activities, the consequent encouragement of confidence-building mechanisms, more cost-effective and equitable delivery of relief assistance, and even an improvement of trade links across dividing lines.

[...]

Cross-Line Movement: The UN is seeking to take a fresh look at the whole issue of cross-line movement of supplies, services and personnel, including with the development of the afore-mentioned Zones of Peace." (UN IAC December 2001, Item 4)

NATIONAL AND INTERNATIONAL RESPONSES

National response

National response to IDPs remains inadequate (2005)

Government response towards the plight of IDPs has been limited. Governmental structure of assistance to IDPs consisted of a Federal Ministry for Humanitarian Affairs (FMHA), created in 2003, to guide Governmental activities in support of protection and assistance for IDPs. The Humanitarian Aid Commission (HAC) based in the Ministry for International Cooperation, is the technical department created in 1995 that supervises disaster preparedness and management of IDP protection and assistance. It co-ordinates the work of line ministries, UN agencies, INGOs and NGOs, at both the national and state-levels. The HAC has established state-level offices responsible for registering, protecting and assisting IDPs. With the support of WFP it also established an early warning system. However, it focuses on natural phenomena rather than man-made risk factors. Sudan Minister for Foreign Affairs announced in 2002 that a department focusing on IDPs was to be established within Sudan's Humanitarian Aid Commission (HAC).

In the 1980s, the problem of internal displacement was a matter of concern to the government of Sudan. In 1986 a federal Ministry of Refugees, Displaced and Relief was established. Sudan adopted guidelines to address the problem of displacement through the Council of Ministers Decree No. 310 in 1988. In 1990, the GoS held the First National Conference on the Displaced, where it discussed causes of displacement and recommended to guarantee the rights and basic needs of IDPs, help them to return voluntarily, to relocate IDPs to secure and decent settlements and build reception centres and in the long term to resettle them in areas of origin (GOS, 10 February 1990).

In 1993, the federal ministry was dissolved and the responsibility for IDP relief was transferred to each individual hosting state. Due to the lack of services provided by local authorities in many states of Sudan, the provision of basic services has largely been delegated to NGOs during the past decades of war.

Institutions and Departments Antecedent to HAC:

The creation of FMHA in 2003, and HAC in 1995 was preceded by several administrative entities charged with managing IDPs affairs of in the Sudan, including:

“The Higher Committee for Relief, 1984, dissolved 1985

The Commission of Relief and Reconstruction, 1996;

The National Council for Internally Displaced People Affairs, January 1988;

The Ministry for Social Welfare, Planning, and Zakat Affairs, May 1988;

The Commission for Internally Displaced People, July 1988;

The ministry for Relief, Internally Displaced People & Refugee Affairs, 1989;

The Commission for Humanitarian Aid, 1993;

The Humanitarian Aid Commission, 1995;

The Ministry for Humanitarian Affairs, 2003” (GOS Ministry of Humanitarian Affairs, 2 September 2003, p.10)

Since the late 1980s, government policy towards IDPs emphasised local integration and/or resettlement. It was also reluctant to differentiate between war-displaced and host communities, arguing they were all in need. IDP camps were dismantled and “paired villages” next to existing villages were created in what was seen as an innovative response. For example, from the 1990s in South Darfur, IDPs were forcibly relocated into “peace villages” where government-held territory had expanded, often to consolidate their newly

established presence, like around Wau. The idea was to promote food self-sufficiency and reduce dependency on external assistance.

“Although settlement of war-displaced near their area of origin was an explicit objective of the 1989 OLS Plan of Action, “peace villages” involved the, physical separation of the war-displaced from other kinds of populations.” (Hendrie et al 1996, pp. 186-189)

In 1999, the Government and SPLM/A signed the ‘Principles Governing the Protection and Provision of Humanitarian Assistance to War-Affected Civilian Populations’, under the auspices of OLS. In the Principles, the parties agreed to guarantee “free and unimpeded access” to vulnerable populations, not to tax or divert aid from beneficiaries, to keep civilian populations safe from the effects of war and not to enforce illegal relocations of civilians (IRIN-CEA 20 December 1999)

At the ministerial conference on Internal Displacement in the IGAD Sub-region (Sept. 2003), the GoS presented an outline of its IDP policy. Overall goals included employment, equitable and sustainable development, promotion of peace, and national unity. Implementation of the IDP policy will be guided by national resolutions, decrees and international covenants ratified by the GOS. Short-term planned actions include reception, registration, provision of basic needs, and protection as well as assessment surveys. The mid-term measures include rehabilitation of infrastructure, training, income generation, and reconciliation activities. The long-term policies include resettlement and return, property rights, agricultural inputs. (GoS, 2 September 2003, pp.5, 8, 9)

Government response to IDPs has been ad hoc and lacks a human rights and protection focus. In (Sept.-Oct. 2002), the GoS held a national workshop on internally displaced persons, in order to review existing national policy and arrangements pertaining to IDPs adopted during the First National Conference on the Displaced in 1990. The government stressed that the causes and socio-economic consequences of displacement need to be monitored and analysed and information shared with the international community. Future objectives for IDPs included return to areas of origin, resettlement in ‘reasonable’ areas and local integration. Workshop participants recommended the establishment of an IDP Support Fund and to upgrade the HAC to a fully-fledged Federal Ministry responsible for supervision and coordination of the IDP programmes. GoS pledged to provide IDPs with legal and moral protection and seek the support of the international community to assist them. (Round Table Meeting, 19 November 2002)

All parties have identified the lack of a comprehensive and coherent national policy and strategy for dealing with the displacement crisis as a constraint to effective programming. A representative of the Humanitarian Aid Commission said to the Special Rapporteur of the Commission on Human Rights (Mr. Gerhart Baum) in 2003, that since the United Nations was working on the issue of IDPs through the Consolidated Appeal Process (CAP), the Government was no longer responsible for acting upon it. When he was reminded that primary responsibility for the protection of IDPs rests with the Government, as referred to in the Guiding Principles on Internal Displacement, a Government representative replied that the Government had not signed the Principles and that therefore they were not binding (UNCHR, 25 April 2003, p.7). The GOS has reiterated several times in the past that IDP policy was an internal matter of sovereign jurisdiction, and expressed concern about pressures being placed upon it to adopt the Guiding Principles on IDPs (Inter-Agency Mission, 5 August 2002). There is also a lack of clarity about who is an IDP, with some members of the Government reportedly holding the view that IDPs should be considered to be economic migrants. This hindered the development of a common humanitarian strategy and deterred donor funding for activities targeting IDPs. The lack of an IDP focal point within the Government has also been identified as a problem by the UNCT. (UNCHR 5 February 2002)

Following his visit to the Sudan in 1993, the Representative of the Secretary-General on internally displaced persons, Francis Deng, made recommendations aimed at improving the situation of internally displaced Sudanese. These were hardly implemented by the authorities. The UN has not taken any stronger measures to ensure these recommendations are implemented beyond the adoption of resolutions. (Ruiz 1998, p.158)

Response to IDPs by the SPLM/A

The Sudan Relief and Rehabilitation Association SRRA is the relief wing of the SPLM/A, the main rebel group in Sudan controlling the South of the country. The SRRA was established in 1985 to co-ordinate and facilitate humanitarian relief assistance and rehabilitation intervention in SPLM/A-controlled areas of Sudan. However, the organisation has been poorly funded and had had a low humanitarian impact as a result. (NPA January 1999, p.23)

In 2002, the SPLM/A participated in a training seminar on the Guiding Principles at which a draft IDP policy was submitted to the SPLM/A for their consideration. The IDP Protection Network for the South within the SRRA was also set up, to promote IDP protection, through advocacy and education. The Seminar aimed at raising awareness about IDP needs in SPLM/A controlled areas and increasing non-state actors' accountability to international humanitarian and human rights standards, and engaging non-state actors to assume their responsibility towards the protection of IDPs. It also aimed at supporting strategies to support mass return and reintegration of IDPs. (Brookings/etc, 25 November 2002, p.1, 11-13)

In 1995 Southern rebel forces signed a Ground Rules agreement with OLS, which brought together human rights and humanitarian law. The signatories undertake to observe the Convention on the Rights of the Child and the Geneva Conventions. The Ground Rules were according to Hendrie et al, a move towards making humanitarian aid conditional.

In 1998, the SPLM/A affirmed commitment to international Conventions on Human Rights, and in 1999 the Government and SPLM/A signed the 'Principles Governing the Protection and Provision of Humanitarian Assistance to War-Affected Civilian Populations' which bind SPLM/A (not a formal signatory to international treaties) to "customary human rights law".

The SPLM response to the return of IDPs

The Sudan Relief and Rehabilitation Commission (SRRC), the relief branch of the SPLM, appealed for \$866.7 million to donors, in order to assist the return and reintegration of IDPs during the first year following the peace agreement (9 January 2005). The pledge was to cover basic needs and services, transport, food, health, housing, food security and education of an estimated 4 million IDPs and 500,000 returning refugees, during all phases including relief, repatriation, reintegration, resettlement and rehabilitation. This donor appeal excluded infrastructure reconstruction such as of roads, as well as institutional capacity-building and broader economic activities. (SRRC, 1 January 2004)

Joint GoS/SPLM planned response

One of the first priorities of the Government of Sudan and SPLM/A for November 2004-June 2005, as put forward in their Joint Paper on "[Urgent Needs](#)" is the return and reintegration of IDPs. The priority needs for that sector include transport, food, shelter along routes of return, mine action, protection from abuse, communicable diseases including HIV/AIDS and community-based resettlement and reintegration, as well as road repair.

Coordination

Mechanisms to coordinate assistance to IDPs between the various national and international agencies (2005)

Operating in Sudan has posed formidable challenges to agencies on account of logistics, distances and scale. UN coordination in Sudan has been weak partly because most senior staff have been far removed from the operations at hand, commonly based in Khartoum, Nairobi and Lokichoggio. This situation is due to change with more senior staff in the field after the signing of the peace in early January 2005. There was also room for improving coordination between the UN and the government, which often met only when there was an issue of divergence to be resolved.

The Humanitarian/Relief Coordinator (HC/RC) is responsible for UN coordination and is the conduit to the coordination structures of the Government of the Sudan as well as opposition movements. The HC/RC is assisted by two deputies. The Deputy Humanitarian Coordinator for Southern Sudan is based out of Rumbek and Nairobi. He is also the UNICEF Chief of Operations for southern Sudan and is responsible for managing and coordinating the assistance effort in southern Sudan, and to liaise with the SPLM/A and new civil administration. The Deputy Humanitarian Coordinator for Northern Sudan is based in Khartoum and is also the WFP Representative and is responsible for the Darfur crisis. There is a network of UN-OCHA Field Coordination offices in key locations throughout Sudan, staffed by national officers.

The RC/HC oversees coordination of humanitarian activities relating to IDP policy and programming through a division of tasks between UNDP, OCHA, the IDD (Geneva), and several implementing partners. The RC/HC reports to the UN Emergency Relief Coordinator (ERC), Jan Egeland. On the political and peace building fronts, the UN Advance Mission in Sudan (UNAMIS) was set up in June 2004, headed by the Special Representative of the Secretary General for Sudan (SRSG), Jan Pronk, who reports to the UN Secretary General. UNAMIS is directed and supported by the Department of Peacekeeping Operations.

In view of anticipated challenges of supporting large-scale IDP return to areas of choice or origin upon signature of a peace agreement, the ORCHC sought to promote collaborative approaches between Sudanese authorities, the UN system (including IOM), the Red Crescent Movement and NGOs for effective and coordinated IDP programming. The ORCHC has been strengthened in 2003, with six new services: 1. The Area Coordination Service, to cover the full spectrum of humanitarian, recovery and development issues. 2. The Information and Public Communication Service including the Sudan Information Gateway website, designed to improve coordination and information-sharing. 3. The Joint Planning and Review Service, responsible for working with relevant stakeholders including Sudanese counterparts on the formulation of common plans for UN assistance, and CAP. 4. The Partnerships Development Service, providing an overview of the resources channelled to Sudan, advocacy for resource mobilisation and facilitation of missions. 5. The Operational Support Service and 6. A Security Coordination Service.

Coordination arrangements with donors, regional bodies, NGOs and Sudanese counterparts have also been streamlined and strengthened in 2003 to optimise the efficiency and effectiveness of the assistance community's support. Jointly with the two Sudanese parties, the UNCT has also established two Tripartite Working Groups on Access and Cross-line Activities, and Humanitarian Cooperation, chaired by the UN RC/HC, which meet at monthly intervals to follow-up on the TCHA process and ensure coordination on the ground. (UN, 18 November 2003, Vol.I, p.9-11)

A Joint Planning Mechanism (JPM) was also created in 2003, in order to enable the GoS and SPLM/A to jointly assess needs, develop priorities, and draw up action plans for implementation during the pre-interim period, on transitional recovery requirements capacity building and quick-start initiatives.

In 2003, OCHA undertook three additional tasks as requested by the UNCT and Inter-Agency Working Group on the Sudan (NY). It created an *Inter-agency Task Force on IDPs* focusing on IDPs, refugees, ex-combatants and residual and host populations. OCHA also recruited a senior IDP Adviser to ensure

effective joint and inter-agency planning of return and reintegration programmes for the displaced in Sudan.

OCHA fielded international *Field Coordination Support* Officers in 2003 to the southern sector to assist HAC and SRRA in establishing planning committees and to expand data collection (UN, November 2002, pp. 66-67)

In August 2002, an informal inter-departmental Working Group on Sudan was established in UN Headquarters, New York with representation from DPA, DPKO, OCHA, OHCHR, UNDP, WFP and UNICEF. The Group, in close collaboration with the UN Country Team (UNCT) and IDP Policy Unit, Geneva and under the guidance and leadership of the UN Resident/Humanitarian Coordinator, was tasked with undertaking immediate contingency planning for a ceasefire and peace agreement. Regular briefings by the SRSRG should inform the contingency planning process.

Operation Lifeline Sudan

In 1989 Operation Lifeline Sudan was launched as a large-scale relief operation to IDPs. OLS was a coordinated relief effort between UN agencies such as WFP, the United Nations Children's fund (UNICEF), the United Nations Development Programme (UNDP), and other international organizations, including the International Committee of the Red Cross (ICRC) and international NGOs. The number of OLS staff (UN and NGO) in the field in 2004 increased from an average 550 to 700 per day in SPLM/A areas—and is expected to increase further. The Government of Sudan and the SPLM agreed that OLS would have access to 'war-affected people irrespective of who controls the territory in which they are located.' and pledged to honour the safe corridors that would permit food aid to reach all those in need. (Ruiz 1998, pp. 146-147)

OLS activities in the Northern Sector are organised from Khartoum and fall within the management of the government of Sudan. The southern Sector pertains to most non-government areas in the South. Managed from Nairobi, it is a cross-border operation with a main logistical base at Lokichokio in northern Kenya. UNICEF is the lead agency for the south and coordinates UN and NGO activities. UNICEF also handles logistics from Lokichokio. (Hendrie et al July 1996, p. 3)

As of 2002, OLS was a “consortium of five UN agencies and 41 humanitarian NGOs (international and indigenous) with a budget of roughly U.S.\$150 million, OLS currently provides humanitarian assistance to some 2.5 million people in southern Sudan as well as to camps for internally displaced persons (IDP) in Khartoum. [...] It was the first UN program to rely on negotiated access with the primary warring parties to provide relief assistance to war-affected populations within a sovereign country.” (ICG, 14 November 2002, p8)

Some agencies have pointed out that the “collaborative approach” to respond to IDPs could be improved by having a humanitarian coordinator present in southern Sudan as well as an IDP focal point within OLS (Brookings/etc, 25 November 2002). Coordination between agencies working in GoS controlled areas and SPLM/A controlled areas has been weak, sometimes even within the same agency. Some NGOs pointed out that policies on the internally displaced developed by the Government of Sudan and the SPLM/A should be cohesive with each other. Regrettably, some NGOs had refused to cooperate with SPLM/A's IDP policies because it was a non-state actor.

International response

2005 Work Plan for the Sudan outlines the intended UN and Partners response

The Work Plan for the Sudan sets out 5 strategic priorities for 2005:

1. Promote and support the protection and stabilisation of populations in areas of conflict and natural disasters, through the provision of humanitarian assistance.
2. Support the search for, and implementation of, a comprehensive peace agreement for Sudan, including through the promotion of reconciliation, confidence building and support for good governance.
3. Increase the access of host communities and deprived populations to basic services and sustainable livelihood opportunities; to reduce dependency on humanitarian aid and the likelihood of conflict over resources.
4. Support the promotion and protection of human rights and the rule of law.
5. Support the return and reintegration of refugees and the displaced, including by providing protection along routes of return and supporting livelihood recovery.

The 2005 Work Plan outlines the strategic and operational plan of the United Nations and its partners, and presents 304 projects to be implemented by 49 agencies and non-governmental organisations. Most projects in the CAP 2005 will target the health sector (84%), followed by the protection sector (33%), the rule of law and governance (32%) and food (30%). 145 humanitarian projects include life saving and protection support for 2.5 million conflict and drought affected people in Darfur; mitigation of the 2004 crop failure in the south, west and east; mine surveying, clearance and capacity building; and stabilisation of other conflict affected or threatened areas.

About 159 projects fall under recovery or development, which include support to the return and reintegration of up to 1.2 million IDPs and refugees to southern Sudan; area based recovery of war-affected communities including support to livelihoods and basic social services; support to the peace process through programmes for reconciliation and the promotion of good governance and the rule of law; recovery/conflict prevention package in eastern Sudan, addressing chronic food insecurity and 30% child malnutrition; preparation for a Disarmament Demobilisation and Reintegration (DDR) programme linked to the peace process and rehabilitation of transport infrastructure.

Humanitarian needs remain high and are likely to increase above 2004 levels as a result of expected deterioration of the security situation in Darfur, continued conflict in the Upper Nile area, prolonged displacement and crop failure. Sudan as a whole continues to suffer from widespread poverty and inequitable development. In 2005, the United Nations and its partners require a total of US\$ 1.48 billion. Of this amount, nearly US\$ 720 million is required to provide and distribute food aid. While the need for food assistance is high, particularly in conflict and drought affected areas, the costs of transporting food assistance in Sudan are also substantial given the poor quality of the road, rail and river transport network. WFP will invest in infrastructure repairs in 2005, in order to reduce transport costs of food and other forms of aid by up to 70%.

The 2005 Work Plan for Sudan is a transitional plan focused on reinforcing progress towards peace and responding to the humanitarian needs of millions of people. It will complement the work of the UN Advanced Mission in Sudan (UNAMIS) and fall under the overall responsibility of the Special Representative of the Secretary-General (SRSG). Depending on the terms of the peace agreement, and Security Council resolutions, UNAMIS will “carry out activities such as peacekeeping, civil affairs, electoral assistance, police, and rule of law, human rights, protection, DDR, Good Offices and political support. The SRSG has overall responsibility for all UN activities in Sudan, and is supported by two Deputy Special Representatives of the Secretary General (DSRSG), one of whom also serves as Resident/Humanitarian Coordinator (RC/HC).” (UN, 30 November 2004, p.6)

At national level, the UN will focus on four main areas:“(a) build the capacity of national authorities and communities to support peace implementation, including for DDR, the national census, improved aid coordination and dealing with mines and explosive remnants of war; (b) rehabilitate key segments of the road, rail and river network to support return movements, increase access to services and markets, and reduce the cost of aid delivery; (c) conduct emergency surveys, marking and clearance of mines and explosive remnants of war to support livelihoods and returns; and (d) facilitate return and reintegration

through various support services such as information to internally displaced persons (IDPs), movement tracking, and provision of security.” (UN, 30 November 2004, p.8)

The Work Plan focuses on projects that must be implemented immediately, and is complementary to projects that will be developed under the Joint Assessment Mission (JAM). The JAM is led by the WB and UNDP and has begun work in both the North and South of Sudan, organized around eight main clusters. It is managed by a Core Coordinating Group (CCG) comprising representatives from the GoS and the SPLM, as well as representatives of the UN system, the World Bank, the IPF and IGAD. The CCG is assisted by two JAM Core Teams covering GoS and SPLM areas. The JAM will assess the rehabilitation and transitional recovery needs, set up developmental priorities and targets, informed by the MDGs, for the six year ‘interim period’. Financial gaps, to be funded by donors bilaterally or through the Multi-Donor Trust Fund, will be identified through the assessments, and will be presented at an international donor conference in Norway.

JAM priorities during phase I (2 first years after the signing of the peace agreement, that is until 2007) are as follows:

1. to support and protect voluntary return/repatriation of displaced populations
2. to ensure that displaced populations that return or resettle and their receiving communities have access to minimum agreed- upon standards of social services and economic opportunities, security and rights;
3. to ensure that displaced populations that choose local integration and their host communities have access to minimum agreed-upon standards of services and economic opportunities, security and rights;
4. to provide a safety net for those vulnerable groups who have slipped through traditional social protection networks either in communities from which displaced area moving, en route, or in communities of settlement;
5. to set the stage for sustainable and longer-term development through support to reconciliation, peace-building and strengthening social capital in Sudan. (JAM, 25 January 2005)

Response in Southern Sudan

In Southern Sudan the UN will focus support on two main areas: “The continued provision of humanitarian aid wherever it is needed. Second, support for the implementation of a comprehensive peace agreement. This will include support to the return and reintegration of displaced Sudanese into their communities and capacity building of the civil administration and civil society to establish the basic conditions for good governance and the rule of law.” (UN, 30 November 2004, p.8) Crucial to an improvement in the security situation and to long-term recovery will be the establishment of the rule of law and a legitimate and accountable government. This will include support to future GoS institutions and to the establishment of states and counties.

“Support [for return and reintegration] is premised on two basic principles: i) the right to return in safety and dignity based on a free and informed choice; and ii) the right to choose the destination of return. Additionally, it has been agreed that all programmes of support to reintegration and recovery be community based, benefiting equally those who left and those who stayed, according to needs. This is in line with SPLM/A policy, as all believe that it would be both unjust and likely to provoke conflict if, in situations of acute poverty, only returnees received assistance.

[...]

Of the total southern sector requirements of US\$ 557 million, US\$ 340 million is for food aid. [...] Yet southern Sudan is rich in natural resources and ought to be able to feed itself.

[...]

The promotion and protection of human rights of the population must be of paramount importance to all agencies working in southern Sudan in 2005. [...] The presence of monitors, both local and international must be visible to encourage transparency and safety from violations. Specialist agencies working with, among others; separated children, sexually abused women, forced returns, female and child headed

households, and children returning from armed forces need to scale up their programming radically to have professional competence in all affected areas.” (UN, 30 November 2004, p.45, 46)

Protection from rights abuses of returning populations and monitoring and reporting of violation will be a challenge to the UN and NGOs as they do not have freedom of movement between government held towns in the south and SPLM/A territory and vice versa.

Response in other areas

In Transitional Areas (Abyei, Blue Nile state and Nuba Mountains), the United Nations will continue to contribute to peace and confidence building through activities such as the Nuba Mountains Programme for Advancing Conflict Transformation, in and between the GoS- and SPLM/A-controlled areas, using humanitarian and development assistance to help meet immediate and recovery needs.

In addition the presence or fear of mines continues to be an obstacle to productive use of land in some areas. A significant level of food and food-related assistance is still needed in many areas.

In view of potential escalation of tensions in eastern Sudan as a result of severe poverty, drought, and the growing possibility of oil extraction, the UNCT will prepare a contingency plan for the region. It will also monitor the situation and increase its presence in the region.

Return assistance to IDPs (2005)

IDPs and refugees attempting to return home will continue to be exposed to risk unless protection is provided. In the absence of effective measures to implement peace agreements, and sufficient basic services in return areas, it is assumed that the numbers of IDPs and refugees attempting to return home will remain in the hundreds of thousands, rather than in the millions. These return flows are likely to cause inter-communal tensions.

Increasing the capacity of the SPLM/A to implement the peace agreement will be a critical component of the peace process, to allow for the provision of basic services, and to properly manage the inflow of Sudanese and international responses. Government of Sudan capacity building will also be required, particularly in areas such as demobilisation, disarmament and reintegration, IDP returns, social services and oil funds management, and more generally in the provinces. The GoS-SPLM/A produced a joint *Urgent Needs in Sudan, October 2004-June 2005* document, which lays out the core issues to be dealt in priority after the signing of the peace agreement. Return and reintegration was highlighted as one of these core issues.

In order “to assist the GoS and the SPLM/A prepare for the voluntary and safe return of Sudanese refugees and IDPs, an inter-agency Sustainable Returns Team was established. This led to the agreement of common principles on and a common approach to the return and reintegration process. The UNCT has also agreed with the GoS and the SPLM/A on a joint mechanism for tracking return movements and work has begun on its implementation. Much remains to be done, however, in properly resourcing, planning and supporting the return process.” (UN, 30 November 2004, p.14)

“In late 2004, the representatives of the GoS and the SPLM/A agreed on common principles and a common approach to address the demands of returns and reintegration. In 2005, the United Nations will build on this to support the return of those who wish to go home. An information campaign will provide facts on conditions in areas of return and along the principal routes in an environment free of coercion, pressure, enticement or any other measure to unduly influence decision making on whether to return. During return movement, emergency food, basic healthcare and water will be provided.” (UN, 30 November 2004, p.46)

WFP will invest in infrastructure repairs in 2005. This will facilitate the return of IDPs and refugees and increase the populations' access to services and markets.

UNHCR response to IDPs in areas of refugee return

After ten years of absence, UNHCR re-opened an office in Juba in 2003. It appealed for \$US 8,868,000 through the Sudan Supplementary Appeal for 2004.

According to the scenario used in the 2003 CAP for Sudan, 1.5 million IDPs may return to their places of origin following a successful peace agreement. UNHCR plans to assist some 80,000 displaced persons, whose areas of return are the same as the refugees. During 2004, UNHCR planned to assist an estimated 110,000 returning refugees, from five countries in the region, or about 20 per cent of the estimated population of 570,000 Sudanese refugees. UNHCR will operate within the context of the 4Rs initiative (Repatriation, Reintegration, Rehabilitation and Reconstruction) focusing on short-term reintegration assistance for returning refugees, IDPs and host communities complemented by medium and long-term development.

The Sudan operation poses formidable challenges in terms of scale, logistics, and the magnitude of destruction, as many areas have no infrastructure, roads, schools, health services or water. IDPs will be competing with returning refugees, and those who have remained who have similar needs. Therefore, repatriation and reintegration programmes should cater for the needs of IDPs, host communities, and returning refugees, and be implemented in close partnership and collaboration with agencies dealing with post-conflict recovery issues. (UNHCR, 24 November 2003, p.1, 2, 5, 6, 9)

“192. Given the need for a strong injection of qualified protection staff in the field, all actors should seek to strengthen or establish a protection capacity in their overall program through recruitment and training. [...]

197. While recognizing the added value of all actors involved in protection, it has been suggested by the HC/RC and OCHA that UNHCR be appointed as the Resource/Support Agency, given its institutionalized expertise in protection and long-standing experience of population movements, including IDP return. UNHCR has an unparalleled institutional capacity and the human resources required to establish an adequate field presence, provide operational support and offer technical advice on the return and reintegration of displaced.

198. Furthermore, UNHCR's multi-sectoral capacity and 4Rs Framework will enhance stronger protection linkages to major sectors, ensuring a smoother transition from relief to development. It will also help build stronger relationships with non-protection actors, and long-term capacity-building agencies. Since UNHCR has built a credibility of supporting NGOs in promoting protection, both at policy and at field-level, the agency will be well placed to strengthen not only interaction and information sharing between the UNCT and NGOs, but also to ensure that NGOs are involved at the policy-making level.” (IRC, 1 May 2004, p.52-54)

IOM selective assistance to “qualified” categories of IDPs

IOM planned in 2004 to assist about 100,000 “qualified” IDPs to return and re-integrate, together with OCHA. IDPs qualifying for IOM assistance will be selected if they fulfil the criteria of “skilled” and/or belonging to “vulnerable groups”. Out of the estimated 2 million IDPs expected to return only about (5%) or about 100,000 are expected to meet these criteria. Only these IDPs will be registered and entitled to return transport assistance. Phase one will be planning for return through assessment needs within return communities as well as information campaigns. The second phase will focus on capacity-building, community rehabilitation, and QIPs. IOM programmes will also seek to improve HIV/AIDS awareness and training as well as mines/UXOs awareness. (UN, 18 November 2003, Vol.II, pp.53-5)

Response gaps in the protection of returning IDPs (2004)

- It is essential to ensure that IDPs are able to make free and informed choices, that the roads of return are de-mined and that security coverage exists
- No transportation is envisaged for IDPs other than “especially vulnerable” and “skilled” this risk to deter returns
- Main reasons given are the presumable unwillingness of donors to fund transportation, logistical problems and fear to “encourage” returns when insecurity prevails
- The lack of transportation will expose IDPs to abuses
- These morally disturbing categories will lead to family separation and could be seen as unethical when returning refugees will be transported back
- IDPs will have to cross by foot an area half the size of Europe, as most cannot afford to pay \$200 out of their \$16 salary for transport
- While spontaneous returns have been ongoing for the past 2 years, there is no institutionalised and systematic registration of returning IDPs for protection or assistance nor at departure points nor in arrival areas despite requests for registration from IDPs
- While return kits are planned for returning refugees none are planned for IDPs as some are concerned that assistance could be abused
- IRC stresses the need to register IDPs and monitor areas of departure, en route and arrivals not only to prevent abuses of humanitarian assistance but most importantly to protect IDPs
- IRC argues that return kits would help IDPs who resettle in deserted areas to be self-sufficient or to contribute with assets in areas where they resettle along local communities
- The Sustainable Returns Team (SRT) should strengthen monitoring of returnees by assisting the HAC and SRRC to establish Joint Operations Centres in Rumbek and Khartoum

"4. A number of actors involved in the North-South operation have sought to meet the existing protection needs and gaps. However, the militarized environment and restrictive policies regarding freedom of movement (FOM) have not just stifled, but have prevented any substantive protection activities or strategy in the *location of displacement* in Sudan. As a result, numerous protection problems common to many displaced persons have been left unattended.

[...]

18. When a peace agreement is signed and conditions are conducive to return, a more organized return program will be put in place. Although population movements are generally difficult to control, every effort must be made to facilitate a large-scale return that is as orderly as possible. In this regard, it will be essential to ensure that the displaced are in a position to make free and informed choices; that the roads of return are de-mined and accessible; and, that a degree of security coverage exists.

[...]

34. While spontaneous return is sometimes encouraged, the current conditions in the South are not conducive to return, and, thus, return should not be actively promoted. In this vein, the UN Emergency Program Plan does not envisage assisted transport during the current phase of return, other than to those who find themselves stranded or in distress.

35. However, it is anticipated that this policy will remain also during the phase of *organized* return (following the peace agreement and the establishment of conditions conducive to return), whereby only “especially vulnerable” and “skilled” returnees will be provided with transport. In support of this position, it is argued that assisted transport will cause logistical problems, and will (presumably) not be funded by donors. It has even been said that assisted transport should not be provided since it would ‘encourage’ large-scale return.

36. The issue of transport during organized return is a cause of concern to IDPs who vocally express their disappointment: “You ask me if I have \$200 to pay for transport. I ask you what is the duty of the authorities and the international community?!” The categorization of “especially vulnerable” and “skilled” returnees is a particularly sensitive matter that stirs lengthy moral discussions: “We are all vulnerable. Whoever thinks that we can walk from Khartoum to Juba in dignity should step in our shoes and walk with us.”

37. Sadly, some humanitarian actors tend to dismiss the genuine concerns of the IDPs as “unrealistic expectations”. Indeed, it is unreasonable to expect IDPs to produce \$200 out of a \$16/months salary that does not even cover daily survival (without selling off whatever valuables they have remaining or resorting to prostitution or crime?). Nor is it advisable to “keep [returnees] moving as quickly as possible” in punishing heat across a nation half the size of Europe. [...] Most tragic is the perception that such planning assumptions in any way would be consistent with protection principles on “safe and dignified return” or with the spirit and letter of the Guiding Principles. [...]

38. Similarly, the selection of “especially vulnerable individuals” out of a generally vulnerable population seems risky. It is never as important to keep families together as during the phase of return. The separation of families, care-takers and healthy heads of households might have severe implications on reintegration, since vulnerable groups need the support of their wider community to reintegrate, and thus cannot afford to arrive six months in advance on their own.

39. Furthermore, the gap between the displaced expectations of transport and the position of the humanitarian community may impact the IDP’ ability to make free choices. In fact, Southerners believe that the lack of assisted transport will discourage the return of IDPs, who would otherwise opt to return if they had the means to do so. The different principles of return applied to refugees and IDPs, and among IDPs, if promoted by the international community, could also be seen as an unfair and unethical policy that does not ensure equal and fair treatment for all returnees.

[...]

41. According to IDPs in Khartoum, the local municipality is conducting registration in the camps, claiming that the registration is intended for organized transport following the peace agreement. Reportedly, the IDPs are asked as to whether they want to return, their political affiliation and whether they intend to stay in the South or cross between South and North. Given the nature of the questions, especially those enquiring about political associations, the IDPs are, however, wary and some refuse to register.

[...]

45. Given the sense of insecurity experienced by IDPs in camps in the North, and the concerns related to safe passage, IDPs have expressed a wish to be registered by international organizations before returning: “You need to register us before we depart. You need to know how many we are and how many arrive. Otherwise, if we die on route, you won’t even know.”

46. Without passing judgment on the validity of these concerns, registration of refugees and IDPs is an essential instrument for protection and for the identification of durable solutions. This includes protection against forcible or involuntary returns, protection of access to basic rights, family reunification and the identification of displaced persons in need of special assistance, as well as a means to enable quantification and assessment of needs. As such, all displaced should be registered prior to their departure.

[...]

52. While refugees will be provided with basic kits before their departure, there are no plans to distribute starter kits to returning IDPs. [...] Some argue that distribution of kits will lead to abuse by locals, who may be tempted to cross back-and-forth to pick up returnee packages. Although this concern is valid, it should not lead to the dismissal of basic kits for returnees, but should rather serve as an additional argument for the need to establish systematic registration and monitoring of “departees” and arrivals.

[...]

54. It is indeed understandable that the bulk of assistance and development should be community-based and target receiving communities. However, this should not exclude consideration for the specific needs of

returnees. The provision of arrival kits would not only enable returnees to settle in deserted or previously non-inhabited areas, but would also empower them to return in dignity to their own impoverished communities - arriving as someone who contributes, rather than someone in need.

[...]

61. In an effort to strengthen the monitoring of returnees through system- and nation-wide coordination, the Sustainable Returns Team (SRT), including the Area Coordinators' network, was established in 2003. Currently, the SRT is in the process of assisting HAC and SRRC to establish Joint Operations Centres in Rumbek and Khartoum. The Joint Operation Centres will facilitate humanitarian intervention, restoration of services, link relief to development and measure impact and progress. At the county level, agency focal points, supported by a Joint Rapid Response Team, will be designated to link to the Area Coordinators' network with respect to needs assessment, monitoring, and implementation of activities.

[...]

168. Furthermore, at present there is no institutionalized registration of IDPs or returnees for the purpose of assistance or protection. Returnees arriving from the North and IDPs arriving in garrison towns as a result of ongoing fighting (e.g. Malakal) are registered on a very irregular basis, if at all. Although HAC and the SPLM/SRRC oversee some registration of IDPs and returnees, they lack adequate training and capacity, and/or tend to inflate the figures. Thus, there is a need for more systematic monitoring of movements, including registration." (IRC, 1 May 2004, p. 3-17, 46)

Response to the Darfur Complex Humanitarian Emergency (2003-2005)

In October 2004, the UN CT agreed upon an overall protection strategy for Darfur, identifying five priority-areas: protection of civilians in displaced camps and outside camps, sexual and gender based violence, involuntary returns and relocations, and child protection (IASC, 27 October 2004). Several inter-agency protection working groups (on Child protection or SGBV) were set up in Khartoum and Darfur, to collect information, monitor returns and follow up cases of abuses. However, a clear protection leadership and coherent strategy to monitor returns were still lacking in North and South Darfur where UN agencies with a protection expertise had limited presence (HRW, 15 November 2004). IOM and OCHA have not been able to adequately fulfil their coordination roles in these two regions, leaving serious gaps in the areas of protection and IDP camp management (UN, 3 March 2005). At the initiative of OCHA, "lead agencies" among international NGOs and ICRC were appointed to coordinate 27 IDP locations, leaving about 600,000 displaced people without a clearly identified camp/area coordinator, by end of 2004 (UN RC 25 January 2005; UN, 3 March 2005).

Despite a significant increase of field staff, the number of war-affected civilians has increased at a rate which outpaced the ability of aid agencies to provide for their basic needs: from one million in June to an unprecedented total of 2.4 million by the end of 2004, of which 1.84 million were IDPs (UN H/RC, 1 January 2005).

"Despite its shortcomings and limitations due to increasing insecurity, the humanitarian response continues to improve. Food distribution reached 1.48 million people [in December 2004], some 140,000 more than the previous month. Shelter and non-food items were provided to 73% of the IDP population while 56% were covered by sanitation activities. Of the total affected population, 49% had access to clean water, 62% to primary health facilities and 54% to secondary health facilities. Of major concern is the observation of the first signs of food shortages amongst the general population, expected after the failure of the 2004 harvest season.

[...]

Agencies have embarked on several additional initiatives to attempt to improve the quality of the operations during 2005, compiled in a 120 -day plan covering the period between January and April 2005. The main initiatives would consist of (a) strengthening assessment, analysis and the identification of gaps; (b) finalizing agreements on the coordination of the 40 most volatile IDP gatherings in Darfur; (c) encouraging regular surveys and assessments to better assess the quality of interventions; (d) supporting efforts to

improve IDP registration; and (e) making use of and participating in the recently revised protection structure and the MCM [management and coordination] mechanisms through monitoring, reporting of incidents and profiling of IDPs.

[...]

As of 1 January 2005, food was delivered to 1.48 million (62%) of the total 2.4 million affected population, an increase in the number of beneficiaries by over 140,000 compared to last month.

[...]

In 2004, 95% of the targeted IDPs, or 1.4 million people (311,000 households) had received plastic sheeting and blankets.

[...]

As of 1 January 2005, 1.2 million conflict-affected persons (49% of the total affected population) in Darfur have benefited from improved access to safe water and one million IDP's (56% of the total IDP population) have access to sanitation activities through the efforts of various NGOs, NWC/WES and UNICEF since May 2004.

[...]

Increased insecurity in the region and equipment problems were major constraints to the success of the water well drilling programme over the past four months.

[...]

The agriculture sector received only 16% of its funding requirements through the end of 2004. Most significantly, insufficient funds have yet been mobilized to establish emergency response capacity seed stocks in preparation for the main 2005 planting season in May/June.

[...]

As the region faces a seed shortage, rising prices of inputs and huge needs in 2005 (with more than 465 000 HHs requiring assistance), procurement and pre-positioning for the targeted 272 000 HHs must begin now. Support to saving the livestock assets of IDPs (donkeys and shoats) must also begin now with the start of the dry "dead" season and hunger gap and in view of increasing competition for drought-diminished water resources between humans and their livestock assets. Water point rehabilitation outside urban centres, fodder delivery and veterinary interventions in both camps and villages must be implemented.

The concentration of humanitarian assistance on IDPs in camps, although justified, is increasing tensions between those assisted and those affected residents and host communities that are not receiving assistance. Consequently, IDP camps and towns will experience an influx of, this time, drought- and "crop failure"-affected households into IDP camps and urban centres in search of food, water and health care during the dry season/hunger gap. Similarly, this antagonism will lead to increased food distribution disruptions and acts of banditry against food convoys during the hunger gap period. More balanced targeting and donor contributions that support host communities and drought-affected residents (in addition to IDPs) are crucial." (UN R/HC, 1 January 2005)

Humanitarian needs were not adequately met in Darfur until mid-2004 owing to insecurity and lack of human and financial resources on the ground. A total of \$1.14 billion has been pledged for Darfur since September 2003 (UN R/HC, 1 January 2005). But it is only in the final third of the year that funds became available (UN RC, 25 January 2005). The food sector was the best funded in 2004, amounting for 35 per cent of the funds received, benefiting some 62 per cent of 2.4 million people by January 2005 (UN R/HC, 1 January 2005). WFP had received over half of the \$438 million appealed to feed 2.8 million people in Darfur for 2005, by February 2005 (IRIN, 24 February 2005). Nevertheless, WFP warned that there was a large shortfall in non-cereal food items and that it needed to preposition food stocks before the rainy season in July, as huge areas would become inaccessible by road.

By contrast, the agricultural sector was the least funded (16%) with close to half a million households in need of seeds for 2005. Most of the displaced are subsistence farmers and there was a near total crop failure in 2004, with a reduction of planted areas to up to 90 percent among IDPs (UN, 30 November 2004, p.99).

"Roughly one third of the entire population of Darfur has been affected by the conflict, which began in February 2003. As of 1 October 2004, 1.6 million people were displaced within Darfur, 200,000 Darfur

refugees had fled to Chad and 420,000 other civilians were affected either directly or indirectly by the conflict. [...] In 2005, these numbers are expected to rise to 2.5 million people due to continued violence and displacement, increased pressures on host communities, and severe crop failure.” (UN, 30 November 2004, p.98)

“This number includes people displaced from their homes by conflict; host communities whose coping mechanisms, resources and basic services are under extreme stress, and those whose crops have failed during the latest planting season. While the operating environment in Darfur continues to present formidable challenges, it is felt that with initial capacity and logistics more or less in place, the humanitarian community in 2005 should focus more on improving the quality and targeting of assistance and expanding its presence to currently under-served areas.” (UN, 30 November 2004, p.8) Protection of civilians will be strengthened in Darfur through a “protection by presence” approach, however this is no substitute for concrete measures to end impunity, and it cannot alone build an environment conducive to the respect of human rights and protection. Agencies are in a process to implement an inter-agency protection strategy, restructuring the inter-agency Protection Working Group in Khartoum, and strengthening the protection working groups in the field by deploying qualified staff.

The UN launched the **Greater Darfur Special Initiative** worth \$US 22.8 million in September 2003 to respond to the crisis which had exploded in Western Sudan in February 2003. The overall aim of the fast-track programme was to meet urgent human survival and welfare needs of IDPs, refugees and host communities and to help consolidate peace. Most of the appealed funds were received as of March 2004. However, most of it could not be used because continued insecurity had prevented humanitarian operations. The Initiative also aimed to expand UN and NGO presence on the ground to carry needs assessments and start delivering relief (UN R/HC, 15 September 2003, pp.1-4)

The Greater Darfur Region covers 510,888 sq. km. representing one fifth of Sudan’s geography. It also has approx. 20% of the country’s population, at about 6.77 million (1993 census). At the time of the launch of the Greater Darfur Special Initiative, there were about 400,000 IDPs within Darfur and up to 70,000 refugees in neighbouring Chad.

The response to Darfur was slow and late. During the first year and a half it received little international attention. This was due to a combination of ongoing insecurity, government of Sudan restricting access and the lack of resources, which prevented agencies from setting up operations. Some also argued that it was due to the reluctance of some humanitarian workers to threaten the north-south peace process and funding for post-conflict development activities (IRIN, 31 December 2003). March 2004 marked a turning point as international attention increasingly shifted to Darfur. Sustained pressure on the GoS by the international community resulted in considerable easing of access restrictions, and a commensurate increase in humanitarian agencies engaged in the relief effort.

International attention and sustained pressure on the government of Sudan eased access restrictions. There was massive lobbying and advocacy done by the Office of the UN R/HC, the UN Secretary-General, the UN Security Council, NGOs and governments to improve protection of displaced persons, mobilise assistance to the war-affected populations and for the government of Sudan to demobilise their militias, stop targeting civilians, stop forced returns and relocations and allow unimpeded access to humanitarian and rights agencies. However the crisis has escalated while the humanitarian situation has deteriorated and the number of uprooted people has more than doubled between 2004 and 2005.

Darfur is the region for which the largest amount of funds has been pledged of all Sudan (42%) for 2005. In March 2004, in response to the rapidly worsening humanitarian situation in Darfur, the UNCT revised its 2004 appeal, and mobilised considerable human and financial resources for Darfur. By September 2004, over 60 NGOs and around 5,000 national and 700 international staff were working in Darfur; and as of early November, close to 80% of the financial requirements for Darfur were met. The UNCT published the *90-day Humanitarian Action Plan for Darfur* in June 2004 in order to respond to the needs of at least 90% of the then IDP population. By October, relief was being delivered to between 50% and 70% of the

conflict-affected population. However, as of September, the security situation for aid workers has deteriorated and is affecting the provision of aid. The increase in the number of beneficiaries was also the result of the availability of life-sustaining goods and services such as food or water, which most Darfur residents had been unable to access due to years of drought and warfare. This created a pull-factor as insecurity and the lack of resources prevented agencies from delivering support in areas of origin.

In spite of the Ceasefire Agreement and the multiple agreements entered into between the GoS and the UN, and notwithstanding international attention and pressure, ceasefire violations, as well as attacks against civilians and humanitarian aid workers are on the rise and make the provision of humanitarian assistance more difficult. The outlook for 2005 remains very poor and the increases in assistance have not been enough to keep up with the increase in needs. The aim in 2005 will be to deliver the greatest number of services to the greatest number of people in the most locations possible. The provision of humanitarian assistance outside IDP camps is also considered critical to avoid creating pull factors for people to migrate to or remain in camps where they are dependent on aid rather than to remain on their land.

“A Letter of Understanding (LOU) on the voluntary return of IDPs to and within West Darfur was signed on 31 January 2005 by UNHCR and the GoS’s Humanitarian Aid Commission (HAC). The LOU, which raises protection standards, supersedes previous agreements with respect to voluntary return and relocation in West Darfur and allows UNHCR to assume full responsibility for protection issues in West Darfur, as requested by the Secretary General in October 2004” (UN RC, 15 February 2005). UNHCR is currently expanding its presence in West Darfur.

Response on returns, forced returns and relocations in Darfur

Several mechanisms have been put in place to address protection gaps, with mixed results. While IOM was mandated by the UN and the government of Sudan to “oversee and assist in the voluntary return of displaced persons” in August 2004, there were persistent reports of IDPs being forcibly relocated and returned against their will by the authorities, in spite of their stated fear and prevailing insecurity (HRW, 15 November 2004; RI, 10 November 2004; GoS, IOM, UN, 21 August 2004). While a protracted and overcrowded camp situation is not in the interest of the people of Darfur, population movements must be strictly voluntary and the security conditions in the region are clearly not conducive to a safe, voluntary and dignified return (Principle 28). Despite the fact that the UN clearly states in the 2005 appeal that the escalation of insecurity and increasing displacement will certainly not be conducive to voluntary returns in safety and dignity during 2005, return nevertheless appears as one of the four strategic goals of the UNCT for Darfur in 2005:

“STRATEGY FOR 2005

While the provision of life-saving assistance will continue to be a priority in 2005 and provided at roughly the same levels, for greater numbers of people, there will be a shift to a more strategic focus in four areas:

1. Strengthening the human rights and humanitarian protection framework,
2. Ensuring the voluntariness of returns in safety and dignity,
3. Improving the quality and targeting of aid, and
4. Increasing cost-effectiveness of programmes through the use of common services. “(UN, 30 November 2004, p.100)

“The threat of involuntary return and relocation is real and ongoing, despite a 21 August Memorandum of Understanding signed between the GoS and the IOM on voluntary returns.” (UN, 30 November 2004, p.99)

Following an agreement between the International Organization for Migration (IOM) and the GoS, in August 2004, the UNCT has supported the establishment of a coordination mechanism to oversee the return of IDPs in Darfur despite rising insecurity.

“With ongoing insecurity and increasing displacement, large-scale returns are not anticipated in 2005. There are currently some isolated incidences of returns. The majority, however, are not staying, citing ongoing security concerns. To the extent that returns are expected in 2005, it is assumed that the numbers will not exceed 100,000 people. The returns process will be governed by the 21 August MOU signed between the GoS and the IOM and through a Management Coordination Mechanism (MCM). The MCM is tasked with reviewing the voluntariness and appropriateness of returns and relocations. IOM is responsible for the returns process in North and South Darfur; UNHCR in West Darfur.” (UN, 30 November 2004, p.100)

“At the moment, there is no coherent strategy agreed upon among the various international actors for facilitating and monitoring returns. The role of the International Organization for Migration (IOM), which was initially highlighted in a U.N. –Government of Sudan agreement as a key partner for facilitating and monitoring the return process, appears to have been partly side-lined, due in part to the hasty manner in which the agreement was negotiated without consultation with the agencies needed to implement any such return plan.” (HRW, 15 November 2004)

Mechanisms strengthening protection

“The improved security on the ground can mainly be attributed to the cessation of hostilities in October 2002 (and, in the Nuba Mountains, to the specific ceasefire agreement there in January 2002). Three major actors have contributed to strengthening the impact of these agreements:

The Joint Military Commission. Established on initiative by ‘the Friends of Nuba Mountains’ (largely EU driven), the JMC was deployed in Nuba in 2002 to monitor the ceasefire and examine complaints received from the general public. Working closely with the parties, the JMC is seen as a good example of active monitoring and joint intervention, which have substantially contributed to freedom of movement and confidence building. [...]

The Civilian Protection Monitoring Team. Initiated by the US Government’s envoy, former Senator John Danforth, CPMT was established in 2002 to monitor the protection of civilians. On the basis of a mutual agreement between GoS and SPLA, CPMT works across the North and South. The general public (including international organizations) is eligible to submit complaints on violations, whereby CPMT investigate the allegations, share their findings with GoS and SPLA and make public their reports.

The Verification and Monitoring Team. VMT is an IGAD driven mechanism that was established in February 2003 in an addendum to the cessation of hostilities agreement of October 2003. Mandated to monitor compliance, VMT conducts joint investigations with GoS and SPLA on violations raised by the parties. Although VMT technically monitors the parties’ military activities, literally every complaint involves civilians caught in the crossfire. Similar to the JMC, the VMT’s collaboration with the parties has contributed to confidence- and capacity-building.

All three mechanisms have gained the confidence of the GoS and SPLA. However, international organizations and national stakeholders feel that the mandates of VMT and CPMT limit their capacity to intervene and provide redress. While the former is tied to political constraints related to the peace negotiations, the latter has no mandate to take remedial action. It is, therefore, strongly suggested on the ground that these mechanisms, including JMC, be integrated with an expanded mandate within the framework of the forthcoming UN Mission.” (IRC, 1 May 2004, p.22-3)

International response by sector (2004)

Intended objectives for IDPs in the 2004 CAP

Supporting the reintegration, rehabilitation and resettlement of IDPs was one of the key programming priorities of the 2004 CAP for Sudan. The international response to IDPs during 2004 was guided by the desire to meet the Millennium Development Goals (MDGs). 60% of planned assistance interventions were aimed at achieving MDG no.1: reducing extreme poverty and hunger in Sudan. About 7% of the resources were intended to improve human rights indicators, promoting good governance and peace building.

In 2004, the UN set the objective to establish protection and monitoring systems for the reintegration resettlement and rehabilitation of IDPs by 2005, as an indicator of achievement. UN priorities in 2004 were to meet basic needs through humanitarian action and quick start/peace impact initiatives which accounted for 75% of resource requirements. Another main priority was transitional recovery through capacity-building, which accounted for about half of the resources required. (UN, 18 November 2003, Vol.I, p.2,17-21, 27)

Response in the food sector

WFP in Sudan coordinates all food relief programmes and activities with NGOs and counterparts. Food assistance and distribution is carried out by WFP or NGOs. Supplementary and therapeutic feeding is done through specialised NGOs, supporting children under-five and expectant and nursing mothers as well as the elderly, women-headed households, the chronically sick and the disabled. (UN, November 2002, p. 95-6)

WFP appealed for US\$180 million, to assist more than 3.8 million people affected by war and drought in 2004. WFP planned to deliver food aid to over 570,000 IDPs in 2004 out of 3.8 million beneficiaries.

Many states were seriously affected by poor agricultural production during the past two years (2002-2004) as a result of escalated conflicts and frequent and successive droughts. As a result, continued high malnutrition rates were evident countrywide. In the worst affected areas, global acute malnutrition ranged from 22 percent to 39.9 percent, above the 19 percent national average. Food aid is urgently needed to avert further deterioration of a currently fragile situation as well as to be able to support the peace-building process through creation of assets and to facilitate return of IDPs. (WFP, 18 December 2003)

Due to overwhelming emergency needs, ongoing insecurity and crop losses, many rehabilitation and recovery activities were not implemented, within the framework of a Protracted Relief and Recovery Operation (PRRO). The focus during the past two years has been on life-saving activities through rapid emergency response. As IDPs have lost their productive assets and lack access to food markets, they were the main targets of WFP for emergency food delivery including emergency school feeding in IDP camps. (UN, 18 November 2003, Vol.II., p.218)

Response in the agricultural sector

FAO planned to assist about 300,000 IDPs who have already returned spontaneously to southern areas in 2003, and who needed agricultural inputs (seeds, hand tools, fishing equipment and support to livestock) to enable them resume their farming activities. FAO also planned to assist an additional 400,000 IDPs in 2004, during and after their return, with 1) a travel package containing 15-days of full food rations; 2) a return package at the destination comprising of 3-months' full food rations and non-food items such as agricultural inputs and tools; and 3) community-based reintegration package for at least 6 month of full rations. FAO also plans to support fisheries programmes along the River Nile and in areas of IDP return as they have proven to help reduce malnutrition rates. (FAO, 12 February 2004, p.1, 3, 23) (UN, 18 November 2003, Vol.II, pp.33, 42)

UNICEF response to IDPs

UNICEF will continue to develop the capacity of GoS, SPLM and civil society to plan and implement Mine Risk Education. IDPs are the priority target of UNICEF mines/UXO information campaigns, particularly as pertains to the situation in their areas of origin. UNICEF with implementing partners will conduct needs assessments and support public information campaigns in contaminated areas. Shifting front lines and areas of confrontation have left a legacy of anti-personnel mines, mortars, unexploded bombs, shells, rockets and grenades. Contaminated areas are located within southern Sudan, southern Blue Nile, the Nuba Mountains and eastern Sudan along the Eritrean border. Some urban centres in the south, for example Juba, are cut off from surrounding hinterlands, preventing trade, the collection of fuel wood and agricultural activity. Roads have been mined to disrupt communications. Civilians crossing existing or former battle lines are at risk, especially people entering areas with which they are unfamiliar. Mine Risk Education (MRE) supports the direct reduction of risk to communities, the safe return of internally displaced persons and refugees, the opening up of safe communications and the reduction of inter-community tension by improving knowledge of the true extent and nature of contamination, thereby opening up access to land and water in marginal ecological areas. (UN, 18 November 2003)

UNICEF will try to improve access to safe drinking water and sanitation services in areas affected by conflict and inhabited by IDPs and returned IDPs, by prioritizing rehabilitation of existing water supply systems, and by promoting community management and sustainability of water supply and sanitation services. It will contribute to the eradication of water-borne diseases and work closely with the Sudan Guinea Worm Eradication Programme.

UNICEF will support education services in areas of return, many of which are underserved by education facilities, as well as existing education systems which will not be able to cope with the flows of returning IDPs and refugees. It will support rehabilitation and reconstruction of schools, provide education materials and upgrade teachers' performance through training. Priority will be given to child-centred education techniques, peace education and HIV/AIDS prevention. (UN, 18 November 2003, Vol.II, p.134)

UNDP conflict transformation and rehabilitation activities in Abyei (PACTA) (2004)

UNDP planned a conflict transformation programme in 2004, to ease tensions between Dinka (mainly resident farmers) and Missiriya (mainly nomadic) by focusing on equitable access to resources. The aim is to further encourage the voluntary return of IDPs to Abyei region where about 800 households have already returned in 2002. Abyei is part of the contested transitional zones of Sudan during the peace process. The area has a long history of conflict, whereby Dinka villages had been vacated during the violence of the 80s and 90s. The area is poverty-stricken, mainly as a result of competition over natural resources, tribal conflicts, wider instability/ displacement, lack of services, lack of employment, regular food crises (natural risks), and problems of governance (corruption), according to UNDP (UN, 18 November 2003, Vol.II, pp.72-3). A programme incorporating traditional land use by Dinka and Missiriya as well as demands by investors in oil and forestry will be developed. UNDP hopes to expand the Advancing Conflict Transformation in Abyei (PACTA) framework to Upper and Blue Nile states, Nuba Mountains, Darfur and Bahr El Ghazal (UN, 18 November 2003, Vol.II, pp.72-3).

UNDP will facilitate return of IDPs in 4 provinces of Upper Nile, where it conducted feasibility studies to address resettlement and reintegration needs, in Maban, Fashoda and Renk Provinces. (UN, 18 November 2003, Vol.II, p.74)

Missions of the Representative of the Secretary-General on Internally Displaced Persons

The **Third mission of the Representative of the Secretary-General on internally displaced persons to Sudan, in May 2002**, had three main objectives: 1. to participate in a USAID-sponsored mission to assess the potential for expanding support to return programmes for IDPs; 2. to follow up on his second mission from September 2001, in regard to the development of a government IDP policy; and to engage in further discussions with the Government on its involvement and responsibilities in the return programmes for IDPs.

Questions of when people cease to be categorized as displaced were raised to the Representative by members of international NGOs and the UN, particularly in the face of donor fatigue and the lack of opportunities for non-exploitative integration into the northern economy. Creation of safe corridors to facilitate the safe movement of IDPs between north and south was suggested to the Representative. (UNCHR, 27 November 2002, p.15-16, para 41; 47)

“During the **Representative’s first visit to the Sudan [in 1992]**, he found a significant contrast in the conditions of persons from the south displaced around Khartoum and those in Abyei, which became a transition zone for southerners fleeing northward and for the displaced in the north returning southward. While the displaced in the camps around Khartoum were provided with humanitarian assistance, they were forcibly relocated a significant distance from the city and the inhabitants felt alienated and marginalized as citizens. Those in the Abyei area, however, while not receiving significant assistance from any sources, enjoyed a sense of belonging and dignity in what in effect was their natural setting.

In comparing the two situations, the Representative recommended three options for the internally displaced in the country: to assist them to return to the areas nearest their natural setting and to give them support to reintegrate into those communities; to give them freedom as citizens to move to any area of their choice anywhere in the country; or to give them better accommodation and services in the displacement camps, if they chose to remain there.

During a **second mission to the country in September 2001**, nearly a decade later, the Representative found that although the conditions of those displaced in the north significantly improved, the options he had recommended earlier remained valid. In particular, there was a great deal of demand among the Dinka to return to their areas of origin in the south, especially areas where a degree of security had been restored. This was particularly the case with respect to the Ngok Dinka of Abyei. In agreement with several United Nations agencies, the Representative decided to contribute the monetary value of the Rome Prize for Peace and Humanitarian Action which he had received to be used towards promoting people-to-people peace in the Abyei area and to facilitate a programme of return for the Dinka on both sides of the north-south border. A task force was established by the United Nations agencies to design the projects and an implementation strategy. The implementation of the return programme began in January 2002, with the establishment of three villages in which displaced populations from Abyei town were resettled. These included both Dinkas and Missiyira Arabs. However, the process of implementation has been exceedingly slow and the wishes of the Dinka for massive return to their area has remained unmet.” (UNCHR, 27 November 2002, p.3)

Selected NGO activities

Human rights monitoring NGOs provide legal aid to IDPs (2004)

- Some Sudanese NGOs provide legal assistance to the displaced in Khartoum, like People Legal Aid Center (PLACE)
- Fellowship for African Relief (FAR) is among the few international actors that seek to address the weak linkages between IDPs and broader policy decisions
- FAR plans to establish IDP information centers to and from IDPs and also to provide legal aid

- South Sudan Law Society (SSLS), an independent civil society organization based in Rumbek with satellite offices around Bahr-el-Ghazal which runs projects on legal aid, civic education, human rights monitoring and advocacy with the support of Christian Aid
- Khartoum-based People Legal Aid Centre (PLACE) regroups independent Sudanese lawyers who collaborates with IRC in conducting human rights and protection training, while also providing legal aid to IDPs
- NRC in cooperation with UNHCR and IRC will establish legal aid mobile teams, for among others IDPs in the North and returnees in the South

“28. A handful of national NGOs provide legal assistance to the displaced in Khartoum, among them People Legal Aid Center (PLACE), which follows up on individual cases of disappearance and gender-based violence (GBV). Fellowship for African Relief (FAR) is among the few international actors that seek to address the weak linkages between IDPs and broader policy decisions. In view of the return process, FAR plans to establish IDP information centers to strengthen communication of information to and from IDPs, and also to provide legal aid.

[...]

107. Another key player is Christian Aid, which funds the South Sudan Law Society (SSLS), an independent civil society organization based in Rumbek with satellite offices around Bahr-el-Ghazal. Through the support of Christian Aid, SSLS runs projects on legal aid, civic education, human rights monitoring and advocacy. SSLS’ strength lays in its two-fold approach of training and active monitoring on the ground. In parallel with running workshops for civil society, lawyers, prosecutors, military and intelligence, it also provides legal advice (depending on the availability of laws), drafts complaints, visits prisons and police stations and monitors investigations.

108. Similarly, the Khartoum-based People Legal Aid Center (PLACE) conducts both training and intervention. An independent agency of Sudanese lawyers, it collaborates with IRC in conducting human rights and protection training, while also providing legal aid to IDPs. PLACE goes beyond traditional human rights training, also emphasizing the need to inspire the right attitude and commitment to human rights. Currently, IRC and PLACE collaborate on practical and action-oriented protection training in Wau, which includes training for community-based “paralegals” in monitoring, reporting and intervention.

[...]

110. The Norwegian Refugee Council (NRC), which has extensive experience of working in countries with traditional justice, has recently established a presence in Sudan. In close cooperation with UNHCR (which too will focus on the rule of law and a number of other sectors in the place of origin) and IRC, NRC will establish legal aid mobile teams, focusing especially (but not exclusively) on IDPs in the North and returnees in the South.” (IRC, 1 May 2004, p. 9, 29-30)

Selected activities of the Red Cross movement

ICRC assistance to IDPs and war affected people in Sudan (2004)

Red Cross and Red Crescent National societies implement bilateral programmes in the Sudan, in the sectors of health, education, agriculture, water and sanitation, and capacity building.

“Sudan has become the ICRC's largest operation worldwide, employing 200 expatriate and 1,700 national staff. In Darfur, together with the Sudanese Red Crescent and other partner National Societies, the ICRC is delivering food, water, shelter, household goods, and primary health and medical care to IDPs and resident populations struggling to survive. Its neutral and independent stance, and contacts with all parties to the conflict, means the ICRC can cross front lines and work throughout most of Darfur.

Cost of the Darfur operation in 2004

The ICRC's emergency appeals for Darfur now total 77.3 million Swiss francs (US\$ 64.5 million or €50.6 million).

[...]

Providing emergency aid

Since the start of the crisis in Darfur, the ICRC has delivered more than 5,400 tonnes of food to around 220,000 rural residents and some 40,000 IDPs in 50 locations

distributed essential household items, such as blankets, tarpaulins, clothing and soap, to almost 390,000 people (263,000 IDPs in 9 camps and 125,000 residents in 19 locations

set up/repaired/upgraded water systems supplying some 2.1 million litres of water daily to over 240,000 people

Treating the wounded and sick

The ICRC, in coordination with other organizations, notably WHO and MSF, is supporting surgical hospitals and primary health-care facilities throughout Darfur to ensure the wounded and sick have access to free treatment.

The operation in Gereida is being supported by the Australian and British Red Cross Societies and in Seleia by the Canadian and Netherlands Red Cross Societies.

To date in 2004:

5 hospitals have been repaired and upgraded, serving some 172,000 IDPs

7-person ICRC health teams are working in rural hospitals,

basic health-care units set up in 4 rural regions, are serving 80,000 people, both

IDPs and residents

staff, training, supervision and materials are being provided to the prosthetic/orthotic workshop in Nyala

Restoring family links

The tracing and Red Cross message (RCM) network, set up in 1986, relays some 40,000 messages a year between family members torn apart by the north-south conflict in Sudan. The network is being reinforced because of the conflict in Darfur.

The ICRC is also taking the lead role in restoring contact between the refugees in camps in eastern Chad and relatives left behind, together with the Red Cross of Chad

Throughout Sudan in 2004:

more than 28,000 RC messages were collected

almost 30,000 RC messages were distributed

around 1,700 separated Sudanese children registered

85 people, 70 of them children, reunited with their families

more than 230 people located whose families filed tracing requests

4,200 people being sought following tracing requests by their relatives" (ICRC, 9 November 2004)

"In a meeting between the president of the Republic of Sudan and ICRC's president in March 2004, it was agreed that access to Darfur should be granted to the ICRC. Soon, teams of delegates and convoys of relief were on their way to launch the ICRC's biggest relief operation. At the end of August, the ICRC organized its largest airlift since the Iraq war. Additional equipment and vehicles were sent in to help reach civilian populations in remote areas of Darfur." (ICRC, 31 December 2004)

Policy and recommendations

Recommendations by the Representative of the Secretary-General on Internally Displaced Persons (2004)

- Given the alliance between Janjaweed and the government it is more pragmatic for the government to work with the AU to disarm them
- Security forces need to be trained and a civilian police from the AU deployed
- Cooperation on security and protection would create the necessary environment for humanitarian work and humanitarian agencies need to increase staff on the ground
- IDPs' right to return voluntarily in safety and dignity must be respected
- Security measures against Janjaweed should be combined with ensuring strict adherence to the ceasefire
- The peace agreement with the SPLM/A should be adapted to the situation in Darfur as the grievances there are similar to those in the South, the Nuba Mountains or Southern Blue Nile
- The role of the AU Cease Fire Commission should be developed, enhanced and supported with equipment, logistics and funding

“As noted earlier, the main findings, conclusions and recommendations of my mission can be summarized under several headings: (i) the security situation and the protection of the internally displaced as well as the civilian population at large; (ii) the provision of humanitarian assistance; and (iii) the political issues, including the issue of the Janjaweed and other armed groups, the linkages of the Darfur crisis to the war in the South, the impending peace agreement between the Government and the SPLM/A, and the options before the international community in its response to the crisis in Darfur.

Security and civilian protection

41. Addressing the security situation must be the absolute priority. All attacks on the civilian population need to be stopped. The Government can, of course, immediately stop its armed forces and militias under its control from attacking civilian populations. It can also facilitate, further to its commitment to the United Nations, access to Darfur of United Nations human rights monitors, whose presence on the ground in the camps and in areas of return is crucial. While the internally displaced do not feel it is safe to return to their villages, their aspiration is to go back when it is safe to do so. Ensuring that return takes place in safety and with dignity must be the guiding principle. This will require that the Janjaweed militia and other armed groups be disarmed or otherwise neutralized and that all ties between them and the Government be severed. Given the alliance between the Government and the Janjaweed, it would be more pragmatic for the Government to work closely and transparently with the international community, and specifically with the AU, to take appropriate measures for disarming or neutralizing them and their threat. Since the internally displaced and other civilians in the conflict zones are fearful of all security forces, including the state and national police, international training on the ground and possible deployment of CIVPOL or other police officers from AU countries could help foster confidence in national police protection, as mentioned in paragraph 23.

Humanitarian assistance

42. Cooperation on security and protection would create the necessary environment for humanitarian activities, allow for access by the United Nations and other humanitarian workers, including national and international NGOs, and encourage the donor community to make up the shortfall and provide the needed support. The Government of the Sudan needs to intensify its cooperation with the international humanitarian community in a transparent and open manner in order to ensure swift, effective and sustained assistance and protection for the displaced. There is also an urgent need for the humanitarian community to

significantly increase the number of staff on the ground, who, in addition to providing the required assistance, would also have a significant protection role in preventing further human rights violations against the internally displaced and returnees. In the immediate term, an urgent priority is to ensure that the required humanitarian assistance and protection reach all the needy populations of Darfur. The issue of voluntary return has to be addressed jointly and constructively by the international community and the national authorities. The right to return voluntarily in safety and dignity must be respected at all times. This will also contribute to the sustainability of return.

Addressing the political dimension

43. The first political issue is dealing with the threat of the Janjaweed. As already noted, a cooperative arrangement with the international community could check the armed activities of the Janjaweed. Given the fear of the Government about an imbalance in favour of the rebels, the security measures against the Janjaweed and other armed groups should go hand in hand with ensuring strict adherence to the ceasefire agreement between the parties to the conflict.

44. Next, linkage with the war in the South. As what is happening in Darfur is not dissimilar to what has been happening in the South for decades, including the use of tribal militias and atrocities against civilians, lessons from that experience could be used to identify negative practices to be avoided and positive developments. A meeting involving experienced Southerners with Darfurians and government representatives in the context of a workshop or a symposium would facilitate this purpose.

45. The second political issue is the adaptation of elements of the peace agreement with the SPLM/A, especially those relating to the Nuba Mountains and Southern Blue Nile, to the situation in Darfur. This should be possible as the grievances of Darfur are recognized as being similar to those that have been addressed in the ongoing peace process between the Government and the SPLM/A. It could be done with the help of some of the individuals who have been involved in that peace process. Their experience could be a vital resource in the negotiations. Conversely, failure to manage the Darfur crisis constructively could eventually jeopardize the peace achievement in the South, thereby undermining international efforts in resolving the conflict and plunging the country into yet another catastrophe.

46. The positive role played by the AU Cease Fire Commission should be developed, enhanced and supported with equipment, logistics and funding, as it appears to be more acceptable to the Government than international intervention. The AU has already shown itself to have the potential to maintain peace and build confidence between the parties and, as already noted, provides a cover for the Government to rein in the Janjaweed and other armed groups. The expansion of the role of the AU to enable it to protect civilians would be an important step towards meeting security problems in the area.” (UN CHR, 27 September 2004, p.15-17)

International political response in Sudan (2005)

United Nations Advance Mission in Sudan (UNAMIS) and United Nations Mission in Sudan (UNMISUD)

“Prospects for peace in Darfur will only be strengthened if the Comprehensive Peace Agreement signed on 9 January 2005 between the Government of the Sudan and the Sudanese People’s Liberation Movement/Army is implemented successfully.” (UNSC, 4 March 2005)

“The United Nations support on the request of the parties the peace process in Sudan. In Resolution 1547 the UN Security Council “Requests the Secretary-General, pending signature of a Comprehensive Peace Agreement to take the necessary preparatory steps, including, in particular, pre-positioning the most critical logistical and personnel requirements to facilitate the rapid deployment of the above-mentioned possible operation principally to assist the parties in monitoring and verifying compliance with the terms of a

Comprehensive Peace Agreement as well as to prepare for the Organization's role during the transitional period in Sudan;

This Mission is called UNAMIS (United Nations Advance Mission in Sudan). The plan is that, once the SPLM/A and the Government of Sudan have signed a comprehensive peace agreement, UNAMIS will become UNMISUD (United Nations Mission in Sudan), a full scale peace support mission.

But in its Resolution 1556, the UN Security Council has added new duties to UNAMIS: Jan Pronk, the Special Representative of the Secretary General (SRSG) and the head of UNAMIS has the task to support the Government of Sudan in resorting security in Darfur and to disarm the Janjaweed militias. And UNAMIS has now not only to plan for a peacekeeping mission for the south of Sudan, but also for Darfur.” (JMC, UNMISUD)

“The logistical and operational plan to deploy just over 10,000 troops for monitoring and verification has been developed in detail. The core of this consists of 750 military observers. They will have to carry out a difficult task in a wide area of 1000 by 1250 km, with very poor communications. Professional planning requires that they will have to be assisted by an enabling force of round 5000 and a protection force of about 4000, all included in the total number of 10,000.” (UN SRSG, 4 February 2005)

“Secretary-General Kofi Annan [...] voices concern that, despite appeals to at least 100 nations, the UN "has received a very limited number of responses." So far there are enough commitments to meet only the first phase of the planned deployment.” (UN News, 3 February 2005)

“Security Council members are discussing a new resolution that will authorize a U.N. "peace support" force of 10,000 personnel to monitor the peace agreement ending the 21-year civil war between the Sudanese government and the main southern-based rebel movement, the Sudan People's Liberation Army.

The draft resolution, which focuses on southern Sudan, provides little relief for civilians suffering from the armed conflict that is now devastating Darfur. The resolution would impose only travel sanctions and asset freezes on yet to be designated individuals for their involvement in human rights abuses, and extend an arms embargo on the Sudanese government's arms shipments to Darfur.” (HRW, 25 February 2005)

African Union Mission in Sudan (AMIS) in Darfur

No progress was made on the political settlement of the Darfur conflict. Darfur peace talks convened in Abuja in November 2004 broke down after the government of Sudan launched a serious military offensive. Conflict escalated again in Southern Darfur in December and January. (UN SC, 4 March 2005)

The government of Sudan agreed to the African Union deploying an observer mission in Sudan, the African Union Mission in Sudan (AMIS) end of May 2004, mainly to monitor implementation of the April 2004 ceasefire. Despite Government of Sudan reluctance the Peace and Security Council of the AU strengthened the mandate of AMIS (African Union Mission in Sudan) in October 2004 to include “(i) ensure that the rules and provisions of the ceasefire are implemented; (ii) contribute to a secure environment for the delivery of humanitarian aid; (iii) assist in the development of proactive public confidence building measures; and (v) observe and monitor the service delivery of local police and to enhance the quality of these services through training.” (EC, 26 October 2004)

By March 2005, the AU had only about 1,900 troops deployed, mainly in state capitals, out of a planned 3,500, to monitor a region the size of France (BBC, 7 March 2005). It has outspokenly condemned violations by all sides and has managed to effectively protect civilians and prevent some attacks. However, these peace efforts have not received adequate support from the international community. As a result, the AU's impact remains limited by its small numbers, inadequate resources and logistical capacity (HRW, 6

January 2005). As suggested by the protection working groups, the AU has deployed civilian police teams to support local stations which are often under-staffed to deal with abuses (UN CT, 1 January 2005).

Only about half of the funds requested for the AU mission out of \$44 million had been received as of November 2004. For 2005, the AU force had a budget of about \$220 million with the EU funding some \$100 million and the U.S. \$45 million. The EU provided €80 million for a period of 12 months. The enlarged African Union observer mission will comprise 314 troops, 626 military observers, 1073 protection forces and 815 civilian police officers. (RI, 28 February 2005).

“While the AU considers the Darfur crisis as an African problem to be solved by the Africans, thereby discouraging international intervention and winning the cooperation of the Government of the Sudan, it will need strong support from the international community in terms of equipment, logistics and funding. This would certainly be a more constructive way of managing the crisis than the armed intervention threatened by some circles in the international community.” (UN CHR, 27 September 2004)

“The increased African Union mission, even with the agreed-upon additional troops and slightly more robust mandate to protect civilians under “imminent threat.” cannot by itself do all that is necessary to create the conditions for voluntary safe return and reversal of ethnic cleansing. It must have a clear mandate, under Chapter VII of the U.N. Charter and the African Union Charter, to protect civilians;

[...]

Even the A.U. forces remain concentrated in just five locations in Darfur, [...] visiting rural areas in the course of investigations, but without any permanent presence.

[...]

From the start of the crisis in Darfur, the Security Council, in effect, delegated to the African Union the responsibility to provide the international military presence needed to bring security to Darfur, in the face of Sudanese government’s de facto refusal to protect its citizens. The fledgling A.U. offered to increase its forces and to expand its mandate to include civilian protection, in a sharp change from its predecessor, the decidedly non-interventionist Organization of African Unity. After protracted negotiations, the Sudanese government consented to increased A.U. forces and a slightly expanded mandate.” (HRW, 15 November 2004)

“The AU has agreed to take on board the Protection Working Groups suggestions regarding the deployment of approximately 200 fourperson civilian police teams at police stations throughout Darfur. It is hoped that common priorities will be identified and improved policing will enhance security. Nevertheless, it is being observed that more than ever the local police are often incapable of responding to the violence being committed because of their limited numbers.” (UN R/HC, 1 January 2005)

Security Council Resolutions

International attention was at its height with the visits of the Secretary-General of the United Nations, Kofi Annan and the United States Secretary of State, Colin Powell in June 2004. The S-G’s visit resulted in the joint communiqué of 3 July 2004 between the UN and the government of Sudan, in which the parties agreed to take concrete measures to respond to the crisis, including facilitating access for the delivery of humanitarian assistance, protecting human rights, demobilising the Janjaweed and the rebels and settling the conflict through negotiations between the government and rebel groups. A Joint Implementation Mechanism was established to monitor compliance with the commitments made through the joint communiqué. The Mechanism was co-chaired by Sudanese officials, the UN and the newly appointed Special Representative of the Secretary-General for the Sudan, Jan Pronk.

On the 30 July 2004, the Security Council adopted resolution 1556 (2004) on the situation of Darfur, calling on the government to address the crisis effectively by disarming the Janjaweed within 30 days, facilitating humanitarian access, negotiating a political settlement, as well as prosecuting the militia leaders who had committed crimes or face punitive measures from the international community.

“The United Nations Security Council has passed two resolutions on Darfur[as of 15 November 2004], threatening sanctions against Sudan's government if it does not disarm and prosecute the militias and others responsible for abuses in Darfur. But these resolutions have had little effect in either restraining the Sudanese government, its allied militias or in improving security and protection for civilians.

[...]

Despite several “early warnings,” the matter of Darfur was not even on the Security Council agenda until April 2004. [...] The Security Council on July 30, 2004, ended its protracted delay in taking action on Darfur and passed Resolution 1556. [...] This resolution, to the credit of the Security Council, gave the government of Sudan thirty days to “disarm the Janjaweed militias and apprehend and bring to justice Janjaweed leaders and their associates” [...]. It threatened “further actions” if the Sudanese government failed to comply with the resolution.

The Sudanese government failed to disarm the Janjaweed or bring any to justice. Instead, the Secretary-General's Special Representative for Sudan, Jan Pronk, was treated to a “show” disarmament of 300 Popular Defense Force members. [...] At the same time, many reported that numerous Janjaweed, far from being disarmed, were being transferred to the uniformed police, armed forces, and PDF—and into a specially created “Border Intelligence Guard.”

The Secretary-General's report to the Security Council on August 30, 2004 flatly stated that the government of Sudan had not met its obligation to stop attacks against civilians and ensure their protection “fully, despite the commitments it has made and its obligations under resolution 1556.”⁹⁶ Despite this conclusion, the report did not recommend any specific action against the government of Sudan but merely urged it to accept the A.U. offer to provide troops to protect civilians in Darfur.

The next Security Council resolution (Resolution 1564) on September 18, 2004 did not follow through on the threat of “further measures” from the previous resolution. The resolution instead continued to threaten, this time specifying the possibility of sanctions for noncompliance, including on the petroleum sector and on individual members of the government. In a positive move, the Security Council authorized the establishment of an international commission of inquiry to “investigate reports of violations of international humanitarian law and human rights law in Darfur by all parties, to determine also whether or not acts of genocide have occurred, and to identify the perpetrators of such violations with a view to ensuring that those responsible are held accountable”. (HRW, 15 November 2004)

On 19 November 2004, UNSC passed resolution 1574 demanding “that Government and rebel forces and all other armed groups immediately cease all violence and attacks, including abduction, refrain from forcible relocation of civilians, cooperate with international humanitarian relief and monitoring efforts, ensure that their members comply with international humanitarian law, facilitate the safety and security of humanitarian staff, and reinforce throughout their ranks their agreements to allow unhindered access and passage by humanitarian agencies and those in their employ, in accordance with its resolution 1502 (2003) of 26 August 2003 on the access of humanitarian workers to populations in need and with the Abuja Protocols of 9 November 2004;” (UN SC, 19 November 2004)

“The Sudanese government has continued to use helicopter gunships and Antonov airplanes in attacks against civilians in Darfur and has failed to take any steps to “neutralize and disarm the Janjaweed/armed militias,” in violation of a Security Protocol signed between Khartoum and two Darfurian rebel groups on November 9. Meanwhile, the rebels as well as the government have repeatedly broken the AU-mediated ceasefire with minimal consequences.” (HRW, 10 December 2004)

While the Commission of Inquiry recommends that those responsible should answer for their acts before the International Criminal Court “the EU reaffirms its constant support for the International Criminal Court, and reiterates its common position on the ICC, while noting that it is for the United Nations Security Council to take a rapid decision on this matter.” (EU, 7 February 2005)

The fact that the North-South peace agreement lacks any provision for a truth commission, prosecutions or other forms of accountability for crimes committed during that war perpetuates impunity and does not deter Sudanese officials and military leadership to continue to commit abuses in Darfur and elsewhere. (HRW, 6 January 2005)

Recommendations by the Inter-Agency Internal Displacement Division (IDD) (2004)

In the framework of its general mandate to strengthen UN response in situations of IDP crises, the IDD mission to Sudan in August-September 2004 focused on the strength and weaknesses of the current protection response. Initially the objectives of the mission included: protection needs of IDPs in Darfur, human rights monitors, result-oriented high-level advocacy, and how the effective protection of IDPs during the return phase (North to South) could be further supported, while already supporting the development of a Return Plan for current and future return movements. (IDD, ToRs, 29 August 2004) The mission's recommendations and findings seem to focus exclusively on the Darfur situation and do not address return and protection issues affecting millions of IDPs in the rest of the country.

Main findings:

“Attacks on villages, settlements and individual IDPs continue

Sexual violence, particularly rape, is still systematic and widespread

Very little is being done by the authorities to halt these attacks and identify the perpetrators, who currently enjoy full impunity

The judiciary as well as the recently created accountability mechanisms (Commission of Inquiry and Committee on Rape) are not independent nor effective

Government pressure on IDPs to return or relocate continues

Frequent violations of the cease-fire agreement is creating new flows of IDPs and prevent humanitarian access to large areas” (IDD, 17 September 2004)

Key recommendations:

“National protection structures are not effectively responding to the current violations in Darfur. They must be strengthened and complemented by international protection efforts, through both agencies and governments.

The current insecurity in Darfur must be urgently addressed, including by deployment of appropriate national or international civilian and police presence. Until such measures are taken, there is little prospect for improved security, which is a pre-condition for any long-term solution.

Any Security Council resolution to this effect needs to properly reflect and address the serious human rights violations in Darfur and propose concrete actions.

The general protection response needs to be quantitatively and qualitatively enhanced. All agencies, including NGOs, need to increase the number of protection staff, preferably experienced staff. It is also important that protection officers be deployed to IDP settlements beyond the state capitals.

Agencies need to formulate concrete protection projects, including for treatment of victims of sexual violence, and donors should prioritize funding of such projects.

Given the prevalence of SGBV and the lack of female interpreters, recruitment of new protection officers should be guided by the need for female Arabic speakers.

Collection of protection information should be made more systematic, particularly on SGBV. OHCHR could play a key role on information collection, within the framework of the Protection Working Groups.

Chairing of Protection Working Groups (PWG) and the de facto lead role on protection needs to be pragmatically determined in each location, based on the agencies protection capacity in a specific geographical area.

The information gathered in the field and submitted to the PWG in Khartoum needs to be analyzed and systematically used by the UNCT and donors for appropriate advocacy with the GoS.

For this purpose, the Khartoum PWG must be strengthened. OCHA will assign a Senior IDP Adviser to work in a small core group with senior protection officers from OHCHR and UNHCR in support of the HC/RC's protection efforts." (IDD, 17 September 2004)

IRC recommendations on promoting human security for the return and reintegration of IDPs (2004)

Increase the presence of international staff in the field and in IDP camps. Permanent international presence is imperative in building a relationship of confidentiality and trust with beneficiaries as well as with national counterparts, and to conduct adequate protection analysis, assessment and intervention. Parallel efforts should be made to raise the awareness and build the capacity of local authorities and law enforcement officials to comply with national policy guidelines and international standards on the protection of displaced. [...]

Monitor the push-and-pull factors that may impact the return process. International presence should serve to address the existing protection needs as well as those that might impact the return process. Close attention should be given to political, military/security, social and economic factors in both North and South that may influence the ability of displaced to return based on: (a) free and informed choices; (b) establishment of conditions conducive to return and reintegration.

Assess the options for local integration in the North. The intentions and conditions connected to the current demolitions of IDP camps and distribution of plots should be examined. Consultations should be held with concerned displaced persons as well as with the national authorities. There is a need to seriously assess the option of local integration in the North. This includes engaging with GoS on their plans and their requirements from the UN Country Team (UNCT), NGOs and donors to promote sustainable options for local integration.

[...]

Establish benchmarks conducive to return/repatriation.

[...]

Conduct a multi-sectoral information campaign.

[...]

Combine information campaigns with international monitoring.

[...]

Register IDPs in location of displacement/departure. Registration in the place of displacement should be linked to transport and connected to registration on arrival. This will require a coordinated approach between the HAC and SRRC (through the Joint Operations Center), UNHCR, IOM and other relevant agencies and NGOs. Drawing on UNHCR procedures, such registration forms may include basic biodata, accompanying family-members, assets/property and place of intended return. Active international monitoring at both ends, including a formal commitment from the authorities, will be necessary to enhance confidentiality and ensure that information provided is not being used against the displaced or returnees.

Review options for providing transport to displaced during phase of organized return. Safe passage is closely linked to assisted transport, which in turn should be viewed for what it is, i.e. a major protection tool. UN agencies with expertise in organized population movements, protection, transport and logistics (UNHCR, IOM and WFP), should investigate the options of barges, steamers and trains.

Ensure safe passage along return routes through deployment of UN military observers, UN agencies, international and national NGOs (consortium). In support of the monitoring activities envisaged in the UN Emergency Population Returns Program, the forthcoming UN Mission¹⁶ should, during organized return, deploy monitors on the routes of return, particularly in ‘no-mans land’. [...] Simultaneously, NGOs and UN actors present on the ground should create networks/consortiums that monitor the routes, gates of arrivals and communities of return. International presence will require close collaboration with national authorities, who have the ultimate responsibility for security, and locals who know the terrain and conditions.

[...]

Examine how existing coordination mechanisms can most effectively support operational protection actors, and consider appointing a Resource/Support Agency on protection.

[...]

Support the capacity of authorities to receive returnees.

[...]

Engage receiving communities in the return process.

[...]

Establish a legal framework for the return of IDPs/ ‘Tripartite Agreement’ between UNCT, HAC and SRRC. In order to obtain a more formal commitment to respect the rights of the returnees, it might be necessary to establish a legal framework in the form of ‘tripartite agreement’ between the UN, HAC and SRRC. Such an agreement should spell out benchmarks and conditions conducive to return and legally commit all parties to promote safe passage and freedom of movement of returnees.

Closely monitor the establishment and management of transition centers. As a general rule, transit centers should be discouraged during the return/repatriation process. Reception facilities can be used for registration and distribution of arrival kits, and should provide no more than 48 hours’ accommodation. While the authorities will manage the transition centers, international staff should be present and work closely with the authorities.

Invest in urban services. In order to facilitate freedom of movement and reintegration of urbanized returnees, humanitarian and development actors need to complement investment in rural areas with reception capacities, infrastructure and basic services in urban centers and towns.

[...]

Lobby for a UN Mission that has a clear mandate, structure and resources to protect civilians and build rule of law.

Building on the models of JMC and VMT, the UN mission should adopt an approach of close liaison and joint monitoring with the parties (both military and police). However, although the mission may take on a collaborative and capacity-building approach, it will still need enough margin of maneuver to protect civilians, should the situation warrant a more robust response. Since it appears unlikely that the UN mission will operate under a Chapter VII mandate, the mission will need a strong monitoring and verification mandate, supported *inter alia* by:

- A mobile military component that can effectively monitor return movements and take remedial action should the situation demand; and, which is technically skilled to promote respect for the peace agreement, including respect for civil administration and rule of law, among armed forces, security and militia;
- A highly professional civil police component that can provide technical advice, establish and train an operational and impartial police force;
- A viable human rights component that has the mandate and resources to deploy in the field, conduct protection and training activities as well as to contribute in building the national capacity in rule of law;
- A central role for child and gender advisers, enabling these to actively guide the UN mission in addressing the whole spectrum of military, legal, social and economic dynamics affecting women, children and youth.
- An integrated approach to DDR, whereby all UN Mission components are designed to support and implement the Multi-Agency Coordinated Framework for DDR.
- A strong humanitarian component that will address potential crises in other parts of the country and help pave the way from relief to recovery and rehabilitation

[...]

Establish an NGO/UN consortium in areas particularly affected by lack of human security. Given the multitude of protection problems and scarce presence of internationals in Upper Nile and Equatoria (as opposed to Bahr-el-Ghazal), there is a need to increase international presence in these areas. To strengthen coordination at local level and engage non-traditional protection actors in protection (especially child protection) a multi-sectoral joint *pilot* consortium should be set up. Given the absence of infrastructure, the consortium could share a compound, which would also be more cost-effective.

Disseminate information on the peace agreement. Awareness raising and dissemination should target not only returnees and the local population, but also those feeling marginalized by the peace negotiations, including militia. This should cover information on the security arrangements, including physical security, freedom of movement and the benefits of socio-economic development.

Advocate International Humanitarian Law with regular forces and militia.

[...]

Ensure that a general amnesty law is in place prior to organized return.

[...]

Examine conditions and appropriate means for establishing mechanisms on accountability. As for individuals who have personally instigated or committed war crimes or crimes against humanity, there will be a need to establish appropriate mechanisms for accountability and justice (whether in the form of a war-crimes tribunal and/or a truth and reconciliation commission).

Ensure that demobilization and reintegration at community-level rests on national ownership and accountability.

[...]

Rule of Law

Deploy international staff with protection experience to fill the gap during a transitional period

Conduct protection-oriented human rights capacity-building followed up by international monitoring

Connect community-based approaches to established civil and judiciary structures

Align customary law with basic international standards through projects implemented by national counterparts/NGOs

Incorporate international standards in statutory laws (engaging Islamic scholars in the North)

Ensure inclusion of women and child rights organizations in legal reform

Conduct paralegal training and refresher courses for the judiciary followed by international oversight

Build an operational and impartial police-force

Employ alternative ways of communicating human rights

[...]

HIV/AIDS

Ensure that HIV/AIDS cuts across all programming

Avoid singling out displaced in general, and refugees in particular, as the principal threat to the spread of HIV/AIDS

Replicate HIV/AIDS education in IDP camps

Sensitize communities to HIV/AIDS through participation

Sensitize stakeholders prior to assessment, counseling or provision of health services

Encourage voluntary counseling and testing, and strengthen accessibility to treatment

Land and Property

Undertake a rapid assessment on the link between return movements and land

Ensure that legal aid centers in urban areas are equipped to deal with multiple issues related to land and property

Conduct a comprehensive survey on land and property issues in the South

Registration and Documentation

Provide support to institute basic documentation

Establish institutionalized and systematic registration of departing and arriving returnees as well as new IDPs” (IRC, 1 May 1994)

Recommendations on IDP return from the Representative of the Secretary-General on IDPs (1992-2003)

- UN-Representative for IDPs recommended the GOS to provide a safe environment for return of IDPs to Abyei
- Recommendations of the Representative following his 1992 visit to Dar-es Salaam and Jebel Awlia IDP camps near Khartoum were still relevant in 2002
- IDPs from Khartoum camps had been forcibly relocated to deserted areas outside Khartoum deprived from services and employment
- Although assistance levels were equally minimal IDPs relocated closer to areas of origins in Abyei were coping much better
- The Representative recommended three options for the IDPs: assisted return nearest to areas of origin, resettlement in area of their choice or enhanced standards of living in camps where they preferred to remain

“UN Secretary General’s Representative for IDPs visits Sudan

The Representative of the UN Secretary-General for IDPs, Francis Deng, visited Sudan from May 31 to June 5 2003. During his visit, Deng voiced his appreciation for the progress made by the government in the development of a national policy and strategy for promoting the free choice of the IDPs to return, resettle or integrate into new areas. He urged the government to take seriously its responsibility to provide a secure environment, which would increase the confidence of IDPs to return and rebuild their lives. Particular concerns were raised in relation to the voluntary return of about 600 households to their former villages around Abyei in West Kordofan. This return is being supported by a number of UN agencies, and has the potential to assist in bringing stability to the areas previously vacated.” (UNRC, 16 June 2003)

“During his 1992 mission to the Sudan, the Representative visited two camps for the displaced near Khartoum - Dar-es-Salaam, west of Omdurman, and Jebel Awlia, south of Khartoum - and other centres in Kordofan, including Abyei, where people fleeing from the war in the south and those returning from the north converged. [...]

However, the displaced had been relocated away from the city to desolate desert areas, where there were no employment opportunities or social services other than essential minimum humanitarian assistance. The dwellings, which were built by the displaced themselves from local materials, did not differ from those often found in the shantytowns in which they had lived in Khartoum, although they were more spread out. The officials defended the relocation policy by pointing to the contrast between the conditions under which the displaced now lived and what they described as the dehumanizing conditions in the squalid areas of the industrial periphery of Khartoum-North, under which they had lived.

People at the camps, however, far away from home and evicted from the city, demonstrated an unmistakable resentment at the inherently degrading conditions of their displacement. Their faces reflected a sense of rejection, uprootedness, alienation, and anxiety, a suspension between hope and despair, all of which they communicated by various means.

In Abyei, on the north-south border, where the people were either indigenous or were close to their original homes further south, conditions contrasted sharply with those in the camps around Khartoum. Although relief supplies had not arrived because Abyei is isolated from the rest of the country during the rainy season, the local population had managed to survive by cultivating land (within the territorial restrictions imposed by their security concerns) or by gathering seeds from the roots of water lilies and other wild food.

[...]

The contrast with the camps was not that the people in Abyei were better provided for, but that in comparison they enjoyed at least some dignity and autonomy.

Several conclusions emerged from the contrast between the displacement camps around Khartoum and the situation in Abyei, which were presented to the Government for considerations and which were, on the whole, well received. First, whatever services were being rendered, the location of the displaced just outside Khartoum, where they were neither part of the urban community nor in their own natural setting, was inherently degrading, especially since it was popularly believed that they had been removed to cleanse the city of undesirable non-Muslim elements. Second, the fact that their shanty dwellings in the camp were not better than those they had lived in before, except for more open barren space, did not adequately compensate for their removal from the city.

In his report on the mission (see E/CN.4/1993/35), the Representative of the Secretary-General recommended that as much as possible people should be given the choice and assisted to go back to their areas of origin or to settlements close to them. They should also be accorded the protection and assistance necessary to resume normal, self-sustaining rural life. Those who chose not to go back should be assisted to move freely anywhere in the country, including into urban centres, and given the necessary assistance to become ordinary integrated citizens. Those who chose to remain in the camps should not only be given the services of the kind described to the Representative, but should be assisted with materials to build more comfortable and healthier accommodations to help compensate for their isolation. Organizations that rendered services to the displaced had erected for themselves facilities that were attractive, even though they were inexpensively built from local materials. Extending such expertise to the displaced and helping them help themselves would seem a feasible and inexpensive way to achieve a humanitarian objective.

[...]

While the situation of the displaced had improved, especially in view of the fact that significant numbers of displaced persons around Khartoum had been allocated land to resettle and those in the rural north had also been granted agricultural land to farm, the challenges of displacement for the most part remained as they had been almost a decade earlier and the options the Representative had recommended were still valid.” (UNCHR, 27 November 2002, p.9-10, para18-20, 22-23, 25)

Recommendations of Inter-Agency mission to support IDP return (Dec 2002)

- The issues addressed to support IDP return covered: human security, peace-building, mine-awareness and HIV/AIDS prevention, capacity-building, rehabilitation and recovery, resettlement and local integration
- To ensure protection of IDPs both statutory and customary legal institutions need strengthening
- UNCT would not support authorities’ initiative for transit-camps
- Returnees should be assisted through reintegration and recovery programmes targeting both local communities rather than with return packages

“Although the mission report focuses upon issues and constraints that will need to be addressed if a peace agreement produces return movements of many of the displaced, many of these issues also relevant to the current IDP situation and hence should be addressed irrespective of a peace being reached. Indeed, the mission notes that many of the recommendations it makes are equally relevant to addressing the needs of other non-displaced vulnerable groups. The report discusses four basic sets of issues.

Human security is seen by all as the key need that underpins all other dimensions of the displacement problem in Sudan. Many protection issues exist and even following a peace settlement, protection issues will remain a major determinant of who returns and whereto. National institutions that can provide for the rule of law are weak and often undermined by the various combatant groups. UN system support should be

provided for strengthening both statutory and customary legal institutions so that they are better equipped to deal with dispute resolution when the displaced return.

Peace building initiatives must be increased and should be better coordinated between UN actors. The human rights monitoring capacity of the UN system should also be strengthened as a means of increasing human security. Physical security, especially if there is a large return movement, requires increased mine-action and education. There is also a risk of return movements contributing to the spread of HIV/AIDS and hence heightened HIV/AIDS awareness is required for both the displaced and in areas of potential return.

Secondly, the lack of capacity among national, regional and local authorities and institutions seriously constrains the level and quality of support for the displaced and results in a heavy dependence upon the international community. Assisting a postpeace Sudan in strengthening good governance should be a high priority for the UNCT. Simultaneously, the UN actors should promote participatory approaches and strengthen community structures since most assistance to IDPs and returnees will likely be provided through such mechanisms.

Special attention should be given to the promotion of the return of skilled persons displaced by the war. Building the capacities of women and female-headed households among the displaced should also be given high priority in the UN's strategy. In terms of infrastructure, plans should be prepared for early post-peace reconnection of the southern towns with their hinterlands to promote trade and income generation that will allow returnees to be better absorbed.

Third, planning for the return and reintegration of the displaced must be undertaken in close cooperation with GOS and SPLM authorities, including ascertaining their levels of potential resourcing for the displaced. The overarching framework for reintegration and return should be through area/community based interventions. At the same time, the UNCT should define the length and types of humanitarian assistance that will continue to be needed while returnees re-establish livelihoods or for those unable or unwilling to return.

A common reintegration package for rural returnees should be established and food assistance should, where practical, be delivered through community based food for work modalities. Urban returnees/IDPs should be assisted with livelihood recovery programming as part of overall programming for urban vulnerable groups. In this regard, planning for vocational training, micro-credit and revolving loan schemes should be strengthened. The mission noted that regional and local administrations appear unprepared for the potential needs arising with a substantial return movement and hence recommends that an advisor be provided to the UNCT to assist in developing a comprehensive livelihood rehabilitation programme.

[...]

While authorities expect assistance with transportation for returnees, the UN should limit this for special cases such as acutely vulnerable or as an incentive for much needed skilled persons. Likewise, while authorities expect support for transit-camps for the returning displaced, the UNCT should avoid being drawn into such ventures. Instead, it should explore how it can provide way-stations along principal return routes where basic en-route assistance can be provided. The potential overall mobility of population following a peace agreement requires close monitoring by the UN as well as the dissemination of information to enable potential returnees make informed decisions about their return.” (Inter-Agency Mission, 18 December 2002, p. 2-3)

Here are some of the most compelling concerns and recommendations from the Interagency mission to Sudan, (November 2002).

Impunity and human rights abuses were widespread and the judicial system very weak. Awareness of the Guiding Principles was non-existent among local authorities as well as IDP leadership.

Mine-risk education targeting IDPs needed to start before a peace deal was reached.

Mechanisms to monitor cease-fire violations and human rights also needed to be developed by the UNCT with the support of OHCHR.

Capacity-building and community-participatory approaches to recovery were paramount, considering that the South was almost entirely reliant on international aid for the provision of basic services. In addition agreements on oil-revenue sharing mechanisms were needed to generate employment and stimulate development in the south.

Rehabilitation of civil service structures was seen as a pre-requisite for peaceful and democratic referendum.

The UN would not support GoS plans to set up transit camps in the South.

The mission advised against assistance under the shape of 'return packages' and rather preconised livelihood reconstruction and capacity building.

UN Special Rapporteur on Human rights recommends to put human rights at the centre of peace (2003)

- UN Rapporteur on Human Rights recommended that human rights be considered as a core aspect to peace-building
- The oil issue exacerbating conflict should be solved by wealth-sharing arrangements in respect of the right to development
- In the context of Machakos protocol the UN should increase its involvement in Sudan by setting a new political structure, under a UN political office
- The peace negotiations are not involving all the warring parties, with potential danger of crystallizing the country in two parts
- Assistance should not only respond to emergency needs but also help to strengthen coping mechanisms

“Indeed, human rights must be central to the peace process.

Accordingly, Machakos should be built on specific mechanisms for the promotion and protection of human rights. These must include the creation of independent internal institutions (1) as well as the establishment of an effective monitoring system from the outside. In the same vein, I noted with appreciation that the civil society is playing an increasingly active role. Human rights NGOs are more visible, organised and keen to participate actively in the peace process.

The country needs increased assistance to build up civil society, to prepare the population for peace and democratic governance. This includes civil administration and education. Specific human rights benchmarks should be envisaged in the peace process, within an established timeframe.

[...]

I repeatedly stated that oil is exacerbating the conflict, insofar as the war is the result of a fight for the control of power and resources. I refer to last year's debate on the use of oil revenues. I took note of the Government's stand whereby the use of oil revenues is a sovereign decision, not to be covered by my mandate. I responded by focusing on the oil issue in connection with the right to development, and more specifically the use of oil revenues and the need to develop a wealth-sharing arrangement with the South.

[...]

In conclusion, Mr. Chairman, I already referred to the role of the United Nations, particularly in the framework of the peace process. I believe that Machakos should be the starting point for a stronger involvement of the UN in the Sudan. Accordingly, while the existing humanitarian structure should continue to look at humanitarian issues, including access, a new political structure, under the direction of a UN political office should be envisaged to tackle more political issues, including those linked to the peace process and its outcome, in terms of a post-conflict scenario. Naturally, such a structure should include a human rights component, entrusted with the monitoring of the implementation of the peace process.

[...]

I heard the view that the Government seemed to be satisfied with the outcome of the first round of the peace talks and that therefore there was no need to continue to focus on human rights issues. In my view, human rights do not belong to the post-conflict scenario, but must be an integral part, indeed be put at the heart, of the peace talks, because with no consideration of human rights today there will never be a sustainable and just peace tomorrow.

Once again, I refer to those benchmarks that I mentioned at the beginning, which should be fully integrated in the peace negotiations as further guarantees for the post-conflict scenario. I also wish to reiterate that the peace talks should be a forum for all the parties in the conflict and as such cannot be exclusively linked to the Government and the SPLM/A, which has the further disadvantage of potentially crystallizing the country into two parts, besides making the resolution of the conflict itself more difficult.

I noted that assistance continues to be directed mainly to emergencies. More energies and resources should be devoted to prepare the population for peace and democracy. Assistance should be community-based, focusing on developing a sense of ownership by the local communities, thus ensuring their sustainability. Traditional means of conflict resolution, healing and reconciliation should be encouraged. Assistance should be targeted at developing coping mechanisms. The civil society as a whole, and women in particular, should be empowered to play an active role not only in the negotiations but also in the post-conflict scenario. Also, development aid should be closely linked to tangible progress in the field of human rights.

The link between peace, democracy and human rights should always be kept into account, with equal emphasis on civil, cultural, economic, political and social rights. In this connection, relevant recommendations contained in the concluding observations of the Treaty Bodies should be the starting point for action, at both the national and international levels. Also, relevant provisions of the Durban Declaration and Program of Action stemming from the World Conference Against Racism, Racial Discrimination, Xenophobia and Related Intolerance should be referred to as further guidance.

A long-term, comprehensive, unified approach is the only way for any peace initiative to succeed. A political follow-up by the United Nations is therefore urgently needed to preserve the momentum.” (UNHCHR , 12 November 2002)

See Human Rights Watch recommendations 'Human rights and political inclusion must be part of Sudan Peace Agreement' (17 September 2003) [[External Link](#)]

Donor response

Donors multiplied efforts to respond to Darfur but forgot 4 million IDPs in the rest of Sudan

As of march 2005, the UN had received only about 5% of the required funds for 2005. (UN DIP, 16 march 2005)

“In the 2005 work plan for the Sudan, launched on 30 November 2004, the United Nations and its partners requested \$1.56 billion United States dollars to meet needs in the Sudan in 2005, with \$691 million of that sum required for activities in Darfur. To date, a total of \$345 million has been provided by donors in 2005, of which \$256 million has been dedicated to support the United Nations work plan projects in Darfur. Although this response has been positive, it remains insufficient. In addition, with \$240 million of the total sum allocated for food aid, donors have not concentrated on other equally important sectors, such as shelter and non-food items.” (UN SC, 4 March 2005)

As of late November 2004, total donor contributions towards assistance activities in Sudan in 2004 amounted to US\$ 839 million. This represented nearly three times the contributions received for 2003. This increase was largely driven by the response to the Darfur crisis; however, many of the activities related to return resettlement and reintegration of IDPs were under funded.

The largest donors for Sudan in 2004 were the United States, the European Commission and the United Kingdom, which respectively accounted for 43%, 12% and 11% of total contributions. The largest Arab donor country was Saudi Arabia who is recorded as being the seventh largest donor towards the Sudan, with Arab League countries providing about 4% of total assistance.

For 2004 the UN appealed for close to US\$ 465 million in November 2003, nearly double the budget requested in 2003. This increment reflected a rising number of persons in need of assistance, mostly due to drought, other natural disasters, escalation of conflict and expanded access to new areas. There has also been a proliferation of new agencies operating in Sudan, which has resulted in increased competition for scarce resources. While resource requirements have steadily increased, only less than half of CAP 2003 requirements had been received towards the end of year.

In August, in response to the ever-worsening emergency in Darfur and absence of a final peace agreement between the GoS and the SPLM/A, the UNCT issued a revised appeal: *Remaining humanitarian requirements for Sudan until 31 December 2004*, covering the most urgent needs for the remaining months of 2004. These mainly focused on humanitarian assistance in Darfur and return and reintegration in southern Sudan. The revised appeal amounted to US\$ 720 million among which 51% was for the Darfur crisis alone. By November 2004 almost 70% of the total funding requirements had been met. Requirements for the Darfur crisis were 77% met, while the less visible needs of returning IDPs and refugees to southern Sudan received only 35% of requested funds.

"A total of US\$ 1.14 billion have been recorded towards the Darfur crisis since September 2003. This covers contributions to UN agencies, NGOs and the Red Cross in Chad and Darfur and contributions to the African Union ceasefire-monitoring mission, the latter amounting to US\$ 176 million. Out of the total amount US\$ 824 million is registered as cash contributions and US\$ 313 million as in-kind contributions. The top three Donors are the United States, EC/ECHO and the United Kingdom respectively contributing 33%, 17%, and 14% of the funds, followed by the Netherlands, Germany and Canada.

The food sector was the largest recipient of funds accounting for close to 35% of the total funds for the Darfur crisis, followed by health with 7% of the total funding, Coordination and support services with 7%, shelter and NFI with 4% and water and sanitation with 3% of the total funding. Donors also funded multisectoral activities amounting to close to 24% of the total funding." (UN R/HC, 1 January 2005)

Delayed and inadequate funding has been systematically cited as the most serious impediment to implementing humanitarian assistance before 2004. The inadequate response in meeting critical needs and restoring livelihoods risks undermining the peace process and further infringing upon basic rights. Funding shortfalls in food security, health care, water and sanitation and other sectors are hindering attempts to stabilize the situation and to lay minimal foundations for recovery. If stretched over several years, it indirectly would contribute to maintaining a situation of crisis in Sudan. Such funding practices do not permit proper planning and prioritisation of assistance. "This imperils vulnerable beneficiaries who depend on life saving and life sustaining support and protection to recover. It also makes it difficult, if not impossible to meet internationally agreed Minimum Sphere Standards." (UN, 18 November 2003, Vol.I, pp.1,12-14)

The under resourcing of WFP emergency operations in 2003 has resulted in breaks in the food distribution pipeline and at times forced WFP to distribute incomplete food baskets as well as selectively cut rations by as much as 50 percent. A further worrying signal from donors suggests that assistance—even for humanitarian action—is being made conditional on evidence of sustained commitment by the GoS and the SPLM/A/A to the peace process.

Donors are also concerned over lack of cost sharing by local authorities. Increased oil revenue should result in increased funding of humanitarian intervention by local authorities and to reduced levels of external funding. At times the lack of agreement between agencies in deciding which projects to prioritise (include/exclude from the CAP) and in deciding between competing demands and interests, has also undermined donor confidence and risks turning the CAP into a “wish list”. Over recent years, there has been a constant and significant downward trend in the overall CAP funding. From 1998 to 2000 it ranged between 97% and 82%, whereas in 2001 and 2002 funding decreased to 62% and 45%, respectively. Moreover, by mid-year most CAP funding reaches only 20%-35% of the total requested, which significantly undermines the ability to implement timely programmes.

Since 2003, the EU, the UN, NGOs and the US have repeatedly condemned the systematic attacks on villages and centres for IDPs by Janjaweed militias and urged the Government of Sudan to put an end to Janjaweed atrocities, thoroughly investigate the attacks carried out and ensure that the perpetrators are brought to justice. They urged all parties to the conflict to facilitate humanitarian access by providing safe passage to relief agencies and refrain from any activity that harms the delivery of relief, agree to an immediate cease-fire and restore stability to the region through peace talks. (EU, 25 February 2004)

ECHO granted about 220 million Euros for humanitarian assistance in Southern and Northern Sudan during less than 10 years and planned to grant about 20 million Euros for the humanitarian crisis in 2004. The EU also promised about 427 million Euros for development assistance to Sudan after the signing of a comprehensive peace agreement. ECHO granted 4 million Euros for the Darfur crisis in 2003. EC assistance could not be implemented since the 1990s due to concerns about human rights violations and poor democracy. EC Response Strategy will focus on IDP food security and education in areas of resettlement as well as capacity building for governance.

The US also promised to grant the Government of Khartoum \$200 million once it signs the peace agreement, and subsequently increase funding to reach a total of \$500 million for rehabilitation projects in the south and other conflict-affected regions.

Reference to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles on Internal Displacement (as of March 2005)

- References to the Guiding Principles Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

Reference to the Guiding Principles in the national legislation

None

Other references to the Guiding Principles

SPLM/A draft policy on internal displacement
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SPLM/A policy on internal displacement was developed by a working group at the training workshop on the Guiding Principles in Rumbek, September 21-23, 2002, facilitated by the IDP Unit of OCHA, Brookings – SAIS Project on Internal Displacement and OCHA Nairobi. Participants, displaced themselves at least once, included the SRRA, the RASS and representatives of the emerging judiciary branch of the SPLM/A.

Objectives of the policy:

- "Ensuring that all internally displaced persons enjoy proper protection and dignified treatment by SPLM/A authorities according to international human rights and humanitarian law.
- To promote and facilitate the search for durable solutions for those internally displaced in the SPLM/A controlled areas and those returning from the (GoS) controlled territories. To enable the internally displaced to enjoy the same rights and freedoms as all citizens under areas controlled by SPLM/A.
- To clarify the role of all actors including that of the internally displaced, SPLM/A civilian authorities, intergovernmental organizations and local and international NGOs operating in the area with clear rules and principles to guide their response to the internally displaced.
- To promote the inherent capacities and productivity of the internally displaced to lead a dignified life. In this connection, internally displaced must be given access to land during the period of their displacement." (IDP Unit, 5 October 2002, p.5)

Source: SPLM/A, a working group at the training workshop, facilitated by the OCHA IDP Unit, Brookings – SAIS Project on Internal Displacement and OCHA Nairobi.

Date: 23 September 2002

Document: Draft Policy to Address the Needs of Internally Displaced Persons in SPLM/A Controlled Areas

To access the full document click on URL:

<http://www.reliefweb.int/idp/docs/reports/WorkshopRumbek0902.pdf>

Discussion on the development of a national policy on internal displacement:

"Francis M. Deng, the UN Secretary-General's Representative for Internally Displaced Persons, raised the issue during his visit to the country from 11 to 18 September, when he held official meetings with President Omar al-Beshir and other senior officials to discuss the development of a national policy and strategy on internal displacement, including the establishment of a national focal point and an institution with a specific mandate for meeting the needs of all those affected.

Members of the Government expressed support for this approach and agreed to undertake a comprehensive study that would review current Government policy and develop cooperative strategies in light of the Guiding Principles on Internal Displacement and UN institutional arrangements.

The Government also agreed to use the study as the background document for an international conference to be held next year [2002] in Khartoum which would provide a forum in which the Government, UN agencies, international and non-governmental organizations, the donor community and the internally displaced themselves could discuss the national response to internal displacement and develop ways of enhancing that response with the support and collaboration of the international community." (UN DPI 20 September 2001)

UN to assist in the dissemination of the Guiding Principles in Arabic:

"The Representative was also informed that the discussions with the Director of the Peace Unit also addressed the possible role of the United Nations, specifically UNDP, in supporting this process. While further discussion was required, a number of areas in which UNDP could potentially support the process were outlined, including wide dissemination of the Guiding Principles in Arabic and English and financial and logistical support to the process. In this regard, UNDP has suggested that the process as a whole could benefit from an agreed upon strategy rather than addressing constraints at each step." (UNCHR 5 February 2002, para. 40)

Sudan joins a consensus in favour of resolution 56/164 to disseminate the application of the Guiding Principles:

"Subsequent to the mission, at the fifty-sixth session of the General Assembly and during the Third Committee's consideration of the draft resolution on internally displaced persons, the representative of the Sudan to the Third Committee expressed concerns that the Guiding Principles had not been formally adopted by an intergovernmental forum, but, in the spirit of cooperation and support for the work of the Representative, agreed to join a consensus in favour of a resolution (56/164) that encourages the further dissemination and application of the Principles, including holding regional and other seminars on internal displacement. In the subsequent meeting

with delegations, hosted by the Permanent Representative of Switzerland to promote dialogue between Governments and the Representative of the Secretary-General, the delegate of the Sudan reiterated the support of his Government for the work of the Representative and their commitment to seeking ways of promoting dialogue with a view to reaching a consensus in support of the Guiding Principles, an approach to which the Representative is equally committed." (UN DPI 20 September 2001

For full text of the UN Resolution (56/164) on Protection of and assistance to internally displaced persons, 20 February 2002, see UN GA website
<http://www.un.org/documents/ga/res/56/a56r164.pdf>

Source: UN DPI ;UNCHR

Date: 20 September 2001; 5 February 2002

Documents: Specific Groups and individuals: Mass exoduses and displaced persons

Report of the Representative of the Secretary-General on internally displaced persons, Mr. Francis Deng, submitted pursuant to Commission on Human Rights resolution 2001/54

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Report on the Mission to the Sudan

<http://www.unhchr.ch/Huridocda/Huridoca.nsf/TestFrame/31dd5b1c12941997c1256b79004e6c39?Opendocument>

Availability of the Guiding Principles

The Guiding Principles have been translated in Arabic

Source: UNCHR

Date: 11 April 2001

Document: To access the Arabic document click on URL:

http://www.unhchr.ch/pdf/principles_arab.pdf

Training on the Guiding Principles

Sudan IDP Policy Training Workshop (Sept 2002)

The OCHA IDP Unit workshop was to start consultation process for a national-driven formulation of an IDP policy
 To enable implementation of the policy of attention to IDPs data collection and early warning systems were needed

"On August 28 and 29 the Government of Sudan held a workshop to discuss the formulation of an IDP Policy. The workshop, facilitated by the IDP Unit of OCHA included participants from several ministries involved in responding to internal displacement. The purpose of the workshop was to assist the Government of Sudan identify possible elements of an IDP policy by providing facilitated disseminated training on key human rights law and humanitarian law as it applied to internally displaced. The purpose of the workshop was not to produce policy nor begin the consultation process with concerned stakeholders but, to provide a forum for national officials to brainstorm and discuss both the process and possible contents of a policy. The Guiding Principles were used, inter alia, as a framework for discussion.

[...]the Commissioner of the Humanitarian Aid Commission, Dr. Sulaf El Din Salih made it clear the development of the policy was going to be Sudanese-owned and driven process." (OCHA IDP Unit, 5 September 2002, p.2, 5, 11-12)

Implementing partners would be: the Ministry of International Cooperation and the Humanitarian Aid Commission, Ministries of Interior, Social Planning and Culture and Ministry of Housing at the state level as well as international organizations, national and international NGOs, as well as civil society and the traditional chiefs and social/ political leaders of the displaced communities.

Source: OCHA IDP Unit

Date: 5 September 2002

Document : Sudan IDP Policy Training Workshop – North

To access the full document click on URL

<http://www.reliefweb.int/idp/docs/reports/Workshop-Kartoum-09-02.pdf>

Training workshop on the Guiding Principles with the SPLM/A, SRRA and RASS, facilitated by OCHA IDP Unit and Brookings-SAIS Project the 21-23 September 2002, in Rumbek Sudan.

On September 21-23 the SPLM/A held a training workshop on the Guiding Principles in Rumbek.

The workshop was facilitated by the IDP Unit of OCHA, Brookings – SAIS Project on Internal Displacement and OCHA Nairobi. All participants had been displaced themselves at least once, and they included the SRRA, the RASS and representatives of the emerging judiciary branch of the SPLM/A.

The main objectives included: Develop a policy on internal displacement, based on the GP, human rights law, humanitarian law, for IDPs in SPLM/A controlled areas.

Provide general training on human rights law, humanitarian law and refugee law by analogy. (IDP Unit, 5 October 2002, p.2)

Some selected recommendations of the workshop: Participants pledged to promote IDP protection and address their needs. In order to ensure voluntariness, safety and dignity of return, or resettlement, participants proposed creation of joint structure between representatives of the GOS and SPLMA to facilitate coordination and information sharing. Underscored was the need for comprehensive assessment and survey of IDPs in Sudan to clarify their number, location and needs. Participants considered persons displaced within oil-rich areas to be conflict-induced displaced. In the event of successful peace talks it was recommended that a national commission representing both GoS and SPLM/A be established with the mandate to harmonize existing policies on IDPs.

Source: OCHA IDP Unit

Date: 5 October 2002

Document: SPLM/A IDP Policy Training Workshop – South

To access full document click on URL

<http://www.reliefweb.int/idp/docs/reports/Workshop%20Rumbek%2009%2002.pdf>

Sudan IDP Policy Training Workshop (Sept 2002)

The OCHA IDP Unit workshop was to start consultation process for a national-driven formulation of an IDP policy

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The purpose of the workshop was to assist the Government of Sudan identify possible elements of an IDP policy by providing facilitated disseminated training on key human rights law and humanitarian law as it applied to internally displaced. The purpose of the workshop was not to produce policy nor begin the consultation process with concerned stakeholders but, to provide a forum for national officials to brainstorm and discuss both the process and possible contents of a policy. The Guiding Principles were used, inter alia, as a framework for discussion.

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Implementing partners would be: the Ministry of International Cooperation and the Humanitarian Aid Commission, Ministries of Interior, Social Planning and Culture and Ministry of Housing at the state level as well as international organizations, national and international NGOs, as well as civil society and the traditional chiefs and social/ political leaders of the displaced communities.

Source: OCHA IDP Unit

Date: 5 September 2002

Document : Sudan IDP Policy Training Workshop – North

To access the full document click on URL

<http://www.reliefweb.int/idp/docs/reports/Workshop-Khartoum-09-02.pdf>

OCHA workshop in Juba focused on the Guiding Principles (May 2001):

"UN-OCHA Juba conducted a two-day Rights Awareness workshop in Juba town. The workshop focused on Humanitarian Principles, Human Rights, International Humanitarian Law, and the Guiding Principles for IDPs. Participants included representatives from Government, Military Intelligence, Security, NGOs, and IDP leaders." (OCHA 31 May 2001).

"Other seminars on the Guiding Principles are being prepared for Wau and Khartoum (May or June 2002)" (E-mail OCHA Khartoum 19 March 2002) .

No report of the May 2001 workshop has been forwarded to us at 20 March 2002.

Mission of the UN representative for internally displaced as well as workshop on internal displacement postponed in May 2001 due to government's perceived infringement on sovereignty:

Workshop on Internal Displacement seen as an infringement on sovereignty by the Government of Sudan (May 2001)

However the Representative reiterated that sovereignty carries responsibilities towards citizens

"The May [2001] mission was to have been combined with a workshop on internal displacement, to be held in Khartoum, which was agreed to by the Government

[...]

As the Representative also noted in his report to the General Assembly, at the last moment, elements within the Government opposed the mission and the workshops proceeding as planned, for reasons that were not initially explained, although the Representative learned later they had to do with concerns over potential infringement of national sovereignty (ibid., para. 72). However, as also reported, the Government did indicate that the Representative was welcome to visit the country in order to discuss the situation, with the optimistic expectation that agreement on alternative arrangements could be reached. Thus, the mission as undertaken in September was markedly less extensive than that which had been planned for May. It focused ostensibly on dialoguing with the Government and representatives of the international community in Khartoum on the problem of internal displacement in the Sudan with a view to laying the foundations for an enhanced national response to the problem with the support of, and in cooperation with, the international community. Discussing with the authorities the holding of a previously agreed upon seminar in Khartoum was also central to the objectives of the mission.

[...]

The approach taken by the Representative in this and all his country missions, and one which was particularly pertinent to concerns of the Government of the Sudan regarding national sovereignty, rests on the recognition that internally displaced persons fall within the domestic jurisdiction and therefore within the national sovereignty of the States concerned. It is also based on the fundamental assumption that national sovereignty carries with it responsibilities towards the citizens and that under normal circumstances Governments discharge that responsibility. When, for a variety of reasons, Governments are unable to provide their citizens with adequate protection and assistance, they are expected to invite, or at least welcome, international cooperation to supplement or complement their own efforts." (UNCHR 5 February 2002, summary)

Source: OCHA; E-mail OCHA Khartoum ; UNCHR

Date: 31 May 2001; 19 March 2002; 5 February 2002

Documents: Specific Groups and individuals: Mass exoduses and displaced persons

Report of the Representative of the Secretary-General on internally displaced persons, Mr. Francis Deng, submitted pursuant to Commission on Human Rights resolution 2001/54

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<http://www.unhcr.ch/Huridocda/Huridoca.nsf/TestFrame/31dd5b1c12941997c1256b79004e6c39?OpenDocument>

UN-OCHA Sudan Situation Report May 2001

<http://www.reliefweb.int/w/rwb.nsf/6686f45896f15dbc852567ae00530132/75dde61b0eae2776c1256a760030e02c?OpenDocument>

ABBREVIATIONS AND ACRONYMS

AAH	Aktion Afrika Hilfe
ACF	Action Contre La Faim
ACORD	Agency for Cooperation and Research in Development
ACROSS	Association of Christian Resource Organisations Serving Sudan
ADRA	Adventist Development and Relief Agency
ADS	Area Development Scheme
AHVs	Assistant Health Visitors
AIDS	Acquired Immuno-Deficiency Syndrome
ANA	Annual Needs Assessment
ANV	Association of Napata Volunteers
ARC	American Refugee Committee
ARI	Acute Respiratory Infection
ARS	Area Rehabilitation Scheme
ASHAD	African Society for Humanitarian Aid and Development
CAHS	Community-based Animal Health Services
CAP	Consolidated Appeal Process
CARE	Cooperation for Assistance and Relief Everywhere
CBO	Community-Based Organisations
CCM	Comitato Collaborazione Medica
CDD	Control of Diarrhoeal Diseases
CEDAW	Convention on the Elimination of All Forms of Discrimination Against women
CEDC	Children in Especially Difficult Circumstances
CHW	Community Health Worker
CMA	Christian Mission Aid
COR	Commissioner for Refugees
COSV	Coordinating Committee of Voluntary Service
CPR	Contraceptives Prevaling Rate
CPS	Core Programme Strategy
CRC	Convention on the Rights of the Child
CRRS	Cush Relief and Rehabilitation Society
CRS	Catholic Relief Services
CSB	Corn Soya Blend
DAWA	Al Da'wa Al Islamiyya
DD	Diarrhoeal Diseases
DHA	Department of Humanitarian Affairs
DOT	Diocese of Torit
DRC	Democratic Republic of Congo (ex-Zaire)
DRF	Drugs Revolving Fund
DSA	Daily Subsistence Allowance
DSM	Dried Skimmed Milk
ECS	Episcopal Church of Sudan
EDP	Electronic Data Processing
EDP	Extended Delivery Point
EMOP	Emergency Operation
EPI	Expanded Programme on Immunisation
EPR	Emergency Preparedness and Response

ERT	Emergency Response Team
FAO	Food and Agriculture Organization of the United Nations
FAR	Fellowship for African Relief
FEWS	Famine Early Warning System
FGM	Female Genital Mutilation
FNC	Forestry National Corporation
FRRA	Fashoda Relief and Rehabilitation Association
GAA	German Agro Action
GHF	Global Health Foundation
GIS	Geographic Information System
GoS	Government of Sudan
GS	General Services
GW	Guinea Worm
GWEP	Guinea Worm Eradication Programme
HAC	Humanitarian Aid Commission
HAF	Humanitarian Aid Forum
HAI	Helpage International
HAI	Human Appeal International
HF	High Frequency
HHFS	Household Food Security
HIS	Health Information System
HIV	Human Immuno-Deficiency Virus
HMC	Human Moral Care
HP	Humanitarian Principles
HPB	High Protein Biscuit
HPP	Humanitarian Principles Programme
HQ	Headquarters
HSCU	Humanitarian Services and Coordination Unit
HSF	Hopital Sans Frontières
IAC	International Advisory Committee
IARA	Islamic African Relief Agency
IAS	International Aid Sweden
ICBL	International Campaign to Ban Landmines
ICRC	International Committee of the Red Cross
IDP	Internally Displaced Person
IEC	Information, Education and Communication
IFRC	International Federation of the Red Cross and Red Crescent
IGAD	Inter-Governmental Authority on Development (formerly IGADD)
IGADD	Inter-Governmental Authority on Drought and Development
IIRO	International Islamic Relief Organization
IMC	International Medical Corps
IMCI	Integrated Management of Childhood Illness
IMR	Infant Mortality Rate
IMS	Information Management System
INGO	International Non-Governmental Organisation
IOM	International Organization for Migration
IRC	International Rescue Committee
ITSH	Internal Transportation, Storage and Handling
JRRC	Joint Relief and Rehabilitation Committee
LPD	Location Profile Delivery

LTSH	Local Transportation, Storage and Handling
MCH	Maternal and Child Health
MCPU	Mine Clearance Policy Unit
MDM	Médecins Du Monde
MERLIN	Medical Emergency Relief International
MICS	Multiple Indicator Cluster Survey
MMR	Maternal Mortality Rate
MoA	Ministry of Agriculture
MoAR	Ministry of Animal Resources
MoH	Ministry of Health
MRDA	Mundri Relief and Development Association
MSF-B	Médecins Sans Frontières - Belgium
MSF-F	Médecins Sans Frontières - France
MSF-H	Médecins Sans Frontières - Holland
MTR	Mid-Term Review
MTs	Metric Tonnes
NDA	National Democratic Alliance
NCA	Norwegian Church Aid
NGO	Non Governmental Organisation
NIDS	National Immunisation Days
NNT	Neonatal Tetanus
NPA	Norwegian People's Aid
NRC	Norwegian Refugee Council
NSCC	New Sudan Council of Churches
NWC	National Water Corporation
NYHQ	New York Headquarters
OAU	Organisation of African Unity
OCHA	Office for the Coordination of Humanitarian Affairs
OI	Ockenden International
OLS	Operation Lifeline Sudan
OPV	Oral Polio Vaccine
OSIL	Operation to Save Innocent Lives
OV	Onchocerca Vulvulus
OVCi	Organismo Di Volontariato Per La Cooperazione Internazionale
OXFAM	Oxford Committee for Famine Relief
PEM	Protein/Energy Malnutrition
PHC	Primary Health Care
PHCC	Primary Health Care Centre
PHCU	Primary Health Care Unit
PRDA	Presbyterian Relief and Development Agency
Rädda Barnen	Save The Children Fund - Sweden
RASS	Relief Association of Southern Sudan
RB	Radda Barnen
RH	Reproductive Health
RPO	Resident Programme Officer
RRA	Rehabilitation of Refugee-Affected Area
SCC	Sudan Council of Churches
SCF-UK	Save the Children Fund - United Kingdom
SCF-USA	Save the Children Fund - United States of America
SCOVA	Sudan Council of Voluntary Agencies

SFP	Supplementary Feeding Programme
SGWEP	Sudan Guinea Worm Eradication Programme
SIDO	Sub-Saharan International Development Organisation
SINGO	Sudanese Indigenous Non Governmental Organisation
SLPO	Sudanese Love and Peace Organisation
SNCTP	Sudan National Committee on Traditional Practices
SOLO	Sudan Open Learning Organisation
SOP	Special Operations
SPLM/A	South Sudan People's Liberation Movement/Army
SRC	Sudanese Red Crescent
SRCS	Sudanese Red Crescent Society
SRRA	Sudan Relief and Rehabilitation Association
SSA	Special Service Agreement
SSCC	Southern States Coordinating Council
SSIA/M	South Sudan Independence Army/Movement
SSUM	South Sudan Unity Movement
STD	Sexually-Transmitted Disease
SUDRA	Sudan Development and Relief Agency
SUPRAID	Sudan Production Aid
TB	Tuberculosis
TBA	Traditional Birth Attendant
TCHA	Technical Committee on Humanitarian Assistance
TMDA	Tambura Marketing and Development Association
TT	Tetanus
U5MR	Under-five Child Mortality Rate
UAC	Unaccompanied Children
UK	United Kingdom
UN	United Nations
UNCERO	United Nations Coordinator for Emergency and Relief Operations in Sudan
UNCHS	United Nations Centre for Human Settlement
UNDMT	United Nations Disaster Management Team
UNDP	United Nations Development Programme
UNFPA	United Nations Population Fund
UNHCR	United Nations High Commissioner for Refugees
UNHCU	United Nations Humanitarian Coordination Unit
UNICEF	United Nations Children's Fund
UNIMIX	UNICEF Supplementary Feeding Food
UNMAS	United Nations Mine Action Service
UNOPS	United Nations Office for Project Services
UNSG	United Nations Secretary-General
UNV	United Nations Volunteer
VAM	Vulnerability Analysis and Mapping
VHF	Very High Frequency
VSF-B	Vétérinaires Sans Frontières - Belgium
VSF-CH	Vétérinaires Sans Frontières - Switzerland
WATSAN	Water and Sanitation
WCBA	Women of Childbearing Age
WES	Water and Environmental Sanitation
WFP	World Food Programme
WHO	World Health Organization

WOTAP	Women's Training and Promotion Programme
WVI	World Vision International

LIST OF SOURCES USED

(alphabetical order)

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